



DR. BABASAHEB AMBEDKAR

WRITINGS AND SPEECHES

Vol. - 7

- Who were Shudras.
- The Untouchables- who were they and why they became Untouchable.

DR. AMBEDKAR FOUNDATION

MINISTRY OF SOCIAL JUSTICE AND EMPOWERMENT
GOVERNMENT OF INDIA



Babasaheb Dr. B.R. Ambedkar
(14th April 1891 - 6th December 1956)

DR. BABASAHEB AMBEDKAR
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Volume No. : 7

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Ministry of Social Justice & Empowerment
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MESSAGE

Babasaheb Dr. B.R.Ambedkar, the first Law Minister of Independent India and the Chief Architect of the Indian Constitution, is also remembered and admired as a nationalist, statesman, sociologist, philosopher, anthropologist, historian, economist, jurist, a prolific writer and a powerful orator.

To celebrate Birth Centenary of Babasaheb Dr. B.R.Ambedkar in a befitting manner, a National Centenary Celebrations Committee was constituted during the year 1990-91 with the then Hon'ble Prime Minister as its Chairman. Dr. Ambedkar Foundation was established by the Government of India under the aegis of the then Ministry of Welfare (now Ministry of Social Justice & Empowerment) with the objective to promote Babasaheb's ideals and also to administer some of the schemes which emanated from the Centenary Celebrations.

During these Celebrations, the Ministries and Departments of Government of India and State and Union Territory Governments had organized number of Programmes and had announced various Schemes. The Government of Maharashtra had also organized number of Programmes/Schemes and gave fillip to its project on compilation of Dr. Ambedkar Works viz. 'Dr. Babasaheb Ambedkar Writings and Speeches'. Dr. Ambedkar Foundation was also entrusted with the project of translation and publication of Dr. Ambedkar's Works by Government of Maharashtra, into Hindi and various regional languages. The Foundation also brought English versions of CWBA Volumes and keeping in view the demand for these Volumes (English), they have now been re-printed.

Dr. Ambedkar's writings are relevant today also as they were at the time these were penned. I am sure, the readers would be enriched by his thoughts. The Foundation would be thankful for any inputs or suggestions about these Volumes.

(Dr. Thaawarchand Gehlot)

PREFACE

It is a matter of great happiness that Dr. Ambedkar Foundation, on demand of the readers, is getting the Collected Works of Babasaheb Ambedkar (CWBA) English Volumes on venerable Dr. Ambedkar's contributions re-printing for wider circulation. Dr. Ambedkar not only dedicated his life for ameliorating the conditions of deprived sections of the society but also his views on inclusiveness and *Samajik Samrasta* continue inspiring national endeavour.

Dr. Ambedkar Foundation is deeply indebted to Smt. Rashmi Chowdhary, the then Member Secretary and Joint Secretary in the Ministry of Social Justice and Empowerment for her personal efforts, constant monitoring for setting the stage and giving a shape of this re-printing version of publication, under the guidance of the Chairman, Dr. Ambedkar Foundation and the Hon'ble Minister for Social Justice & Empowerment, Government of India.

It is hoped that the Volumes on Dr. B.R. Ambedkar's contributions will continue to be a source of inspirations for the readers.



(Debendra Prasad Majhi)

Director

Dr. Ambedkar Foundation

New Delhi

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FOREWORD

The seventh volume of the Writings and Speeches of Dr. Babasaheb Ambedkar contains two of his most memorable contributions to the sociological literature of the modern India, *viz.* (1) 'Who were the Shudras?- How they came to be the Fourth Varna in the Indo-Aryan Society;' and (2) 'The Untouchables- Who Were They and Why They Became Untouchables?' Both these works have influenced the thinking of the present century which has witnessed emergence of the individual as the autonomous unit in the constitutional jurisprudence of equality and liberty. They mark the inauguration of the age of reason in our history and impress upon us the need to rearrange our social institutions in harmony with the dynamics of technological changes which have made it possible for masses to enjoy freedom. The age of reason was the effect of technologies of freedom and mobility inherent in the Railways, Roads, Telegraphs, mass education movements and greater contacts with the liberal culture of the West.

Both the works have a historical orientation and throw a critical light on the problem of the caste as the inhibitory and controlling element in the social organisation and structure. The defect of the Indian social structure was immobility which was institutionalised as the divine dispensation, leading to decay and atrophy. Dr. Ambedkar examines the problem in the light of historical evidence and shows how the caste became the fundamental criterion of social action.

The work 'Who were the Shudras?' is inscribed to the memory of Mahatma Jotiba Fule whom Dr. Ambedkar esteems "as the greatest Shudra of Modern India who made the lower classes of Hindus conscious of their slavery to the higher classes and who preached the gospel that for India social democracy was more vital than

independence from foreign rule.” The history of India is a tally of events of caste-discrimination preached and practised in the name of God. It is fair to conclude in retrospect that the caste as the institution is the survival of pre-jural society and the early jurisprudence of India like the jurisprudence of many other countries, was sustained by the belief in supernatural agencies which punish transgression of usages and can be assuaged by the magic charms and rituals. It is due to the role of religion in the early laws that the priest became the most potent instrument of the stability and the *status quo*. In Europe the priest and the supremacy of the Church was challenged by intellectuals but in India the challenge to the priestly class and the tradition came much later when the British Rule for the first time introduced masses to the democratic values which find expression in the Proclamation of 1858 which states: “And it is our further Will that, so far as may be, our subjects of whatever Race or creed, be freely and impartially admitted to offices in our service, the duties of which they may be qualified by their education, ability and integrity to discharge.” In a society of institutionalised gradation and hierarchy, this was a revolution in ideas and ideals of equality which Dr. Ambedkar has advocated in a spirit of social democracy. The present constitutional mandate for equality is traceable to this accident of history which brought with the British rule the philosophy of social change that whatever may be birth-mark, education would qualify an individual for a public office or employment. This was the first blow to the doctrine of the caste followed by the Railways which made the static society mobile. The caste is replaced by the ethics of classification which must be reasonable. Article 14 of the Constitution prohibits class legislation but does not forbid reasonable classification for the purpose of legislation as held by the Supreme Court in *‘Budhan Vs State of Bihar, 1955– Supreme Court 1045.’*

In a sense, ‘Who were the Shudras’ may be said to be an invitation by Dr. Ambedkar to a fresh historical research on this subject to know the reality of human nature which is not harmonious: it has two sides: an aggressive self-assertive side which leads to ignoring the expectations of others in the satisfaction of one’s own expectations and a co-operative social side which leads to working with others in association and groups of all sorts in recognition of common purposes. The individual needs the force of social control to keep these two sides in balance. Undoubtedly, the struggle for existence, the competition in satisfying expectations or desires whenever acute

because of the limited goods of existence, out of which they can be satisfied, disturbs this balance. In order to maintain the balance men have relied upon religion and upon reason.” (Pound - *jurisprudence* Vol. III). For the Indian historical content Dr. Ambedkar shows how the desire for monopoly of social control made the priest the most powerful factor in social control. The caste as a sociological institution resembles a Corporation in which the Board of Directors never changed. It was the law of status which classified men according to their birth and it was fixed and static; ability was not recognised as the means to cross the class-barriers. In theory and in practice the caste is the opposite of liberty, anti-thesis of equality and negation of humanity as it postulates the capacity for thinking incidental to the gift of reason for the chosen few distinguished by the marks of their pedigrees and not by the degrees of excellence evidenced in the free exercise of reason or conscience. The philosophy of the sacred texts in general discouraged the free exercise of reason with the result that the authority of the sacred texts became unquestioned and Truth became a datum and not a problem. This was the cause of intellectual atrophy and social stagnation. One is reminded of the words of Milton :

“Well knows he who uses to consider, that our faith and knowledge thrives by exercise, as well as our limbs and complexion. Truth is compared in Scripture to a streaming fountain; if her waters flow not in perpetual succession, they sicken into a muddy pool of conformity and tradition. A man may be heretic in the truth and if he believes things only because his Pastor says so, or the Assembly so determines, without knowing other reason, though his belief be true, yet the very truth he holds becomes his heresy.”

It is in this context that the works of Dr. Ambedkar will prove to be a frank assessment and a candid critique of the societal norms requiring revision and reformulation which he himself did when the opportunity presented in the Constituent Assembly which framed the noble Constitution in which fundamental rights protect the individual against despotism whether it comes from the State or Society.

‘The Untouchables’ is a sequel to the work on Shudras. Dr. Ambedkar has in his usual critical style assessed the Indian social system. He is critical of the Indian social system because it did not foster the spirit of critical inquiry. It is, indeed, a matter of regret that Indians could not produce a Voltaire or Milton or Victor Hugo because as a class they did not approve of it. The spirit of inquiry is the *sine-qua-non* of progress. The larger the area of inquiry, the

greater the scope of investigation, the greater are the chances that liberty will thrive and prosper along with tolerance and the existence of dissent. It is in this context that both the works which are brought together in the present volume provide enough material for reflection and action to the layman and will prove to be the source of inspiration to the scholar. The works have to be adjudged in the context in which they were written to shake the average Indian out of his complacency. Today the caste has become irrelevant in the light of modern technological developments. However, social sciences lag behind the technology. It is in this area that our efforts must be concentrated to improve the mind of man, so as to bring it in harmony with the technological progress. Dr. Ambedkar has shown that the caste has become out of place and is a barrier to social progress and individual advancement of freedom. The basic message of his work is that control of minds of men by some powerful individuals is bad as such control retards movement. The best source of practical instruction in the art of life is the opportunity to commit errors and this means responsibility for one's actions and their consequences. That India did not wake to the need to rearrange its social institutions for centuries and it produced Mahatma Fule and Dr. Ambedkar only under the British rule because of its democratic culture of public instruction shows the old truth which has been succinctly expressed by G. B. Shaw in, 'Man, and Superman' that "liberty means responsibility. That's why most men dread it." Modern psychoanalysts and existentialist philosophers have not been able to add to or detract from this statement. In the context of the march of technology, there is a chance of abuse of powers by those in authority and experts or priests of science who control masses by techniques of electronic media. Mind control by mass media and drugs is the awesome reality. Just consider what F. A. Hayek says: (*The Constitution of Liberty*) :

"The day may not be far off when authority by adding appropriate drugs to our water supply or by some other similar device, will be able to elate or depress, stimulate or paralyse, the minds of whole population."

Today the priesthood is replaced by experts and it is a new class or caste that has emerged. The remedy lies in making knowledge free and in widening the frontiers of practical social wisdom. It is in this context that the rationalism of Dr. Ambedkar is relevant to all of us who prize the liberty to know, to utter and to argue freely according to conscience, above all liberties.

This slightly long Foreword has become necessary to elucidate and emphasise the social context in which they came to be written and with which the post-independence generation of Indians may not be adequately acquainted. The Editorial Board has no doubt that these works will prove to be an invitation to renew our faith in our noble Constitution.

The Editorial Board thanks the Secretary, Education Department for his interest in the project. The Board places on record its appreciation of the assistance it has received from the Officer on Special Duty and his staff as well as Shri P. S. More, Director of Government Printing and Stationery, M.S., Bombay; Shri P. L. Purkar, Manager, Government Photozinco Press, Pune and the staff under them in bringing out the present volume on time.

A handwritten signature in black ink, appearing to read 'K. Kadam', with a stylized flourish at the end.

(Kamalkishor Kadam)
Education Minister and
President of the
Dr. Babasaheb Ambedkar
Source Material Publication Committee,
M.S., Bombay.

1

SHUDRAS

WHO WERE THE SHUDRAS ?

*Inscribed to the
Memory of*

MAHATMA JOTIBA FULE
(1827—1890)

*The Greatest Shudra of Modern India who made
the lower classes of Hindus conscious of their
slavery to the higher classes and who preached
the gospel that for India social democracy was
more vital than independence from foreign rule.*

WHO WERE THE SHUDRAS?

*How they came to be the
Fourth Varna in the
Indo-Aryan Society*

By
B. R. Ambedkar

[Reprint of the Edition of 1947]

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CONTENTS

	Page
<i>MESSAGE</i>	5
PREFACE	7
PREFACE - Dr. B.R. Ambedkar	9
<i>Chapter</i>	
I. THE RIDDLE OF THE SHUDRAS	21
II. THE BRAHMANIC THEORY OF THE ORIGIN OF THE SHUDRAS	37
III. THE BRAHMANIC THEORY OF THE STATUS OF THE SHUDRAS	42
IV. SHUDRAS VERSUS ARYANS	65
V. ARYANS AGAINST ARYANS	86
VI. SHUDRAS AND DASAS	101
VII. THE SHUDRAS WERE KSHATRIYAS	114
VIII. THE NUMBER OF VARNAS, THREE OR FOUR?	132
IX. BRAHMINS VERSUS SHUDRAS	140
X. THE DEGRADATION OF THE SHUDRAS	156
XI. THE STORY OF RECONCILIATION	186
XII. THE THEORY IN THE CRUCIBLE	204

APPENDICES

- I. References to the word 'Arya' (अर्य) in the Rig Veda
- II. References to the word 'Arya' (आर्य) in the Rig Veda, Yajur Veda and Atharva Veda
- III. Different meanings of the word (अर्य) found in the Rig Veda
- IV. References to 'Dasa' in the Rig Veda
- V. References to 'Dasyu' in the Rig Veda
- VI. References to the word 'Varna' in the Rig Veda

MAPS

- I. People of India according to Cephalic Index
- II. Expansion of the Pre-Teutonic Nordics
- III. Maximum Expansion of Alpines
- IV. Expansion of the Teutonic Nordics and Slavic Alpines

- NOTES :* (1) Appendices I to VI are based upon the information contained in the *Maharashtra Dyankosh*, Vol. III.
- (2) Map I is taken from the Census Report by Mr. Das. Maps II, III and IV are from Mr. Grant's Book, *The passing of the Great Race*, published by Bell & Sons.

PREFACE

IN the present stage of the literature on the subject, a book on the Shudras cannot be regarded as a superfluity. Nor can it be said to deal with a trivial problem. The general proposition that the social organization of the Indo-Aryans was based on the theory of *Chaturvarnya* and that *Chaturvarnya* means division of society into four classes—*Brahmins* (priests), *Kshatriyas* (soldiers), *Vaishyas* (traders) and *Shudras* (menials) does not convey any idea of the real nature of the problem of the Shudras nor of its magnitude. *Chaturvarnya* would have been a very innocent principle if it meant no more than mere division of society into four classes. Unfortunately, more than this is involved in the theory of *Chaturvarnya*. Besides dividing society into four orders, the theory goes further and makes the principle of graded inequality the basis for determining the terms of associated life as between the four *Varnas*. Again, the system of graded inequality is not merely notional. It is legal and penal. Under the system of *Chaturvarnya*, the *Shudra* is not only placed at the bottom of the gradation but he is subjected to innumerable ignominies and disabilities so as to prevent him from rising above the condition fixed for him by law. Indeed until the fifth *Varna* of the Untouchables came into being, the *Shudras* were in the eyes of the Hindus the lowest of the low. This shows the nature of what might be called the problem of the *Shudras*. If people have no idea of the magnitude of the problem it is because they have not cared to know what the population of the *Shudras* is. Unfortunately, the census does not show their population separately. But there is no doubt that excluding the Untouchables the *Shudras* form about 75 to 80 per cent of the population of Hindus. A treatise which deals with so vast a population cannot be considered to be dealing with a trivial problem.

The book deals with the *Shudras* in the Indo-Aryan Society. There is a view that an inquiry into these questions is of no present-day moment. It is said by no less a person than Mr. Sherring in his *Hindu Tribes and Castes*¹ that :

“Whether the Shudras were Aryans, or aboriginal inhabitants of India, or tribes produced by the union of the one with the other, is of little practical

1 Vol. I, Introduction, P. xxi.

moment. They were at an early period placed in a class by themselves, and received the fourth or last degree of rank, yet at a considerable distance from the three superior castes. Even though it be admitted that at the outset they were not Aryans, still, from their extensive intermarriages with the three Aryan Castes, they have become so far Aryanized that, in some instances as already shown, they have gained more than they have lost, and certain tribes now designated as Shudras are in reality more Brahmins and Kshatriyas than anything else. In short, they have become as much absorbed in other races as the Celtic tribes of England have become absorbed in the Anglo-Saxon race; and their own separate individuality, if they ever had any, has completely vanished."

This view is based on two errors. Firstly, the present-day Shudras are a collection of castes drawn from heterogeneous stocks and are racially different from the original Shudras of the Indo-Aryan society. Secondly, in the case of Shudras the centre of interest is not the Shudras as a people but the legal system of pains and penalties to which they are subjected. The system of pains and penalties was no doubt originally devised by the Brahmins to deal with the Shudras of the Indo-Aryan society, who have ceased to exist as a distinct, separate, identifiable community. But strange as it may seem the Code intended to deal with them has remained in operation and is now applied to all low-class Hindus, who have no lock stock with the original *Shudras*. How this happened must be a matter of curiosity to all. My explanation is that the Shudras of the Indo-Aryan Society in course of time became so degraded as a consequence of the severity of the Brahmanical laws that they really came to occupy a very low state in public life. Two consequences followed from this. One consequence was a change in the connotation of the word Shudra. The word Shudra lost its original meaning of being the name of a particular community and became a general name for a low-class people without civilization, without culture, without respect and without position. The second consequence was that the widening of the meaning of the word Shudra brought in its train the widening of the application of the Code. It is in this way that the so-called *Shudras* of the present-day have become subject to the Code, though they are not *Shudras* in the original sense of the word. Be that as it may, the fact remains that the Code intended for the original culprits has come to be applied to the innocents. If the Hindu law-givers had enough historical sense to realize that the original *Shudras* were different from the present-day low-class people, this tragedy—this massacre of the innocents—would have been avoided. The fact, however unfortunate it may be, is that the Code is applied to the present-day

Shudras in the same rigorous manner in which it was applied to the original *Shudras*. How such a Code came into being cannot therefore be regarded as of mere antiquarian interest to the *Shudras* of to-day.

While it may be admitted that a study of the origin of the *Shudras* is welcome, some may question my competence to handle the theme. I have already been warned that while I may have a right to speak on Indian politics, religion and religious history of India are not my field and that I must not enter it. I do not know why my critics have thought it necessary to give me this warning. If it is an antidote to any extravagant claim made by me as a thinker or a writer, then it is unnecessary. For, I am ready to admit that I am not competent to speak even on Indian politics. If the warning is for the reason that I cannot claim mastery over the Sanskrit language, 'I admit this deficiency. But I do not see why it should disqualify me altogether from operating in this field. There is very little of literature in the Sanskrit language which is not available in English. The want of knowledge of Sanskrit need not therefore be a bar to my handling a theme such as the present. For I venture to say that a study of the relevant literature, albeit in English translations, for 15 years ought to be enough to invest even a person endowed with such moderate intelligence like myself, with sufficient degree of competence for the task. As to the exact measure of my competence to speak on the subject, this book will furnish the best testimony. It may well turn out that this attempt of mine is only an illustration of the proverbial fool rushing in where the angels fear to tread. But I take refuge in the belief that even the fool has a duty to perform, namely, to do his bit if the angel has gone to sleep or is unwilling to proclaim the truth. This is my justification for entering the prohibited field.

What is it that is noteworthy about this book? Undoubtedly the conclusions which I have reached as a result of my investigations. Two questions are raised in this book: (1) Who were the *Shudras*? and (2) How they came to be the fourth *Varna* of the Indo-Aryan society? My answers to them are summarised below :

- (1) The *Shudras* were one of the Aryan communities of the Solar race.
- (2) There was a time when the Aryan society recognized only three *Varnas*, namely, *Brahmins*, *Kshatriyas* and *Vaishyas*.
- (3) The *Shudras* did not form a separate *Varna*. They ranked as part of the Kshatriya *Varna* in the Indo-Aryan society.

- (4) There was a continuous feud between the *Shudra* kings and the *Brahmins* in which the *Brahmins* were subjected to many tyrannies and indignities.
- (5) As a result of the hatred towards the *Shudras* generated by their tyrannies and oppressions, the *Brahmins* refused to perform the *Upanayana* of the *Shudras*.
- (6) Owing to the denial of *Upanayana*, the *Shudras* who were Kshatriyas became socially degraded, fell below the rank of the *Vaishyas* and thus came to form the fourth *Varna*.

I must of course await the verdict of scholars on these conclusions. That these conclusions are not merely original but they are violently opposed to those that are current is of course evident. Whether these conclusions will be accepted or not will depend upon the mentality of a person claiming to have a right to sit in judgement over the issue. Of course, if he is attached to a particular thesis he will reject mine. I would not however bother about his judgement for he would be an adversary from whom nothing can be expected except opposition. But if a person is an honest critic, howsoever cautious, however conservative he may be, provided that he has an open mind and a readiness to accept facts, I do not despair of converting him to my view. This expectation may fail to materialize, but about one thing I am quite certain. My critics will have to admit that the book is rich in fresh insights and new visions.

Apart from scholars, how the Hindu public will react may be an interesting speculation. The Hindus of to-day fall into five definite classes. There is a class of Hindus, who are known as orthodox and who will not admit that there is anything wrong with the Hindu social system. To talk of reforming it is to them rank blasphemy. There is a class of Hindus who are known as Arya Samajists. They believe in the *Vedas* and only in the *Vedas*. They differ from the orthodox inasmuch as they discard everything which is not in the *Vedas*. Their gospel is that of return to the *Vedas*. There is a class of Hindus who will admit that the Hindu social system is all wrong, but who hold that there is no necessity to attack it. Their argument is that since law does not recognize it, it is a dying, if not a dead system. There is a class of Hindus, who are politically minded. They are indifferent to such questions. To them *Swaraj* is more important than social reform. The fifth class of Hindus are those who are rationalists and who regard social reforms as of primary importance, even more important than *Swaraj*.

With the Hindus, who fall into the second category, those who are likely to regard the book as unnecessary, I cannot agree. In a way, they are right when they say that the existing law in British India does not recognize the caste system prevalent in the Hindu society. It is true that, having regard to section 11 of the Civil Procedure Code, it would not be possible for a Hindu to obtain a declaration from a civil court that he belongs to a particular *Varna*. If courts in British India have to consider the question whether a person belongs to a particular *Varna*, it is only in cases of marriage, inheritance and adoption, the rules of which vary according to the *Varna* to which the party belongs. While it is true that the Law in British India does not recognize the four *Varnas* of the Hindus, one must be careful not to misunderstand what this means. To put it precisely: (1) it does not mean that the observance of the *Varna* system is a crime; (2) it does not mean that the *Varna* system has disappeared; (3) it does not mean that the *Varna* system is not given effect to in cases where the observance of its rules are necessary to acquiring civil rights; (4) it only means that the general legal sanction behind the *Varna* system has been withdrawn. Now, law is not the only sanction which goes to sustain social institutions. Institutions are sustained by other sanctions also. Of these, religious sanction and social sanction are the most important. The *Varna* system has a religious sanction. Because it has a religious sanction, the *Varna* system has the fullest social sanction from the Hindu society. With no legal prohibition, this religious sanction has been more than enough to keep the *Varna* system in full bloom. The best evidence to show that the *Varna* system is alive notwithstanding there is no law to enforce it, is to be found in the fact that the status of the *Shudras* and the Untouchables in the Hindu society has remained just what it has been. It cannot therefore be said that a study such as this is unnecessary.

As to the politically-minded Hindu, he need not be taken seriously. His line of approach is generally governed by a short-term view more than by long-range considerations. He is willing to follow the line of least resistance and postpone a matter, however urgent, if it is likely to make him unpopular. It is therefore quite natural if the politically-minded Hindu regards this book as a nuisance.

The book treads heavily on the toes of the Arya Samajists. My conclusions have come in sharp conflict with their ideology at two most important points. The Arya Samajists believe that the four

Varnas of the Indo-Aryan society have been in existence from the very beginning. The book shows that there was a time when there were only three *Varnas* in the Indo-Aryan society. The Arya Samajists believe that the *Vedas* are eternal and sacrosanct. The book shows that portions of the *Vedas* at any rate, particularly the *Purusha Sukta*, which is the mainstay of the Arya Samajists, are fabrications by *Brahmins* intended to serve their own purposes. Both these conclusions are bound to act like atomic bombs on the dogmas of the Arya Samajists.

I am not sorry for this clash with Arya Samajists. The Arya Samajists have done great mischief in making the Hindu society a stationary society by preaching that the *Vedas* are eternal, without beginning, without end, and infallible, and that the social institutions of the Hindus being based on the *Vedas* are also eternal, without beginning, without end, infallible and therefore requiring no change. To be permeated with such a belief is the worst thing that can happen to a community. I am convinced that the Hindu society will not accept the necessity of reforming itself unless and until this Arya Samajists' ideology is completely destroyed. The book does render this service, if no other.

What the Orthodox Hindu will say about this book I can well imagine for I have been battling with him all these years. The only thing I did not know was how the meek "and non-violent looking Hindu can be violent when anybody attacks his Sacred Books. I became aware of it as never before when last year I received a shower of letters from angry Hindus, who became quite unbalanced by my speech on the subject delivered in Madras. The letters were full of filthy abuse, unmentionable and unprintable, and full of dire threats to my life. Last time they treated me as a first offender and let me off with mere threats. I don't know what they will do this time. For on reading the book they are sure to find more cause for anger at what in their eyes is a repetition of the offence in an aggravated form for having brought forth chapter and verse to show that what goes by the name of Sacred Books contains fabrications which are political in their motive, partisan in their composition and fraudulent in their purpose. I do not propose to take any notice of their vilifications or their threats. For I know very well that they are a base crew who, professing to defend their religion, have made religion a matter of trade. They are more selfish than any other set of beings in the world, and are prostituting their intelligence to support the vested

interests of their class. It is a matter of no small surprise that when the mad dogs of orthodoxy are let loose against a person who has the courage to raise his voice against the so-called Sacred Books of the Hindus, eminent Hindus occupying lofty places, claiming themselves to be highly educated and who could be expected to have no interest and to have a free and open mind become partisans and join the outcry. Even Hindu Judges of High Courts and Hindu Prime Ministers of Indian States do not hesitate to join their kind. They go further. They not only lead the howl against him but even join in the hunt. What is outrageous is that they do so because they believe that their high stations in life would invest their words with an amount of terror which would be sufficient enough to cow down any and every opponent of orthodoxy. What I would like to tell these amiable gentlemen is that they will not be able to stop me by their imprecations. They do not seem to be aware of the profound and telling words of Dr. Johnson who when confronted with analogous situation said, 'I am not goint to be deterred from catching a cheat by the menaces of a ruffian.' I do not wish to be rude to these high-placed critics, much less do I want to say that they are playing the part of a ruffian interested in the escape of a cheat. But I do want to tell them two things: firstly that I propose, no matter what happens, to follow the determination of Dr. Johnson in the pursuit of historical truth by the exposure of the Sacred Books so that the Hindus may know that it is the doctrines contained in their Sacred Books which are responsible for the decline and fall of their country and their society; secondly, if the Hindus of this generation do not take notice of what I have to say I am sure the future generation will. I do not despair of success. For I take consolation in the words of the poet Bhavabhuti who said, "Time is infinite and earth is vast, some day there will be born a man who will appreciate what I have said." Whatever that be the book is a challenge to orthodoxy.

The only class of Hindus, who are likely to welcome the book are those who believe in the necessity and urgency of social reform. The fact that it is a problem which will certainly take a long time to solve and will call the efforts of many generations to come, is in their opinion, no justification for postponing the study of that problem. Even an ardent Hindu politician, if he is honest, will admit that the problems arising out of the malignant form of communalism, which is inherent in the Hindu social organization and which the politically minded Hindus desire to ignore or postpone, invariably return to

plague those very politicians at every turn. These problems are not the difficulties of the moment. They are our permanent difficulties, that is to say, difficulties of every moment. I am glad to know that such a class of Hindus exists. Small though they be, they are my mainstay and it is to them that I have addressed my argument.

It will be said that I have shown no respect for the sacred literature of the Hindus which every sacred literature deserves. If the charge be true, I can plead two circumstances in justification of myself. Firstly I claim that in my research I have been guided by the best tradition of the historian who treats all literature as vulgar—I am using the word in its original sense of belonging to the people—to be examined and tested by accepted rules of evidence without recognizing any distinction between the sacred and the profane and with the sole object of finding the truth. If in following this tradition I am found wanting in respect and reverence for the sacred literature of the Hindus my duty as a scholar must serve as my excuse. Secondly, respect and reverence for the sacred literature cannot be made to order. They are the results of social factors which make such sentiments natural in one case and quite unnatural in another. Respect and reverence for the sacred literature of the Hindus is natural to a Brahmin scholar. But it is quite unnatural in a non-Brahmin scholar. The explanation of this difference is quite simple. That a Brahmin scholar should treat this sacred literature with uncritical reverence and forbear laying on it the heavy hands which the detachment of an intellectual as distinguished from the merely educated is what is to be expected. For what is this sacred literature? It is a literature which is almost entirely the creation of the Brahmins. Secondly, its whole object is to sustain the superiority and privileges of the Brahmins as against the non-Brahmins. Why should not the Brahmins uphold the sanctity of such a literature? The very reason that leads the Brahmin to uphold it makes the non-Brahmin hate it. Knowing that what is called the sacred literature contains an abominable social philosophy which is responsible for their social degradation, the non-Brahmin reacts to it in a manner quite opposite to that of the Brahmin. That I should be wanting in respect and reverence for the sacred literature of the Hindus should not surprise any one if it is borne in mind that I am a non-Brahmin, not even a non-Brahmin but an Untouchable. My antipathy to the sacred literature could not naturally be less than that of the non-Brahmin. As Prof. Thorndyke says: that a man thinks is a biological fact what he thinks is a sociological fact.

I am aware that this difference in the attitude of a Brahmin scholar and a non-Brahmin scholar towards this sacred literature—literature which is the main source of the material for the study of the problems of the social history of the Hindus—the former with his attitude of uncritical commendation and the latter with his attitude of unsparing condemnation is most harmful to historical research.

The mischief done by the Brahmin scholars to historical research is obvious. The *Brahmin* scholar has a two-fold interest in the maintenance of the sanctity of this literature. In the first place being the production of his forefathers his filial duty leads him to defend it even at the cost of truth. In the second place as it supports the privileges of the *Brahmins*, he is careful not to do anything which would undermine its authority. The necessity of upholding the system by which he knows he stands to profit, as well as of upholding the prestige of his forefathers as the founders of the system, acts as a silent immaculate premise which is ever present in the mind of the *Brahmin* scholar and prevents him from reaching or preaching the truth. That is why one finds so little that is original in the field of historical research by *Brahmin* scholars unless it be a matter of fixing dates or tracing genealogies. The non-Brahmin scholar has none of these limitations and is therefore free to engage himself in a relentless pursuit of truth. That such a difference exists between the two classes of students is not a mere matter of speculation. This very book is an illustration in point. It contains an exposure of the real character of the conspiracy against the *Shudras*, which no *Brahmin* scholar could have had the courage to present.

While it is true that a non-Brahmin scholar is free from the inhibitions of the Brahmin scholar he is likely to go to the other extreme and treat the whole literature as a collection of fables and fictions fit to be thrown on the dung heap not worthy of serious study. This is not the spirit of an historian. As has been well said, an historian ought to be exact, sincere, and impartial; free from passion, unbiased by interest, fear, resentment or affection; and faithful to the truth, which is the mother of history, the preserver of great actions, the enemy of oblivion, the witness of the past, the director of the future. In short he must have an open mind, though it may not be an empty mind, and readiness to examine all evidence even though it be spurious. The non-Brahmin scholar may find it difficult to remain true to this spirit of the historian. He is likely to import the spirit of non-Brahmin politics in the examination of the truth or falsity of the

ancient literature which is not justifiable. I feel certain that in my research I have kept myself free from such prejudice. In writing about the *Shudras* I have had present in my mind no other consideration except that of pure history. It is well-known that there is a non-Brahmin movement in this country which is a political movement of the *Shudras*. It is also well-known that I have been connected with it. But I am sure that the reader will find that I have not made this book a preface to non-Brahmin politics.

I am sensible of the many faults in the presentation of the matter. The book is loaded with quotations, too long and too many. The book is not a work of art and it is possible that readers will find it tedious to go through it. But this fault is not altogether mine. Left to myself, I would have very willingly applied the pruning knife. But the book is written for the ignorant and the uninformed *Shudras*, who do not know how they came to be what they are. They do not care how artistically the theme is handled. All they desire is a full harvest of material—the bigger the better. Those of them to whom I have shown the manuscript have insisted upon retaining the quotations. Indeed, their avidity for such material was so great that some of them went to the length of insisting that besides giving translations in English in the body of the book I should also add the original Sanskrit texts in an Appendix. While I had to deny their request for the reproduction of the original Sanskrit texts, I could not deny their request for retaining the translations on the ground that the material is not readily available to them. When one remembers that it is the *Shudras*, who have largely been instrumental in sustaining the infamous system of *Chaturvarnya*, though it has been the primary cause of their degradation and that only the *Shudras* can destroy the *Chaturvarnya*, it would be easy to realize why I allowed the necessity of educating and thereby preparing the *Shudra* fully for such a sacred task to outweigh all other considerations which favoured the deletion or if not deletion the abridgement of the quotations.

There are three persons to whom I owe my thanks. Firstly to the writer of Adhyaya LX of the Shanti Parva of the Mahabharata. Whether it is Vyasa, *Vaishampayana*, *Suta*, *Lomaharshana* or *Bhrigu* it is difficult to say. But whoever he was, he has rendered great service by giving a full description of *Paijavana*. If he had not described *Paijavana* as a *Shudra*, the clue to the origin of the *Shudra* would have been completely lost. I express my gratitude to the writer

for having preserved so important a piece of information for posterity. Without it, this book could not have been written. Secondly, I must thank Prof. Kangle of Ismail Yusuf College, Andheri, Bombay. He has come to my rescue and has checked the translation of Sanskrit shlokas which occur in the book. As I am not a Sanskrit scholar, his help has been to me a sort of an assurance that I have not bungled badly in dealing with the material which is in Sanskrit. The fact that he has helped me does not mean that he is responsible for such faults and errors as may be discovered by my critics. Thanks are also due to Prof. Manohar Chitnis of the Siddharth College, Bombay, who has been good enough to prepare the Index.

I am grateful to Messrs. Charles Scribner's Sons Publishers, New York for their kind permission to reproduce the three maps from Mr. Madison Grant's *Passing of the Great Race* and which form Appendices II, III and IV of this book.

10th October 1946

B. R. AMBEDKAR

"RAJGRIHA,"

DADAR,

BOMBAY 14.

CHAPTER I

THE RIDDLE OF THE SHUDRAS

EVERYBODY knows that the Shudras formed the fourth Varna of the Indo-Aryan society. But very few have cared to inquire who were these Shudras and how they came to be the fourth Varna. That such an enquiry is of first-rate importance is beyond question. For, it is worth knowing how the Shudras came to occupy the fourth place, whether it was the result of evolution or it was brought about by revolution.

Any attempt to discover who the Shudras were and how they came to be the fourth Varna must begin with the origin of the *Chaturvarnya* in the Indo-Aryan society. A study of the *Chaturvarnya* must in its turn start with a study of the ninetieth Hymn of the Tenth Mandala of the Rig Veda—a Hymn, which is known by the famous name of *Purusha Sukta*.

What does the Hymn say? It says¹ :

- “1. Purusha has a thousand heads, a thousand eyes, a thousand feet. On every side enveloping the earth he overpassed (it) by a space of ten fingers.
2. Purusha himself is this whole (universe), whatever has been and whatever shall be. He is the Lord of immortality, since (or when) by food he expands.
3. Such is his greatness, and Purusha is superior to this. All existences are a quarter to him; and three-fourths of him are that which is immortal in the sky.
4. With three-quarters, Purusha mounted upwards. A quarter of him was again produced here. He was then diffused everywhere over things which eat and things which do not eat.
5. From him was born Viraj, and from Viraj, Purusha. When born, he extended beyond the earth, both behind and before.
6. When the gods performed a sacrifice with Purusha as the oblation, the spring was its butter, the summer its fuel, and the autumn its (accompanying) offering.

7. This victim, Purusha, born in the beginning, they immolated on the sacrificial grass. With him the gods, the *Sadhyas*, and the *rishis* sacrificed.
8. From that universal sacrifice were provided curds and butter. It formed those aerial (creatures) and animals both wild and tame.
9. From that universal sacrifice sprang the *rik* and *saman* verses, the metres and the *yaajus*.
10. From it sprang horses, and all animals with two rows of teeth; kine sprang from it; from it goats and sheep.
11. When (the gods) divided Purusha, into how many parts did they cut him up? What was his mouth? What arms (had he)? What (two objects) are said (to have been) his thighs and feet?
12. The Brahmana was his mouth, the Rajanya was made his arms; the being called the Vaishya, he was his thighs; the Shudra sprang from his feet.
13. The moon sprang from his soul (manas), the sun from the eye, Indra and Agni from his mouth and Vayu from his breath.
14. From his navel arose the air, from his head the sky, from his feet the earth, from his ear the (four) quarters; in this manner (the gods) formed the worlds.
15. When the gods, performing sacrifices, bound Purusha as a victim, there were seven sticks (stuck up) for it (around the fire), and thrice seven pieces of fuel were made.
16. With sacrifices the gods performed the sacrifice. These were the earliest rites. These great powers have sought the sky, where are the former *Sadhyas*, gods."

The *Purusha Sukta* is a theory of the origin of the Universe. In other words, it is a cosmogony. No nation which has reached an advanced degree of thought has failed to develop some sort of cosmogony. The Egyptians had a cosmogony somewhat analogous with that set out in the *Purusha Sukta*. According to it,¹ it was god *Khnumu*, 'the shaper,' who shaped living things on the potter's wheel, "created all that is, he formed all that exists, he is the father of fathers, the mother of mothers... he fashioned men, he made the gods, he was the father from the beginning... he is the creator of the heaven, the earth, the underworld, the water, the mountains... he formed a male and a female of all birds, fishes, wild beasts, cattle and of all worms." A very, similar cosmogony is found in Chapter I of the Genesis in the Old Testament.

Cosmogonies have never been more than matters of academic interest and have served no other purpose than to satisfy the curiosity of the student and to help to amuse children. This may be true of some parts of the *Purusha Sukta*. But it certainly cannot be true of the whole of it. That is because all verses of the *Purusha Sukta* are not of the same importance and do not have the same significance. Verses

1 Encyclopaedia of Religion and Ethics, Vol. IV, p. 145.

11 and 12 fall in one category and the rest of the verses fall in another category. Verses other than 11 and 12 may be regarded as of academic interest. Nobody relies upon them. No Hindu even remembers them. But it is quite different with regard to verses 11 and 12. *Prima facie* these verses do no more than explain how the four classes, namely, (1) Brahmins or priests, (2) Kshatriyas or soldiers, (3) Vaishyas or traders, and (4) Shudras or menials, arose from the body of the Creator. But the fact is that these verses are not understood as being merely explanatory of a cosmic phenomenon. It would be a grave mistake to suppose that they were regarded by the Indo-Aryans as an innocent piece of a poet's idle imagination. They are treated as containing a mandatory injunction from the Creator to the effect that Society must be constituted on the basis of four classes mentioned in the *Sukta*. Such a construction of the verses in question may not be warranted by their language. But there is no doubt that according to tradition this is how the verses are construed, and it would indeed be difficult to say that this traditional construction is not in consonance with the intention of the author of the *Sukta*. Verses 11 and 12 of the *Purusha Sukta* are, therefore, not a mere cosmogony. They contain a divine injunction prescribing a particular form of the constitution of society.

The constitution of society prescribed by the *Purusha Sukta* is known as *Chaturvarnya*. As a divine injunction, it naturally became the ideal of the Indo-Aryan society. This ideal of *Chaturvarnya* was the mould in which the life of the Indo-Aryan community in its early or liquid state was cast. It is this mould, which gave the Indo-Aryan community its peculiar shape and structure.

This reverence, which the Indo-Aryan Society had for this ideal mould of *Chaturvarnya*, is not only beyond question, but it is also beyond description. Its influence on the Indo-Aryan society has been profound and indelible. The social order prescribed by the *Purusha Sukta* has never been questioned by anyone except Buddha. Even Buddha was not able to shake it, for the simple reason that both after the fall of Buddhism and even during the period of Buddhism there were enough law-givers, who made it their business not only to defend the ideal of the *Purusha Sukta* but to propagate it and to elaborate it.

To take a few illustrations of this propaganda in support of the *Purusha Sukta*, reference may be made to the *Apastamba Dharma Sutra* and the *Vasishttha Dharma Sutra*. The *Apastamba Dharma*

Sutra states:

“There are four castes—Brahmins, Kshatriyas, Vaishyas and Shudras.

Among these, each preceding (caste) is superior by birth to the one following.¹

For all these excepting Shudras and those who have committed bad actions are ordained (1) the initiation (*Upanayan* or the wearing of the sacred thread), (2) the study of the Veda and (3) the kindling of the sacred fire (i.e., the right to perform sacrifice).²

This is repeated by *Vasishtha Dharma Sutra* which says :

“There are four castes (Varnas), Brahmins, Kshatriyas, Vaishyas and Shudras. Three castes, Brahmins, Kshatriyas and Vaishyas (are called) twice-born.

Their first birth is from their mother; the second from the investiture with the sacred girdle. In that (second birth) the Savitri is the mother, but the teacher is said to be, the father.

They call the teacher father, because he gives instruction in the Veda.³

The four castes are distinguished by their origin and by particular sacraments.

There is also the following passage of the Veda : “The Brahmana was his mouth, the Kshatriya formed his arms, the Vaishya his thighs; the Shudra was born from his feet.”

It has been declared in the following passage that a Shudra shall not receive the sacraments.”

Many other law-givers have in parrot-like manner repeated the theme of the *Purusha Sukta* and have reiterated its sanctity. It is unnecessary to repeat their version of it. All those, who had raised any opposition to the sanctity of the ideal set out in the *Purusha Sukta*, were finally laid low by Manu, the architect of the Hindu society. For Manu did two things. In the first place, he enunciated afresh the ideal of the *Purusha Sukta* as a part of divine injunction. He said :

“For the prosperity of the worlds, he (the creator) from his mouth, arms, thighs and feet created the Brahmin, Kshatriya and Vaishya and the Shudra.⁴

The Brahmin, Kshatriya (and) Vaishya (constitute) the three twice-born castes; but the fourth the shudra has only one birth.⁵”

In this he was no doubt merely following his predecessors. But he went a step further and enunciated another proposition in which he said :

“Veda is the only and ultimate sanction for Dharma.”⁶

Bearing in mind that the *Purusha Sukta* is a part of the Veda, it cannot be difficult to realize that Manu invested the social ideal of

1 Prasna 1. Patala 1, Khanda 1, Sutras 4-5.

2 Prasna 1, Patala 1, Khanda 1, Sutra 6.

3 Chapter II, Verses 1-4.

4 Manu, Chapter I, Verse 31.

5 *Ibid.*, Chapter X, Verse 4.

6 *Ibid.*, Chapter II, Verse 6.

Chaturvarnya contained in the *Purusha Sukta*, with a degree of divinity and infallibility which it did not have before.

II

A critical examination of the *Purusha Sukta* therefore becomes very essential.

It is claimed by the Hindus that the *Purusha Sukta* is unique. This is no doubt a tall claim for an idea which came to birth when the mind of man was primitive and was without the rich endowment of varied thought available in modern times. But there need not be much difficulty in admitting this claim provided it is understood in what respect the *Purusha Sukta* is unique.

The principal ground for regarding the *Purusha Sukta* as unique is that the ideal of social organization, namely, the ideal of *Chaturvarnya* which it upholds, is unique. Is this a sufficient ground for holding the *Purusha Sukta* as unique? The *Purusha Sukta* would really have been unique if it had preached a classless society as an ideal form of society. But what does the *Purusha Sukta* do? It preaches a class-composed society as its ideal. Can this be regarded as unique? Only a nationalist and a patriot can give an affirmative answer to this question. The existence of classes has been the *de facto* condition of every society, which is not altogether primitive. It is a normal state of society all over the world where society is in a comparatively advanced state. Looking at it from this point of view, what uniqueness can there be in the *Purusha Sukta*, when it does no more than recognize the sort of class composition that existed in the Indo-Aryan society?

Notwithstanding this, the *Purusha Sukta* must be admitted to be unique, though for quite different reasons. The unfortunate part of the matter is that many people do not know the true reasons why the *Purusha Sukta* should be regarded as unique. But once the true reasons are known, people will not only have no hesitation in accepting that the *Purusha Sukta* is a unique production of the human intellect but will perhaps be shocked to know what an extraordinary production of human ingenuity it is.

What are the features of the social ideal of the *Purusha Sukta*, which give it the hall mark of being unique? Though the existence

of classes is the *de facto* condition of every society, nevertheless no society has converted this *de facto* state of affairs into a *de jure* connotation of an ideal society. The scheme of the *Purusha Sukta* is the only instance in which the real is elevated to the dignity of an ideal. This is the first unique feature of the scheme set forth in the *Purusha Sukta*. Secondly, no community has given the *de facto* state of class composition a legal effect by accepting it as a *de jure* connotation of an ideal society. The case of the Greeks is a case in point. Class composition was put forth as an ideal social structure by no less an advocate than Plato. But the Greeks never thought of making it real by giving it the sanction of law. The *Purusha Sukta* is the only instance in which an attempt was made to give reality to the ideal by invoking the sanction of law. Thirdly, no society has accepted that the class composition is an ideal. At the most they have accepted it as being natural. The *Purusha Sukta* goes further. It not only regards class composition as natural and ideal, but also regards it as sacred and divine. Fourthly, the number of the classes has never been a matter of dogma in any society known to history. The Romans had two classes. The Egyptians thought three were enough. The Indo-Iranians also had no more than three classes:¹ (1) The *Athravans* (priests) (2) *Rathaeshtar* (warriors) and (3) the *Vastrya-fshuyat* (peasantry). The scheme of the *Purusha Sukta* makes the division of society into four classes a matter of dogma. According to it, there can be neither more nor less. Fifthly, every society leaves a class to find its place *vis-a-vis* other classes according to its importance in society as may be determined by the forces operating from time to time. No society has an official gradation laid down, fixed and permanent, with an ascending scale of reverence and a descending scale of contempt. The scheme of the *Purusha Sukta* is unique, inasmuch as it fixes a permanent warrant of precedence among the different classes, which neither time nor circumstances can alter. The warrant of precedence is based on the principle of graded inequality among the four classes, whereby it recognizes the Brahmin to be above all, the Kshatriya below the Brahmin but above the Vaishya and the Shudra, the Vaishya below the Kshatriya but above the Shudra and the Shudra below all.

1 Geiger : *Civilization of the Eastern Iranians in Ancient Times*, Vol. II, P.64

III

These are the real reasons why the *Purusha Sukta* is unique. But the *Purusha Sukta* is not merely unique, it is also extraordinary. It is extraordinary because it is so full of riddles. Few seem to be aware of these riddles. But anyone who cares to inquire will learn how real in their nature and how strange in their complexion these riddles are. The cosmogony set out in the *Purusha Sukta* is not the only cosmogony one comes across in the Rig Veda. There is another cosmogony which is expounded in the 72nd Hymn of the Tenth Mandala of the Rig Veda. It reads as follows :¹

- “1. Let us proclaim with a clear voice of the generation of the gods (the divine company), who, when their praises are recited, look (favourably on the worshipper) in this latter age.
2. Brahmanaspati filled these (generations of the gods) with breath as a blacksmith (his bellows); in the first age of the gods the existent was born of the non-existent.
3. In the first age of the gods the existent was born of the non-existent; after that the quarters (of the horizon) were born, and after them the upward-growing (trees).
4. The earth was born from the upward growing (tree), the quarters were born from the earth; Daksha was born from Aditi and afterwards Aditi from Daksha.
5. Aditi, who was thy daughter, Daksha, was born; after her, the gods were born, adorable, freed from the bonds of death.
6. When, gods, you abode in this pool well-arranged, then a pungent dust went forth from you as if you were dancing.
7. When, gods, you filled the worlds (with your radiance) as clouds (fill the earth with rain) then you brought fourth the sun hidden in the ocean.
8. Eight sons (there were) of Aditi who were born from her body; she approached the gods with seven, she sent forth Martanda on high.
9. With seven sons Aditi went to a former generation, but she bore Martanda for the birth and death (of human beings).

The two cosmologies are fundamentally different in principle as well as in detail. The former explains creation *ex nihilo* ‘being was born of non-being’. The latter ascribes creation to a being which it calls *Purusha*. Why in one and the same book two such opposite cosmologies should have come to be propounded? Why did the author of the *Purusha Sukta* think it necessary to posit a *Purusha* and make all creation emanate from him?

Any one who reads the *Purusha Sukta* will find that it starts with the creation of donkeys, horses, goats, etc., but does not say anything

1 Wilson’s, *Rig Veda*, Vol. VI, p. 129

about the creation of man. At a point when it would have been natural to speak of the creation of man, it breaks off the chain and proceeds to explain the origin of the classes in the Aryan society. Indeed, the *Purusha Sukta* appears to make the explaining of the four classes of the Aryan society to be its primary concern. In doing this, the *Purusha Sukta* stands in complete contrast not only with other theologies but with the other parts of the Rig Veda also.

No theology has made it its purpose to explain the origin of classes in society. Chapter I of the Genesis in the Old Testament, which can be said to be analogous in intention and purpose to the *Purusha Sukta*, does nothing more than explain how man was created. It is not that social classes did not exist in the old Jewish society. Social classes existed in all societies. The Indo-Aryans were no exception. Nevertheless, no theology has ever thought it necessary to explain how classes arise. Why then did the *Purusha Sukta* make the explanation of the origin of the social classes its primary concern?

The *Purusha Sukta* is not the only place in the Rig Veda where a discussion of the origin of creation occurs. There are other places in the Rig Veda where the same subject is referred to. In this connection, one may refer to the following passage in the Rig Veda which reads as follows :¹

Rig Veda, i.96.2: "By the first *nivid*, by the wisdom of Ayu, he (Agni) created these children of men; by his gleaming light the earth and the waters, the gods sustained Agni the giver of the riches."

In this, there is no reference at all to the separate creation of classes, though there is no doubt that even at the time of the *Rig Veda*, the Indo-Aryan Society had become differentiated into classes; yet the above passage in the *Rig Veda* ignores the classes and refers to the creation of men only. Why did the *Purusha Sukta* think it necessary to go further and speak of the origin of the classes?

The *Purusha Sukta* contradicts the *Rig Veda* in another respect. The *Rig Veda* propounds a secular theory regarding the origin of the Indo-Aryans as will be seen from the following texts:

(1) *Rig Veda*, i.80.16: "Prayers and hymns were formerly congregated in that Indra, in the ceremony which Atharvan, father Manu, and Dadhyanch celebrated."²

(2) *Rig Veda*, i.114.2 : "Whatever prosperity or succour father Manu obtained by sacrifice, may we gain all that under thy guidance, O Rudra."³

1 Muir, Vol. I. p. 180

2 Muir, *Ibid.*, Vol. I, p. 162.

3 *Ibid.*, p. 163.

(3) *Rig Veda*, ii.33.13 : “Those pure remedies of yours, O Maruts, those which are most auspicious, ye vigorous gods, those which are beneficent, those which our father Manu chose, those and the blessing and succour of Rudra, I desire.”¹

(4) *Rig Veda*, viii.52.1 : “The ancient friend hath been equipped with the powers of the mighty (gods). Father Manu has prepared hymns to him, as portals of access to the gods.”²

(5) *Rig Veda*, iii.3.6 : “Agni, together with the gods, and the children (*jantubhih*) of Manush, celebrating a multiform sacrifice with hymns.”³

(6) *Rig Veda*, iv. 37.1 : “Ye gods, Vajas, and Ribhukshana, come to our sacrifice by the path travelled by the gods, that ye, pleasing deities, may institute a sacrifice among these people of Manush (*Manusho vikshu*) on auspicious days.”⁴

(7) *Rig Veda*, vi.14.2 : “The people of Manush praise in the sacrifice Agni the invoker.”⁵

From these texts it is beyond question that the rishis who were the authors of the hymns of the *Rig Veda* regarded Manu as the progenitor of the Indo-Aryans. This theory about Manu being the progenitor of the Indo-Aryans had such deep foundation that it was carried forward by the *Brahmanas* as well as the *Puranas*. It is propounded in the *Aitareya Brahmana*,⁶ in the *Vishnu Purana*⁷ and the *Matsya Purana*.⁸ It is true that they have made Brahma the progenitor of *Manu*; but the *Rig Veda* theory of *Manu* being the progenitor has been accepted and maintained by them.⁹ Why does the *Purusha Sukta* make no mention of *Manu* ? This is strange because the author of the *Purusha Sukta* seems to be aware of the fact that Manu Svayambhuva is called *Viraj* and *Viraj* is called *Adi Purusha*,¹⁰ since he too speaks of *Virajo adhi Purushah* in verse five of the *Sukta*.

There is a third point in which the *Purush Sukta* has gone beyond the *Rig Veda*. The Vedic Aryans were sufficiently advanced in their

1 *Muir*, Vol. I. p. 163.

2 *Ibid.*, p. 163.

3 *Ibid.*, p. 165.

4 *Ibid.*, p. 165.

5 *Ibid.*, p. 165.

6 Quoted by *Muir*, Vol. I, p. 108.

7 Quoted by *Muir*, Vol. I pp. 105-107.

8 Quoted by *Muir*, Vol. I. p. 110-112.

9 There is however a great deal of confusion when one comes to details. The *Vishnu Purana* says that Brahma divided his person into two parts: with the one half he became a male, with the other half a female. The female was called *Satarupa* who by incessantly practising austere fervour of a highly arduous description acquired for herself as a husband a Male called *Manu Svayambhuva*. There is no suggestion in the *Vishnu Purana* of incest by Brahma with his daughter. The *Aitareya Brahmana* and the *Matsya Purana* on the other hand speak of Brahma having begotten Manu by committing incest with his daughter *Satarupa*; the *Matsya Purana* adds that Manu by his austerity obtained a beautiful wife named *Ananta*. According to the *Ramayana* (see *Muir*, I, p. 117) *Manu* was not a male but a female and was a daughter of *Daksha Prajapati* and the wife of *Kasyapa*.

10 *Matsya Purana*- *Muir*, Vol., 1 p. 111 f.n.

civilization to give rise to division of labour. Different persons among the Vedic Aryans followed different occupations. That they were conscious of it is evidenced by the following verse:

Rig Veda, 1.113.6 : “That some may go in pursuit of power, some in pursuit of fame, some in pursuit of wealth, some in pursuit of work, Ushas has awakened people so that each may go in pursuit of his special and different way of earning his livelihood.”

This is as far as the *Rig Veda* had gone. The *Purusha Sukta* goes beyond. It follows up the notion of division of labour and converts the scheme of division of work into a scheme of division of workers into fixed and permanent occupational categories. Why does the *Purusha Sukta* commit itself to such a perversity?

There is another point in which the *Purusha Sukta* departs from the *Rig Veda*. It is not that the *Rig Veda* speaks only of man. It speaks also of the Indo-Aryan nation. This nation was made up of the five tribes, which had become assimilated into one common Indo-Aryan people. The following hymns refer to these five tribes as moulded into a nation:

(1) *Rig Veda*, vi.11.4 : “Agni, whom, abounding in oblations, the five tribes, bringing offerings, honour with prostrations, as if he were a man.”¹

(2) *Rig Veda*, vii.15.2 : “The wise and youthful master of the house (Agni) who has taken up his abode among the five tribes in every house.”²

There is some difference of opinion as to who these five tribes are. *Yaska* in his *Nirukta* says that it denotes *Gandharvas*, *Pitris*, *Devas*, *Asuras* and *Rakshasas*. *Aupamanyava* says that it denotes the four *Varnas* and the *Nishadas*. Both these explanations seem to be absurd. Firstly, because the five tribes are praised collectively as in the following hymns:

(1) *Rig Veda*, ii.2.10 : “May our glory shine aloft among the five tribes, like the heaven unsurpassable.”³

(2) *Rig Veda*, vi.46.7 : “Indra, whatever force or vigour exists in the tribe of Nashusa or whatever glory belongs to the five races bring (for us).”⁴

Such laudatory statements could not have been made if the five tribes included the *Shudras*. Besides, the word used is not *Varnas*. The word used is *Janah*. That it refers to the five tribes and not to the four *Varnas* and *Nishadas* is quite clear from the following verse of the *Rig Veda* :

1 Muir. Vol. I, p. 177.

2 *Ibid.*, Vol. I, p. 178.

3 *Ibid.*, Vol. I, p. 178.

4 *Ibid.*, Vol. I, p. 180.

Rig Veda, i.108.8: "If, O Indra and Agni, ye are abiding among the *Yadus*, *Turvasas*, *Druhyus*, *Anus*, *Purus*, come hither, vigorous heroes from all quarters, and drink the Soma which has been poured out.¹

That these five tribes had been moulded into one Aryan people is clear from the *Atharva Veda* (iii.24.2) which says :

"these five regions, the five tribes springing from Manu."

A sense of unity and a consciousness of kind can alone explain why the *Rishis* of the *Rig Vedic* hymns came to refer to the five tribes in such manner. The questions are: why did the *Purusha Sukta* not recognize this unity of the five tribes and give a mythic explanation of their origin? Why instead did it recognize the communal divisions within the tribes? Why did the *Purusha Sukta* regard communalism more important than nationalism?

These are some of the riddles of the *Purusha Sukta* , which come to light when one compares it with the *Rig Veda*. There are others, which emerge when one proceeds to examine the *Purusha Sukta* from a sociological point of view.

Ideals as norms are good and are necessary. Neither a society nor an individual can do without a norm. But a norm must change with changes in time and circumstances. No norm can be permanently fixed. There must always be room for revaluation of the values of our norm. The possibility of revaluing values remains open only when the institution is not invested with sacredness. Sacredness prevents revaluation of its values. Once sacred, always sacred. The *Purusha Sukta* makes the *Chaturvarnya* a sacred institution, a divine ordination. Why did the *Purusha Sukta* make a particular form of social order so sacred as to be beyond criticism and beyond change? Why did it want to make it a permanent ideal beyond change and even beyond criticism? This is the first riddle of the *Purusha Sukta* which strikes a student of sociology.

In propounding the doctrine of *Chaturvarnya*, the *Purusha Sukta* plays a double game. It proceeds first to raise the real, namely, the existence of the four classes in the Indo-Aryan Society, to the status of an ideal. This is a deception because the ideal is in no way different from facts as they exist. After raising the real to the status of the ideal, it proceeds to make a show of giving effect to what it regards as an ideal. This again is a deception because the ideal already exists in fact. This attempt of the *Purusha Sukta* to idealize

¹ Muir. I. p. 179.

the real and to realize the ideal, is a kind of political jugglery, the like of which, I am sure, is not to be found in any other book of religion. What else is it if not a fraud and a deception? To idealize the real, which more often than not is full of inequities, is a very selfish thing to do. Only when a person finds a personal advantage in things as they are that he tries to idealize the real. To proceed to make such an ideal real is nothing short of criminal. It means perpetuating inequity on the ground that whatever is once settled is settled for all times. Such a view is opposed to all morality. No society with a social conscience has ever accepted it. On the contrary, whatever progress in improving the terms of associated life between individuals and classes has been made in the course of history, is due entirely to the recognition of the ethical doctrine that what is wrongly settled is never settled and must be resettled. The principle underlying the *Purusha Sukta* is, therefore, criminal in intent and anti-social in its results. For, it aims to perpetuate an illegal gain obtained by one class and an unjust wrong inflicted upon another. What can be the motive behind this jugglery of the *Purusha Sukta*? This is the second riddle.

The last and the greatest of all these riddles, which emerges out of a sociological scrutiny of the *Purusha Sukta*, is the one relating to the position of the *Shudra*. The *Purusha Sukta* concerns itself with the origin of the classes, and says they were created by God—a doctrine which no theology has thought it wise to propound. This in itself is a strange thing. But what is astonishing is the plan of equating different classes to different parts of the body of the Creator. The equation of the different classes to different parts of the body is not a matter of accident. It is deliberate. The idea behind this plan seems to be to discover a formula which will solve two problems, one of fixing the functions of the four classes and the other of fixing the gradation of the four classes after a preconceived plan. The formula of equating different classes to the different parts of the body of the Creator has this advantage. The part fixes the gradation of the class and the gradation in its turn fixes the function of the class. The *Brahmin* is equated to the mouth of the Creator. Mouth being the noblest part of the anatomy, the *Brahmin* becomes the noblest of the four classes. As he is the noblest in the scale, he is given the noblest function, that of custodian of knowledge and learning. The *Kshatriya* is equated to the arms of the Creator. Among the limbs of a person, arms are next below the mouth. Consequently, the *Kshatriya* is given an order of precedence next below the *Brahmin* and is given

a function which is second only to knowledge, namely, fighting. The *Vaishya* is equated to the thighs of the Creator. In the gradation of limbs the thighs are next below the arms. Consequently, the *Vaishya* is given an order of precedence next below the *Kshatriya* and is assigned a function of industry and trade which in name and fame ranks or rather did rank in ancient times below that of a warrior. The *Shudra* is equated to the feet of the Creator. The feet form the lowest and the most ignoble part of the human frame. Accordingly, the *Shudra* is placed last in the social order and is given the filthiest function, namely, to serve as a menial.

Why did the *Purusha Sukta* choose such a method of illustrating the creation of the four classes? Why did it equate the *Shudras* to the feet? Why did it not take some other illustration to show how the four classes were created. It is not that *Purusha* is the only stock simile used to explain creation. Compare the explanation of the origin of the Vedas contained in the *Chhandogya Upanishad*. It says:¹

“Prajapati infused warmth into the worlds, and from them so heated he drew forth their essences, viz., Agni (fire) from the earth, Vayu (wind) from the air, and Surya (the sun) from the sky. He infused warmth into these three deities, and from them so heated he drew forth their essences,—from Agni the *ric* verses, from Vayu the *yajus* verses and from Surya the *soman* verses. He then infused heat into this triple science, and from it so heated he drew forth its essences—from *ric* verses the syllable *bhuh*, from *yajus* verses *bhuvah*, and from *Saman* verses *sva*.”

Here is an explanation of the origin of the Vedas from different deities. So far as the Indo-Aryans are concerned, there was no dearth of them. There were thirty crores of them. An explanation of the origin of the four *Varnas* from four gods would have maintained equality of dignity by birth of all the four classes. Why did the *Purusha Sukta* not adopt this line of explanation?

Again, would it not have been possible for the author of the *Purusha Sukta* to say that the different classes were born from the different mouths of the *Purusha*. Such a conception could not have been difficult because the *Purusha* of the *Purusha Sukta* has one thousand heads, enough to assign one species of creation to one of his heads. Such a method of explaining creation could not have been unknown to the author of the *Purusha Sukta*. For we find it used by the *Vishnu Purana* to explain the origin of the different *Vedas* as may be seen from the following extract:²

1 Muir, Vol. m. p.5

2 *Ibid.*, p. 11.

“From his eastern mouth Brahma formed the Gayatri, the *ric* verses, the trivrit, the sama-rathantara and of sacrifices, the agnistoma. From his southern mouth he created the *yajus* verses, the trishtubh metre, the panchadasa stoma, the brihatsaman, and the ukthya. From his western mouth he formed the *saman* verses, the jagati metre, the saptadasa stoma, the Vairupa, and the atiratra. From his northern mouth he formed the ekavimsa, the *atharvan*, the aptoryaman with the anushtubh and viraj metres.”

The *Harivamsa* has another way of explaining the origin of the Vedas. According to it:¹

“The god fashioned the *Rig Veda* with the Yajus from his eyes, the *Sama Veda* from the tip of his tongue, and the *Atharvan* from his head.”

Assuming that for some reason the author of the *Purusha Sukta* could not avoid using the body of the Creator and its different parts for explaining the origin and the relation of the four classes, the question still remains as to why he chose to equate the different parts of the *Purusha* to the different classes in the manner in which he does.

The importance of this question is considerably heightened when one realizes that the *Purusha Sukta* is not the only instance in which the different parts of the body of the Creator are used as illustrations to explain the origin of the different classes in society. The same explanation is given by the sage *Vaishampayana* to explain the origin of the various classes of priests employed in the performance of sacrifices. But what a difference is there between the two! The explanation of *Vaishampayana* which is reported in the *Harivamsa* reads as follows :²

“Thus the glorious Lord Hari Narayana, covering the entire waters, slept on the world which had become one sea, in the midst of the vast expanse of fluid (*rajas*), resembling a mighty ocean, himself free from passion (*virajaskah*), with mighty arms; Brahmans know him as the undecaying. Invested through austere fervour with the light of his own form and clothed with triple time (past, present and future) the lord then slept. *Purushottama* (Vishnu) is whatever is declared to be the highest. *Purusha* the sacrifice, and everything else which is known by the name of *Purusha*. Here how the *Brahmins* devoted to sacrifice, and called *ritvijas*, were formerly produced by him from his own body for offering sacrifices. The Lord created from his mouth the *Brahman*, who is the chief, and the *udgatri*, who chants the *Saman*, from his arms the *hotri* and the *adhvaryu*. He then... created the *prastotri*, the *maitravaruna*, and the *pratishtatri*, from his belly the *pratiharti* and the *potri*, from his thighs the *achhavaka* and the *neshtri*, from his hands the *agnidhra* and the sacrificial *brahmnya*, from his arms the *gravan* and the sacrificial *unnetri*. Thus did the divine Lord of the

1 Muir, Vol. ID, p. 13.

2 Muir, Vol. I, pp. 154-155

world create the sixteen excellent *ritvijās*, the utterers of all sacrifices. Therefore this *Purusha* is formed of sacrifice and is called the Veda; and all the Vedas with the Vedangas, Upanishads and ceremonies are formed of his essence."

There were altogether seventeen different classes of priests required for the performance of a sacrifice. It could never be possible for anyone attempting to explain the origin of each by reference to a distinct part of the body of the Creator to avoid using the feet of the *Purusha* as the origin of a class, the limbs of the *Purusha* being so few and the number of priests being so many. Yet what does *Vaishampayana* do? He does not mind using the same part of the Creator's body to explain the origin of more than one class of priests. He most studiously avoids using the feet as the origin of anyone of them.

The situation becomes completely intriguing when one compares the levity with which the *Shudras* are treated in the *Purusha Sukta* with the respect with which the *Brahmins* are treated in the *Harivamsa* in the matter of their respective origins. Is it because of malice that the *Purusha Sukta* did not hesitate to say that the *Shudra* was born from the feet of the *Purusha* and that his duty was to serve? If so what is the cause of this malice?

IV

The riddles about the *Shudras* mentioned above are those which arise out of a sociological scrutiny of the *Purusha Sukta*. There are other riddles regarding the position of the *Shudra* which arise out of later developments of the ideal of *Chaturvarnya*. To appreciate these results it is necessary first to take note of these later developments. The later developments of *Chaturvarnya* are mainly two. First is the creation of the fifth class next below the *Shudras*. The second is the separation of the *Shudras* from the first three *Varnas*. These changes have become so integrated with the original scheme of the *Purusha Sukta* that they have given rise to peculiar terms and expressions so well-known that everybody understands what they stand for. These terms are : *Savarnas*, *Avarnas*, *Dvijās*, *non-Dvijās*, and *Traivarnikas*. They stand to indicate the sub-divisions of the original four classes and the degree of separation between them. It is necessary to take note of the relative position of these classes because they disclose a new riddle. If this riddle has not caught the eye of the people, it is because of two reasons. Firstly, because students have not cared to

note that these names are not mere names but that they stand for definite rights and privileges, and secondly, because they have not cared to find out whether the groupings made under these names are logical having regard to the rights and privileges they connote.

Let us therefore see what is the *de jure* connotation of these terms. *Savarna* is generally contrasted with *Avarna*. *Savarna* means one who belongs to one of the four *Varnas*. *Avarna* means one who does not belong to any one of the four *Varnas*. The *Brahmins*, *Kshatriyas*, *Vaishyas* and *Shudras* are *Savarnas*. The Untouchables or *Ati-Shudras* are called *Avarnas*, those who have no *Varna*. Logically, the *Brahmins*, *Kshatriyas*, *Vaishyas* and *Shudras* are within the *Chaturvarnya*. Logically, the Untouchables or the *Ati-Shudras* are outside the *Chaturvarnya*. *Dvija* is generally contrasted with *non-Dvija*. *Dvija* literally means twice-born and *non-Dvija* means one who is born only once. The distinction is based on the right to have *Upanayana*. The *Upanayana* is treated as a second birth. Those who have the right to wear the sacred thread are called *Dvijas*. Those who have no right to wear it are called *non-Dvijas*. The *Brahmins*, *Kshatriyas* and *Vaishyas* have the right to wear the sacred thread. Logically, they are *Dvijas*. The *Shudras* and the *Ati-Shudras* have no right to wear the sacred thread. Logically, they are both *non-Dvijas*. The *Traivarnika* is contrasted with the *Shudra*. But there is nothing special in this contrast. It conveys the same distinction which is conveyed by the distinction between the *Dvijas* and the *non-Dvijas* except the fact that the contrast is limited to the *Shudra* and does not extend to the *Ati-Shudra*. This is probably because this terminology came into being before the rise of the *Ati-Shudras* as a separate class.

Bearing in mind that both the *Shudra* and the *Ati-Shudra* are *non-Dvijas*, why then is the *Shudra* regarded as *Savarna* and the *Ati-Shudra* as *Avarna* ? Why is the former within and why is the latter outside the *Chaturvarnya* ? The *Brahmins*, *Kshatriyas*, *Vaishyas* and *Shudras* are all within the four corners of the *Chaturvarnya*. They are all *Savarnas*. Why then is the *Shudra* denied the right of the *Traivarnikas* ?

Can there be a greater riddle than the riddle of the *Shudras* ? Surely, it calls for investigation and explanation as to who they were and how they came to be the fourth *Varna* in the Aryan Society.

CHAPTER II

THE BRAHMANIC THEORY OF THE ORIGIN OF THE SHUDRAS

HAS the Brahmanic literature any explanation to offer which can account for the origin of the Shudras? There is no doubt that the Brahmanic literature is full of legends regarding creation which touch upon the creation of the universe, of man and of the different Varnas. Whether or not they furnish any clue to discover the origin of the Shudras, there can be no doubt that all such theories should find a place in a book which is concerned with the problem of the Shudras if for no other reason than that of assembling all material relating to the Shudras in one place and making their story complete. It would be better to take each piece of the Brahmanic literature separately, and note what contribution it has to make to the subject.

I

To begin with the *Vedas*. As to the *Rig Veda*, the legend about creation to be found in its *Sukta* known as the *Purusha Sukta* has already been set out in the previous chapter. It now remains to take note of the legends contained in the other *Vedas*.

There are two recensions of the *Yajur Veda* : (1) the White *Yajur Veda* and (2) the Black *Yajur Veda*. To take the White *Yajur Veda* first. The *Vajasaneyi Samhita* of the White *Yajur Veda* sponsors two theories. One is a mere reproduction of the *Purusha Sukta* of the *Rig Veda* with this difference that it has 22 verses, while the original as it occurs in the *Rig Veda* has only 16 verses. The six additional verses in the White *Yajur Veda* read as follows :

17. Brought forth from the waters and from the essence of the earth, he was produced by Vishvakarman in the beginning. Tvashta gives him form; that is the Universe of Purusha on all sides in the beginning.

18. I know this great Purusha, of the colour of the sun, beyond darkness. Only by knowing him does one go beyond death; there is no other path for going.

19. Prajapati moves in the interior of the womb; though unborn, he is born in many forms. Wise men see his source; wise men desire the place of the Marichis.

20. He who shines for the gods, he who is the priest of the gods, he who was born before the gods,—salutation to that shining offspring of Brahma.

21. The gods, generating the shining offspring of Brahma, said in the beginning: "That Brahmin who knows thus,— the gods will be under his control."

22. Sri and Laxmi are his wives; the day and night his sides; the stars his ornament; the Ashwins his bright face. Grant me my desires; grant me that; grant me everything.

The second explanation contained in the *Vajasaneyi Samhita* is quite different from the *Purusha Sukta*. It reads as follows :

V.S., xiv.28.¹—"He lauded with one. Living beings were formed. He lauded with three: the *Brahman* was created; *Brahmanaspati* was the ruler. He lauded with five: existing things were created; *Bhutanampati* was the ruler. He lauded with seven: the seven rishis were created; *Dhatri* was the ruler. He lauded with nine: the *Fathers* were created; *Aditi* was the ruler. He lauded with eleven: the seasons were created: the *Artavas* were the rulers. He lauded with thirteen: the months were created: the year was the ruler. He lauded with fifteen: the *Kshatra* (the *Kshatriya*) was created; *Indra* was the ruler. He lauded with seventeen: animals were created; *Brihaspati* was the ruler. He lauded with nineteen: the *Shudra* and the *Arya* (*Vaishya*) were created: day and night were the rulers. He lauded with twenty-one: animals with undivided hoofs were created: *Varuna* was the ruler. He lauded with twenty-three: small animals were created: *Pushan* was the ruler. He lauded with twenty-five: wild animals were created: *Vayu* was the ruler (compare R.V., x.90.8). He lauded with twenty-seven: heaven and earth separated: *Vasus*, *Rudras* and *Adityas* separated after them: they were the rulers. He lauded with twenty-nine: living beings were created: the first and second halves of the month were the rulers. He lauded with thirty one: existing things were tranquillized: *Prajapati Parameshthin* was the ruler."

Now to turn to the Black *Yajur Veda*. The *Taittiriya Samhita* of the Black *Yajur Veda* gives altogether five explanations. The one at iv. 3, 10 is the same as has been put forth by the *Vajasaneyi Samhita* of the White *Yajur Veda* at (xiv.28) and which has been reproduced earlier. Of the rest those which narrate the origin of the Shudra are set out below:

T.S., ii.4.13.1" "The gods were afraid of the *Rajanya* when he was in the womb. They bound him with bonds when he was in the womb. Consequently, this *Rajanya* is born bound. If he were born unbound he would go on slaying his enemies. In regard to whatever *Rajanya* any one desires that he should be born unbound, and should go on slaying his enemies, let him offer for him this *Aindra-Barhaspatya* oblation. A *Rajanya* has the character of *Indra*, and

1 Muir, Vol. I, p. 18.

2 Muir, Vol. I, p. 22.

a Brahman is *Brihaspati*. It is through the *Brahman* that anyone releases the *Rajanya* from his bond. The golden bond, a gift, manifestly releases from the bond that fetters him."

(2) T.S., vii. 1.1.4.¹—*Prajapati* desired, 'may I propagate.' He formed the Trivrit (stoma) from his mouth. After it were produced the deity Agni, the metre Gayatri, the Saman (called) Rathantara, of men the Brahmin, of beasts the goats. Hence they are the chief (*mukhyah*) because they were created from the mouth (*mukhatah*). From (his) breast, from his arms, he formed the Panchadasa (*stoma*). After it were created the god, the Indra, the Trishtubh metre, the Saman (called) Brihat, of men the *Rajanya*, of beasts the sheep. Hence they are vigorous, because they were created from vigour. From (his) middle he formed the Saptadasa (*stoma*). After it were created the gods (called) the Vishvedevas, the Jagati metre, the Saman called the Vairupa of men the *Vaishya*, of beasts kine. Hence they are to be eaten, because they were created from the receptacle of food. Wherefore they are more numerous than others, for the most numerous deities were created after (the Saptadasa). From his foot he formed the Ekavimsa (*Stoma*). After it were created the Anushtubh metre, the Saman called Vairaja, of men the *Shudra*, of beasts the horse. Hence these two, born the horse and the *Shudra*, are transporters of (other) creatures. Hence (too) the *Shudra* is incapacitated for sacrifice, because no deities were created after (the *Ekavimsa*). Hence (too) these two subsist by their feet, for they were created from the foot.

Coming to the *Atharva Veda*, there are altogether four explanations. One of these is the same as the *Purusha Sukta* of the *Rig Veda*. It occurs at xix.6. The others are as stated below :

(1) A.V.,² iv.6.1.—The *Brahman* was born the first with ten heads and ten faces. He first drank the soma; he made poison powerless.

(2) A.V.,³ xv.8.1.—He (the *Vratya*) became filled with passion thence sprang the *Rajanya*.

(3) A.V.,⁴ xv.9.1.—Let the king to whose house the *Vratya* who knows this, comes as a guest, cause him to be respected as superior to himself. So doing he does no injury to his royal rank, or to his realm. From him arose the *Brahman* (*Brahmin*) and the *Kshattria* (*Kshatriya*). They said 'Into whom shall we enter,' etc.

II

To proceed to the Brahmanas. The *Satapatha Brahmana* contains six explanations. There are two which concern themselves with the creation of the *Varnas*. Of the two, the one which speaks of the origin of the *Shudras* is given below :

S.B.⁵ xiv.4.2.23.—"Brahma (here, according to the commentator, existing in the form of Agni and representing the Brahmana caste) was formerly this

1 Muir, Vol. I, p. 16.

2. Muir, Vol. I, p. 21

3. Muir, Vol. I, p. 22

4. Muir, Vol I, p. 22

5. Muir Vol I, p. 20

(universe), one only. Being one, it did not develope. It energetically created an excellent form, the Kshattrra, viz., those among the gods who are powers (Kshattrani), Indra, Varuna, Soma, Rudra, Parjanya, Yama, Mrityu, Isana. Hence nothing is superior to the *Kshatra*. Therefore, the Brahmana sits below the Kshatriya at the Rajasuya sacrifice; he confers that glory on the Kshattrra (the royal power). This, the Brahma, is the source of the Kshattrra. Hence although the king attains supremacy, he at the end resorts to the Brahman as his source. Whoever destroys him (the Brahman) destroys his own source. He becomes most miserable, as one who has injured a superior. He did not develope. He created the Vis, viz., those classes of gods who are designated by troops, Vasus, Rudras, Adityas, Visvedevas, Maruts. He did not develope. He created the Shudra class Pushan. This earth is Pushani; for she nourishes all that exists. He did not develope. He energetically created an excellent form, Justice (Dharma). This is the ruler (Kshattrra) of, the ruler (Kshattrra), namely, Justice. Hence nothing is superior to Justice. Therefore the weaker seeks (to overcome) the stronger by Justice, as by a king. This justice is truth. In consequence they say of a man who speaks truth, 'he speaks justice.' For this is both of these. This is the Brahma, Kshattrra, Vis and Shudra. Through Agni it became Brahma among the gods, the Brahmana among men, through the (divine) Kshatriya a (human) Kshatriya, through the (divine) Vaishya a (human) Vaishya, through the (divine) Shudra a (human) Shudra. Wherefore it is in Agni among the gods and in a Brahman among men that they seek after an abode.

The *Taittiriya Brahman* is responsible for the following explanation :

(1) T.B.,¹ i.2.6.7.—“The Brahmana caste is sprung from the gods; the Shudras from the Asuras.”

(2) T.B.,² iii. 2.3.9.—“This Shudra has sprung from non-existence.”

III

Here is a complete collection of all the Brahmanic speculations on the origin of the four classes and of the Shudras. The ancient Brahmins were evidently conscious of the fact that the origin of the four classes was an unusual and uncommon social phenomenon and that the place of the Shudra in it was very unnatural and that this called for some explanation. Otherwise, it would be impossible to account for these innumerable attempts to explain the origin of the *Chaturvarnya* and of the Shudra.

But what is one to say of these explanations? The variety of them is simply bewildering. Some allege that *Purusha* was the origin of

¹ Muir, Vol. I, p. 21

² Muir, Vol. I, p. 21.

the four *Varnas*, and some attribute their origin to Brahma, some to Prajapati and some to Vratya. The same source gives differing explanations. The White *Yajur Veda* has two explanations, one in terms of *Purusha*, the other in terms of *Prajapati*. The Black *Yajur Veda* has three explanations to offer. Two are in terms of *Prajapati*, the third in terms of Brahma. The *Atharva Veda* has four explanations, one in terms of *Purusha*, second in terms of *Brahman*, third in terms of *Vratya* and fourth quite different from the first three. Even when the theory is the same, the details are not the same. Some explanations such as those in terms of Prajapati, or Brahma are theological. Others in terms of Manu or Kasyapa are in humanistic terms. It is imagination running riot. There is in them neither history nor sense. Prof. Max Muller commenting on the *Brahmanas* has said :

“The Brahmanas represent no doubt a most interesting phase in the history of the Indian mind, but judged by themselves, as literary productions, they are most disappointing. No one would have supposed that at so early a period, and in so primitive a state of society, there could have risen up a literature which for pedantry and downright absurdity can hardly be matched anywhere. There is no lack of striking thoughts, of bold expressions, of sound reasoning, and curious traditions in these collections. But these are only like the fragments of a torso, like precious gems set in brass and lead. The general character of these works is marked by shallow and insipid grandiloquence, by priestly conceit, and antiquarian pedantry. It is most important to the historian that he should know how soon the fresh and healthy growth of a nation can be blighted by priestcraft and superstition. It is most important that we should know that nations are liable to these epidemics in their youth as well as in their dotage. These works deserve to be studied as the physician studies the twaddle of idiots, and the raving of madmen.”¹

On reading these Brahmanic speculations on the origin of the four *Varnas* and particularly of the Shudras one is very much reminded of these words of Prof. Max Muller. All these speculations are really the twaddles of idiots and ravings of madmen and as such they are of no use to the student of history who is in search of a natural explanation of a human problem.

●●

1 Max Muller, *Ancient Sanskrit Literature* (Panini office edition), p. 200.

CHAPTER III

THE BRAHMANIC THEORY OF THE STATUS OF THE SHUDRAS

SO much for the Brahmanic view of the origin of the Shudra. Turning to the Brahmanic view of the civil status of the Shudra, what strikes one is the long list of disabilities, accompanied by a most dire system of pains and penalties to which the Shudra is subjected by the Brahmanic law-givers.

The disabilities and penalties of the Shudra found in the *Samhitas* and the *Brahmanas* were few, as may be seen from the following extracts:

I. According to the *Kathaka Samhita* (xxxi.2) and the *Maitrayani Samhita* (iv.1.3; i.8.3)

“A shudra should not be allowed to milk the cow whose milk is used for Agnihotra.”

II. The *Satapatha Brahmana* (iii.1.1.10), the *Maitrayani Samita* (vii.1.1.6) and also the *Panchavimsa Brahmana* (vi.1.11) say:

“The Shudra must not be spoken to when performing a sacrifice and a Shudra must not be present when a sacrifice is being performed.”

III. The *Satapatha Brahmana* (xiv.1.31) and the *Kathaka Samhita* (xi.10) further provide that :

“The Shudra must not be admitted to Soma drink.”

IV. The *Aitareya Brahmana* (vii.29.4) and the *Panchavimsa Brahmana* (vi.1.11) reached the culminating point when they say:

“Shudra is a servant of another (and cannot be anything else).”

But what in the beginning was a cloud no bigger than a man's hand, seems to have developed into a storm, which has literally overwhelmed the Shudras. For, as will be seen from the extracts given from later penal legislation by the *Sutrakaras* like *Apastamba*, *Baudhayana*, etc. and the *Smritikaras* like *Manu* and others, the growth of the disabilities of the Shudras has been at a maddening speed and to an extent which is quite unthinkable.

The disabilities are so deadening that it would be impossible to believe them unless one sees them in cold print. They are, however, so numerous that it is impossible to present them in their fullness. To enable those, who do not know them, to have some idea of these disabilities, I have assembled below in one place illustrative statements by the different *Sutrakaras* and *Smritikaras* relating to the disabilities of the Shudras scattered in their Law Books.

II

(i)

(A) *The Apastamba Dharma Sutra* says :

“There are four castes—Brahmanas, Kshatriyas, Vaishyas and Shudras.

Amongst these, each preceding (caste) is superior by birth to the one following¹ :

For all these, excepting Shudras and those who have committed bad actions are ordained (1) the initiation (Upanayana or the wearing of the sacred thread), (2) the study of the Veda and (3) the kindling of the sacred fire (i.e., the right to perform sacrifices).²”

(B) This is what the *Vasishtha Dharma Sutra* says:

“There are four castes (Varna) Brahmanas, Kshatriyas, Vaishyas and Shudras.

Three castes, Brahmanas, Kshatriyas and Vaishyas (are called) twice-born.

Their first-birth is from the mother; the second from the investiture with the sacred girdle. In that (second birth) the Savitri is the mother, but the teacher is said to be the father.

They call the teacher father, because he gives instruction in the Veda.³

The four castes are distinguished by their origin and by particular sacraments.

There is also the following passage of the Veda: ‘ The Brahmana was his mouth, the Kshatriya formed his arms: the Vaishya his thighs; the Shudra was born from his feet.’¹

It has been declared in the following passage of the Veda that a Shudra shall not receive the sacraments. ‘He created the Brahmana with the Gayatri (metre), the Kshatriya with the Trishtubh, the Vaishya with the Jagati, the Shudra without any metre.’⁴

(C) The *Manu Smriti* propounds the following view on the subject :

1. Prasna 1, Patala 1, Khanda 1, Sutras 4-5.

2. Ibid., Sutra 6.

3. Chapter H, Verses 1-4.

4 Chapter IV, Verse 3

“For the prosperity of the worlds, he (the creator) from his mouth, arms, thighs and feet created the Brahmana, Kshatriya, Vaishya and Shudra.¹

The Brahmans, Kshatriya (and) Vaishya constitute the three twice-born castes, but the fourth, the Shudra has only one birth.”²

(ii)

(A) The *Apastamba Dharma Sutra* says:

“(A Traivarnika) shall never study (the Veda) in a burial ground nor anywhere near it within the throw of a Samya.

If a village has been built over a burial ground or its surface has been cultivated as a field, the recitation of the Veda in such a place is not prohibited.

But if that place is known to have been a burial ground, he shall not study (there).

A Shudra and an outcaste are (included by the term) burial-ground, (and the rule given, Sutra 6 applies to them).

Some declare, that (one ought to avoid only to study) in the same house (where they dwell).

But if (a student and) a Shudra woman merely look at each other, the recitation of the Veda must be interrupted.³

Food touched by a (Brahmana or other high-caste person) who is impure, becomes impure but not unfit for eating.

But what has been brought (be it touched or not) by an impure Shudra must not be eaten.

A Shudra touches him, (then he shall leave off eating).⁴

(B) The *Vishnu Smriti* says :

“He must not cause a member of a twice born caste to be carried out by a Shudra (even though he be a kinsman of the deceased). Nor a Shudra by a member of a twice-born caste.

A father and a mother shall be carried out by their sons; (who are equal in caste to their parents).

But Shudras must never carry out a member of a twice-born caste, even though he be their father.”⁵

(C) The *Vasishtha Dharma Sutra* prescribes :

“Now therefore, we will declare what may be eaten and what may not be eaten.

1 Chapter I, Verse 31.

2 Chapter X, Verse 4

3 Prasna 1, Patala 3, Khanda 9, Sutras 6-11.

4 Prasna 1, Patala 5, Khanda 16, Sutras 21-22.

5 Chapter XIX, Sutras 1-4

Food given by a physician, a hunter, a woman of bad character, a mace-bearer, a thief, an Abhisasta, and eunuch, (or) an outcaste must not be eaten.

Nor that given by a miser, one who has performed the initiatory ceremony of a Srauta-sacrifice, a prisoner, a sick person, a seller of the Soma plant, a carpenter, a washerman, a dealer in spirituous liquor, a spy, an usurer, (or) a cobbler.

Nor that given by a Shudra.¹

Some call that Shudra race a burial-ground.

Therefore the Veda must not be recited in the presence of a Shudra.”

Now they quote also the (following) verses which Yama proclaimed :

The wicked Shudra-race is manifestly a burial-ground. Therefore (the Veda) must never be recited in the presence of a Shudra.²

Some become worthy receptacles of gifts through sacred learning, and some through the practice of austerities. But that Brahmana whose stomach does not contain the food of a Shudra, is even the worthiest receptacle of all.³

If a Brahmana dies with the food of a Shudra in his stomach, he will become a village pig (in his next life) or be born in the family of that Shudra.

For though a (Brahmana) whose body is nourished by the essence of a Shudra's food may daily recite the Veda, though he may offer (an Agnihotra) or mutter (prayers, nevertheless) he will not find the path that leads upwards.

But if, after eating the food of a Shudra, he has conjugal intercourse, (even) his sons (begotten on a wife of his own caste) will belong to the giver of the food (i.e., to the Shudra) and he shall not ascend to heaven.⁴

(D) The *Manu Smriti* says :

“He (Brahmin) may not dwell in the kingdom of a Shudra nor in one full of unrighteous people, nor in one invaded by hosts of heretics nor in one possessed by low-born men.⁵

A Brahmin who performs a sacrifice for a Shudra should not be invited to dine with other Brahmins at a Shraddha ceremony. His company will destroy all merit that which may otherwise be obtained from such a dinner.⁶

One should carry out by the southern town-gate a dead Shudra, but the twice-born by the western, northern and eastern (gates) respectively.⁷

1 Chapter XIV, Verses 1-4

2 Chapter XVIII, Verses 11-15

3 Chapter VI, Verses 26.

4 Chapter VI, Verses 27-29

5 Chapter IV, Verse 61

6 Chapter III, Verse 178

7 Chapter V Verse 92.

(iii)

(A) The *Apastamba Dharma Sutra* says :

“A Brahmana shall salute stretching forward his right arm on a level with his ear, a Kshatriya holding it on a level with the breast, a Vaishya holding it on a level with the waist, a Shudra holding it low (and) stretching forward the joined hands.”¹

And when returning the salute of (a man belonging) to the first (three) castes, the last syllable of the name of the person addressed is produced to the length of three moras.²

If a Shudra comes as a guest (to a Brahmana) he shall give him some work to do. He may feed him, after (that has been performed. To feed him without asking him first to do some work is to do him honour.)

Or the slaves (of the Brahmana householder) shall fetch (rice) from the royal stores, and honour the Shudra as a guest.”³

(B) The *Vishnu Smriti* prescribes :

“The same punishment (payment of hundred Panas) is also ordained for hospitably entertaining a Shudra or religious ascetic at an oblation to the gods or to the manes.”⁴

(C) The *Manu Smriti* enjoins that :

One should consider a Brahmana ten years old and a Kshatriya a hundred years old as father and son; but of them the Brahman (is) the father.

Wealth, kindred, age, sects (and) knowledge as the fifth; those are the causes of respect, the most important (is) the last (mentioned).

In whom among the three (higher) castes the most and the best of (those) five may be he is here worthy of respect; a Shudra (is not worthy of respect on the ground of his wealth or knowledge no matter how high they are. It is only on the ground of his age and that too only if) he has attained the tenth (decade of his life that he becomes worthy of respect and not before.)⁵

1 Prasna 1, Patala 2, Khanda 5, Sutra 16.

2 *Ibid*, Sutra 17.

3 Prasna II, Patala 2, Khanda 4, Sutras 19-20

4 Chapter V. Sutra 115.

5 Chapter II, Verses 135-137.

For not by years, nor by grey hair, not by wealth, nor kindred (is superiority); the seers made the rule—Who knows the Veda completely, he is great among us.

Of Brahmins, superiority (is) by knowledge, but of Kshatriyas by valour, of Vaishyas by reason of property (and) wealth, and of Shudras by age.

One is not, therefore, aged because his head is grey; whoever, although a youth, has perused (the Vedas), him the gods consider an elder.¹

Now a Kshatriya is not called a guest in a Brahmin's house, nor a Vaishya nor a Shudra; neither is a friend, the kinsman, nor a Guru (of the householder). (That is, a Brahmin has alone the right to have the honour of being treated as a guest in a Brahmin's house).

But if a Kshatriya come as a guest to the house after the said Brahmins have eaten one should give him food (if) he wishes.

If a Vaishya (or) Shudra come to the house as guests, the Brahmin should give them food but with the servants, using kindness."²

(iv)

(A) According to the *Apastamba Dharma Sutra* :

He who has killed a Kshatriya shall give a thousand cows (to Brahmins for the expiation of the act).

He shall give, a hundred cows for the killing of a Vaishya, (only) ten for a Shudra.³

(B) According to the *Gautama Dharma Sutra* :

"A Kshatriya (shall be fined) one hundred (Karshapanas) if he abuses a Brahmana.

In case of an assault (on a Brahmana) twice as much.

A Vaishya (who abuses a Brahmana, shall pay) one and a half (times as much as a Kshatriya).

But a Brahmana (who abuses) a Kshatriya (shall pay) fifty (Karshapanas).

1 Chapter II, Verses 154-156.

2 Chapter III, Verses 110-112.

3 Prasna I, Patala 9, Khanda 24, Sutras 1-3.

One half of that amount (if he abuses) a Vaishya.

And if he abuses a Shudra nothing.”¹

(C) According to *Brihaspati's Dharma Shastra* :

“For a Brahmin abusing a Kshatriya, the fine shall be half of a hundred (fifty) Panas; for abusing a Vaisya, half of fifty (twenty-five) Panas, for abusing a Shudra twelve and a half.

This punishment has been declared for abusing a virtuous Shudra (i.e., a Shudra who accepts his low status and does willingly the duties attached to that status) who has committed no wrong; no offence is imputable to a Brahmin for abusing a Shudra devoid of virtue.

A Vaishya shall be fined a hundred (Panas) for reviling a Kshatriya; a Kshatriya reviling a Vaishya shall have to pay half of that amount as a fine.

In the case of a Kshatriya reviling a Shudra the fine shall be twenty Panas; in the case of a Vaishya, the double amount is declared to be the proper fine by persons learned in law.

A Shudra shall be compelled to pay the first fine for abusing a Vaishya; the middling fine for abusing a Kshatriya; and the highest fine for abusing a Brahmin.”²

(D) According to the *Manu Smriti*:

A Kshatriya who reviles a Brahmin ought to be fined one hundred (Panas); a Vaishya one hundred and fifty or two hundred, but a Shudra ought to receive corporal punishment.

A Brahmin should be fined fifty if he has thrown insult on a Kshatriya, but the fine shall be a half of fifty if on a Vaishya and twelve if on a Shudra.”³

In the murder of a Kshatriya, one fourth (part) of the penance for slaying a Brahman is declared to be the proper penance; an eighth part in the case of a Vaishya; and in (the case of) a Shudra (who) lives virtuously, one sixteenth part must be admitted (as the proper penance).

But if one of the highest of the twice-born (a Brahmin) slay a Kshatriya involuntarily he may, in order to cleanse himself give a thousand cows and a bull.

Or let him for three years (with senses) subdued and locks braided, follow the observances of one who has slain a Brahmin, living in a place rather far from the town, his dwelling place the foot of a tree.

1 Chapter XII, Sutras 8-13.

2 Chapter XX, Verses 7-11.

3 Chapter VIII, Verses 267-268

The highest of a twice-born (the Brahmin) should practise just this expiation for a year on having slain a Vaishya who lives virtuously and give one hundred and one (heads) of cattle.

The slayer of a Shudra should practise exactly all these observances for six months; or he may give to a priest ten white cows and a bull.^{1"}

(E) According to the *Vishnu Smriti*:

"With whatever limb an inferior insults or hurts his superior in caste, of that limb the king shall cause him to be deprived.

If he places himself on the same seat with his superior, he shall be banished with a mark on his buttocks.

If he spits on him he shall lose both lips.

If he breaks wind against him, he shall lose his hind parts.

If he uses abusive language, his tongue.

If a low-born man through pride give instruction (to a member of the highest caste) concerning his duty, let the king order hot oil to be dropped into his mouth.

If a Shudra man mentions the name or caste of a superior revilingly, an iron pin ten inches long shall be thrust into his mouth (red hot)."²

(v)

(A) According to the *Brihaspati Smriti* :

"A Shudra teaching the precepts of religion or uttering the words of the Veda, or insulting a Brahmin shall be punished by cutting out his tongue."³

(B) According to the *Gautama Dharma Sutra* :

"Now if he listens intentionally to (a recitation of) the Veda, his ears shall be filled with (molten) tin or lac.

If he recites (Vedic texts), his tongue shall be cut out. If he remembers them, his body shall be split in twain."⁴

(C) According to the *Manu Smriti*:

One who teaches for hire, also one who learns by paying hire (a Shudra) teacher and one who learns from him are unfit for being invited at the performance in honour of the Devas and Pitris.⁵

1 Chapter XI, Verses 127-131

2 Chapter V, Sutras 19-25

3 Chapter XII, Verse 12.

4 Chapter XX, Sutras 4-6.

5 Chapter III, Verse 156.

One may not give advice to a Shudra, nor (give him) the remains (of food) or of butter that has been offered.

And one may not teach him the law or enjoin upon him religious observances.

For he who tells him the law and he who enjoins upon him (religious) observances, he indeed together with that (Shudra) sinks into the darkness of the hell called Asamvrita.¹

One should never recite (the Vedas) indistinctly or in the presence of a Shudra; nor having recited the Veda at the end of the night, (though) fatigued may one sleep again.”²

(vi)

This is what the *Manu Smriti* says :

“A Brahmin may take possession of the goods of a Shudra with perfect peace of mind, for, since nothing at all belongs to this Shudra as his own, he is one whose property may be taken away by his master.”³

Indeed, an accumulation of wealth should not be made by a Shudra even if he is able to do so, for the sight of mere possession of wealth by a Shudra injures the Brahmin.”⁴

(vii)

Here is the advice of the *Manu Smriti* to the king :

“He who can claim to be a Brahmin merely on account of his birth, or he who only calls himself a Brahmin, may be, if desired, the declarer of law for the king, but a Shudra never.

If a king looks on while a Shudra gives a judicial decision, his realm sinks into misfortune, like a cow in a quagmire.

A realm which consists chiefly of Shudras and is overrun by unbelievers and destitute of twice-born men is soon totally destroyed, oppressed by famine and disease.”⁵

(viii)

(A) The *Apastamba Dharma Sutra* says:

“And those who perform austerities, being intent on fulfilling the sacred laws. And a Shudra who lives by washing the feet (of the Brahmin).

1 Chapter IV, Verses 78-81.

2 Chapter IV, Verse 99.

3 Chapter VIII, Verse 417.

4 Chapter X, Verse 129.

5 Chapter VIII, Verses 20-22.

Also blind, dumb, deaf and diseased persons (as long as their infirmities last) are exempt from taxes.¹

To serve the other three castes is ordained for the Shudra.

The higher the caste which he serves the greater is the merit.”²

(B) The *Manu Smriti* has the following:

“Now, for the sake of preserving all this creation, the most glorious (being) ordained separate duties for those who sprang from (his) mouth, arm, thigh and feet.

For Brahmins he ordered teaching, study, sacrifices and sacrificing (as priests) for others, also giving and receiving gifts.

Defence of the people, giving (alms), sacrifice, also study, and absence of attachment to objects of sense, in short for a Kshatriya.

Tending of cattle, giving (alms), sacrifice, study, trade, usury, and also agriculture for a Vaishya.

One duty the Lord assigned to a Shudra—service to those (before-mentioned) classes without grudging.”³

(ix)

(A) The *Apastamba Dharma Sutra* says :

“A man of one of the first three castes (who commits adultery) with a woman of the Shudra caste shall be banished.

A Shudra (who commits adultery) with a woman of one of the first three castes shall suffer capital punishment.”⁴

(B) The *Gautama Dharma Sutra* says :

If (the Shudra) has criminal intercourse with an Aryan woman, his organ shall be cut off and all his property be confiscated.

If (the woman had) a protector (i.e., she was under the guardian-ship of some person) he (the Shudra) shall be executed after having undergone the punishments prescribed above.⁵

(C) The *Manu Smriti* says :

If a man (of the Shudra caste) makes love to a girl of the highest caste he deserves corporal punishment.⁶

A Shudra cohabiting with a woman of twice-born castes, whether she be guarded or not guarded, is (to be) deprived of his member and of all his property if she be not guarded and of everything if she is guarded.⁷

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|---|----------------------------|
| 1. Prasna II, Patala 10, Khanda 26, Sutras 14-16. | 5 Chapter XII, Sutras 2-3. |
| 2. Prasna I, Patala I, Khanda I, Sutras 7-8. | 6 Chapter VIII, Verse 366. |
| 3. Chapter I, Verses 87-91. | 7 Chapter VIII, Verse 374. |
| 4. Prasna II, Patala 10, Khanda 27, Sutras 8-9. | |

For twice-born men, at first, a woman of the same caste is approved for marrying; but of those who act from lust, those of lower caste may in order (be wives).

A Shudra woman alone (is) a wife for a Shudra; both she and a woman of his own caste (are) legally (wives) of a Vaishya; they two and also a woman of his own caste (are wives) of a Kshatriya, both they and a woman of his own caste (are wives) of a Brahmin.

A Shudra wife is not indicated in any history for a Brahmin and Kshatriya, even though they be in distress.

Twice-born men marrying a (Shudra) woman out of infatuation will surely bring quickly (their) families and descendants to the condition of Shudras.¹

A Brahmin having taken a Shudra woman to his bed goes the lower course; having begotten on her a son, he is surely deprived of his Brahminhood.

Now of (a man) whose offerings towards gods, manes, and guests depend on her, the manes and gods eat not that offering nor does he go to heaven.

An expiation is not prescribed for him who has drunk the moisture on a Shudra woman's lips, who has been reached by her breath, and who has also begotten a son on her.²

(x)

(A) The *Vasishtha Dharma Sutra* says :

“One may know that bearing grudges, envy, speaking untruths, speaking evil of Brahmins, backbiting and cruelty are the characteristics of a Shudra.”³

(B) The *Vishnu Smriti* prescribes that :

(The name to be chosen should be) auspicious in the case of a Brahmin.

Indicating power in the case of a Kshatriya.

Indicating wealth in the case of a Vaishya.

And indicating contempt in the case of a Shudra.⁴

(C) The *Gautama Dharma Sutra* says :

“The Shudra belongs to the fourth caste, which has one birth (only).

1. Chapter III, Verses 12-15.

2. *Ibid*, Verses 17-19.

3. Chapter VI, Verse 24.

4. Chapter XXVII, Sutras 6-9.

And serves the higher (castes).

From them he shall seek to obtain his livelihood.

He shall use their cast-off shoes.

And eat the remnants of their food.

A Shudra who intentionally reviles twice-born men by Criminal abuse, or criminally assaults them with blows, shall be deprived of the limb with which he offends.

If he assumes a position equal to that of twice-born men in sitting, in lying down, in conversation or on the road, he shall undergo (corporal punishment)”¹

(D) The Manu Smriti follows suit and says :

“But if a Brahmin through avarice, and because he possesses the power, compel twice-born men, who have received the initiation (into the caste order), to do the work of a slave when they do not wish it, he shall be fined six hundred panas by the king.

But a Shudra, whether bought or not bought (by the Brahmin) may be compelled to practise servitude, for that Shudra was created by the self-existent merely for the service of the Brahmin.

Even if freed by his master, the Shudra is not released from servitude; for this (servitude) is innate in him; who then can take it from him.”²

Just in proportion as one pursues without complaining the mode of life (practised) by the good, so free from blame, he gains both this and the otherworld.”³

Now the supreme duty of a Shudra and that which ensures his bliss is merely obedience toward celebrated priests who understand the Veda and live as householders.

If he be pure, obedient to the higher (castes), mild in speech, without conceit, and always submissive to the Brahmin, he attains (in the next transmigration) a high birth.”⁴

Now a Shudra desiring some means of subsistence may serve a Kshatriya, so (is the rule); or the Shudra (if) anxious to support life, (may do so by) serving a wealthy Vaishya.

But he should serve the Brahmins for the sake of heaven, or for the sake of both (heaven and livelihood); for by him (for whom) the word Brahmin (is always) uttered is thus attained the state of completing all he ought to do.

1. Chapter X. Sutras 50, 56-59 and Chapter XII, Sutras 1,7.

2. Chapter VIII, Verses 412-414.

3. Chapter X, Verse 128.

4. Chapter IX, Verses 334-335.

Merely to serve the Brahmins is declared to be the most excellent occupation of a Shudra; for if he does anything other than this it profits him nothing.

His means of life should be arranged by those Brahmins out of their own household (goods) in accordance with what is fitting after examining his ability, cleverness, and (the amount) the dependents embrace.

The leaving of food should be given (to him) and the old clothes, so too the blighted part of the grain, so too the old furniture.¹

Let a Brahmin's name be auspicious, a Kshatriya's full of power, let a Vaishya's mean wealth, a Shudra's however be contemptible.

Let a Brahmin's (distinctive title) imply prosperity, a Kshatriya's safeguard, a Vaishya's wealth, a Shudra's service.²

If (a man) of one birth assault one of the twice-born castes with virulent words, he ought to have his tongue cut, for he is of the lowest origin.

If he makes mention in an insulting manner of their name and caste, a red-hot iron rod, ten fingers long, should be thrust into his mouth.

If this man through insolence gives instruction to the priests in regard to their duty, the king should cause boiling hot oil to be poured into his mouth and ear.³

If a man of the lowest birth should with any member injure one of the highest station, even that member of this man shall be cut (off); this is an ordinance of Manu.

If he lift up his hand or his staff (against him), he ought to have his hand cut off; and if he smites him with his feet in anger, he ought to have his feet cut off.

If a low-born man endeavours to sit down by the side of a high-born man, he should be banished after being branded on the hip, or (the king) may cause his backside to be cut off.

If through insolence he spit upon him, the king should cause his two lips to be cut off; and if he makes water upon him, his penis, and if he breaks wind upon him, his anus.

If he seize him by the locks, let the king without hesitation cause both his hands to be cut off, (also if he seize him) by the feet, the beard, the neck or the testicles.

1. Chapter X, Verses 121-125.

2. Chapter II, Verses 31-32.

3. Chapter VIII, Verses 270-72.

A man who tears (another's) skin and one who causes blood to be seen ought to be fined five hundred (Panas), if he tears the flesh (he should be fined) six niskas, but if he breaks a bone he should be banished.¹

(D) The *Narada Smriti* says:

Men of the Shudra caste, who prefer a false accusation against a member of a twice-born Aryan caste, shall have their tongue split by the officers of the king, and he shall cause them to be put on stakes.

A once-born man (or Shudra) who insults members of a twice-born caste with gross invectives, shall have his tongue cut off; for he is of low origin.

If he refers to their name or caste in terms indicating contempt, an iron-rod, ten angulas long, shall be thrust red-hot into his mouth.

If he is insolent enough to give lessons regarding their duty to Brahmins, the king shall order hot oil to be poured into his mouth and ears.

With whatever limb a man of low caste offends against a Brahmin, that very limb of him shall be cut off, such shall be the atonement for his crime.

A low-born man, who tries to place himself on the same seat with his superior in caste, shall be branded on his hip and banished, or (the king) shall cause his backside to be gashed.

If through arrogance he spits on a superior, the king shall cause both his lips to be cut off; if he makes water on him, the penis; if he breaks wind against him, the buttocks."²

III

Such were the laws made against the Shudras by the Brahmanic lawgivers. The gist of them may be summarized under the following heads :

- (1) That the Shudra was to take the last place in the social order.
- (2) That the Shudra was impure and therefore no sacred act should be done within his sight and within his hearing.
- (3) That the Shudra is not to be respected in the same way as the other classes.
- (4) That the life of a Shudra is of no value and anybody may kill him without having to pay compensation and if at all of small value

1. Chapter VIII, Verses 279-284.

2. Chapter XV, Verses 22-27.

as compared with that of the Brahmana, Kshatriya and Vaishya.

(5) That the Shudra must not acquire knowledge and it is a sin and a crime to give him education.

(6) That a Shudra must not acquire property. A Brahmin can take his property at his pleasure.

(7) That a Shudra cannot hold office under the State.

(8) That the duty and salvation of the Shudra lies in his serving the higher classes.

(9) That the higher Classes must not inter-marry with the Shudra. They can however keep a Shudra woman as a concubine. But if the Shudra touches a woman of the higher classes he will be liable to dire punishment.

(10) That the Shudra is born in servility and must be kept in servility for ever.

Anyone who reads this summary will be struck by two considerations. He will be struck by the consideration that Shudra alone has been selected by the Brahmanic law-givers as a victim for their law-making authority. The wonder must be all the greater when it is recalled that in the ancient Brahmanic literature the oppressed class in the ancient Indo-Aryan society was the Vaishya and not the Shudra. In this connection a reference may be made to the *Aitareya Brahmana*. The *Aitareya Brahmana* in telling the story of King Vishvantara and the Shyaparna Brahmanas refers to the sacrificial drink to which the different classes are entitled. In the course of the story, it speaks of the Vaishya in the following terms :

“Next, if (the priest brings) curds, that is the Vaishya’s draught with it thou shalt satisfy the Vaishyas. One like a Vaishya shall be born in thy line, one who is tributary to another, who is to be used (lit. eaten) by another, and who maybe oppressed at will.¹

The question is: why was the Vaishya let off and why the fury directed towards the Shudras ?

He will also be struck by the close connection of the disabilities of the Shudra with the privileges of the Brahmin. The Shudra is below the Traivarnikas and is contrasted with the Traivarnikas. That being so, one would expect all the Traivarnikas to have the same rights against the Shudras. But what are the facts? The facts are that the Kshatriyas and Vaishyas have no rights worth speaking of against the Shudras. The only Traivarnika who has special rights and privileges

1 Muir, Vol. 1, p. 436-40.

42 Chapter XII, Sutras 2-3.

is the Brahmin. For instance, if the Shudra is guilty of an offence against the Brahmin, the Brahmin has the privilege of demanding a higher punishment than what a Kshatriya or a Vaishya could. A Brahmin could take the property of the Shudra without being guilty of an offence if he needed it for the purpose of performing a sacrifice. A Shudra should not accumulate property because he thereby hurts the Brahmin. A Brahmin should not live in a country where the king is a Shudra. Why is this so? Had the Brahmin any cause to regard the Shudra as his special enemy?

There is one other consideration more important than these. It is, what does the average Brahmin think of these disabilities of the Shudras? That they are extraordinary in their conception and shameful in their nature will be admitted by all. Will the Brahmin admit it? It would not be unnatural if this catalogue of disabilities may not make any impression upon him. In the first place, by long habit and usage his moral sense has become so dulled that he has ceased to bother about the how and why of these disabilities of the Shudras. In the second place, those of them who are conscious of them feel that similar disabilities have been imposed on particular classes in other countries and there is therefore nothing extraordinary nor shameful in the disabilities of the Shudras. It is the second attitude that needs to be exposed.

This attitude is a very facile one and is cherished because it helps to save reputation and slave conscience. It is, however, no use leaving things as they are. It is absolutely essential to show that these disabilities have no parallel anywhere in the world. It is impossible to compare the Brahmanic Law with every other legal system on the point of rights and disabilities. A comparison of the Brahmanic Law with the Roman Law ought to suffice.

IV

It will be well to begin this comparison by noting the classes which under the Roman Law had rights and those which suffered from disabilities. The Roman jurists divided men into five categories: (1) Patricians and Plebians; (2) Freemen and Slaves; (3) Citizens and Foreigners; (4) Persons who were *sui juris* and persons who were *alieni juris* and (5) Chirstians and Pagans.

Under the Roman Law; persons who were privileged were: (1) Patricians; (2) Freemen; (3) Citizens; (4) *Sui juris* and

(5) Christians. As compared to these, persons who suffered disabilities under the Roman Law were: (1) the Plebians; (2) Slaves; (3) Foreigners; (4) Persons who were *alieni juris* and (5) Pagans.

A Freeman, who was a citizen under the Roman Law, possessed civil rights as well as political rights. The civil rights of a citizen comprised rights of *connubium* and *commercium*. In virtue of the *connubium*, the citizen could contract a valid marriage according to the *jus civile*, and acquire the rights resulting from it, and particularly the paternal power and the civil relationship called agnation, which was absolutely necessary to enable him in law to succeed to the property of persons who died intestate. In virtue of the *commercium* he could acquire and dispose of property of all kinds, according to the forms and with the peculiar privileges of the Roman Law. The political rights of the Roman citizen included *jus suffragii* and *jus honorum*, the right to vote in public elections and the right to hold office.

The slave differed from the Freeman in as much as he was owned by the master and as such had no capacity to acquire rights.

Foreigners, who were called *Peregrine*, were not citizens and had none of the political or civil rights which went with citizenship. A Foreigner could obtain no protection unless he was under the protection of a citizen.

The *alieni juris* differed from *sui juris* in as much as the former were subject to the authority of another person, while the latter were free from it. This authority was variously called (1) Potestas, (2) Manus and (3) Mancipium, though they had the same effect. Potestas under the Roman Law fell into two classes. Persons subject to Potestas were (1) slaves, (2) children, (3) wife in Manus,

(4) debtor assigned to the creditor by the Court and (5) a hired gladiator. *Potestas* gave to one in whom it was vested rights to exclusive possession of those to whom it extended and to vindicate any wrong done to them by anyone else.

The correlative disabilities which persons *alieni juris* suffered as a result of being subject to *Potestas* were: (1) they were not free, (2) they could not acquire property and (3) they could not directly vindicate any wrong or injury done to them.

The disabilities of the Pagans began with the advent of Christianity. Originally, when all the Romans followed the same Pagan worship, religion could occasion no difference in the enjoyment of civil rights. Under the Christian Emperors, heretics and

apostates as well as Pagans and Jews, were subjected to vexatious restrictions, particularly as regards their capacity to succeed to property and to act as witnesses. Only orthodox Christians who recognised the decisions of the four oecumenical councils had the full enjoyment of civil rights.

This survey of rights and disabilities of the Roman Law may well give comfort to Hindus that the Brahmanic Law was not the only law which was guilty of putting certain classes under disabilities, although the disabilities imposed by the Roman Law have nothing of the cruelty which characterizes the disabilities imposed by the Brahmanic Law. But when one compares the principles of the Roman Law with those of the Brahmanic Law underlying these disabilities, the baseness of the Brahmanic Law becomes apparent.

Let us first ask: What was the basis of rights and disabilities under the Roman Law. Even a superficial student of Roman Law knows that they were based upon (1) *Caput* and (2) *Existimatio*.

Caput meant the civil status of a person. Civil status among the Romans had reference chiefly to three things; liberty, citizenship and family. The status *libertatis* consisted of being a freeman and not a slave. If a freeman was also a Roman citizen, he enjoyed the *status civitatis*. Upon this quality depended not only the enjoyment of political rights, but the capacity of participating in the *jus civile*. Finally, the *status familie* consisted in a citizen belonging to a particular family, and being capable of enjoying certain rights in which the members of that family, in their quality of agnates, could alone take part.

If an existing status came to be lost or changed, the person suffered what was called a *capitis diminutio*, which extinguished either entirely or to some extent his former legal capacity. There were three changes of state or condition attended with different consequences, called *maxima*, *media*, and *minima*. The greatest involves the loss of liberty, citizenship, and family; and this happened when a Roman citizen was taken prisoner in war, or condemned to slavery for his crimes. But a citizen who was captured by the enemy, on returning from captivity, was restored to all his civil rights *jure postliminii*.

The next change of status, consisted of the loss of citizenship and family rights, without any forfeiture of personal liberty; and this occurred when a citizen became a member of another state. He was then forbidden the use of fire and water, so as to be forced to quit the Roman territory, or was sentenced to deportation under the empire.

Finally, when a person ceased to belong to a particular family, without losing his liberty or citizenship, he was said to suffer the least change of state, as for instance, where one *sui juris* came under the power of another by arrogation, or a son who had been under the *patria potestas* was legally emancipated by his father.

Citizenship was acquired first by birth. In a lawful marriage the child followed the condition of the father, and became a citizen, if the father was so at the time of conception. If the child was not the issue of *justoe nuptioe*, it followed the condition of the mother at the time of its birth. Secondly, by manumission, according to the formalities prescribed by law, the slave of a Roman citizen became a citizen. This rule was modified by the laws. *Elia Sentia* and *Junia Norbana*, according to which, in certain cases, the freedman acquired only the status of a foreigner, *peregrinus dedititius* or of a Latin, *Latinus Junianus*. Justinian restored the ancient principle, according to which every slave, regularly enfranchised, became in full right a Roman citizen. Thirdly, the right of citizenship was often granted as a favour, either to a whole community or to an individual, by the people or the senate during the republic, and by the reigning prince during the empire; and this was equivalent to what the moderns call naturalisation.

Citizenship was lost—Firstly, by the loss of liberty—as, for instance, when a Roman became a prisoner of war; secondly, by renouncing the character of Roman citizen, which took place when anyone was admitted a citizen of another state; thirdly, by a sentence of deportation or exile, as a punishment for crime.

The civil status of a person under the Roman Law may or may not be *civis optimo jure*. *Civis optimo jure* included not only capacity for civil rights but also capacity for political rights such as *jus suffragii et honorum*, i.e., the right to vote and the capacity to hold a public office. Capacity for political rights depended upon *existimatio*. *Existimatio* means reputation in the eye of the law. A Roman citizen may have *caput* as well as *existimatio*. On the other hand, a Roman may have *caput* but may not have *existimatio*. Whoever had *caput* as well as *existimatio* had civil rights as well as political rights. Whoever had *caput* but had no *existimatio* could claim civil rights only. He could not claim political rights.

A person's *existimatio* was lost in two ways. It was lost by loss of freedom or by conviction for an offence. If a person lost his freedom his *existimatio* was completely extinguished. Loss of *existimatio* by

conviction for offence varied according to the gravity of the offence.¹ If the offence was serious the diminution of his *existimatio* was called *infamia*. If the offence was less grave it was called *turpitude*. *Infamia* resulted in the extinguishment of *existimatio*. Under the Roman Law a defendant, in addition to ordinary damages, was subjected to *infamia*. Condemnation for theft, robbery, *injuria* or fraud, entailed infamy. So a partner, a *mandatarius*, a *depositarius*, *tutor*, a mortgagee (in *contractus fiducioe*) if condemned for wilful breach of duty, was held to be infamous.

The consequence of *infamia* was exclusion from political rights,² not merely from office (honours), but even from the right to vote in elections (*suffragium*).

From this brief survey of the basis of rights and disabilities in Roman Law, it will be clear that the basis was the same for all. They did not differ from community to community. Rights and disabilities according to Roman Law were regulated by general considerations, such as *caput* and *existimatio*. Whoever had *caput* and *existimatio* had rights. Whoever lost his *caput* and his *existimatio* suffered disabilities. What is the position under the Brahmanic Law? There again, it is quite clear that rights and disabilities were not based on general uniform considerations. They were based on communal considerations. All rights for the first three *Varnas* and all disabilities for the Shudras was the principle on which the Brahmanic Law was based.

The protagonists of Brahmanic Laws may urge that this comparison is too favourable to Roman Law and that the statement that Roman Law did not distribute rights and liabilities on communal basis is not true. This may be conceded. For so far as the relation between the Patricians and Plebians was concerned the distribution of rights and liabilities was communal. But in this connection the following facts must be noted.

1. Such as robbery, theft, perjury, fraud, appearing on the public stage as an actor or gladiator, ignominious expulsion from the army, gaining a living by aiding in prostitution and other disreputable occupations and other variety of acts involving gross moral turpitude.

2. There were other consequences of *infamia* such as exclusion from the office of attorney, disability to act on behalf of another in a law suit or giving evidence. *Infamia* was inflicted in two ways, either by the censors or by the judgement of a Court of Law. It was in the power of the censors, in superintending public morality, to deprive senators of their dignity, to remove knights from the equestrian order and even to strip a citizen of all his political rights by classing him among the *aerarii*. The censors also put a *nota censoria* opposite to a man's name in the roll of citizens; and this might be done upon their own responsibility; without special inquiry, though they generally acted in accordance with public opinion. The *nota censoria* produced no effect except during the magistracy of the censor who imposed it. In this respect it differed essentially from infamy, which was perpetual, unless the stigma was removed by the prerogative of the people or the Emperor.

In the first place, it must be noted that Plebians were not slaves. They were freemen in as much as they enjoyed *jus commercii* or the right to acquire, hold and transfer property. Their disabilities consisted in the denial of political and social rights. In the second place, it must be noted that their disabilities were not permanent. There were two social disabilities from which they suffered. One arose from the interdict on intermarriage between them and the Patricians imposed by the Twelve Tables.¹ This disability was removed in B.C. 445 by the passing of the Canulian Law which legalized intermarriage between Patricians and Plebians. The other disability was their ineligibility to hold the office of Pontiffs and Augurs in the Public Temples of Rome. This disability was removed by the Ogulnian Law passed in B.C. 300.

As to the political disabilities of the Plebians they had secured the right to vote in popular assemblies (*jus suffragii*) under the Constitution of Servius Tullius the Sixth King of Rome. The political disabilities which had remained unredressed were those which related to the holding of office. This too was removed in course of time after the Republic was established in B.C. 509. The first step taken in this direction was the appointment of Plebian Tribunes in B.C. 494; the Questorship was opened to them, formally in B.C. 421; actually in B.C. 409; the Consulship in B.C. 367; the curule-aedileship in B.C. 366; the dictatorship in B.C. 356; the Censorship in B.C. 351; and the Praetorship in B.C. 336. The Hortensian Law enacted in B.C. 287 marked a complete triumph for the Plebians. By that law the resolutions of the Assembly of the tribes were to be directly and without modification, control or delay, binding upon the whole of the Roman people.

This marks a complete political fusion of Patricians and Plebians on terms of equality.

Not only were the Plebians placed on the same footing as to political capacity and social status with the Patricians but the road to nobility was also thrown open to them. In Roman society, birth and fortune were the two great sources of rank and personal distinction. But in addition to this, the office of Curule Magistracy was also a source of ennoblement to the holder thereof. Every citizen, whether Patrician or Plebian, who won his way to a Curule Magistracy, from that Edile upwards, acquired personal distinction, which was transmitted to his descendants, who formed a class called *Nobiles*, or

1. It was older than the Twelve Tables. The Twelve Tables only recognized it.

men known, to distinguish them from the *ignobiles*, or people who were not known. As the office was thrown open to the Plebians, many Plebians¹ had become nobles and had even surpassed the Patricians in point of nobility.

It may be that the Roman Law did recognise communal distinction in distributing rights and disabilities. The point is that the disabilities of the Plebians were not regarded as permanent. Although they existed they were in course of time removed. That being so, the protagonists of Brahmanic Law cannot merely take solace in having found a parallel in the Roman Law but have to answer why the Brahmanic Law did not abolish the distinction between the Traivarnikas and the Shudras as the Roman Law did by equating the Plebians with the Patricians? One can therefore contend that the Roman Law of rights and disabilities was not communal while the Brahmanic Law was.

This is not the only difference between the Roman Law and the Brahmanic Law. There are two others. One is equality before law in criminal matters. The Roman Law may not have recognized equality in matters of civil and political rights. But in matters of criminal law it made no distinction between one citizen and another, not even between Patrician and Plebian. The same offence the same punishment, no matter who the complainant and who the accused was. Once an offence was proved, the punishment was the same. What do the *Dharma Sutras* and the *Smritis* do? They follow an entirely different principle. For the same offence the punishment varies according to the community of the accused and the community of the complainant. If the complainant is a Shudra and the accused belonged to any one of the three classes the punishment is less than what it would be if the relations were reversed. On the other hand, if the complainant was Traivarnika and the accused a Shudra, the punishment is far heavier than in the first case. This is another barbarity which distinguishes the Brahmanic Law from the Roman Law.

The next feature of the Roman Law which distinguishes it from the Brahmanic Law is most noteworthy. It relates to the extinction of disabilities. Two points need be borne in mind. First is that the disabilities under the Roman Law were only contingent. So long as certain conditions lasted, they gave rise to certain disabilities. The

1. A Plebian who first attained a Curule office and became the founder of a noble family was called by the Romans a *novus homo* or new man.

moment the conditions changed, the disabilities vanished and a step in the direction of equality before law was taken. The second point is that the Roman Law never attempted to fix the conditions for ever and thereby perpetuate the disabilities. On the other hand, it was always ready to remove the conditions to which these disabilities were attached as is evident in the case of the Plebians, the Slaves, the Foreigners and the Pagans.

If these two points about the disabilities under the Roman Law are borne in mind, one can at once see what mischief the *Dharma Sutras* and the *Smritis* have done in imposing the disabilities upon the Shudras. The imposition of disabilities would not have been so atrocious if the disabilities were dependent upon conditions and if the disabled had the freedom to outgrow those conditions. But what the Brahmanic Law does is not merely to impose disabilities but it tries to fix the conditions by making an act which amounts to a breach of those conditions to be a crime involving dire punishment. Thus, the Brahmanic Law not only seeks to impose disabilities but it endeavours to make them permanent. One illustration will suffice. A Shudra is not entitled to perform Vedic sacrifices as he is not able to repeat the Vedic *Mantras*. Nobody would quarrel with such a disability. But the *Dharma Sutras* do not stop here. They go further and say that it will be a crime for a Shudra to study the Vedas or hear it being pronounced and if he does commit such a crime his tongue should be cut or molten lead should be poured into his ear. Can anything be more barbarous than preventing a man to grow out of his disability? What is the explanation of these disabilities? Why did the Brahmanic Law-givers take such a cruel attitude towards the Shudras? The Brahmanic Law books merely state the disabilities. They say that the Shudras have no right to *Upanayana*. They say that the Shudras shall hold no office. They say that the Shudras shall not have property. But they do not say why. The whole thing is arbitrary. The disabilities of the Shudra have no relation to his personal conduct. It is not the result of infamy. The Shudra is punished just because he was a Shudra. This is a mystery which requires to be solved. As the Brahmanic Law books do not help us to solve it, it is necessary to look for explanation elsewhere.

CHAPTER IV

SHUDRAS *VERSUS* ARYANS

I

FROM what has been said before, it is clear that the Brahmanic writers do not give us any clue as to who the Shudras were and how they came to be the fourth *Varna*. It is, therefore, necessary to turn to the Western writers and to see what they have to say about the subject. The Western writers have a definite theory about the origin of the Shudras. Though all of them are not agreed upon every aspect of the theory, there are points on which there seems to be a certain amount of unity among them. They comprise the following :

(1) The people who created the Vedic literature belonged to the Aryan race.

(2) This Aryan race came from outside India and invaded India.

(3) The natives of India were known as Dasas and Dasyus who were racially different from the Aryans.

(4) The Aryans were a white race. The Dasas and Dasyus were a dark race.

(5) The Aryans conquered the Dasas and Dasyus.

(6) The Dasas and Dasyus after they were conquered and enslaved were called Shudras.

(7) The Aryans cherished colour prejudice and therefore formed the *Chaturvarnya* whereby they separated the white race from the black race such as the Dasas and the Dasyus.

These are the principal elements in the Western theory about the origin and position of the Shudras in the Indo-Aryan society. Whether it is valid or not is another matter. But this much must certainly be said about it that after reading the Brahmanic theories with their long and tedious explanations attempting to treat a social fact as a divine dispensation, one cannot but feel a certain amount of relief in having before oneself a theory, which proceeds to give

a natural explanation of a social fact. One can do nothing with the Brahmanic theories except to call them senseless ebullitions of a silly mind. They leave the problem as it is. With the modern theory, one is at least on the road to recover one's way.

To test the validity of the theory, the best thing to do is to examine it piece by piece and see how far each is supported by evidence.

The foundation on which the whole fabric of the theory rests is the proposition that there lived a people who were Aryan by race. It is in the fitness of things therefore to grapple with this question first.

What is this Aryan race? Before we consider the question of Aryan race we must be sure as to what we mean by the word "race". It is necessary to raise this question because it is not impossible to mistake a people for a race. The best illustration of such a mistake is the Jews. Most people believe that the Jews are a race. To the naked eye, they appear to be so. But what is the verdict of the experts ? This is what Prof. Ripley¹ has to say about the Jews :

"Our final conclusion, then, is this: This is paradoxical yet true, we affirm. The Jews are not a race, but only a people after all. In their faces we read its confirmation; while in respect of their other traits, we are convinced that such individuality as they possess—by no means inconsiderable—is of their own making from one generation to the next, rather than a product of an unprecedented purity of physical descent."

What is a race? A race may be defined as a body of people possessing certain typical traits which are hereditary. There was a time when it was believed that the traits which constitute a race are: (1) the form of the head, (2) the colour of the hair and eyes, (3) the colour of the skin, and (4) the stature. To-day the general view is that pigmentation and stature are traits, which vary according to climate and habitat, and consequently they must be ruled out as tests for determining the race of the people. The only stable trait is the shape of the human head—by which is meant the general proportions of length, breadth and height and that is why anthropologists and ethnologists regard it as the best available test of race.

The use of head-forms for determining the race to which an individual belongs has been developed by anthropologists into an exact science. It is called anthropometry. This science of anthropometry has devised two ways of measuring the head form: (1) cephalic index, and (2) facial index. The index is the mark of the race.

1. Ripley W. E., *The Races of Europe*, p. 400.

Cephalic index is the breadth of the head above the ears expressed in percentage of its length from forehead to back. Assuming that this length is 100, the width is expressed as a fraction of it. As the head becomes proportionately broader—that is more fully rounded, viewed from the top down—this cephalic index increases. When it rises above 80, the head is called brachycephalic. When it falls below 75, the term dolichocephalic is applied to it. Indices between 75 and 80 are characterized as mesocephalic. These are technical terms. They constantly crop up in literature dealing with questions of race and if one does not know what they denote it obviously becomes very difficult to follow the discussion intelligently. It would not therefore be without advantage if I were to stop to give their popular equivalents. The popular equivalent of mesocephalic is medium-headed, having a medium cephalic Index, the breadth of the cranium being between three-fourths and four-fifths of the length. Dolichocephalic means long-headed, having a low cephalic index, the breadth of the cranium being below four-fifths of the length.

Facial index is the correlation between the proportions of the head and the form of the face. In the majority of cases, it has been found that a relatively broad head is accompanied by a rounded face, in which the breadth back of the cheek bones is considerable as compared with the height from forehead to chin. Lack of uniformity in the mode of taking measurements has so far prevented extended observations fit for exact comparison. All the same, it has been found safe to adopt the rule, long head, oval face: short-head and round face.

Applying these measures of anthropometry, Prof. Ripley, an authority on the question of race, has come to the conclusion that the European people belong to three different races in terms of cephalic and facial index. His conclusions are summarized in the table on the next page.¹

Is there an Aryan race in the physical sense of the term? There seem to be two views on the subject. One view is in favour of the existence of the Aryan race. According to it :²

The Aryan type.. is marked by a relatively long (dolichocephalic) head; a straight finely-cut (leptorrhine) nose; a long symmetrically narrow face; well developed regular features and a high facial angle. The stature is fairly high— and the general build of the figure well-proportioned and slender rather than massive.

1. Ripley, *Races of Europe*, p. 121.

2. *Ibid* Vol. I, p. 121

EUROPEAN RACIAL TYPES

	<i>Head</i>	<i>Face</i>	<i>Hair</i>	<i>Eyes</i>	<i>Stature</i>	<i>Nose</i>
1. Teutonic	Long	Long	Very light	Blue	Tall	Narrow aquiline
2. Alpine (Celtic)	Round	Broad	Light Chestnut	Hazel Grey	Medium stocky	Variable: rather broad heavy
3. Mediterranean	Long	Long	Dark brown or black	Dark	Medium slender	Rather broad

The other view is that of Prof. Max Muller. According to him, the word is used in three different senses. This is what he, in his lectures on the *Science of Language*, says :

In *ar* or *ara*, I recognise one of the oldest names of the earth, as the ploughed land, lost in Sanskrit but preserved in Greek as (*era*) so that Arya would have conveyed originally the meaning of landholder, cultivator of the land, while Vaishya from *Vis* meant householder, *Ida* the daughter of Manu is another name of the cultivated earth and probably a modification of *Ara*.

The second sense in which it was used was to convey the idea of ploughing or tilling the soil. As to this, Prof. Max Muller makes the following observations :

I can only state that the etymological signification of Arya seems to be: One who ploughs or tills. The Aryans would seem to have chosen this name for themselves as opposed to the nomadic races, the *Turanians*, whose original name *Tura* implies the swiftness of the horsemen.

In the third sense, the word was used as a general name for the Vaishyas, i.e., the general body of the people, who formed the whole mass of the people. For this, Prof. Max Muller relies on Panini (iii. 1,103) for his authority. Then, there is the fourth sense, which the word got only towards the later period, in which sense it means 'of noble origin'.

What is however of particular importance is the opinion of Prof. Max Muller on the question of the Aryan race. This is what he says on the subject:¹

There is no Aryan race in blood; Aryan, in scientific language is utterly inapplicable to race. It means language and nothing but language; and if we speak of Aryan race at all, we should know that it means no more than... Aryan speech.

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I have declared again and again that if I say Aryas, I mean neither blood nor bones, nor hair nor skull; I mean simply those who speak an Aryan language. The same applies to Hindus, Greeks, Romans, Germans, Celts, and Slavs. When I speak of them I commit myself to no anatomical characteristics. The blue-eyed and fair-haired Scandinavians may have been conquerors or conquered, they may have adopted the language of their darker lords or their subjects, or *vice versa*. I assert nothing beyond their language, when I call them Hindus, Greeks, Romans, Germans, Celts and Slavs; and in that sense, and in that sense only, do I say that even the blackest Hindus represent an earlier stage of Aryan speech and thought than the fairest Scandinavians. This may seem strong language, but in matters of such importance we cannot be too decided in our language. To me, an ethnologist who speaks of Aryan race, Aryan blood, Aryan eyes and hair, is as great a sinner as linguist who speaks of a dolichocephalic dictionary or a

1 *Biography of Words*, pp. 89 and 120-21.

brachycephalic grammar. It is worse than a Babylonian confusion of tongues— it is down-right theft. We have made our own terminology for the classification of language; let ethnologists make their own for the classification of skulls, and hair and blood.

The value of this view of Prof. Max Muller will be appreciated by those who know that he was at one time a believer in the theory of Aryan race and was largely responsible for the propagation of it.

The two views are obviously not in harmony. According to one view, the Aryan race existed in a physiological sense with typical hereditary traits with a fixed cephalic and facial index. According to Prof. Max Muller, the Aryan race existed in a philological sense, as a people speaking a common language.

In this conflict of views one may well ask: what is the testimony of the Vedic literature? As examination of the Vedic literature shows that there occur two words in the Rig Veda—one is Arya (आर्य) with a short 'a' and the other is Arya (आर्य) with a long 'a'. The word Arya (आर्य) with a short 'a' is used in the Rig Veda¹ in 88 places. In what sense is it used? The word² is used in four different senses; as (1) enemy, (2) respectable person, (3) name for India, and (4) owner, Vaishya or citizen.

The word (आर्य) with a long 'a' is used in the Rig Veda in 31 places.³ But in none of these is the word used in the sense of race.

From the foregoing discussion, the one indisputable conclusion which follows is that the terms 'Arya' and 'Arya' which occur in the Vedas have not been used in the racial sense at all.

One may also ask: what is the evidence of anthropometry? the Aryan race is described as long-headed. This description is not enough. For as will be seen from the table given by Prof. Ripley, there are two races which are long-headed. The question which of the two is the Aryan race still remains open.

II

Let us take the next premise—namely, that the Aryans came from outside India, invaded India, and conquered the native tribes. It would be better to take these questions separately.

1. For a list of the references in the Rig Veda, see Appendix 1.

2. For a list of references showing in which place the word is used and in what sense, see Appendix II

3. For a list of references, see Appendix III.

From where did the Aryan race come into India? On the question of locating the original home of the Aryan race, there is a bewildering variety of views and options. According to Benfey, the original home of the Aryan race must be determined by reference to the common vocabulary. His views on the subject have been well summarized by Prof. Isaac Taylor¹ in the following words :

“The investigation of the vocabulary common to the whole of the Aryan languages might yield a clue to the region inhabited by the Aryans before the linguistic separation. He contended that certain animals, such as the bear and the wolf, and certain trees, such as the beech and the birch with which the primitive Aryans must have been acquainted, are all indigenous to the temperate zone, and above all, to Europe, whereas the characteristic animals and trees of Southern Asia, such as the lion, the tiger and the palm were known only to the Indians and the Iranians. He urged that the absence from the primitive Aryan vocabulary of common names for the two great Asiatic beasts of prey, the lion and the tiger, or for the chief Asiatic beast of transport, the camel, is difficult to explain on the theory of the migration of the Aryans from the region eastward of the Caspian. That the Greeks called the lion by its Semitic name, and the Indians by a name which cannot be referred to any Aryan root, argues that the lion was unknown in the common home of Greeks and Indians.

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Benfey's declaration speedily bore fruit, and Geiger forthwith ranged himself in the same camp, but placing the cradle of the Aryans, not as Benfey had done in the region to the North of the Black Sea, but more to the north-west, in Central and Western Germany. Geiger's contribution to the argument was not without its value. He bases his conclusions largely on the tree names which belong to the primitive Aryan vocabulary. In addition to the fir, the willow, the ash, the alder, and the hazel, he thinks the names of the birch, the beech and the oak are specially decisive. Since the Greek (phegos) which denotes the oak is the linguistic equivalent of the Teutonic *beech* and of the Latin *fagus* he draws the conclusion that the Greeks migrated from a land of beeches to a land of oaks, transferring the name which denoted the tree with 'edible' fruit from the one tree to the other.”

Another school holds that the original home of the Aryan race was in Caucasia, because the Caucasians like the Aryans are blonds, have a straight, a sharp nose and a handsome face. On this point, the view of Prof. Ripley is worth quoting. This is what Prof. Ripley² has to say on the subject :

The utter absurdity of the misnomer Caucasian, as applied to the blue-eyed and fair-headed 'Aryan' (?) race of Western Europe, is revealed by two indisputable facts. In the first place, this ideal blond type does not occur within many hundred miles of Caucasia; and, secondly, nowhere along the great Caucasian chain is there a single native tribe making use of a purely inflectional or Aryan language.

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1 Issac Taylor, *The Origin of the Aryans*, pp. 24-26.

2 Ripley : *Races of Europe*, pp. 436-437.

Even the Ossetes, whose language alone is possibly inflectional, have not had their claims to the honour of Aryan made positively clear as yet. And even if Ossetian be Aryan, there is every reason to regard the people as immigrants from the direction of Iran, not indigenous Caucasians at all. Their head form, together with their occupation of territory along the only highway—the Pass of Darriell—across the chain from the South, give tenability to the hypothesis. At all events, whether the Ossetes be Aryan or not, they little deserve pre-eminence among the other peoples about them. They are lacking both in the physical beauty for which this region is justly famous, and in courage as well, if we may judge by their reputation in yielding abjectly and without shadow of resistance to the Russians.

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It is not true that any of these Caucasians are even ‘somewhat typical’. As a matter of fact they could never be typical of anything. The name covers nearly every physical type and family of language of the Eur-Asian continent except, as we have said, that blond, tall, ‘Aryan’ speaking one to which the name has been specifically applied. It is all false; not only improbable but absurd. The Caucasus is not a cradle—it is rather a grave—of peoples, of languages, of customs and of physical types. Let us be assured of that point at the outset. Nowhere else in the world probably is so heterogeneous a lot of people, languages and religions gathered together in one place as along the chain of the Caucasus mountains.”

Mr. Tilak has suggested that the original home of the Aryan race was in the Arctic region. His theory may be summarized in his own words. He begins by taking note of the astronomical and climatic phenomenon in the region round about the North Pole. He finds¹ that there are :

“Two sets of characteristics, or *differentia*; one for an observer stationed exactly at the terrestrial North Pole, and the other for an observer located in the Circum-Polar regions, or tracts of land between the North Pole and the Arctic circle.”

Mr. Tilak calls these two sets of *differentia*; as Polar and CircumPolar, and sums them up as follows :

I. The Polar Characteristics

(1) The sun rises in the south.

(2) The stars do not rise and set; but *revolve* or spin round and round, in horizontal planes, completing one round in 24 hours. The northern celestia hemisphere is alone overhead and visible during the whole year; and the souther or lower celestial world is always invisible.

(3) The year consists only of one long day and one long night of six months each.

(4) There is only one morning and one evening, or the sun rises and sets only once a year. But the *twilight*, whether of the morning or of the evening, lasts continuously for about *two months*, or 60 periods of 24 hours each. The ruddy light

1 Tilak B. G., *The Arctic Home in the Vedas*, 58-60.

of the morn, or the evening twilight, is not again confined to a particular part of the horizon (eastern or western) as with us; but moves, like the stars at the place, round and round along the horizon, like a potter's wheel, completing one round in every 24 hours. These rounds of the morning light continue to take place, until the orb of the sun comes above the horizon; and then the sun follows the same course for six months, that is, moves, without setting, round and round the observer, completing one round every 24 hours.

II. The Circum-Polar Characteristics

(1) The sun will always be to the south of the zenith of the observer, but as this happens even in the case of an observer stationed in the temperate zone, it cannot be regarded as a special characteristic.

(2) A large number of stars are *circum-polar*, that is, they are above the horizon during the entire period of their revolution and hence always visible. The remaining stars rise and set as in the temperate zone, but revolve in more oblique circles.

(3) The year is made up of three parts: (i) one long continuous night, occurring at the time of the winter solstice, and lasting for a period, greater than 24 hours and less than six months, according to the latitude of the place; (ii) one long continuous day to match, occurring at the time of the summer solstice; and (iii) a succession of ordinary days and nights during the rest of the year, a nycthemeron, or a day and a night together, never exceeding a period of 24 hours. The day, after the long continuous night, is at first shorter than the night, but goes on increasing until it develops into the long continuous day. At the end of the long day, the night is, at first, shorter than the day, but, in its turn, it begins to gain over the day, until the commencement of the long continuous night, with which the year ends.

(4) The dawn, at the close of the long continuous night, lasts for several days, but its duration and magnificence is proportionally less than at the North Pole, according to the latitude of the place. For places, within a few degrees of the North Pole, the phenomenon of revolving morning light will still be observable during the greater part of the duration of the dawn. The other dawns viz., those between ordinary days and nights, will, like the dawns in the temperate zone, only last for a few hours. The sun, when he is above the horizon during the continuous day, will be seen revolving, without setting, round the observer, as at the Pole, but in oblique and not horizontal circles, and during the long night he will be entirely below the horizon, while during the rest of the year he will rise and set, remaining above the horizon for a part of 24 hours, varying according to the position of the sun in the ecliptic.

Summing up the position as analysed by him, Mr. Tilak concludes by saying :

“Here we have two distinct sets of *differentiae* or special characteristics of the Polar and *Circum-Polar* regions—characteristics which are not found anywhere else on the surface of the globe. Again as the Poles of the earth are the same to-day as they were millions of years ago, the above astronomical characteristics will hold good for all times, though the Polar climate may have undergone violent changes in the Pleistocene period.”

Having noted the phenomenon in the Arctic region, Mr. Tilak proceeds to argue that :

“If a Vedic description or tradition discloses any of the characteristics mentioned above, we may safely infer that the tradition is Polar or Circumi-Polar in origin, and the phenomenon, if not actually witnessed by the poet, was at least known to him by tradition faithfully handed down from generation to generation. Fortunately there are many such passages or references in the Vedic literature, and, for convenience, these may be divided into two parts; the first comprising those passages which directly describe or refer to the long night, or the long dawn; and the second consisting of myths and legends which corroborate and indirectly support the first.”

Mr. Tilak is satisfied that the description of natural phenomenon and the myths and legends contained in the Vedas tally with the natural phenomenon as it exists near the North Pole and concludes that the Vedic poets i.e., the Vedic Aryans must have had the Arctic region as their home.

This is of course a very original theory. There is only one point which seems to have been overlooked. The horse is a favourite animal of the Vedic Aryans. It was most intimately connected with their life and their religion. That the queens vied with one another to copulate with the horse in the *Ashvamedha Yajna*¹ shows what place the horse had acquired in the life of the Vedic Aryans. Question is : was the horse to be found in the Arctic region? If the answer is in the negative, the Arctic home theory becomes very precarious.

III

What evidence is there of the invasion of India by the Aryan race and the subjugation by it of the native tribes? So far as the *Rig Veda* is concerned, there is not a particle of evidence suggesting the invasion of India by the Aryans from outside India. As Mr. P. T. Srinivasa Iyengar² points out:

“A careful examination of the *Mantras* where the words *Arya*, *Dasa* and *Dasyu* occur, indicates that they refer not to race but to cult. These words occur mostly in *Rig Veda Samhita* where *Arya* occurs about 33 times in *mantras* which contain 153,972 words on the whole. The rare occurrence is itself a proof that the tribes that called themselves *Aryas* were not invaders that conquered the country and exterminated the people. For an invading tribe would naturally boast of its achievements constantly.”

So far the testimony of the Vedic literature is concerned, it is against the theory that the original home of the Aryans was outside India. The language in which reference to the seven rivers is made in

1 See *Yajur Veda* with Madhavachiya's Bhashya.

2 *Life in Ancient India in the Age of the Mantras*, pp. 11-12.

the *Rig Veda* (x.75.5) is very significant. As Prof. D. S. Triveda says¹—the rivers are addressed as ‘my Ganges, my Yamuna, my Saraswati’ and so on. No foreigner would ever address a river in such familiar and endearing terms unless by long association he had developed an emotion about it.

As to the question of conquest and subjugation, references can undoubtedly be found in the *Rig Veda* where Dasas and Dasyus are described as enemies of the Aryas and there are many hymns in which the Vedic *rishis* have invited their gods to kill and annihilate them. But before drawing any conclusion from it in favour of conquest and subjugation by the Aryans, the following points must be taken into consideration.

First is the paucity of references in the *Rig Veda* to wars between the Aryans on the one hand and the Dasas or Dasyus on the other. Out of the 33 places in which the word occurs in the *Rig Veda* only in 8 places is it used in opposition to Dasas and only in 7 places is it used in opposition to the word Dasyus. This may show the occurrence of sporadic riots between the two. It is certainly not evidence of a conquest or subjugation.

The second point about the Dasas is that whatever conflict there was between them and the Aryans, the two seem to have arrived at a mutual settlement, based on peace with honour. This is borne out by references in the *Rig Veda* showing how the Dasas and Aryans have stood as one united people against a common enemy. Note the following verses from the *Rig Veda* :

Rig Veda — vi. 33.3;
 vii. 83.1;
 viii 51.9;
 X 102.3.

The third point to note is that whatever the degree of conflict, it was not a conflict of race. It was a conflict which had arisen on account of difference of religions. That this conflict was religious and not racial is evidenced by the *Rig Veda* itself. Speaking of the Dasyus, it² says :

“They are *avrata*, without (the Arya) rites (R.V., i. 51.8, 9; i.132. 4; iv.41. 2; vi. 14, 3); *apavrata* (R.V., v.42,2), *anyavrata* of different rites (R.V., viii.59, 11; x.22, 8), *Anagnitra* fireless (R.V., v. 189, 3), *ayajyu*, *ayajvan*, non-sacrifices (R.V., i.131, 44; i.33, 4; viii.59, 11), *abrambha*, without prayers (or also not

1 *The Original Home of the Aryans* by D. S. Triveda, Annals of the Bhandarkar Oriental Research Institute, Vol. XX, p. 62.

2 Iyengar, *Ibid.*, p. 13.

having Brahmana priest (R.V., iv. 15,9; x.105,8). *anrichah*, without Riks (R.V., x.105, 8), *Brahmadvisha*, haters of prayer (or Brahmans) R.V., v.42,9), and *anindra*, without Indra, despisers of Indra, (R.V., i.133,1: v.2,3; vii 18; 6; x 27, 6; x.48, 7). 'They pour no milky draughts they heat no cauldron' (R.V., iii.53, 4). They give no gifts to the Brahmana (R.V., v.7, 10)."

Attention may also be drawn to the Rig Veda x.22.8 which says :

"We live in the midst of the Dasyu tribes, who do not perform sacrifices nor believe in anything. They have their own rites and are not entitled to be called men. O! thou, destroyer of enemies, annihilate them and injure the Dasas."

In the face of these statements from the *Rig Veda*, there is obviously no room for a theory of a military conquest by the Aryan race of the non-Aryan races of Dasas and Dasyus.

IV

So much about the Aryans, their invasion of India and their subjugation of the Dasas and Dasyus. The consideration so far bestowed upon the question has been from the Aryan side of the issue. It might be useful to discuss it from the side of the Dasas and the Dasyus. In what sense are the names Dasa and Dasyu used? Are they used in a racial sense?

Those who hold that the terms Dasa and Dasyu are used in the racial sense rely upon the following circumstances: (1) The use in the *Rig Veda* of the terms *Mridhravak* and *Anasa* as epithets of Dasyus. (2) The description in the *Rig Veda* of the Dasas as being of Krishna Varna

The term *Mridhravak* occurs in the following places in the *Rig Veda* :

- | | | |
|-----------------------|------|--------|
| (1) <i>Rig Veda</i> , | i. | 174.2; |
| (2) <i>Rig Veda</i> , | v. | 32.8; |
| (3) <i>Rig Veda</i> , | vii. | 6.3; |
| (4) <i>Rig Veda</i> , | vii. | 18.3. |

What does the adjective *Mridhravak* mean? *Mridhravak* means one who speaks crude, unpolished language. Can crude unpolished language be regarded as evidence of difference of race? It would be childish to rely upon this as a basis of consciousness of race difference.

The term *Anasa* occurs in *Rig Veda* v.29.10. What does the word mean? There are two interpretations. One is by Prof. Max Muller. The other is by Sayanacharya. According to Prof.. Max Muller, it

means 'one without nose 'or' one with a flat nose' and has as such been relied upon as a piece of evidence in support of the view that the Aryans were a separate race from the Dasyus. Sayanacharya says that it means 'mouthless,' i.e., devoid of good speech. This difference of meaning is due to difference in the correct reading of the word *Anasa..* Sayanacharya reads it as *an-asa* while Prof. Max Muller reads it as *a-nasa*. As read by Prof. Max Muller, it means without nose. Question is : which of the two readings is the correct one? There is no reason to hold that Sayana's reading is wrong. On the other hand there is every thing to suggest that it is right. In the first place, it does not make non-sense of the word. Secondly, as there is no other place where the Dasyus are described as noseless, there is no reason why the word should be read in such a manner as to give it an altogether new sense. It is only fair to read it as a synonym of *Mridhravak*. There is therefore no evidence in support of the conclusion that the Dasyus belonged to a different race.

Turning to Dasas, it is true that they are described as *Krishna Yoni*, in Rig Veda vi.47.21. But there are various points to be considered before one can accept the inference which is sought to be drawn from it. First is that this is the only place in the Rig Veda where the phrase *Krishna Yoni* is applied to the Dasas. Secondly, there is no certainty as to whether the phrase is used in the literal sense or in a figurative sense. Thirdly, we do not know whether it is a statement of fact or a word of abuse. Unless these points are clarified, it is not possible to accept the view that because the Dasas are spoken of as *Krishna Yoni*, they therefore, belonged to a dark race.

In this connection, attention may be drawn to the following verses from the Rig Veda:

1. Rig Veda, vi.22.10.—"Oh, Vajri, thou hast made Aryas of Dasas, good men out of bad by your power. Give us the same power so that with it we may overcome our enemies."
2. Rig Veda, x.49.3, (says Indra).—"I have deprived the Dasyus of the title of Aryas."
3. Rig Veda, i. 151.8—"Oh, Indra, find out who is an Arya and who is a Dasyu and separate them."

What do these verses indicate? They indicate that the distinction between the Aryans on the one hand and the Dasas and Dasyus on the other was not a racial distinction of colour or physiognomy. That is why a Dasa or Dasyu could become an Arya. That is why Indra was given the task to separate them from the Arya.

That the theory of the Aryan race set up by Western writers falls to the ground at every point, goes without saying. This is somewhat surprising since Western scholarship is usually associated with thorough research and careful analysis. Why has the theory failed? It is important to know the reasons why it has failed. Anyone who cares to scrutinize the theory will find that it suffers from a double infection. In the first place, the theory is based on nothing but pleasing assumptions and inferences based on such assumptions. In the second place, the theory is a perversion of scientific investigation. It is not allowed to evolve out of facts. On the contrary the theory is preconceived and facts are selected to prove it.

The theory of the Aryan race is just an assumption and no more. It is based on a philological proposition put forth by Dr. Bopp in his epoch-making book called *Comparative Grammar* which appeared in 1835. In this book, Dr. Bopp demonstrated that a greater number of languages of Europe and some languages of Asia must be referred to a common ancestral speech. The European languages and Asiatic languages to which Bopp's proposition applied are called Indo-Germanic. Collectively, they have come to be called the Aryan languages largely because Vedic language refer to the Aryas and is also of the same family as the Indo-Germanic. This assumption is the major premise on which the theory of the Aryan race is based.

From this assumption are drawn two inferences: (1) unity of race, and (2) that race being the Aryan race. The argument is that if the languages are descended from a common ancestral speech then there must have existed a race whose mother tongue it was and since the mother tongue was known as the Aryan tongue the race who spoke it was the Aryan race. The existence of a separate and a distinct Aryan race is thus an inference only. From this inference, is drawn another inference which is that of a common original habitat. It is argued that there could be no community of language unless people had a common habitat permitting close communion. Common original habitat is thus an inference from an inference.

The theory of invasion is an invention. This invention is necessary because of a gratuitous assumption which underlies the Western theory. The assumption is that the Indo-Germanic people are the purest of the modern representatives of the original Aryan race. Its first home is assumed to have been somewhere in Europe. These

assumptions raise a question: How could the Aryan speech have come to India: This question can be answered only by the supposition that the Aryans must have come into India from outside. Hence the necessity for inventing the theory of invasion.

The third assumption is that the Aryans were a superior race. This theory has its origin in the belief that the Aryans are a European race and as a European race it is presumed to be superior to the Asiatic races. Having assumed its superiority, the next logical step one is driven to take is to establish the fact of superiority. Knowing that nothing can prove the superiority of the Aryan race better than invasion and conquest of native races, the Western writers have proceeded to invent the story of the invasion of India by the Aryans and the conquest by them of the Dasas and Dasyus.

The fourth assumption is that the European races were white¹ and had a colour prejudice against the dark races. The Aryans being a European race, it is assumed that it must have had colour prejudice. The theory proceeds to find evidence for colour prejudice in the Aryans who came into India. This it finds in the *Chaturvarnya*—an institution by the established Indo-Aryans after they came to India and which according to these scholars is based upon *Varna* which is taken by them to mean colour.

Not one of these assumptions is borne out by facts. Take the premise about the Aryan race. The theory does not take account of the possibility that the Aryan race in the physiological sense is one thing and an Aryan race in the philological sense quite different, and that it is perfectly possible that the Aryan race, if there is one, in the physiological sense may have its habitat in one place and that the Aryan race, in the philological sense, in quite a different place. The theory of the Aryan race is based on the premise of a common language and it is supposed to be common because it has a structural affinity. The assertion that the Aryans came from outside and invaded India is not proved and the premise that the Dasas and Dasyus are aboriginal tribes² of India is demonstrably false.

Again to say that the institution of *Chaturvarnya* is a reflexion of the innate colour prejudice of the Aryans is really to assert too much. If colour is the origin of class distinction, there must be four different colours to account for the different classes which comprise *Chaturvarnya*. Nobody has said what those four colours are and who

1. For a discussion as to who the Dasas and Dasyus were, see Chapter 6.

2. For a discussion whether in their origin the European races were white or dark see the observations of Prof. Ripley, *infra*, p. 76.

were the four coloured races who were welded together in *Chaturvarnya*. As it is, the theory starts with only two opposing people, Aryas and Dasas—one assumed to be white and the other assumed to be dark.

The originators of the Aryan race theory are so eager to establish their case that they have no patience to see what absurdities they land themselves in. They start on a mission to prove what they want to prove and do not hesitate to pick such evidence from the Vedas as they think is good for them.

Prof. Michael Foster has somewhere said that ‘hypothesis is the salt of science.’ Without hypothesis there is no possibility of fruitful investigation. But it is equally true that where the desire to prove a particular hypothesis is dominant, hypothesis becomes the poison of science. The Aryan race theory of Western scholars is as good an illustration of how hypothesis can be the poison of science as one can think of.

The Aryan race theory is so absurd that it ought to have been dead long ago. But far from being dead, the theory has a considerable hold upon the people. There are two explanations which account for this phenomenon. The first explanation is to be found in the support which the theory receives from Brahmin scholars. This is a very strange phenomenon. As Hindus, they should ordinarily show a dislike for the Aryan theory with its express avowal of the superiority of the European races over the Asiatic races. But the Brahmin scholar has not only no such aversion but he most willingly hails it. The reasons are obvious. The Brahmin believes in the two-nation theory. He claims to be the representative of the Aryan race and he regards the rest of the Hindus as descendants of the non-Aryans. The theory helps him to establish his kinship with the European races and share their arrogance and their superiority. He likes particularly that part of the theory which makes the Aryan an invader and a conqueror of the non-Aryan native races. For it helps him to maintain and justify his overlordship over the non-Brahmins.

The second explanation why the Aryan race theory is not dead is because of the general insistence by European scholars that the word *Varna* means *colour* and the acceptance of that view by a majority of the Brahmin scholars. Indeed, this is the mainstay of the Aryan theory. There is no doubt that as long as this interpretation of the *Varna* continues to be accepted, the Aryan theory will continue to live. This part of the Aryan theory is therefore very important and

calls for fuller examination. It needs to be examined from three different points of view: (1) Were the European races fair or dark? (2) Were the Indo-Aryans fair? and (3) What is the original meaning of the word *Varna* ?

On the question of the colour of the earliest Europeans Prof. Ripley is quite definite that they were of dark complexion. Prof. Ripley goes on to say:¹

“We are strengthened in this assumption that the earliest Europeans were not only long-headed but also dark complexioned, by various points in our enquiry thus far. We have proved the prehistoric antiquity of the living Cro-Magnon type in Southern France; and we saw that among these peasants, the prevalence of black hair and eyes is very striking. And comparing types in the British Isles we saw that everything tended to show that the brunet populations of Wales, Ireland and Scotland constituted the most primitive stratum of population in Britain. Furthermore, in that curious spot in Garfagnana, where a survival of the ancient Ligurian population of Northern Italy is indicated, there also are the people characteristically dark. Judged, therefore, either in the light of general principles or of local details, it would seem as if this earliest race in Europe must have been very dark.... It was Mediterranean in its pigmental affinities, and not Scandinavian.”

Turning to the Vedas for any indication whether the Aryans had any colour prejudice, reference may be made to the following passages in the Rig Veda :

In Rig Veda, i. 117.8, there is a reference to *Ashvins* having brought about the marriage between *Shyavya* and *Rushati*. *Shyavya* is black and *Rushati* is fair.

In Rig Veda, i. 117.5, there is a prayer addressed to *Ashvins* for having saved Vandana who is spoken as of golden colour.

In Rig Veda, ii.3.9, there is a prayer by an Aryan invoking the Devas to bless him with a son with certain virtues but of (*pishanga*) tawny (reddish brown) complexion.

These instances show that the Vedic Aryans had no colour prejudice. How could they have? The Vedic Aryans were not of one colour. Their complexion varied; some were of copper complexion, some white, and some black. Rama the son of Dasharatha has been described as *Shyama* i.e., dark in complexion, so is Krishna the descendant of the Yadus, another Aryan clan. The Rishi Dirghatamas, who is the author of many *mantras* of the Rig Veda must have been of dark colour if his name was given to him after his complexion. Kanva is an Aryan rishi of great repute. But according to the description given in Rig Veda—x.31.11—he was of dark colour.

1 Prof. Ripley : *Races of Europe*, p. 466

To take up the third and the last point, namely, the meaning of the word *Varna*¹ Let us first see in what sense it is used in the Rig Veda. The word *Varna* is used² in the Rig Veda in 22 places. Of these, in about 17 places the word is used in reference to deities such as Ushas, Agni, Soma, etc., and means lustre, features or colour. Being used in connection with deities, it would be unsafe to use them for ascertaining what meaning the word *Varna* had in the Rig Veda when applied to human beings. There are four and at the most five places in the Rig Veda where the word is used in reference to human beings. They are :

- 1) i.104.2;
- 2) i.179.6;
- 3) ii.12.4;
- 4) iii.34.5;
- 5) ix.71.2.

Do these references prove that the word *Varna* is used in the Rig Veda in the sense of colour and complexion?

Rig veda, iii.34.5 seems to be of doubtful import. The expression 'caused Shukla Varna to increase' is capable of double interpretation. It may mean Indra made Ushas throw her light and thereby increase the white colour, or it may mean that the hymn-maker being of white complexion, people of his i.e., of white colour increased. The second meaning would be quite far-fetched for the simple reason that the expansion of the white colour is the effect and lightening of Ushas is the cause.

Rig Veda, ix.71.2 the expression 'abandons Asura Varna' is not clear, reading it in the light of the other stanzas in the *Sukta*. The *Sukta* belongs to Soma Pavamana. Bearing this in mind, the expression 'abandons Asura Varna' must be regarded as a description of Soma. The word *Varna* as used here is indicative of *roopa*. The second half of the stanza says: 'he throws away his black or dark covering and takes on lustrous covering.' From this it is clear that the word *Varna* is used as indicative of darkness.

Rig Veda, i.179.6 is very helpful. The stanza explains that Rishi Agastya cohabitated with Lopamudra in order to obtain *praja*, children and strength and says that as a result two Varnas prospered. It is not clear from the stanza, which are the two Varnas referred to in the stanzas, although the intention is to refer to Aryas and Dasas.

1 On what follows, see *Maharashtra Dnyanakosha*, Vol. III pp. 39-42.

2 See Appendix VI, p. 216.

Be that as it may, there is no doubt that the Varna in the stanza means class and not colour.

In Rig Veda, i.104.2 and Rig Veda, ii.12.4 are the two stanzas in which the word Varna is applied to Dasa. The question is: What does the word Varna mean when applied to Dasa? Does it refer to the colour and complexion of the Dasa, or does it indicate that Dasas formed a separate class? There is no way of arriving at a positive conclusion as to which of the two meanings is correct.

The evidence of the Rig Veda is quite inconclusive. In this connection, it will be of great help to know if the word occurs in the literature of the Indo-Iranians and if so, in what sense.¹

Fortunately, the word Varna does occur in the Zend Avesta. It takes the form of *Varana* or *Varena*. It is used specifically in the sense of "Faith, Religious doctrine, Choice of creed or belief." It is derived from the root *Var* which means to put faith in, to believe in. One comes across the word *Varana* or *Varena* in the Gathas about six times used in the sense of faith, doctrine, creed or belief.

It occurs in Gatha Ahunavaiti—Yasna Ha 30 Stanza 2 which when translated in English reads as follows :

"Give heed with your ears and contemplate the highest Truth I proclaim; with your illumined mind introspect. Each man for himself must determine his (Avarenao) faith. Before the Great Event, let each individually be awake to the Truth we teach."

This is one of the most famous strophes of the Gatha where Zarathushtra exhorts each one individually to use reasoning faculty and freedom of choice in the selection of his or her faith. The words occurring here are '*Avarenao vichithahya*,' *Avarenao* meaning faith, belief and *vichi- thahya* meaning 'of discriminating, of selecting of determining'.

It occurs in Gatha Ahunavati—Yasna Ha 31 Stanza 11. The word used is *Vareneng* accusative plural of *Varena* meaning 'belief, faith.' In this stanza, Zarathushtra propounds the theory of the creation of man. After speaking about man's creation being completed, in the last half line Zarathushtra says "voluntary beliefs are given (to man)"

It occurs in Gatha Ushtavaiti—Yasna Ha 45 Stanza 1 in the form of *Varena*. In the last line of this strophe, Zarathushtra says 'owing to sinful belief (or evil faith) the wicked is of evil tongue (or invested tongue)'.

1 The information relating to the meaning of the word 'Varna' in the Indo-Iranian literature, I owe to my friend Dastur Bode, who is well-versed in it.

It occurs in Gatha Ushtavaiti—Yasna Ha 45 Stanza 2 in the same form as above *Varena* in the clear sense of faith, religion, belief, etc. In this stanza, Zarathushtra is propounding his philosophy of good and evil and speaking of dual aspects of human mind. In this stanza, the two mentalities—the good mentality and the evil mentality—are speaking to each other saying “Neither in thought, word, intelligence, faith (or religion or creed) utterance, deed, conscience nor soul do we agree.”

It occurs in Gatha Spenta Mainyu,—Yasna Ha 48 Stanza 4 in the form of *Vareneng* meaning religion, faith (root *Vere* Persian *gervidan* = to have faith in). In this stanza Zarathushtra says that “Whosoever will make his mind pure and holy and thus keep his conscience pure by deed and word, such man’s desire is in accordance with his faith (religion, belief).”

It occurs in Gatha Spenta Mainyu,—Yasna Ha 49 Stanza 3 as *Varenai* in dative case meaning ‘religion’. In the same stanza occurs the word *Thaeshai* which also means religion, creed, religious law. These two words *Varenai* and *Tkaesha* occurring in the same stanza strengthens our argument, as the word *Tkaesha* clearly means religion as is found in the compound *Ahuratkaesha* meaning ‘The Ahurian religion’. This word *Tkaesha* is translated in Pahlavi as *Kish* which means religion.

In Vendidad (a book of Zarathushtrian sanitary law written in Avesta language) we come across a word *Anyo Varena*. Here *Anyo* means other and *Varena* means religion, thus a man of different religion, faith, belief is spoken of as *Anyo-Varena*. Similarly, we come across in Vendidad the word *Anyo-Tkaesha* also meaning a man of different religion.

We come across many verbal forms in the Gatha derived from this root, e.g., Ahunavaiti Gatha Yasna Ha, 31, Stanza 3. Zarathushtra declares *Ya jvanto vispeng vauraya*; here the verb *vauraya* means I may cause to induce belief, faith (in God) (in all the living ones). In Yasna Ha, 28: Stanza 5, we come across the verb *vauroimaidi*, ‘We may give faith to.’ We come across another interesting form of this word in Gatha Vahishtaish, Yasna Ha, 53, Stanza 9 *Duz-Varenaish*. It is instrumental plural. The first part *Duz* means wicked, false and *Varenai* means believer. Thus the word means “A man belonging to false or wicked religion or a false or wicked believer.”

In the Zarathushtrian Confession of Faith, which forms Yasna Ha, we come across the word *Fravarane* meaning ‘I confess my faith,

my belief in *Mazdayasno Zarathushtrish* 'Mazda worshipping Zarathushtrian Religion'. This phrase occurs in almost all the Zarathushtrian prayers. There is yet another form in the Zarathushtrian Confession Yasna, 12, *Ya-Varena*. Here *Ya* is relative pronoun meaning which and *Varena*—faith, religion. Thus, the word means 'the religion to which'. This form *Ya Varena* is used nine times in Yasna 12, and it is used in the clear sense of faith or religion. Here again the word *Varena* is placed along with the word *Tkaesha* which means religion.

A very interesting reference is found in Yasna 16 *Zarathushtrahe varenemcha tkaeshemcha yazamaide*. Here the *Varena* and *Tkaesha* of Zarathushtra is worshipped. It is quite clear from the use of these corresponding and correlative words that the faith and religion of Zarathushtra is meant. The translation of the above line is 'We worship the faith and religion of Zarathushtra.'

This evidence from the Zend Avesta as to the meaning of the word Varna leaves no doubt that it originally meant a class holding to a particular faith and it had nothing to do with colour or complexion.

The conclusions that follow from the examination of the Western theory may now be summarized. They are:

- (1) The Vedas do not know any such race as the Aryan race.
- (2) There is no evidence in the Vedas of any invasion of India by the Aryan race and its having conquered the Dasas and Dasyus supposed to be natives of India.
- (3) There is no evidence to show that the distinction between Aryans, Dasas and Dasyus was a racial distinction.
- (4) The Vedas do not support the contention that the Aryas were different in colour from the Dasas and Dasyus.

CHAPTER V

ARYANS AGAINST ARYANS

ENOUGH has been said to show how leaky is the Aryan theory expounded by Western scholars and glibly accepted by their Brahmin fellows. Yet, the theory has such a hold on the generality of people that what has been said against it may mean no more than scotching it. Like the snake it must be killed. It is therefore necessary to pursue the examination of the theory further with a view to expose its hollowness completely.

Those who uphold the theory of an Aryan race invading India and conquering the Dasas and Dasyus fail to take note of certain verses in the *Rig Veda*. These verses are of crucial importance. To build up a theory of an Aryan race marching into India from outside and conquering the non-Aryan native tribes without reference to these verses is an utter futility. I reproduce below the verses I have in mind :

(1) *Rig Veda*, vi. 33.3.—“Oh, Indra, Thou hast killed both of our opponents, the Dasas and the Aryas.”

(2) *Rig Veda*, vi.60.3.—“Indra and Agni—these protectors of the good and righteous suppress the Dasas and Aryas who hurt us.”

(3) *Rig Veda*, vii.81.1.—“Indra and Varuna killed the Dasas and Aryas who were the enemies of Sudas and thus protected Sudas from them.”

(4) *Rig Veda*, viii.24.27.—“Oh you, Indra, who saved us from the hands of the cruel Rakshasas and from the Aryas living on the banks of the Indus, do thou deprive the Dasas of their weapons.”

(5) *Rig Veda*, x.38.3.—“Oh you much revered Indra, those Dasas and Aryas who are irreligious and who are our enemies, make it easy for us with your blessings to subdue them. With your help we shall kill them.”

(6) *Rig Veda*, x.86.19.—Oh, You Mameyu, you give him all powers who prays you. With your help we will destroy our Arya and our Dasyu enemies.

Anyone who reads these verses, notes what they say calmly and coolly and considers them against the postulates of the Western theory will be taken aback by them. If the authors of these verses of the *Rig Veda* were Aryas then the idea which these verses convey

is that there were two different communities of Aryas who were not only different but oppose and inimical to each other. The existence of two Aryas is not a mere matter of conjecture or interpretation. It is a fact in support of which there is abundant evidence.

II

The first piece of such evidence to which attention may be invited, is the discrimination which existed for a long time in the matter of the recognition of the sacred character of the different Vedas. All students of the Vedas know that there are really two Vedas: (1) the Rig Veda and (2) the Atharva Veda. The Sama Veda and the Yajur Veda are merely different forms of the Rig Veda. All students of the Vedas know that the Atharva Veda was not recognised by the Brahmins as sacred as the Rig Veda for a long time. Why was such a distinction made? Why was the Rig Veda regarded as sacred? Why was the Atharva Veda treated as vulgar? The answer, I like to suggest, is that the two belonged to two different races of Aryans and it is only when they had become one that the Atharva Veda came to be regarded on a par with the Rig Veda.

Besides this, there is enough evidence, scattered through the whole of the Brahmanic literature, of the existence of two different ideologies, particularly relating to creation, which again points to the existence of two different Aryan races. Reference to one of these has already been made in Chapter 2. It remains to draw attention to the second type of ideology.

To begin with the Vedas. The following ideology is to be found in the Taittiriya Samhita :

T.S.,¹ vi.5.6.1.—“Aditi, desirous of sons, cooked, a Brahmaudana oblation for the gods, the Sadhyas. They gave her the remnant of it. This she ate. She conceived seed. Four Adityas were born to her. She cooked a second (oblation). She reflected, ‘from the remains of the oblation these sons have been born to me. If I shall eat (the oblation) first, more brilliant (sons) will be born to me.’ She ate it first; she conceived seed; an imperfect egg was produced from her. She cooked a third (oblation) for the Adityas, repeating the formula ‘may this religious toil have been undergone for my enjoyment.’ The Adityas said, ‘Let us choose a boon; let anyone who is produced from this be ours only; let anyone of his progeny who is prosperous be for us a source of enjoyment.’ In consequence the Aditya Vivasvat was born. This is his progeny, namely, men. Among them he alone who sacrifices is prosperous, and becomes a cause of enjoyment to the gods.”

1 Muir, Vol. I, p. 26.

Turning to the Brahmanas. The stories of creation contained in the Satapatha Brahmanas are set out below :

S.B.,¹ i.8.1. 1.—In the morning they brought to Manu water for washing, as men are in the habit of bringing it to wash with the hands. As he was thus washing, a fish came into his hands (which spake to him) ‘preserve me; I shall save thee.’ (Manu enquired) ‘From what wilt thou save me?’ (The fish replied) ‘A flood shall sweep away all these creatures; from it will I rescue thee.’ (Manu asked) ‘How (shall) thy preservation (be effected)?’ The fish said : ‘So long as we are small, we are in great peril, for fish devours fish; thou shalt preserve me first in a jar. When I grow too large for the jar, then thou shalt dig a trench, and preserve me in that. When I grow too large for the trench, then thou shalt carry me away to the ocean. I shall then be beyond the reach of danger. Straight, away he became a large fish; for he waxes to the utmost. (He said) ‘Now in such and such a year, then the flood will come; thou shalt embark in the ship when the flood rises, and I shall deliver thee from it.’ Having thus preserved the fish, Manu carried him away to the sea. Then in the same year which the fish had enjoined, he constructed a ship and resorted to him. When the flood rose, Manu embarked in the ship. The fish swam towards him. He fastened the cable of the ship to the fish’s horn. By this means he passed over this northern mountain. The fish said, ‘I have delivered thee; fasten the ship to a tree. But lest the water should cut thee off whilst thou art on the mountain, as much as the water subsides so much shalt thou descend after it.’ He accordingly descended after it as much (as it subsided). Wherefore also this, viz., ‘Manu’s descent’ is (the name) of the northern mountain. Now the flood had swept away all these creatures, so Manu alone was left here. Desirous of offspring, he lived worshipping and toiling in arduous religious rites. Among these he also sacrificed with the *paka* offering. He cast clarified butter, thickened milk, whey and curds as an oblation into the waters. Thence in a year a woman was produced. She rose up as it were unctuous. Clarified butter adheres to her steps. Mitra and Varuna met her. They said to her ‘who art thou?’ ‘Manu’s daughter’ (she replied). Say (thou art) ours’ (they rejoined). ‘No’, she said, ‘I am his who begot me.’ They desired a share in her. She promised that, or she did not promise that; but passed onward. She came to Manu. Manu said to her, ‘who art thou?’ ‘Thy daughter’ she replied. ‘How, glorious one ‘asked Manu,’ (art thou) my daughter?’ ‘Thou hast generated me,’ she said, ‘from those oblations, butter, thick milk, whey and curds, which thou didst cast into the waters. I am a benediction. Apply me in the sacrifice. If thou wilt employ me in the sacrifice, thou shalt abound in offspring and cattle. Whatever benediction thou will ask through me, shall accrue to thee.’ He (accordingly) introduced her (as) that (which comes in) the middle of the sacrifice; for that is the middle of the sacrifice which (comes) between the introductory and concluding forms. With her he lived worshipping and toiling in arduous religious rites, desirous of offspring. With her he begot this offspring which is this offspring of Manu. Whatever benediction he asked with her, was all vouchsafed to him. This is essentially that which is Ida. Whosoever, knowing this, lives with Ida, begets

1 Muir, Vol. I, pp. 181-184.

this offspring which Manu begot. Whatever benediction he asks with her, is all vouchsafed to him."

(2) S.B.,¹ vi.1.2.11.— "Wherefore they say, 'Prajapati having created those worlds was supported upon the earth. For him these herbs were cooked as food. That (food) he ate. He became pregnant He created the gods from his upper vital airs, and mortal offspring from his lower vital airs. In whatever way he created, so he created. But Prajapati created all this, whatever exists."

(3) S.B.,² vii.5.2.6.— Prajapati was formerly this (universe), one only. He desired.' Let me create food, and be propagated.' He formed animals from his breath, a man from his soul, a horse from his eye, a bull from his breath, a sheep from his ear, a goat from his voice. Since he formed animals from his breaths, therefore men say,' the breaths are animals.' The soul is the first of the breaths. Since he formed a man from his 'soul' therefore they say 'man is the first of the animals, and the strongest.' The soul is all the breaths; for all the breaths depend upon the soul. Since he formed man from his soul, therefore they say,' man is all the animals;' for all these are man's."

(4) S.B.,³ x.1.3.1.— "Prajapati created living beings. From his upper vital airs he created the gods: from his lower vital airs mortal creatures. Afterwards he created death a devourer of creatures."

(5) S.B.,⁴ xiv.4.2.1.— "This universe was formerly soul only, in the form of Purusha. Looking closely, he saw nothing but himself (or soul). He first said,' This is I.' Then he became one having the name of I. Hence even now a man, when called, first says, 'this is I, 'and then declares the other name when he has. In as much as he, before (*purvah*) all this, burnt up (*aushat*) all sins, he (is called), *purusha*. The man who knows this burns up the person who wishes to be before him. He was afraid. Hence a man when alone is afraid. This (being) considered that 'there is no other thing but myself; of what am I afraid?' Then his fear departed. For why should he have feared? It is of a second person that people are afraid. He did not enjoy happiness. Hence a person when alone does not enjoy happiness. He desired a second. He was so much as a man and a woman when locked in embrace. He caused this same self to fall as under into two parts. Thence arose a husband and wife. Hence Yajnavalkya has said that 'this one's self is like the half of a split pea.' Hence the void is filled up by woman. He cohabited with her. From them Men were born. She reflected 'how does he, after having produced me from himself, cohabit with me? Ah! let me disappear'; she became a cow, and the other a bull; and he cohabited with her. From them kine were produced. The one became a mare, the other a stallion, the one a she-ass, the other a male-ass. He cohabited with her. From them the class of animals with undivided hoofs were produced. The one became a she-goat, the other a he-goat, the one a ewe, the other a ram. He cohabited with her. From them goats and sheep were produced. In this manner pairs of all creatures whatsoever down to ants, were produced.

1 Muir. Vol. I, p. 30.

2 Muir. Vol. I. p. 24.

3 Muir, Vol. I, p. 31.

4 Muir. Vol. I, p. 25.

The Taittiriya Brahmana has the following :

T.B.,¹ ii.2.9.1.—“At first this (universe) was not anything. There was neither sky, nor earth, nor air. Being non-existent, it resolved ‘let me be.’ It became fervent. From that fervour smoke was produced. It again became fervent. From that fervour fire was produced. It again became fervent. From that fervour light was produced. It again became fervent. From that fervour flame was produced. It again became fervent. From that fervour rays were produced. It again became fervent. From that fervour blazes were produced. It again became fervent. It became condensed like a cloud. It clove its bladder. That became the sea. Hence men do not drink of the sea. For they regard it as like the place of generation. Hence water issues forth before an animal when it is being born. After that the Dasahotri (a particular formula) was created. Prajapati is the Dasahotri. That man succeeds, who thus knowing the power of austere abstraction (or fervour) practises it. This was then water, fluid. Prajapati wept (exclaiming). ‘For what purpose have I been born, if (I have been born) from this which forms no support.’ That which fell into the waters became the earth. That which he wiped away, became the air. That which he wiped away, upward, became the sky. From the circumstance that he wept (*arodit*), these two regions have the name of *rodasi*, (words). They do not weep in the house of the man who knows this. This was the birth of these worlds. He who thus knows the birth of these worlds, incurs no suffering in these worlds. He obtained this (earth as a) basis. Having obtained (this earth as a) basis, he desired. ‘May I be propagated.’ He practised austere fervour. He became pregnant. He created Asuras from his abdomen. To them he milked out food in an earthen dish. He cast off that body of his. It became darkness. He desired ‘May I be propagated.’ He practised austere fervour. He became pregnant. He created living beings (*prajah*) from his organ of generation. Hence they are the most numerous because he created them from his generative organ. To them he milked out milk in a wooden dish. He cast off that body of his. It became moonlight. He desired ‘May I be propagated.’ He practised austere fervour. He became pregnant. He created the seasons from his armpits. To them he milked out butter in a silver dish. He cast off that body of his. It became the period which connects day and night. He desired ‘May I be propagated.’ He practised austere fervour. He became pregnant. He created the gods from his mouth. To them he milked out Soma in a golden dish. He cast off that body of his. It became day. These are Prajapati’s milkings. He who thus knows, milks out offspring. ‘Day (*diva*) has come to us.’ this (exclamation expresses) the godhead of the gods. He who thus knows the godhead of the gods, obtains the gods. This is the birth of days and nights. He who thus knows the birth of days and nights, incurs no suffering in the days and nights. Mind (or soul, *manas*) was created from the non-existent. Mind created Prajapati. Prajapati created offspring. All this, whatever exists, rests absolutely on mind. This is that Brahma called Svovasyasa. For the man who thus knows, (Ushas), dawning, dawns more and more bright; he becomes prolific in offspring, and (rich) in cattle; he obtains the rank of Parameshthin.”

(3) T.B.,² ii.3.8.1.— “Prajapati desired, ‘May I propagate.’ He practised austerity. He became pregnant. He became yellow brown. Hence a woman when

1 Muir, Vol. I, pp. 28-29.

2 Muir, Vol. I, p. 23.

pregnant, being yellow, becomes brown. Being pregnant with a foetus, he became exhausted. Being exhausted he became blackish-brown. Hence an exhausted person becomes blackish-brown. His breath became alive. With that breath (*asu*) he created Asuras. Therein consists the Asura-nature of Asuras. He who thus knows this Asura-nature of Asuras becomes a man possessing breath. Breath does not forsake him. Having created the Asuras he regarded himself as a father. After that he created the Fathers (Pitris). That constitutes the fatherhood of the Fathers. He who thus knows the fatherhood of the Fathers, becomes as a father of his own; the Fathers resort to his oblation. Having created the Fathers, he reflected. After that he created men. That constitutes the manhood of men. He who knows the manhood of men, becomes intelligent. Mind does not forsake him. To him, when he was creating men, day appeared in the heaven. After that he created the gods. This constitutes the godhead of the gods. To him who thus knows the godhead of the gods, day appears in the heavens. These are the four streams, viz; gods, men, fathers and Asuras. In all of these water is like the air."

(4) T.B.,¹ iii.2.3.9.—"This Shudra has sprung from non-existence."

The following explanation of the origin of creation is given by the Taittiriya Aranyaka :

T.A.,² i.12.3.1.— "This is water, fluid. Prajapati alone was produced on a lotus leaf. Within, in his mind, desire arose, 'Let me create this.' Hence whatever a man aims at in his mind, he declares by speech, and performs by act. Hence this verse has been uttered, 'Desire formerly arose in it, which was the primal germ of mind, (and which) sages, searching with their intellect, have discovered in the heart as the bond between the existent and the non-existent' (Rig Veda x.129.4). That of which he is desirous comes to the man who thus knows. He practised austere fervour. Having practised austere fervour, he shook his body. From its flesh the rishis (called) Arunas, Ketus and Vatarasanas arose. His nails became the Vaikhanasas, his hairs the Valakhilyas. The fluid (of his body became) a tortoise moving amid the waters. He said to him 'Thou hast sprung from my skin and flesh.' 'No,' replied the tortoise, 'I was here before.' In that (in his having been 'before' *purvam*) consists the manhood of a man (*purusha*). Becoming a man *Purusha* with a thousand heads, a thousand eyes, a thousand feet (R.V.x.90.1) he arose. Prajapati said to him, 'thou wert produced before me; do thou first make this.' He took water from this in the cavity of his two hands and placed it on the east, repeating the text, 'so be it, O Sun.' From thence the sun arose. That was the eastern quarter. Then Aruna Ketu placed (the water) to the south, saying 'so be it, O Agni.' Thence Agni arose. That was the southern quarter. Then Aruna Ketu placed (the water) to the west, saying 'so be it, O Vayu.' Thence arose Vayu. That was the western quarter. Then Aruna Ketu placed (the water) to the north, saying 'so be it, O Indra.' Then arose Indra. That is the northern quarter. Then Aruna Ketu placed (the water) in the centre, saying 'so be it, O Pushan.' Thence arose Pushan. That is this quarter. The Aruna Ketu placed (the water) above saying 'so be it, gods.' Thence arose gods, men,

1 Muir, Vol. I, p. 21.

2 Muir, Vol. I, p. 32.

Fathers, Gandharvas and Apsaras. That is the upper quarter. From the drops which fell apart arose the Asuras, Rakshasas, and Pisachas. Therefore they perished, because they were produced from drops. Hence this text has been uttered; 'when the great waters became pregnant, containing wisdom, and generating Svayambhu, from them were created these creations. All this was produced from the waters. Therefore all this is Brahma Svayambhu.' Hence all this was as it were loose, as it were unsteady. Prajapati was that. Having made himself through himself, he entered into that. Wherefore this verse has been uttered; 'Having formed the world, having formed existing things and all intermediate quarters, Prajapati the first born of the ceremonial entered into himself with himself.'"

VI

The Mahabharata has its own contribution to make to the subject. It propounds the theory of creation by Manu.

The Vanaparvan¹ says:

"There was a great rishi, Manu, son of Vivasvat, majestic, in lustre equal to Prajapati. In energy, fiery vigour, prosperity and austere fervour he surpassed both his father and his grand father. Standing with uplifted arm, on one foot, on the spacious Badari, he practised intense austere fervour. This direful exercise he performed with his head downwards, and with unwinking eyes, for 10,000 years. Once, when, clad in dripping rags, with matted hair, he was so engaged, a fish came to him on the banks of the Chirini, and spake: 'Lord, I am a small fish; I dread the stronger ones, and from them you must save me. For the stronger fish devour the weaker; this has been immemorially ordained as our means of subsistence. Deliver me from this flood of apprehension in which I am sinking, and I will requite the deed.' Hearing this, Manu filled with compassion, took the fish in his hand, and bringing him to the water threw him into a jar bright as a moonbeam. In it the fish, being excellently tended, grew; for Manu treated him like a son. After a long time he became very large and could not be contained in the jar. Then, seeing Manu he said again: 'In order that I may thrive, remove me elsewhere.' Manu then took him out of the jar, brought him to a large pond, and threw him in. There he continued to grow for very many years. Although the pond was two *yojanas* long and one *yojana* broad, the lotus-eyed fish found in it no room to move; and again said to Manu: 'Take me to Ganga, the dear queen of the ocean-monarch; in her I shall dwell; or do as thou thinkest best, for I must contentedly submit to thy authority, as through thee I have exceedingly increased.' Manu accordingly took the fish and threw him into the river Ganga. There he waxed for some time, when he again said to Manu, 'From my great bulk I cannot move in the Ganga; be gracious and remove me quickly to the ocean.' Manu took him out of the Ganga; and cast him into the sea. Although so huge, the fish was easily borne, and pleasant to touch and smell, as Manu carried him. When he had been thrown into the ocean he said to Manu: 'Great Lord, thou hast in every way preserved me; now hear

¹ Muir, Vol. I, pp. 199-201.

from me what thou must do when the time arrives. Soon shall all these terrestrial objects, both fixed and moving, be dissolved. The time for the purification of the worlds has now arrived. I therefore inform thee what is for thy greatest good. The period dreadful for the universe, moving and fixed, has come. Make for thyself a strong ship, with a cable attached; embark in it with the seven rishis and stow in it, carefully preserved and assorted, all the seeds which have been described of old by Brahmins. When embarked in the ship, look out for me. I shall come recognizable by my horn. So shalt thou do; I greet thee and depart. These great waters cannot be crossed over without me. Distrust not my word. 'Manu replied,' I shall do as thou hast said. 'After taking mutual leave they departed each on his own way. Manu then, as enjoined, taking with him the seeds' floated on the billowy ocean in the beautiful ship. He then thought on the fish, which knowing his desire, arrived with all speed, distinguished by a horn. When Manu saw the horned leviathan, lofty as a mountain, he fastened the ship's cable to the horn. Being thus attached the fish dragged the ship with great rapidity transporting it across the briny ocean which seemed to dance with its waves and thunder with its waters. Tossed by the tempests, the ship whirled like a reeling and intoxicated woman. Neither the earth nor the quarter of the world appeared; there was nothing but water, air, and sky. In the world thus confounded, the seven rishis, Manu and the fish were beheld. So, for very many years, the fish, unwearied, drew the ship over the waters; and brought it at length to the highest peak of Himavat. He then, smiling gently, said to the rishis, 'Bind the ship without delay to this peak.' They did so accordingly. And that highest peak of Himavat is still known by the name of Naubandhana ('the Binding of the Ship'.) The friendly fish (or god, *animisha*) then said to the rishis, 'I am the Prajapati Brahma, than whom nothing higher can be reached. In the form of a fish I have delivered you from this great danger. Manu shall create all living beings, gods, asuras, men, with all worlds, and all things moving and fixed. By my favour and through severe austere fervour he shall attain perfect insight into his creative work, and shall not become bewildered.' Having thus spoken, the fish in an instant disappeared. Manu, desirous to call creatures into existence and bewildered in his work, performed a great act of austere fervour; and then began visibly to create all living beings."

The *Adi Parvan* of the *Mahabharata* gives a somewhat different version of the story of creation:¹

"Vaishampayana said : I shall, after making obeisance to Svayambhu relate to thee exactly the production and destruction of the gods and other beings. Six great rishis are known as the mind-born sons of Brahma, viz., Marichi, Atri, Angiras, Pulastya, Pulaha and Kratu. Kasyapa was the son of Marichi: and from Kasyapa sprang these creatures. There were born to Daksha thirteen daughters of eminent rank, Aditi, Diti, Danu, Kala, Danayu, Simuka, Krodha, Pradha, Visva, Vinata, Kapila and Muni. Kadru also was of the number. These daughters had valorous sons and grandsons innumerable.

Daksha, the glorious rishi, tranquil in spirit, and great in austere fervour, sprang from the right thumb of Brahma. From the left thumb sprang that great Muni's wife on whom he begot fifty daughters. Of these he gave ten to Dharma,

1 Muir, Vol. I, pp. 122-126.

twentyseven to Indu (Soma), and according to the celestial system, thirteen to Kasyapa. Pitamaha's descendant Manu, the god and the lord of creatures, was his (it does not clearly appear whose) son. The eight Vasus, whom I shall detail, were his sons. Dividing the right breast of Brahma, the glorious Dharma (Righteousness), issued in a human form, bringing happiness to all people. He had three eminent sons, Sama, Kama, and Harsha (Tranquillity, Love, and Joy), who are the delight of all creatures, and by their might support the world Arushi, the daughter of Manu, was the wife of that sage (Chyavana, son of Bhrigu)... There are two other sons of Brahma, whose mark remains in the world, Dhatri, and Vidhatri, who remained with Manu. Their sister was the beautiful goddess Lakshmi, whose home is the lotus. Her mind-born sons are the steeds who move in the sky... When the creatures who were desirous of food, had devoured one another, Adharma (Uprighteousness) was produced, the destroyer of all beings. His wife was Nirriti, and hence the Rakshasas are called Nairritas, or the offspring of Nirriti. She had three dreadful sons, continually addicted to evil deeds, Bhaya, Mahabhaya (Fear and Terror) and Mrityu (Death) the ender of beings. He has neither wife, nor any son, for he is the ender."

"Born all with splendour, like that of great rishis, the ten sons of Prachetas are reputed to have been virtuous and holy; and by them the glorious beings were formerly burnt up by the fire springing from their mouths. From them was born Daksha Prachetasa; and from Daksha, the Parent of the world (were produced) these creatures. Cohabiting with Virini, the Muni Daksha begot a thousand sons like himself, famous for their religious observances, to whom Narada taught the doctrine of final liberation, the unequalled knowledge of the Sankhya. Desirous of creating offspring, the Prajapati Daksha next formed fifty daughters, of whom he gave ten to Dharma, thirteen to Kasyapa, and twenty-seven devoted to the regulation of time to Indu (Soma)... On Dakshayani, the most excellent of his thirteen wives, Kasyapa, the son of Marichi, begot the Adityas, headed by Indra and distinguished by their energy, and also Vivasvat. To Vivasvat was born a son, the mighty Yama Vaivasvata. To Martanda (i.e., Vivasvat, the Sun) was born the wise and mighty Manu, and also the renowned Yama, his (Manu's) younger brother. Righteous was this wise Manu, on whom a race was founded. Hence this (family) of men became known as the race of Manu. Brahmins, Kshatriyas, and other men sprang from this Manu. From him, O king, came the Brahmin conjoined with the Kshatriya. Among them the Brahmins, children of Manu, held the Veda with the Vedangas. The children of Manu are said to have been Vena, Dhrishnu, Narishyanta, Nabhaga, Ikshvaku, Karusha, Saryati, Ila the eighth, Prishadra the ninth, who was addicted to the duties of a Kshatriya, and Nabhagarishta, the tenth. Manu had also fifty other sons; but they all, as we have heard, perished in consequence of mutual dissensions. Subsequently, the wise Pururavas was born of Ila, who, we heard, was both his mother and his father."

VII

The Ramayana also deals with the subject of creation. One account of it will be found in the second Kanda.¹ It says :

¹ Muir, Vol. I, p. 115.

“Perceiving Rama to be incensed, Vasishtha replied: ‘Jabali also knows the destruction and renovation of this world. But he spoke as he did from a desire to induce you to return. Learn from me, lord of the earth, this (account of) the origin of the world. The universe was nothing but water. In it the earth was fashioned. Then Brahma Svayambhu came into existence, with the deities. He next, becoming a boar, raised up the earth, and created the entire world, with the saints, his sons, Brahma, the eternal, unchanging, and undecaying, was produced from the ether (akasa). From him sprang Marichi, of whom Kasyapa was the son. From Kasyapa sprang Vivasvat: and from him was descended Manu, who was formerly the lord of creatures (Prajapati). Ikshvaku was the son of Manu, and to him this prosperous earth was formerly given by his father. Know that this Ikshvaku was the former king in Ayodhya.”

There is besides this another story of creation. It occurs in the third Kanda and is in the following terms :¹

“Having heard the words of Rama, the bird (Jatayu) made known to him his own race, and himself, and the origin of all beings. ‘Listen while I declare to you from the commencement all the Prajapatis (lords of creatures) who came into existence in the earliest time. Kardama was the first, then Vikrita, Sesha, Samsraya, the energetic Bahuputra, Sthanu, Marichi, Atri, the strong Kratu, Pulastya, Angiras, Prachetas, Pulaha, Daksha, then Vivasvat, Arishtanemi, and the glorious Kasyapa, who was the last. The Prajapati Daksha is famed to have had sixty daughters. Of these Kasyapa took in marriage eight elegant maidens, Aditi, Diti, Danu, Kalaka, Tamra, Krodhavaśa, Manu and Anala. Kasyapa, pleased, then, said to these maids:’ ye shall bring forth sons like me, preservers of the three worlds.’ Aditi, Diti, Danu and Kalaka assented; but the others did not agree. Thirty-three gods were borne by Aditi, the Adityas, Vasus, Rudras, and the two Asvins. ‘Manu, (wife) of Kasyapa, produced men, Brahmins, Kshatriyas, Vaishyas, and Shudras. ‘Brahmins were born from the mouth, Kshatriyas from the breast, Vaishyas from the thighs, and Shudras from the feet’ so says the Veda. Anala gave birth to all trees with pure fruits.”

VIII

As an illustration of what the Puranas have to say, I extract the following passages from the Vishnu Purana :²

“Before the mundane egg existed the divine Brahma Hiranyagarbha the eternal originator of all worlds, who was the form and essence of Brahma, who consists of the divine Vishnu, who again is identical with the Rik, Yajus, Saman and Atharva-Vedas. From Brahma’s right thumb was born the Prajapati Daksha; Daksha had a daughter Aditi; from her was born Vivasvat; and from him sprang Manu. Manu had sons called Ikshvaku, Nriga, Dhrishta, Saryati, Narishyanta, Pramsu, Nabhaganedishta, Karusha, and Prishadhra. Desirous of a son, Manu sacrificed to Mitra and Varuna. but in consequence of a wrong invocation

1 Muir, I, p. 116.

2 Muir, Vol. I, pp. 220-221.

through an irregularity of the hotri-priest a daughter called Ila was born. Then through the favour of Mitra and Varuna she became to Manu a son called Sudyumna. But being again changed into a female through the wrath of Isvara (Mahadeva) she wandered near the hermitage of Budha the son of Soma (the Moon); who becoming enamoured of her had by her a son called Pururavas. After his birth, the god who is formed of sacrifice, of the Rik, Yajus, Saman, and Atharva Vedas, of all things, of mind, of nothing, he who is in the form of the sacrificial Male, was worshipped by the rishis of infinite splendour who desired that Sudyumna should recover his manhood. Through the favour of this god Ila became again Sudyumna.”

The Vishnu Purana then proceeds to give the following particulars regarding the sons of Manu :

“(i) Prishadhra became a Shudra in consequence of his having killed his religious preceptor’s cow.

(ii) From Karusha the Karushas, Kshatriyas of great power were descended.

(iii) Nabhaga, the son of Nedishta became a Vaishya.”

The above is the story of the Solar race. The Vishnu Purana¹ has also a parallel story relating to the Lunar race which according to it sprang from Atri just as the Solar race from Manu :

“Atri was the son of Brahma, and the father of Soma (the moon), whom Brahma installed as the sovereign of plants, Brahmins and stars. After celebrating the *rajasuya* sacrifice, Soma became intoxicated with pride, and carried off Tara (Star), the wife of Brihaspati, the preceptor of the gods, whom, although admonished and entreated by Brahma, the gods, and rishis, Soma refused to restore. Soma’s part was taken by Usanas; and Rudra, who had studied under Angiras, aided Brihaspati. A fierce conflict ensued between the two sides supported respectively by the gods and the Daityas, etc., Brahma interposed, and compelled Soma to restore Tara to her husband. She had, however, in the meantime become pregnant, and bore a son Budha (the planet Mercury), of whom when strongly urged, she acknowledged Soma to be the father. Pururavas² was the son of this Budha by Ila, the daughter of Manu. Pururavas³ had six sons, of whom the eldest was Ayus. Ayus had five sons; Nahusha, Kshattravridha, Rambha, Raji and Anenas.

Kshattravridha had a son Sunahotra who had three sons, Kasa, Lesa and Gritsamada. From the last sprang Saunaka, who originated the system of four castes. Kasa had a son, Kasiraja, of whom again Dirghatamas was the son, as Dhanvantari was of Dirghatamas.”

Compare these ideologies of creation with those set out in Chapter 2 and what do we find? I think the result of comparison may be set down in the following propositions: (1) one is sacerdotal in

1 Muir, Vol. I, pp. 225-226.

2 The loves of Pururavas and the Apsara Urvashi, are related in the *Satapatha Brahmanas*, xi. 5.1.11; in the *Vishnu Purana*, vi. 6.19. ff; in the *Bhagavata Purana*, ix. 14; and in the *Harivamsa*, section 26. The *Manabharata*, *Adip*, section 75, alludes to *Pururavas* as having been engaged in a contest with the Brahmins. This passage will be quoted hereafter.

3 Vishnu Purana, iv.7.1.

colour and character, the other is secular; (2) one refers to a human being Manu as the progenitor, the other refers to God Brahma or Prajapati as the originator; (3) one is historical in its drift, the other is supernatural; (4) one speaks of the deluge, the other is completely silent about it; (5) one aims at explaining the four *Varnas*, the other aims at explaining the origin of society only.

These differences are many and fundamental. Particularly fundamental seems to be the difference in regard to *Chaturvarnya*. The sacerdotal ideology recognizes it, but the secular ideology does not. It is true that an attempt is made to combine the two by explaining, as is done in the Ramayana and the Puranas, how Manu's progeny developed into four *Varnas*. But obviously this is an attempt to mould the two ideologies into one. This attempt is deliberate and calculated. But the difference between the two ideologies is so fundamental that in spite of this attempt they persist as two separate ideologies. All that has happened is that instead of one we have two explanations of *Chaturvarnya*, supernatural *Chaturvarnya* produced by Purusha, and natural *Chaturvarnya* as developed among Manu's sons. That the result should be so clumsy shows that the two ideologies are fundamentally different and irreconcilable. It is a pity that the existence of two such ideologies recorded in the Brahmanic literature has not been noticed by scholars who have dealt with the subject. But the fact of their existence and their significance cannot be ignored. What is the significance of the existence of two such ideologies fundamentally different and irreconcilable? To me, it seems that they are the ideologies of two different Aryan races—one believing in *Chaturvarnya* and the other not believing in *Chaturvarnya*—who at a later stage became merged into one. If this reasoning is well-founded then this difference in ideologies disclosed by the Brahmanic literature furnishes further evidence in support of the new theory.

IX

The third and the most unimpeachable evidence in support of my view comes from the anthropometrical survey of the Indian people. Such a survey was first made by Sir Herbert Risley in 1901. On the basis of cephalic index, he came to the conclusion that the people of India were a mixture of four different races: (1) Aryan, (2) Dravidian, (3) Mongolian, and (4) Scythian. He even went to the length of defining the areas where they were massed. The survey was a very

rough one. His conclusions have been tested by Dr. Guha in 1936. His Report on the subject forms a very valuable document in the field of Indian anthropology. The map¹ prepared by Dr. Guha on which he has plotted so to say the distribution of the Indian people according to their head measurements throws a flood of light on the racial composition of the people of India. Dr. Guha's conclusion is that the Indian people are composed of two racial stocks: (1) longheaded, and short-headed, and that the long-headed are in the interior of India and the short-headed are on the outskirts.

The evidence of skulls found in different parts of India also goes to confirm this. This is how Dr. Guha sums up the evidence on this point :

"The accounts of the human remains from prehistoric sites given above, though extremely meagre, with the exception of those of the Indus Valley, enable us nevertheless to visualise the broad outlines of the racial history of India in these times. From the beginning of the 4th Millennium B.C. North-western India seems to have been in the occupation of a long-headed race with a narrow prominent nose. Side by side with them we find the existence of another very powerfully built race also long-headed, but with lower cranial vault, and equally long-faced and narrow nose, though the latter was not so high pitched as that of the former.

A third type with broader head and apparently Armenoid affinities also existed, but its advent occurred probably somewhat later judged by the age of the site as Harappa from which most of these latter type of skulls came."

Speaking in terms of the Alpine and the Mediterranean race, one can say that the Indian people are composed of two stocks: (1) The Mediterranean or the long-headed race, and (2) the Alpine or the short-headed race.

About the Mediterranean race, certain facts are admitted. It is admitted that it is a race which spoke the Aryan language. It is admitted that its home was in Europe round about the Mediterranean basin and from thence it migrated to India. From its localization, it is clear that it must have come to India before the entry of the Alpine race.

Similar facts about the Alpine race remain to be ascertained. First is about the home of the Alpine race and second is about its native speech. According to Prof. Ripley, the home of the Alpine race was in Asia somewhere in the Himalayas. His reasons may be given in his own words. Says Prof. Ripley :²

1 See Appendix V

2 Races of Europe, pp. 473-74

“What right have we for the assertion that this infiltration of population from the East¹ it was not a conquest, everything points to it as a gradual peaceful immigration, often merely the settlement of unoccupied territory—marks the advent of an overflow from the direction of Asia? The proof of this rests largely upon our knowledge of the people of that continent, especially of the Pamir region, the Western Himalayan highlands. Just here on the ‘roof of the world,’ where Max Muller and the early philologists placed the primitive home of Aryan civilization, a human type prevails which tallies almost exactly with our ideal Alpine or Celtic European race. The researches of De Ujfalvy, Topinard, and others localize its peculiar traits over a vast territory hereabouts. The Galchas, mountain Tadjiks, and their fellows are grey-eyed, dark-haired, stocky in build, with cephalic indexes ranging above 86 for the most part. From this region a long chain of peoples of a similar physical type extends, uninterruptedly westward over Asia Minor and into Europe. The only point which the discovery of a broad area in Western Asia occupied by an ideal Alpine type settles, is that it emphasises the affinities of this peculiar race. It is no proof of direct immigration from Asia at all, as Tappeiner observes. It does, however, lead us to turn our eyes eastward when we seek for the origin of the broad-headed type. Things vaguely point to an original ethnic base of supplies somewhere in this direction. It could not lie westward, for everywhere along the Atlantic the race slowly disappears, so to speak. That the Alpine type approaches all the other human millions on the Asiatic continent, in the head form especially, but in hair, colour and stature as well, also prejudices us in the matter; just as the increasing long-headedness and extreme brunetness of our Mediterranean race led us previously to derive it from some type parent to that of the African Negro. These points are then fixed; the roots of the Alpine race run eastward; those of the Mediterranean type towards the south.”

On the question of its language there is a certain amount of dispute¹ as to who introduced the Aryan language in Europe, whether the Nordics (the purest of the Indo-Germans) or the Alpines. But there is no dispute that the language of the Alpine race was Aryan and therefore it is entitled to be called Aryan race in philological sense.

X

From the foregoing statement of facts, it will be seen that there is a solid foundation in anthropometry and history, in support of the Rig Veda that there were in India two Aryan races and not one. Having regard to this, one cannot refuse to admit that here there is a direct conflict between the Western theory and the testimony of the Rig Veda. Whereas the Western theory speaks of one Aryan race, the Rig

¹ Madison Grant, *'The Passing of the Great Race'* (1922), pp. 238-239.

Veda speaks of two Aryan races. The Western theory is thus in conflict with the Rig Veda on a major issue. The Rig Veda being the best evidence on the subject the theory which is in conflict with it must be rejected. There is no escape.

This conflict on the major issue also creates a conflict on the issue of invasion and conquest. We do not know which of the two Aryan races came to India first. But if they belonged to the Alpine race then its home being near the Himalayas, there is no room for the theory of invasion from outside. As to the conquest of the native tribes, assuming it to be a fact, the matter is not quite so simple as Western writers have supposed. On the footing that the Dasas and Dasyus were racially different from the Aryans, the theory of conquest must take account not merely of a possible conquest of Dasas and Dasyus by Aryans but also of a possible conquest of Aryans by Aryans. It must also explain which of the two Aryans conquered the Dasas and Dasyus if they conquered them at all.

The Western theory, it is clear, is only a hurried conclusion drawn from insufficient examination of facts and believed to be correct because it tallied with certain pre-conceived notions about the mentality of the ancient Aryans which they were supposed to have possessed on no other grounds except that their alleged modern descendants, namely, the Indo Germanic races are known to possess. It is built on certain selected facts which are assumed to be the only facts. It is extraordinary that a theory with such a slender and insecure foundation in fact should have been propounded by Western scholars for serious scholars and should have held the field for such a long time. In the face of the discovery of new facts set out in this Chapter the theory can no longer stand and must be thrown on the scrap heap.

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CHAPTER VI

SHUDRAS AND DASAS

IT has been shown how untenable the Western theory is. The only part of the theory that remains to be considered is : who are the Shudras? Mr. A. C. Das¹ says :

“The Dasas and the Dasyus were either savages or non-Vedic Aryan tribes. Those of them that were captured in war were probably made slaves and formed the Shudra caste.”

Mr. Kane,² another Vedic scholar and upholder of the Western theory, holds the view that :

“The word ‘Dasa’ in later literature means a ‘serf or a slave’. It follows that the Dasa tribes that we see opposed to the Aryas in the Rig Veda were gradually vanquished and were then made to serve the Aryas. In the Manusmriti (VIII, 413) the Shudra is said to have been created by God for service (*dasya*) of the Brahmana. We find in the Tai. Samhita, the Tai. Brahmana and other Brahmana works that the Shudra occupied the same position that he does in the Smritis. Therefore it is reasonable to infer that the *Dasas* or *Dasyus* conquered by the Aryans were gradually transformed into the Shudras.”

According to this view the Shudras are the same as Dasas and Dasyus and further the Shudras were the non-Aryan original inhabitants of India and were in a primitive and a savage state of civilization. It is these propositions which we must now proceed to examine.

To begin with the first proposition. It is not one proposition but is really two propositions rolled in one. One is that the Dasas and Dasyus are one and the same people. The other is that they and the Shudras are one and the same people.

That the *Dasas* and *Dasyus* are one and the same people is a proposition of doubtful validity. Such references to them as are to be found in the Rig Veda are not decisive. In some places the terms *Dasa* and *Dasyu* are used in a way as though there was no

1 *Rig Vidic Culture*, p. 133.

2 *Dharma Shastra*, II (I). P. 33.

difference between the two. Shambara, Shushna, Vritra and Pipru are described both as Dasas and Dasyus. Both Dasas and Dasyus are described as the enemies of Indra and Devas and specially the Ashvins. The cities of both Dasas as well as of the Dasyus are described to have been levelled down by Indra and Devas. The defeat of both Dasas as well as Dasyus is described as producing the same effect, namely, release of water and the emergence of light. In describing the release of Dabhiti both are referred to, at one place he is said to have been released from the Dasas and at another place he, is said to have been released from the Dasyus.

While these references suggest that the Dasas and Dasyus were the same, there are other references which suggest that they were different. This is clear from the fact that the Dasas are referred to separately in 54 places and Dasyus are referred to separately in 78 places. Why should there be so many separate references if they did not form two distinct entities? The probability is that they refer to two different communities.

About the second proposition that the Shudras are the same as the Dasas and Dasyus, one can definitely say that it is without any foundation whatsoever.

To make out a case that the Shudras are the same as the Dasas and Dasyus an attempt is made to treat the word Shudra as a derivative word. The word is said to be derived from *Shuc* (sorrow) and *dru* (overcome) and means one overcome by sorrow. In this connection reliance is placed on the story told in the Vedanta Sutra (i.3.34) of *Janasruti* who is said to have been overcome by sorrow on hearing the contemptuous talk of the flamingoes about himself.¹ The same derivation is given by the Vishnu Purana.²

How far are these statements well-founded? To say that Shudra is not a proper name but is a derivative word is too silly for words. The Brahmanic writers excel everybody in the art of inventing false etymologies. There is no word for which they will not design some sort of etymology. Speaking of the different etymologies of the word Upanishad given by Brahmanic writers, Prof. Max Muller³ said :

“These explanations seem so wilfully perverse that it is difficult to understand the unanimity of native scholars. We ought to take into account, however, that very general tendency among half-educated people, to acquiesce in any

1 Referred to in Kane's *Dharma Shastra*, II (I), p. 155.

2 Muir, Vol. 1. p. 97.

3 *Upanishads*, Introduction, pp. lxxix-lxxxii.

etymology which accounts for the most prevalent meaning of a word. The Aranyakas abound in such etymologies, which probably were never intended as real etymologies, in our sense of the word, but simply as plays on words, helping to account somehow for their meaning.”

This warning equally well applies to the attempt of the Vedanta Sutra and of the Vayu Purana to make the word Shudra a derivative word suggesting that it meant a ‘sorrowful people’ and we must therefore reject it as being absurd and senseless.

We have, however, direct evidence in support of the proposition that Shudra is a proper name of a tribe or a clan and is not a derivative word as is sought to be made out.

Various pieces of evidence can be adduced in favour of this proposition. The historians of Alexander’s invasion of India have described a number of republics as free, independent and autonomous whom Alexander encountered. These are, no doubt, formed of different tribes and were known by the name borne by those tribes. Among these is mentioned a people called *Sodari*. They were a fairly important tribe, being one of those which fought Alexander though it suffered a defeat at his hands. Lassen identified them with the ancient *Shudras*. Patanjali at 1.2.3 of his *Mahabhasya* mentions Shudras and associates them with the Abhiras. The *Mahabharata* in Chapter XXXII of the Sabha parvan speaks of the republic of the Shudras-. The Vishnu Purana as well as the Markandeya Purana and the Brahma Purana refer to the Shudras as a separate tribe among many other tribes and fix their location in the Western part of the country above the Vindhyas.¹

II

Let us now turn to the second proposition and examine the various elements of which it is composed. There are two elements in the proposition. First is : Are the words Dasyus and Dasas used in the racial sense indicative of their being non-Aryan tribes? The second element is that assuming they were, is there anything to indicate that they were the native tribes of India? Unless and until these two questions are answered in the affirmative, there is no possibility of identifying the Dasyus and Dasas with the Shudras.

About the Dasyus, there is no evidence to show that the term is used in a racial sense indicative of a non-Aryan people. On the other

¹ See References in Tribes in Ancient India by B. C. Law, p. 350

hand, there is positive evidence in support of the conclusion that it was used to denote persons who did not observe the Aryan form of religion. In this connection, reference may be made to Verse 23 of Adhyaya 65 of the Shantiparvan of the Mahabharata. It reads as follows :

दृश्यन्ते मानुषे लीके सर्ववर्णेषु दस्यवः।
लिंगान्तरे वर्तमाना आश्रमेषुचतुर्ष्वपि ॥

The verse says : “In all the Varnas and in all the Ashramas, one finds the existence of Dasyus.”

What is the origin of the word Dasyu it is difficult to say. But a suggestion¹ has been put forth that it was the word of abuse used by the Indo-Aryans to the Indo-Iranians. There is nothing unnatural or far-fetched in this suggestion. That the two had come into conflict is borne out by history. It is therefore quite possible for the Indo-Aryans to have coined such a contemptuous name for their enemies. If this is true, then Dasyus cannot be regarded as the natives of India.

Regarding the Dasas, the question is whether there is any connection between them and the Azhi-Dahaka of the Zend Avesta. The name Azhi-Dahaka is a compound name which consists of two parts. *Azhi* means serpent, dragon and *Dahaka* comes from root *Dah* meaning ‘to sting, to do harm’. Thus *Azhi-Dahaka* meaning a stinging dragon. It is a proper name of a person commonly known in Indo-Iranian traditions as *Zohak*. He is mentioned in Yasht literature many a time. He is credited to have lived in Babylon where he had built a palace. He is also credited to have built a great observatory in Babylon. This mighty devil Azhi-Dahaka was created by the Arch-demon Angra Mainyu in order to destroy the kingdom of holiness of the corporeal world. This Azhi-Dahaka went to war against Yima the renowned king of the Indo-Iranians and not only vanquished him, but killed him in battle.

Yima is always spoken of in Avesta as *Kshaeta* meaning shining or ruling. Root *Kshi* has two meanings, to shine or to rule. There is another epithet commonly used for Yima and that is *Hvanthwa* meaning ‘possessing good flock’. This Avesta Yima Khshaita became in later Persian language *Jamshid*. According to traditions, king Jamshid son of Vivanghvant was the great hero of the Iranian history, the founder of a great Persian civilization. He was a king of the Peshdiadyan dynasty. In Yasna 9 and 5 (Koema Yashi) it is stated

¹ I am sorry, I have lost the reference.

that 'Vivanshas' was the first man who unceremoniously pounded Hasma (Sk. Sasma) in this corporeal world and the boon he received was: to him was born a son nobly who was Yima the shining and of good flock, who was most glorious amongst the living ones, who was like a glowing sun amongst mankind, during whose kingship he made noblemen and cattle (animals) immortal, made waters and trees undrying. He possessed undiminishing (ever fresh) divine glory. During the kingship of famous Yima there was neither extreme cold nor extreme heat, there was no old age, death and envy.

Is Dahaka of the Zenda Aveshta the same as Dasa of the Rig Veda? If similarity in name can be relied upon as evidence, then obviously it points to their being the names of one and the same person. Dasa in Sanskrit can easily be Daha in Aveshta since *sa* in the former is natural conversion to *ha* in the latter. If this were the only evidence the suggestion that Dasa of the Rig Veda and Dahaka of the Zenda Avesta are the same could have been no better than a conjecture. But there is other and more cogent evidence which leaves no doubt about their identity. In Yasna Ha 9 (which is the same as Horn Yashe) Azhi-Dahaka is spoken of as 'three mouthed, three-headed and six-eyed'. What is striking is that this physical description of Dahaka in Aveshta is exactly similar to the description of Dasa in Rig Veda (x.99.6) where he is also described as having three heads and six eyes¹ If the suggestion that the Dasa in the Rig Veda is the same as Dahaka in the Aveshta, is accepted, then obviously the Dasas were not native tribes aboriginal to India.

III

Were they savages? The Dasas and Dasyus were not a primitive people. They were as civilized as the Aryans and in fact more powerful than the Aryans. Such is the testimony of the Rig Veda. It is well epitomized by Mr. Iyengar when he says that :

"The Dasyus lived in cities (R.V., i.53.8; i.103.3) and under kings the names of many of whom are mentioned. They possessed 'accumulated wealth' (R.V., viii.40.6) in the form of cows, horses and chariots (R.V., ii.15.4) which though kept in 'hundred-gated cities' (R.V., x.99.3), Indra seized and gave away to his worshippers, the Aryas (R.V., i.176.4). The Dasyus were wealthy (R.V., i.33.4) and owned property 'in the plains and on the hills' (R.V., x.69.6). They were 'adorned with their array of gold and jewels' (R.V., i.33.8). They owned many

1 For the identification of Dasa with Dahaka I am indebted to the *Maharashtra Dnyana Kosha*, Vol. III. p. 53.

castles (R.V., i.33.13; viii.17.14). The Dasyu demons and the Arya gods alike lived in gold, silver and iron castles (SS.S., vi.23; A.V., v.28.9; R.V., ii.20.8). Indra overthrew for his worshipper, Divodasa, frequently mentioned in the hymns, a 'hundred stone castles' (R.V., iv.30.20) of the Dasyus. Agni, worshipped by the Arya, gleaming in behalf of him, tore and burnt the cities of the fireless Dasyus. (R.V., vii.5.3). Brihaspati broke the stone prisons in which they kept the cattle raided from the Aryas (R.V., iv.67.3). The Dasyus owned chariots and used them in war like the Aryas and had the same weapons as the Aryas (R.V., viii.24.27; iii.30.5; ii.15.4)"

That the Dasas and Dasyus were the same as the Shudras is a pure figment of imagination. It is only a wild guess. It is tolerated because persons who make it are respectable scholars. So far as evidence is concerned, there is no particle of it, which can be cited in support of it. As has been said before, the word Dasa occurs in the Rig Veda 54 times and Dasyu 78 times. The Dasas and the Dasyus are sometimes spoken together. The word Shudra occurs only once and that too in a context in which the Dasas and Dasyus have no place. In the light of these considerations, it is difficult to say how anyone in his senses can say that Shudras are the same as the Dasas and Dasyus. Another fact which is to be noted is that the names Dasas and Dasyus completely disappear from the later Vedic literature. It means they were completely absorbed by the Vedic Aryans. But it is quite different with the Shudras. The early Vedic literature is very silent about them. But the later Vedic literature is full of them. This shows that the Shudras were different from the Dasas and Dasyus.

IV

Were the Shudras non-Aryans? Mr. Kane says:¹

"A clear line of demarcation was kept between the Arya and the Shudra in the times of the Brahmana works and even in the Dharmasutras. The Tandya Brahmana speaks of a mock fight: 'the Shudra and Arya fight on a hide; out of the two they so arrange that the Arya colour becomes the victor.' The Ap. Dh. S. (I, i.3.40-41) says that a *brahmachari* if he cannot himself eat all the food he has brought by begging, may keep it near an Arya (for his use) or he may give it to a Shudra who is a Dasa (of his teacher). Similarly, Gautama x.69 used the word 'anarya' for Shudra."

On the question of the line of demarcation; between the Shudras and Aryans, the matter needs to be carefully examined.

¹ Kane, *Dharma Shastra*, II (I), p. 35.

The strength of the argument that the Shudras were non-Aryans is to be found in the following statements :

A.V., iv.20.4. — “The thousand-eyed god shall put this plant into my right hand; with that do I see everyone, the Shudra as well as the Arya.”

Kathaka Samhita, xxxiv.5— “The Shudra and the Arya quarrel about the skin. The gods and the demons quarrelled about the sun; the gods won it (the sun). (By this act of quarrelling with Shudras) the Arya makes the Arya Varna win, makes himself successful. The Arya shall be inside the altar, the Shudra outside the altar. The skin shall be white, circular—the form of the sun.”

Vajasaneyi Samhita, xxiii.30-31—“When a deer eats the barley in the field, the (owner of the field) is not pleased with the nourished animal; when a Shudra woman has an Arya as a lover, (the husband) does not long for (the consequent) prosperity.”

When a deer eats barley, the (owner of the field) does not approve of the nourished animal. When a Shudra is the lover of an Arya woman, the (husband) does not consent to the prosperity.

These stanzas, which speak of the Shudra and the Arya as separate and opposed form the foundation of the theory that the Shudras are non-Aryans. To say the least, such a conclusion would be a very hasty one. Two considerations must be borne in mind before any conclusion is drawn from the aforementioned statements. In the first place, it must be borne in mind that according to what has been said before and according to the evidence of the Rig Veda, there are two categories of Aryans, the Vedic and the non-Vedic. Given this fact, it would be quite easy for an Arya of one class to speak of an Arya of another class, as though the two were separate and opposed. Interpreted in this way, the above statements, in which Shudras are set against the Aryans, do not mean that they were not Aryas. They were Aryas of a different sect or class.

That this is possible can be seen from the following statements in the sacred literature of the Hindus:

(1) A.V., xix.32.8.— “Make me, Oh, Darbha (grass), dear to the Brahmin, and the Rajanya (i.e., Kshatriya), to the Shudra and to the Arya and to him whom we love and to everyone who is able to see.”

(2) A.V., xix.62.1.— “Make me beloved among the gods, make me beloved among the princes; make me dear to everyone who sees, to the Shudra and to the Arya”

(3) *Vajasaneyi Samhita*, xviii.48.— “(Oh, Agni), give to us lustre among Brahmins, give us lustre among kings; lustre among Vaishyas and among Shudras; give to me lustre added to lustre.”

(4) *Vajasaneyi Samhita*, xx.17.— “Whatever sin we have committed in the village, in the forest, in the assembly, with our senses, against the Shudra or against the Arya, whatever sin one of us (two, the sacrificer and his wife) has

committed in the matter of his duty (towards the other),— of that sin, you are the destroyer.”

(5) *Vajasaneyi Samhita*, xviii.48.—“As I speak these auspicious words to the people, to the Brahmin and the Rajanya, to the Shudra and to the Arya and to my own enemy, may I be dear to the gods and to the giver of *dakshinas* here in this world. May this desire of mine be granted. May that (enemy of mine) be subjected to me.”

What do these statements show? The first one makes a distinction between the Brahmins and the Aryas. Can it be said that the Brahmins were non-Aryans? The other statements pray for the love and goodwill of the Shudras. If the Shudra was a primitive aboriginal non-Aryan, is such a prayer conceivable? The statements on which reliance is placed do not prove that the Shudras were non-Aryans.

That the Dharma Sutras call the Shudra Anarya and the statements in the *Vajasaneyi Samhita* pouring scorn on the Shudra woman, do not mean anything. There are two arguments against accepting the testimony of the Dharma Sutra. In the first place, as will be shown later, the Dharma Sutras and other treatises are books written by the enemies of the Shudra. As such, they have no evidentiary value. It is also doubtful whether such anti-Shudra statements are mere imprecations or statements of facts as they existed. They seem to contradict facts reported in other works.

The Dharma Sutras say that a Shudra is not entitled to the Upanayana ceremony and the wearing of the sacred thread. But in *Samskara Ganapati* there is an express provision declaring the Shudra to be eligible for Upanayana.¹

The Dharma Sutras say that a Shudra has no right to study the Vedas. But the *Chhandogya Upanishad* (iv:1-2) relates the story of one Janasruti to whom Veda Vidya was taught by the preceptor Raikva. This Janasruti was a Shudra. What is more is that Kavasha Ailusha,² was a Shudra. He was a Rishi and the author of several hymns of the Tenth Book of the Rig Veda.

The Dharma Sutras say that a Shudra has no right to perform Vedic ceremonies and sacrifices. But Jaimini, the author of the *Purva Mimamsa*³ mentions an ancient teacher by name Badari— whose work is lost— as an exponent of the contrary view that even *Shudras* could perform Vedic sacrifices. The *Bharadvaja Srauta Sutra* (v.28) admits that there exists another school of thought which holds that

1 Referred to by Max Muller, in *Ancient Sanskrit Literature* (1860). p. 207.

2 *Ibid*, p. 58.

3 *Adhyaya* 6, *Pada* I, *Sutra* 27.

a Shudra can consecrate the three sacred fires necessary for the performance of a Vedic sacrifice. Similarly, the commentator of the Katyayana Srauta Sutra (1.4.16) admits that there are certain Vedic texts which lead to the inference that the Shudra was eligible to perform Vedic rites.

The Dharma Sutras say that a Shudra is not entitled to the sacred drink of Soma. But in the story of the Ashvins, there is definite evidence that the Shudra had a right to the divine drink of Soma. The Ashvins, as the story goes, once happened to behold Sukanya when she had just bathed and when her person was bare. She was a young girl married to a Rishi by name Chyavana who at the time of marriage was so old as to be dying almost any day. The Ashvins were captivated by the beauty of Sukanya and said "Accept one of us for your husband. It behoveth thee not to spend thy youth fruitlessly." She refused, saying "I am devoted to my husband." They again spoke to her and this time proposed a bargain: "We two are the celestial physicians of note. We will make thy husband young and graceful. Do thou then select one of us as thy husband." She went to her husband and communicated to him the terms of the bargain. Chyavana said to Sukanya "Do thou so"; and the bargain was carried out and Chyavana was made a young man by the Ashvins. Subsequently, a question arose whether the Ashvins were entitled to Soma, which was the drink of the Gods. Indra objected saying that the Ashvins were Shudras and therefore not entitled to Soma. Chyavana, who had received perpetual youth from the Ashvins, set aside the contention and compelled Indra to give them Soma.¹

There is another reason why the evidence of the Dharma Sutras that the Shudras are non-Aryans should not be accepted. In the first place, it is contrary to the view taken by Manu. In the decision of the issue whether the Shudra was an Aryan or a non-Aryan, the following verses from Manu require to be carefully considered :

"If a female of the caste sprung from a Brahmana and a Shudra female, bear (children) to one of the highest castes, the inferior (tribe) attains the highest caste within the seventh generation."

"(Thus) a Shudra attains the rank of a Brahmana and (in a similar manner) a Brahmana sinks to the level of a Shudra; but know that it is the same with the offspring of a Kshatriya or of a Vaishya."

"If (a doubt) should arise, with whom the pre-eminence (is, whether) with him whom an Aryan by chance begot on a non-Aryan female, or (with the son) of

1 V. Fausboll, *Indian Mythology*, pp. 128-134.

a Brahmana woman by a non-Aryan;"

The decision is as follows : 'He who was begotten by an Aryan on a non-Aryan female, may become (like to) an Aryan by his virtues; he whom an Aryan (mother) bore to a non Aryan father (is and remains) unlike to an Aryan.'"¹

Verse 64 from Manu is also to be found in Gautama Dharma Sutra (uv.22). There seems to be some controversy as to the correct interpretation of this verse. In summing up the different interpretations, Buhler says :

"According to Medh., Gov., Kull., and Ragh., the meaning is that, if the daughter of a Brahmana and of a Shudra female and her descendants all marry Brahmanas, the offspring of the sixth female descendant of the original couple will be a Brahmana. While this explanation agrees with Haradatta's comment on the parallel passage of Gautama, Nar. and Nan. take the verse very differently. They say that if a Parasava, the son of a Brahmana and of a Shudra female, marries a most excellent Parasava female, who possesses a good moral character and other virtues, and if his descendants do the same, the child born in the sixth generation will be a Brahmana. Nandana quotes in support of his view, Baudhayana i.16.13-14 (left out in my translation of the Sacred Books of the East, ii, p.197)... '(offspring) begotten by a Nishada on a Nishadi, removes within five generations the Shudrahood; one may initiate him (the fifth descendant); one may sacrifice for the sixth.' This passage of Baudhayana the reading of which is supported by a new MS from Madras clearly shows that Baudhayana allowed the male offspring of Brahmanas and Shudra females to be raised to the level of Aryans. It is also not impossible that the meaning of Manu's verse may be the same, and that the translation should be, 'if the offspring of a Brahmana and of a Shudra female begets children with a most excellent (male of the Brahmana caste or female of the Parasava tribe), the inferior (tribe) attains the highest caste in the seventh generation.'"

Whatever be the interpretation, the fact remains that in the seventh generation² a Shudra under certain circumstances could become a Brahmin. Such a conception would have been impossible if the Shudra was not an Aryan.

That the Shudra is a non-Aryan is contrary to the view taken by the school of Arthashastra. As a representative of that school, the opinion of Kautilya on that question is of great value. In laying down the law of slavery, Kautilya says:³

The selling or mortgaging by kinsmen of the life of a Shudra who is not a born slave, and has not attained majority, but is Arya in birth shall be punished

1 Chapter X, verses 64-67.

2 The rule which requires that for establishing his nobility a man must be able to trace his six uninterrupted degrees of unsullied lineage of not merely free-born, but full-born, appears to be a universal rule in ancient times.—See W. E. Hearn, *The Aryan Household*, Chapter VIII.

3 Book HI, Chapter 13.

with a fine of 12 panas.

Deceiving a slave of his money or depriving him of the privileges he can exercise as an Arya (*Aryabhava*) shall be punished with half the fine (levied for enslaving the life of an Arya).

Failure to set a slave at liberty on the receipt of a required amount of ransom shall be punished with a fine of 12 panas; putting a slave under confinement for no reason (*samrodhaschakaranat*) shall likewise be punished.

The offspring of a man who has sold himself off as a slave shall be an Arya. A slave shall be entitled not only to what he has earned himself without prejudice to his master's work but also to the inheritance he has received from his father.

Here is Kautilya, who calls the Shudra an Aryan in the most emphatic and express terms possible.

V

Coming to the question of Shudras having been made slaves, it is nonsense, if not mendacious. It is founded on two assumptions. First is that the Dasas are described as slaves in the Rig Veda. The second is that the Dasas are the same as Shudras.

It is true that the word Dasa is used in the Rig Veda in the sense of slave or servant. But the word in this sense occurs in only 5 places and no more. But even if it did occur more than five times, would it prove that the Shudras were made slaves? Unless and until it is proved that the two were the same people, the suggestion is absurd. It is contrary to known facts.

Shudras participated in the coronation of kings. In the post-vedic or the period of the Brahmanas, the coronation of a king was in reality an offer of sovereignty by the people to the king. This was done by the representatives of the people called Ratnis who played a very important part in the investiture of the king. The Ratnis were so-called because they held the Ratna (jewel), which was a symbol of sovereignty. The king received his sovereignty only when the Ratnis handed over to him the jewel of sovereignty, and on receiving his sovereignty the king went to the house of each of the Ratnis and made an offering to him. It is a significant fact that one of the Ratnis was always a Shudra.¹

Nilakantha, the author of *Nitimayukha*, describes the coronation ceremony of a later time. According to him, the four chief ministers, Brahmin, Kshatriya, Vaishya and Shudra, consecrated the new king.

1 On this point see Jayasswal, *Hindu Polity* (1943), pp. 200-201.

Then the leaders of each Varna and of the castes lower still, consecrated him with holy water. Then followed acclamation by the twice-born.¹

That the Shudras were invited to be present at the coronation of the king along with Brahmins is evidenced by the description of the coronation of Yudhishtira, the eldest brother of the Pandavas, which is given in the Mahabharata.²

Shudras were members of the two political assemblies of ancient times, namely, the Janapada and Paura and as a member of these the Shudra was entitled to special respect even from a Brahmin.³

This was so even according to the Manusmriti (vi.61) as well as to the Vishnu Smriti (xxi.64). Otherwise there is no meaning in Manu saying that a Brahmin should not live in a country where the king is a Shudra. That means Shudras were kings.

In the Shanti Parvan of the Mahabharata,⁴ Bhishma in his lessons on Politics to Yudhishtira says :

“I shall, however, tell thee what kinds of ministers should be appointed by thee. Four Brahmins learned in the Vedas, possessed of a sense of dignity, belonging to the *Snataka* order, and of pure behaviour, and eight Kshatriyas, all of whom should be possessed of physical strength and capable of wielding weapons, and one and twenty Vaishyas, all of whom should be possessed of wealth, and three Shudras, everyone of whom should be humble and of pure conduct and devoted to his daily duties, and one man of the Suta caste, possessed of a knowledge of the Puranas and the eight cardinal virtues should be thy ministers.”

This proves that the Shudras were ministers and that they were almost equal to the Brahmins in number.⁵

The Shudras were not poor and lowly. They were rich. This fact is testified by the Maitrayani Samhita (iv.2.7.10) and the Panchavimsa Brahmana (vi.1.11).⁶

There are two other aspects to this question. What significance can there be to the enslavement of the Shudras, assuming it was a fact? There would be some significance if the Aryans did not know slavery or were not prepared to turn the Aryans into slaves. But the fact is that the Aryans knew slavery and permitted the Aryans to be made slaves. This is clear from Rig Veda, (vii.86.7; viii. 19.36 and viii.56.3).

1 See Jayaswal, *Hindu Polity* (1943), p. 223.

2 *Mahabharata*, Sabha Parvan, Chapter XXXIII, Verses 41-42.

3 See Jayaswal, *Hindu Polity*, p. 248.

4 Roy's Translation, Vol. II, p. 197

5 Bhishma believed in communal representation.

6 Referred to in the Vedic Index, Vol. II, p. 390.

That being so, why should they particularly want to make slaves of the Shudras? What is more important is why should they make different laws for the Shudra slaves?

In short, the Western theory does not help us to answer our questions, who were the Shudras and how did they become the fourth Varna?

••

CHAPTER VII

WHO WERE THE SHUDRAS ?

WHO were the Shudras if they were not a non-Aryan aboriginal race? This question must now be faced. The theory I venture to advance may be stated in the following three propositions:

- (1) The Shudras were Aryans.
- (2) The Shudras belonged to the Kshatriya class.
- (3) The Shudras were so important a class of Kshatriyas that some of the most eminent and powerful kings of the ancient Aryan communities were Shudras.

This thesis regarding the origin of the Shudras is a startling if not a revolutionary thesis. So startling it is that not many people will be ready to accept it, even though there may be enough evidence to support it. My obligation is to produce the evidence, leaving the people to judge its worth.

The primary piece of evidence on which this thesis rests is a passage which occurs in Verses 38-40 of Chapter 60 of the Shanti Parvan of the Mahabharata. It reads as follows :

“It has been heard by us that in the days of old a Shudra of the name of Paijavana gave a Dakshina (in his own sacrifice) consisting of a hundred thousand Purnapatras according to the ordinance called Aindragni.”

The important statements contained in this passage are three :

(1) that Paijavana was a Shudra, (2) that this Shudra Paijavana performed sacrifices, and (3) the Brahmins performed sacrifices for him and accepted Dakshina from him.

The passage quoted above is taken from Mr. Roy's edition of the Mahabharata. The first thing is to ascertain whether the text is accurate or whether there are any variant readings. As regards the authenticity of his text, this is what Mr. Roy¹ says :

¹ Quoted in Sukthankar Memorial Edition, Vol. I, pp. 43-44.

“As far as my edition is concerned it is substantially based on that of Royal Asiatic Society of Bengal, published about forty-five years ago under the superintendence of a few learned Pandits of Bengal aided, as I believe, by an English Orientalist of repute. Manuscripts had been procured from all parts of India (the South unexcepted) and these were carefully collated. Although edited with such care, I have not, however, slavishly followed the Society’s edition. I have compared it carefully with the Maharajah of Burdwan’s text in the Bengalee character which was edited with still greater care. About 18 manuscripts procured from different parts of India (the South not excepted) were carefully collated by the Burdwan Pandits before they admitted a single *sloka* as genuine.”

Prof. Sukthankar, the erudite editor of the critical edition of the Mahabharata, after examining many editions of the Mahabharata, concluded by saying that :¹

“The *editio princeps* (Calcutta—1856) remains the best edition of the Vulgate, after the lapse of nearly a century.”

Although the authenticity of Mr. Roy’s edition of the Mahabharata cannot be doubted, it would not be unreasonable if critics were to say that they would like to know what other manuscript support there is behind this text, which is made the basis of this new theory of the origin of the Shudras. In undertaking such an inquiry it is necessary to point to two considerations. One² is that there is no such thing as a Mahabharata manuscript in the sense of complete sets of manuscripts covering all the eighteen Parvans. Each Parvan is treated as a separate unit with the result that the number of copies of the different Parvans to be found differ by a vast margin. Consequently, the number of manuscripts to be taken as a basis for deciding which is the correct text must vary with each Parvan.

The second³ consideration to which attention must be drawn is the fact that the text of the Mahabharata has been handed down in two divergent forms; a Northern and a Southern recension, texts, typical of the Aryavarta and the Dakshinapatha.

It is obvious that an examination of manuscript support must be based upon collation from a fair number of manuscripts and a fair distribution of the manuscripts between the Northern and the Southern recensions. Bearing these considerations in mind, the results

1 Quoted in Sukthankar Memorial Edition, Vol. I, p. 131.

2 Sukthankar, op. cit., p. 14.

3 Ibid., pp. 9-42.

of the collation¹ of the text of *Shloka* 38 of the 60th chapter of the Shanti Parvan of the Mahabharata with which we are primarily concerned from different manuscripts is presented below :

- | | |
|-------------------------|---------------|
| 1. शूद्रः पैजवनो नाम | (K) S |
| Shudrah Paijavano nama | |
| 2. शूद्रः पैलवनो नाम | (M/1:M/2) S |
| Shudrah Pailavano nama | |
| 3. शूद्रः यैलननो नाम | (M/3 : M/4) S |
| Shudrah Yailanano nama | |
| 4. शूद्रः यैजननो नाम | (F) |
| Shudrah Yaijanano nama | |
| 5. शूद्रोपि यजने नाम | (L) |
| Shudropi Yajane nama | |
| 6. शूद्रः पौंजलक नाम | (TC) S |
| Shudrah Paunjalka nama | |
| 7. शूद्धो वैभवो नाम | (G) N |
| Shuddho Vaibhavano nama | |
| 8. पुरा वैजवनो नाम | (A, D/2) |
| Pura Vaijavano nama | |
| 9. पुरा वैजननो नाम | (M) N |
| Pura Vaijanano nama | |

Here is the result of the collation of nine manuscripts. Are nine manuscripts enough for constituting a text which has a number of variant readings? It is true that the number of manuscripts taken for the critical edition of the different Parvans of the Mahabharata exceeds nine. For the entire Mahabharata the minimum number of manuscripts taken for constituting the text is only ten.² It cannot therefore be contended that nine is an insufficient number. The nine manuscripts fall into two geographical divisions, Northern and Southern. M1, M2, M3, M4 and TC belong to the Southern recension. A, M, G, D2 belong to the Northern recension. The selections of the manuscripts therefore satisfy the two tests which experts have laid down.

1 I am grateful to the Bhandarkar Oriental Research Institute for allowing me to use their collation sheet. Letters in brackets indicate the index number given by the Institute to the manuscript. N or S indicate whether the manuscript comes from the North or South. K is Kumbhakonam.

2 Sukthankar, Vol. I, p. 14.

A scrutiny of the readings shows that :

- (1) there is a variation in the description of Paijavana;
- (2) there is a variation in the name of Paijavana;
- (3) of the nine texts, six agree in describing him as a Shudra. One describes him as Shuddha and two instead of speaking of the class to which he belonged refer to the time when he lived and use the word 'Pura';
- (4) with regard to the name, there is no agreement between any two of the nine manuscripts. Each gives a different reading.

Given this result, the question is what is the real text? Taking first the texts relating to the name, it is obvious that this is not a matter in which the question of meaning is involved. It does not raise any questions such as interpretation *versus* emendation or of giving preference to a reading which suggests how other readings might have arisen. The question is which is the correct name and which readings are scriptural blunders committed by the scribes. There seems to be no doubt that the correct text is Paijavana. It is supported by both the recensions, Southern as well as Northern. For Vaijavano in No.8 is the same as Paijavano. All the rest are variations which are due to the ignorance of the scribes in not being able to read the original copy correctly and then trying to constitute the text in their own way.

Turning to the description of Paijavana, the change from *Shudrah* to *Pura*, it must be granted, is not accidental. It appears to be deliberate. Why this change has occurred it is difficult to say categorically. Two things appear to be quite clear. In the first place, the change appears to be quite natural. In the second place, the change does not militate against the conclusion that Paijavana was a Shudra. The above conclusion will be obvious if the context, in which verses 38-40 occur, is borne in mind. The context will be clear from the following verses which precede them:

"The Shudra should never abandon his master whatever the nature or degree of the distress into which the latter may fall. If the master loses his wealth, he should with excessive zeal be supported by the Shudra servant. A Shudra cannot have any wealth that is his own. Whatever he possesses belongs to his master. Sacrifice has been laid down as a duty of the three other orders. It has been ordained for the Shudra also, O! Bharata. A Shudra however is not competent to utter *swaha* and *svadha* or any other *mantra*. For this reason, the Shudra, without observing the vows laid down in the Vedas, should worship the gods in minor sacrifices called *Pakayajnas*. The gift called Purnapatra is declared to be the *Dakshina* of such sacrifices."

Taking the verses 38 to 40 in the context of these verses preceding them, it becomes clear that the whole passage deals with the Shudra. The story of Paijavana is a mere illustration. Against this background, it is unnecessary to repeat the word 'Shudra' before Paijavana. This explains why the word Shudra does not occur before Paijavana in the two manuscripts. As to the reason for the use of the word *pura* in place of Shudra it must be remembered that the case of Paijavana had occurred in very ancient times. It was therefore quite natural for the scribe to feel that it was desirable to put this fact in express terms. The writer being aware that there was no necessity for describing Paijavana as Shudra since that was made clear from the context, it was not necessary to emphasize it. On the other hand, knowing that Paijavana had lived in very ancient times and that that fact was not made very clear from the context, the writer thought it more appropriate to add the word *Pura* which was necessary and omit the word *Shudrah* which having regard to the context was unnecessary.

If this explanation is well-founded, we may take it as well established that the person referred to in the passage in the Shanti Parvan of the Mahabharata is Paijavana and that this Paijavana was a Shudra.

II

The next question that falls due for consideration is the identification of Paijavana. Who is this Paijavana?

Yaska's Nirukta seems to give us a clue. In Nirukta ii. 24¹ *Yaska* Says:

"The seer Vishvamitra was the purohita of Sudas, the son of Pijavana, Vishvamitra, friend of all. All, moving together. Sudas a bountiful giver. *Paijavana*, son of Pijavana. Again *Pi-javana* one whose speed is enviable or whose gait is inimitable."

From *Yaska's* Nirukta we get two very important facts :

(1) Paijavana means son of Pijavana, and (2) the person who is the son of Paijavana is Sudas. With the help of *Yaska*, we are able to answer the question: who is Paijavana referred to in the passage in the Shanti Parvan of the Mahabharata? The answer is that Paijavana is simply another name for Sudas.

The next question is who is this Sudas and what do we know about him? A search in the Brahmanic literature discloses three persons

1 Lakshman Sarup, *The Nighantu and Nirukta*, pp. 35-36.

with the name Sudas. One Sudas is mentioned in the Rig Veda. His family particulars are given in the following stanzas of the Rig Veda :¹

1. *Rig Veda*, vii.18.21.—“Parashara, the destroyer of hundreds (of Rakshasas), and Vasishta, they who, devoted to thee, have glorified thee in every dwelling, neglect not the friendship of thee (their) benefactor; therefore prosperous days dawn upon the pious.”

2. *Rig Veda*, vii. 18.22.—“Praising the liberality of Sudas, the grandson of Devavata, the son of Paijavana, the donor of two hundred cows, and of two chariots with two wives, I, worthy (of the gift), circumambulate thee, Agni, like the ministrant priest in the chamber (of sacrifice)”

3. *Rig Veda*, vii.18.23.—“Four (horses), having golden trappings, going steadily on a difficult road, celebrated on the earth, the excellent and acceptable gifts (made) to me by Sudas, the son of Pijavana; bear me as a son (to obtain) food and progeny.”

4. *Rig Veda*, vii.18.24.—“The seven worlds praise (Sudas) as if he were Indra; him whose fame (spreads) through the spacious heaven and earth; who, munificent, has distributed (wealth) on every eminent person, and (for whom) the flowing (rivers) have destroyed Yudhyamadhi in war.”

5. *Rig Veda*, vii. 18.25.—“*Maruts*, leaders (of rites), attend upon this (prince) as you did upon Divodasa, the father of Sudas: favour the prayers of the devout son of Pijavana, and may his strength be unimpaired, undecaying.”

The two others are mentioned by the Vishnu Purana. One Sudas is mentioned in Chapter IV as the descendant of Sagara. The genealogical tree connecting this Sudas with Sagara is as follows:²

“Sumati, the daughter of Kasyapa and Kesini, the daughter of Raja Vidarbha, were the two wives of Sagara. Being without progeny, the king solicited the aid of the sage Aurva with great earnestness, and the Muni pronounced this boon, that one wife should bear one son, the upholder of his race, and the other should give birth to sixty thousand sons; and he left it to them to make their election. Kesini chose to have the single son; Sumati the multitude; and it came to pass in a short time that the former bore Asamanjas, a prince through whom the dynasty continued; and the daughter of Vinata (Sumati) had sixty thousand sons. The son of Asamanjas was Ansumat.

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The son of Ansumat was Dilipa; his son was Bhagiratha, who brought Ganga down to earth, whence she is called Bhagirathi. The son of Bhagiratha was Sruta; his son was Nabhaga; his son was Ambarisha; his son was Sindhudvipa; his son was Ayutashva; his son was Rituparna, the friend of Nala, skilled profoundly in dice. The son of Rituparna was Sarvakama; his son was Sudasa; his son was Saudasa, named also Mitrasaha.”

1 Wilson's *Rig Veda*, Vol. IV (Poona Reprint), p. 146.

2 Wilson's *Vishnu Purana*, pp. 377-380.

Another Sudas is mentioned in Chapter XIX as a descendant of Puru. The genealogical tree connecting this Sudas with Puru is as follows :¹

“The son of Puru was Janamejaya; his son was Prachinvat; his son was Pravira, his son was Manasyu; his son was Bhayada; his son was Sudhumna; his son was Bahugava; his son was Samyati; his son was Bhamyati; his son was Raudrashva, who had ten sons, Riteyu, Kaksheyu, Sthandileyu, Ghrityeu, Jaleyu, Sthaleyu, Dhaneyu, Vaneyu, and Vrateyu. The son of Riteyu was Rantinara whose sons were Tansu, Aprtiratha, and Dhruva. The son of the second of these was Kanva, and his son was Medhatithi, from whom the Kanvayana Brahmans are descended. Anila was the son of Tansu, and he had four sons, of whom Dushyanta was the elder. The son of Dushyanta was the emperor Bharata;...

Bharata had by different wives nine sons, but they were put to death by their own mothers, because Bharata remarked that they bore no resemblance to him, and the women were afraid that he would therefore desert them. The birth of his sons being thus unavailing, Bharata sacrificed to the Maruts, and they gave him Bharadvaja, the son of Brihaspati by Mamata the wife of Utathya,...

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He was also termed Vitatha, in allusion to the unprofitable (*vitatha*) birth of the sons of Bharata. The son of Vitatha was Bhavanmanyu; his sons were many, and amongst them the chief were Brihatkshatra, Mahavirya, Nara and Garga. The son of Nara was Sankriti; his sons were Ruchiradhi and Rantideva. The son of Garga was Sini; and their descendants called Gargyas and Sainyas, although Kshatriyas by birth, became Brahmans. The son of Mahavirya was Urukshaya, who had three sons, Trayyaruna, Pushkarin and Kapi, the last of whom became a Brahmin. The son of Brihatkshatra was Suhotra, whose son was Hastin, who founded the city of Hastinapur. The sons of Hastin were Ajamidha, Dvimidha and Purumidha. One son of Ajamidha was Kanva, whose son was Medhatithi, his other son was Brihadishu, whose son was Brihadvasu; his son was Brihatkarman; his son was Jayadratha, his son was Vishvajit, his son was Senajit, whose sons were Ruchirashva, Kasya, Dridhadhanush, and Vasahanu. The son of Ruchiraswa was Prithusena; his son was Para; his son was Nipa; he had a hundred sons, of whom Samara, the principal, was the ruler of Kampilya. Samara had three sons, Para, Sampara, Sadashva. The son of Para was Prithu; his son was Sukriti; his son was Vibhratra; his son was Anuha, who married Kritvi, the daughter of Shuka (the son of Vyasa), and had by her Brahmadatta; his son was Vishvaksena; his son was Udaksena; and his son was Bhallata.

The son of Dvimidha was Yavinara; his son was Dhritimat; his son was Satyadhriti; his son was Dridhanemi; his son was Suparshva; his son was Sumati; his son was Sannatimat; his son was Krita, to whom Hiranyanabha taught the philosophy of the Yoga, and he compiled twenty-four Sanhitas (or compendia) for the use of the eastern Brahmans, who study the Sama-Veda. The son of Krita was Ugrayudha, by whose prowess the Nipa race of Kshatriyas was destroyed; his son was Kshemya; his son was Suvira; his son was Nripanjaya; his son was Bahuratha. These were all called Pauravas.

1 Wilson's *Vishnu Purana*, pp. 447-456.

Ajamidha had a wife called Nilini, and by her he had a son named Nila; his son was Santi; his son was Susanti; his son was Purujanu; his son was Chakshu; his son was Haryashva, who had five sons Mudgala, Srinjaya, Brihadishu, Pravira, and Kampilya. Their father said, 'These my five (pancha) sons are able (alam) to protect the countries'; and hence they were termed the Panchalas. From Mudgala descended the Maudgalya Brahmins; he had also a son named Bahvashva, who had two children, twins, a son and daughter, Divodasa and Ahalya.

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The son of Divodasa was Mitrayu; his son was Chyavana; his son was Sudasa; his son was Saudasa, also called Sahadeva; his son was Somaka; he had a hundred sons, of whom Jantu was the eldest, and Prishata the youngest. The son of Prishata was Drupada; his son was Dhrishtadyumna; his son was Drishtaketu.

Another son of Ajamidha was named Riksha; his son was Samvarana; his son was Kuru, who gave his name to the holy district Kurukshetra; his sons were Sudhanush, Parikshit, and many others. The son of Sudhanush was Suhotra; his son was Chyavana; his son was Kritaka; his son was Uparichara the Vasu, who had seven children Brihadratha, Pratyagra, Kushamba, Mavella, Matsya, and others. The son of Brihadratha was Kusagra; his son was Rishabha; his son was Pushpavat; his son was Satyadhrita; his son was Sudhanvan; and his son was Jantu. Brihadratha had another son, who being born in two parts, which were put together (*sandhita*) by a female friend named Jara, he was denominated Jarasandha; his son was Sahadeva; his son was Somapi; his son was Srutasravasa, These were kings of Magadha."

The immediate ancestry of the three Sudasas is put below in parallel columns to facilitate the settlement of the question whether they are one or three different persons:

Status in Rig Veda			Sudas in Vishnu Purana	
VII, 18:22	VII, 18:23	VII, 18:25	In the Sagar Family	In the Puru Family
Devavata	Pijavana	Divodasa=	Ritupama	Bahvashva
		Pijavana		
Pijavana	Sudas		Sarvakama	Divodasa
Sudas		Sudas	Sudas	Mitrayu
			Saudasa =	Chyavana
			Mitrasaha	
				Sudas
				Saudasa
				Somaka

From the table two things are as clear as day-light. First is that neither Sudas mentioned in the Vishnu Purana has anything to do with the Sudas mentioned in the Rig Veda. The second point which is clear is that if the Paijavana mentioned in the Mahabharata can be identified with anybody who lived in ancient times it can only be with Sudas mentioned in Rig Veda who was called Paijavana because he was the son of Pijavana which was another name of Divodasa.¹

Fortunately for me my conclusion is the same as that of Prof. Weber. In commenting upon the passage in the Shanti Parvan of the Mahabharata on which my thesis is based Prof. Weber² says :

“Here the remarkable tradition is recorded that Paijavana, i.e., Sudas who was so famous for his sacrifices and who is celebrated in the Rig Veda as the patron of Vishvamitra and enemy of Vasishtha, was a Shudra.”

Prof. Weber unfortunately did not realize the full significance of this passage. This is another matter. It is enough for my purpose to find that he too thinks that the Paijavana of the Mahabharata is no other than Sudas of the Rig Veda.

III

What do we know about Sudas, the Paijavana?

The following particulars are available about him:

I. Sudas was neither Dasa nor Arya. Both the Dasas as well as the Aryas were his enemies.³ This means that he was a Vedic Aryan.

II. The father of Sudas was Divodasa. He seems to be the adopted son of Vadhryashva.⁴ Divodasa was a king. He fought many battles against Turvasas and Yadus,⁵ Shambara,⁶ Parava, and Karanja⁷ and

1 Some difficulty is felt about the genealogy of this Sudas in the *Rig Veda*, which is sought to be got over by identifying Devavata with Divodasa. This difficulty has mainly arisen because of the different texts of Stanzas 22, 23 and 25 which nobody seems to have cared to collect properly. Chitrava Shastri's edition of *Rig Veda* has Pijavana throughout. Satavalekar's edition has Paijavana throughout. Wilson has Paijavana in 22 and 23 and Pijavana in 25. Wilson's text seems to be accurate. For even Yaska has noticed the existence of the name Paijavana in his Nirukta which he endeavours to explain. If Wilson's text in 25 is taken as correct no difficulty can arise. Pijavana would then appear to be another name of Divodasa and Paijavana would be another name of Sudas.

2 Muir, Vol. 1, p. 366

3 Rig Veda, VII, 83. 1.

4 Rig Veda, IX, 61.2.

5 Rig Veda, VI. 61. 1; VII 19.8

6 Rig Veda, I. 130. 7

7 Rig Veda, I. 53. 10

Gungu.¹ There was a war between Turyavana and Divodasa and his allies Ayu and Kutsa. The victory went to Turyavana.²

It seems that at one time Indra was against him particularly in the battle of Turyavana. His purohita was Bharadvaja,³ to whom Divodasa gave many gifts.⁴ Bharadvaja seems to have played the part of a traitor by joining Turyavana against Divodasa.⁵

There is no reference to the mother of Sudas. But there is a reference to the wife of Sudas. His wife's name is given as Sudevi.⁶ It is said that the Ashvins procured her for Sudas.

III. Sudas was a king and his coronation ceremony was performed by the Brahma-rishi, Vasistha.

The Aitareya Brahmana gives the following list of the kings who had the Mahabhisheka ceremony performed and the name of the Purohita who officiated at it.⁷

"With this ceremony Sharyata, the son of Manu, was inaugurated by Chyavana, the son of Bhrigu. Thence Sharyata went conquering all over the earth, and sacrificed the sacrificial horse, and was even at the sacrificial session held by the gods, the house-father."

"With this ceremony Samasushama, the son of Vajaratna, inaugurated Shatanika, the son of Satrajit. Thence Shatanika went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse."

"With this ceremony Parvata and Narada inaugurated Ambashthya. Thence Ambashthya went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse."

"With this ceremony Parvata and Narada inaugurated Yudhamasraushti, the son of Ugrasena. Thence Yudhamasraushti went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse."

"With this inauguration ceremony Kashyapa inaugurated Vishva-karma, the son of Bhuvana. Thence Vishvakarma went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse."

"They say that the earth sang to Vishvakarma the following stanza:

'No mortal is allowed to give me away (as donation).⁸ O, Vishva-karma, thou hast given me, (therefore) I shall plunge into the midst of the sea. In vain was thy promise made to Kashyapa."

"With this ceremony Vasishtha inaugurated Sudas, the son of Pijavana. Thence Sudas went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse."

1 Rig Veda, X. 48

2 Rig Veda, I. 53, 8; VI. 18. 13

3 Rig Veda, I. 116. 18.

4 Rig Veda, VI. 16. 5.

5 Rig Veda, VI. 18. 13.

6 Rig Veda, I. 112. 19.

7 Martin Haug, Vol. II, pp. 523-524.

8 The king had promised the whole earth as gift to his officiating priest.

“With this inauguration ceremony Samvarta, the son of Angiras, inaugurated Maruta, the son of Avikshit. Thence Maruta went conquering everywhere over the whole earth up to its ends, and sacrificed the sacrificial horse.”

In this list there is a specific mention of Sudas and of his coronation having been performed by Vasishtha.

Sudas was the hero in the famous Dasharajna Yuddha or the battle of the ten kings described in the *Rig Veda*. References to this famous battle occur in the various Suktas of the Seventh Mandala of the Rig Veda.

Sukta 83 says:

4. “Indra and Varuna, you protected Sudas, overwhelming the yet unassailed Bheda with your fatal weapons; hear the prayers of these Tritsus in time of battle, so that my ministration may have borne them fruit.”

6. “Both (Sudas and the Tritsus) call upon you two, (Indra and Varuna), in combats for the acquirement of wealth, when you defend Sudas, together with the Tritsus, when attacked by the ten Rajas.”

7. “The ten confederated irreligious Rajas did not prevail, Indra and Varuna, against Sudas; the praise of the leaders (of rites), the offerers of sacrificial food, was fruitful; the gods were present at their sacrifices.”

9. “One of you destroys enemies in battle, the other ever protects religious observances; we invoke you, showerers (of benefits), with praises; bestow upon us, Indra and Varuna, felicity.”

Sukta 33 says :

2. “Disgracing (Pashadyumna), they brought from afar the fierce Indra, when drinking the ladle of Soma at his sacrifice, to (receive) the libation (of Sudas); Indra hastened from the effused Soma of Pashadyumna, the son of Yayata, to the Vasishthas.”

3. “In the same manner was he, (Sudas), enabled by them easily to cross the Sindhu river; in the same manner, through them he easily slew his foes; so in like manner, Vasishthas, through your prayers, did Indra defend Sudas in the war with the ten kings.”

“Suffering from thirst, soliciting (rain), supported (by the Tritsus) in the war with the ten Rajas, (the Vasishthas) made Indra radiant as the sun; Indra heard (the praises) of Vasishtha glorifying him, and bestowed a spacious region on the Tritsus.”

Sukta 19 says :

3. “Undaunted (Indra), thou hast protected with all thy protections Sudas, the offerer of oblations; thou hast protected, in battles with enemies for the possession of the earth, TRASADASYU, the son of PURUKUTSA, and PURU.”

6. “Thy favours, Indra, to Sudas, the donor (of offerings), the presenter of oblations, are infinite; showerer (of benefits) I yoke for thee (thy vigorous) steeds; may our prayers, reach thee who art mighty, to whom many rites are addressed.”

Sukta 18 of the Seventh Mandala says :

5. “The adorable Indra made the well-known deep waters (of the Parushni)

fordable for Sudas, and converted the vehement awakening imprecation of the sacrificer into the calumny of the rivers."

6. "TURVASHA, who was preceding (at solen rites), diligent in sacrifice, (went to Sudas) for wealth; but like fishes restricted (to the element of water), the Bhrigus and Druhyus quickly assailed them; of these two everywhere going, the friend (of Sudas, Indra) rescued his friend."

7. "Those who dress the oblation, those who pronounce auspicious words, those who abstain from penance, those who bear horns (in their hands), those who bestow happiness (on the world by sacrifice), glorify that Indra, who recovered the cattle of the Arya from the plunderers, who slew the enemies in battle."

8. "The evil-disposed and stupid (enemies of Sudas), crossing the humble Parushni river, have broken down its banks; but he by his greatness pervades the earth, and KAVI, the son of CHAYAMANA, like a falling victim, sleeps (in death)."

9. "The waters followed their regular course to the Parushni, nor (wandered) beyond it; the quick course (of the king) came to the accessible places, and INDRA made the idly-talking enemies, with their numerous progeny, subject among them (to Sudas)."

10. "They who ride on parti-coloured cattle, (the Maruts), despatched by PRISHNI, and recalling the engagement made by them with their friend (Indra), came like cattle from the pasturage, when left without a herdsman; the exulting Niyut steeds brought them quickly (against the foe)."

11. "The hero INDRA created the Maruts (for the assistance of the Raja), who, ambitious of fame, slew one and twenty of the men on the two banks (of the Parushni), as a well looking priest lops the sacred grass in the chamber of sacrifice."

12. "Thou, the bearer of the thunderbolt, didst drown SHRUTA, KAVASHA, VRIDDHA, and afterwards DRUHYU in the waters; for they, Indra, who are devoted to thee, and glorify thee, preferring thy friendship, enjoy it."

13. "Indra, in his might, quickly demolished all their strongholds, and their seven (kinds of) cities; he has given the dwelling of the son of ANU to TRITSU; may we, (by propitiating), (Indra) conquer in battle the ill-speaking man."

14. "The warriors of the ANUS and DRUHYUS, intending (to carry off the) cattle, (hostile) to the pious (SUDAS), perished to the number of sixty-six thousand six hundred and sixty; such are all the glorious acts of INDRA."

15. "These hostile Tritsus, ignorantly contending with INDRA, fled, routed as rapidly as rivers on a downward course, and being discomfited abandoned all their possessions to SUDAS."

16. "INDRA has scattered over the earth the hostile rival of the hero (SUDAS), the senior of INDRA, the appropriator of the oblation; INDRA has baffled the wrath of the wrathful enemy, and the (foe) advancing on the way (against SUDAS) has taken the path of flight."

17. "INDRA has effected a valuable (donation) by a pauper; he has slain an old lion by a goat; he has cut the angles of the sacrificial post with a needle; he has given all the spoils (of the enemy) to SUDAS."

18. "Thy numerous enemies, INDRA, have been reduced to subjugation; effect at some time or other the subjugation of the turbulent BHEDA, who holds men

praising thee as guilty of wickedness; hurl, INDRA, thy sharp thunderbolt against him.”

19. “The dwellers on the Yamuna and Tritsus glorified INDRA when he killed BHEDA in battle; the Ajas, the Shigrus, the Yakshas. offered to him as a sacrifice the heads of the horses killed in the combat.”

20. “Thy favours, INDRA, and thy bounties, whether old or new, cannot be counted like the (recurring) dawns; thou hast slain DEVAKA, the son of MANYAMANA and of thine own will hast cast down SHAMBARA from the vast (mountain).”

In this battle the kings who fought against Sudas were:¹ (1) Shinyu, (2) Turvasha, (3) Druhyu, (4) Kavasha, (5) Puru, (6) Anu, (7) Bheda, (8) Shambara, (9) Vaikarna, (10) another Vaikarna, (11) Yadu, (12) Matsya, (13) Paktha, (14) Bhalanas, (15) Aleena, (16) Vishanin, (17) Aja, (18) Shiva, (19) Shigru, (20) Yakshu, (21) Yudhyamadhi, (22) Yadva, (23) Devaka Manyamana, (24) Chayamana Kavi, (25) Sutuka, (26) Uchatha, (27) Shmta, (28) Vriddha, (29) Manyu, and (30) Prithu.

Obviously, the war was a much bigger war than its name indicates. The war must have been a very great event in the history of the Indo-Aryans. No wonder the victorious Sudas became a great hero of his time.² We do not know what exactly led to this war. Some indication is given by Rig Veda, vii.83.7, where the kings arrayed against Sudas are described as irreligious which suggests that it was probably a religious war.

IV. Sayanacharya, as well as tradition, declare the following hymns of the Rig Veda to have had the under-mentioned kings for their rishis :

“Vitahavya (or Bharadvaja) x.9, Sindhudvipa, son of Ambarisha (or Trisiras, son of Tvashtri) x.75, Sindhukshit, son of Priyamedha; x.133, Sudas, son of Pijavana; x.134, Mandhatri, son of Yuvanasa; x.179, Sibi, son of Usinara, Pratardana, son of Divodasa and king of Kasi, and Vasumanas, son of Rohidasva; and x.148 is declared to have had Prithi Vainya.”

It will be noticed that in this list there occurs the name of Sudas as a composer of Vedic hymns.

V. Sudas performed Ashvamedha Yajna. There is reference to this in Rig Veda, iii.53.

9. “The great *RISHI*, the generator of the gods, attracted by the deities, the

1 The list is taken from Chitrava Shastri's *Prachin Charitra Kosh*, p. 624. There is no unanimity whether all the names are of kings. Sayanacharya says that 13-16 are names of the Purohitas. There is also doubt about 27-29.

2 The name of Sudas occurs in the Rig Veda in 27 places. It shows what a great hero he must have been regarded by the Vedic people.

overlooker of the leaders (at holy rites), VISHVA-MITRA arrested the watery stream when he sacrificed for SUDAS; INDRA with the *Kushikas*, was pleased.”

11. “Approach, *Kushikas*, the steed of SUDAS; animate (him), and let him loose to (win) riches (for the raja); for the king (of the gods), has slain VRITRA in the East, in the West, in the North, therefore let (SUDAS) worship him in the best (regions) of the earth.”

VI. Sudas was known for charity to the Brahmins who called him Atithigva (the doyen) of Philanthrophists. How the Brahmins have praised him for his philanthropy appears from the following references in the Rig Veda:

i.47.6. “O, impetuous Ashvins, possessing wealth in your car, bring sustenance to Sudas. Send to us from the (aerial) ocean, or the sky, the riches which are much coveted.”

i.63.7. “Thou didst then, O,thundering Indra, war against, and shatter, the seven cities for Purukutsa, when thou, O king, didst without effort hurl away distress from Sudas like a bunch of grass, and bestow wealth on Puru.”

i. 112.19. “Come, O Ashvins, with those succours whereby ye brought glorious power to Sudas.”

vii.19.3. “Though, O fierce Indra, hast impetuously protected Sudas, who offered oblations, with every kind of succour. Thou hast preserved Trasadasyu the son of Purukutsa, and Puru in his conquest of land and in his slaughter of enemies.”

vii.20.2 “Indra growing in force slays Vritra; the hero protects him who praises him; he makes room for Sudas (or the liberal sacrificer- Sayana); he gives riches repeatedly to his worshippers.”

vii.25.3. “Let a hundred succours come to Sudas, a thousand desirable (gifts) and prosperity. Destroy the weapon of the murderous. Confer renown and wealth on us.”

vii.32.10. “No one can oppose or stop the chariot of Sudas. He whom Indra, whom the Marutas, protect, walks in a pasture filled with cattle.”

vii.53.3. “And ye, O, Heaven and Earth, have many gifts of wealth for Sudas.”

vii.60.8. “Since Aditi, Mitra, and Varuna, afford secure protection to Sudas (or the liberal man), bestowing on him offspring—may we not, O mighty deities, commit any offence against the gods ... May Aryaman rid us of our enemies. (Grant) ye vigorous gods, a wide space to Sudas.”

These are the biographical bits regarding Paijavana referred to in the Shanti Parvan of the Mahabharata gleaned from the most authentic source, namely, the Rig Veda. From the Rig Veda, we know that his real name was Sudas, that he was a Kshatriya. He was more than a Kshatriya. He was a king and a mighty king. To this, the Mahabharata adds a fresh and a new detail, namely that he was a Shudra. A Shudra to be an Aryan, a Shudra to be a Kshatriya and a Shudra to be a king!! Can there be a greater revelation? Can there be anything more revolutionary?

This search for biographical details may be closed with a discussion of three important questions: Was Sudas an Aryan? If Sudas is an Aryan what is the tribe to which he belonged? If Sudas is a Shudra, what does Shudra signify?

It might be well to begin with the second. For the determination of this question it is possible to derive some assistance from certain reference in the Rig Veda. The Rig Veda mentions many tribes, most important of which are Tritsus, Bharatas, Turvasas, Durhyus, Yadus, Purus and Anus. But according to the references in the Rig Veda there are only three with whom Sudas was connected. They are Purus, Tritsus and the Bharatas. It is enough to confine ourselves to these three and to find out if possible to which of these tribes he belonged. The most important stanzas bearing on the relation between Tritsus and Sudas are the Rig Veda, i.63.7; i. 130.7; vii.18.15; vii.33.5; vii.33.6; vii.83.4, 6.

In i.63,7, Divodasa is spoken of as the king of the Purus and in i. 130.7, Divodasa is spoken of as Paurve, i.e., belonging to the Purus.

Rig Veda, vii.18.15 and vii.83.6, suggest that Sudas was not a Tritsu. The first suggests that Sudas raided the camp of Tritsus who ran away and Sudas took possession of their wealth. The second suggests that Tritsus and Sudas were on one side in the war against the ten kings, but they are shown as separate. But in vii.35.5 and in vii.83.4, Sudas becomes fully identified with Tritsus; indeed, in the former Sudas becomes a king of the Tritsus.

On this question of the relation between the Tritsus and the Bharatas and between them and Sudas, we have as our evidence Rig Veda, vii.33.6 and v. 16.4, 6, 19. According to the first, Tritsus are the same as the Bharatas. According to the second, Divodasa the father of Sudas is spoken of as belonging to the Bharatas.

From these references one thing is certain that the Purus, Tritsus and Bharatas were either different branches of one and the same folk or that they were different tribes, who in the course of time became one people, folk. This is not impossible. The only question is: assuming they were different, to whom did Sudas originally belong? To the Purus, the Tritsus or to the Bharatas? Having regard to the connection of the Purus and the Bharatas with Divodasa, his father, it seems natural to suppose that Sudas originally belonged either to the Purus or to the Bharatas—which, it is difficult to say.

Whether he belonged to the Purus or not, there is no doubt that Sudas belonged to the Bharatas if regard is had to the fact that his

father Divodasa is spoken of as belonging to the Bharatas. The next question, is: who were these Bharatas and whether they are the people after whom India got the name Bharata Bhumi or the land of the Bharatas. This question is important because most people are not aware of the true facts. When Hindus talk of the Bharatas they have in mind the Daushyanti Bharatas, Bharatas descended from Dushyanta and Shakuntala and who fought the war which is described in the Mahabharata. Not only are they not aware of any other Bharatas but they believe that the name Bharata Bhumi which was given to India was given after the Daushyanti Bharatas.

There are two Bharatas quite distinct from each other. One tribe of the Bharatas are the Bharatas of the Rig Veda, who were descended from Manu and to whom Sudas belonged. The other tribe of Bharatas are the Daushyanti Bharatas. What is more important is that if India has been named Bharata Bhumi it is after the Bharatas of the Rig Veda and not after the Daushyanti Bharatas. This is made clear by the following stanzas from the Bhagavata Purana:¹

प्रियंवदो नाम सुतो मनोः स्वायंभुवस्य ह ।

तस्याग्नीध्रस्ततो नाभिर्ऋषभश्च सुतस्ततः ॥

अवतीर्ण पुत्रशतं तस्यासीद्रह्यपारगम् ।

तेषां वै भरतो ज्येष्ठो नारायणपरायणः ।

विख्यातं वर्षमेतद्वन्मात्मा भारतमुत्तमम् ॥

“Manu, the son of Syavambhu, had a son named Priyamvada; his son was Agnidhra; his son was Nabhi; he had a son Rishabha. He had a hundred sons born to him, all learned in the Veda; of them, Bharata was the eldest, devoted to Narayana, by whose name this excellent land is known as Bharata.”

This shows to what illustrious line of kings this Shudra Sudas belonged.

The next thing to find out is whether Sudas was an Aryan. The Bharatas were of course Aryans and therefore Sudas must have been an Aryan. If reference is had to Rig Veda, vii. 18.7, this connection with the Tritsus to the Aryans seems to throw some doubt on his Aryan origin. This stanza says that Indra rescued the cows of the Aryas from the Tritsus and killed the Tritsus, thereby suggesting that the Tritsus were the enemies of the Aryas. Griffiths is very much perturbed by the Tritsus being shown as non-Aryans which is the result of a literal translation of the stanza, and to avoid it he

1 Quoted by Vaidya in *Mahabharatacha Upasamhara*, p. 200.

understands cows to mean comrade.¹ This of course is unnecessary if one bears in mind that the Rig Veda Contains the story of two sorts of Aryas, whether differing in race or religion, it is difficult to say. Interpreted in the light of this fact, all that the stanza means is that at the time when it was written the Tritsus had not become Aryans by religion. It does not mean that they were not Aryans by race. It is therefore indisputable that Sudas, whether taken as a Bharata or as a Tritsu was an Aryan.

And now to the last question, though it is by no means the least. What does Shudra signify? In the light of this new discovery that Sudas was a Shudra, the word now stands in a totally different light. To old scholars to whom the word was just the name of a servile and aboriginal class this new discovery must come as a surprise for which their past researches cannot possibly furnish an answer. As for myself, I am in no better position. The reason is that the social organization of the Vedic Aryans has yet to be studied. We know from the study of primitive societies that they are organized in groups and they act as groups. The groups are of various sorts. There are clans, phratries, moieties and tribes. In some cases, the tribe is the primary unit, in others it is the clan, in others the phratry. In some cases tribes are sub-divided into clans. In other cases there are no clans. It is a single clanless tribe.

The clan embraces the descendants of a single ancestor held together by a sense of common descent. Clans often become associated through common social and ceremonial interests into major units, called phratries or brotherhoods of clans. The bond within the phratry may be relatively loose, that is, the association may not imply more than an informal feeling of preferential friendship. The phratry may become a moiety in which each clan is recognized as part of one of two major units. But moieties may occur without any sub-division, that is, the entire clan may consist of two clans. All these organizations whether it is a clan, a phratry, a moiety or a tribe, are all based on the tie of kinship.

The Vedic Aryans had no doubt some such forms of social organization. That is clear from the nomenclature. As pointed out by Prof. Senart :²

1 His rendering is "yet to the Tritsus come the Aryu's comrade, through love of spoil and heros' war, to lead them."

2 'Castes in India' by Emile Senart, p. 192.

“The Vedic hymns are all too indefinite concerning the details of external and social life. We at least see from them that the Aryan population was divided into a number of tribes or small peoples (*janas*), subdivided into clans united by the ties of kinship (*visas*), which in their turn were split up into families. The terminology of the Rig Veda, is in this respect somewhat indecisive, but the general fact is clear. *Sajata*, that is to say, ‘kinsman’ or ‘fellow in *Jati*,’ of race, seems in the Atharva-Veda to denote fellow in clan (*vis*), *Jana*, which assumes a wider significance, recalls the Avestic equivalent of the clan, the *zantu*, and the *jati* or caste. A series of terms, *vra*, *vrijana*, *vraja*, *vrata*, appear to be synonyms or subdivisions either of the clan or of the tribes. The Aryan population then lived, at the epoch to which the hymns refer, under the rule of an organization dominated by the traditions of the tribe and the lower or similar groupings. The very variety of names indicates that this organization was somewhat unsettled.”

We have, however, no information to determine which of these corresponds to the clan, which to the phratry and which to the tribe.¹ That being so, it is difficult to say whether Shudra was the name of a clan, a phratry or a tribe. It is, however, interesting to refer to the view of Prof. Weber when he comments on the passage from the Satapatha Brahmana (i. 1.4.12) where it says that different modes of address should be adopted inviting the sacrificer to proceed with the sacrifice, addressing him as ‘come’ if he is a Brahmin, ‘hasten hither’ if he is a Kshatriya, ‘hasten hither’ if he is a Vaishya and ‘run hither’ if he is a Shudra. Prof. Weber says :²

“The entire passage is of great importance, as it shows (in opposition to what Roth says in the first Volume of this Journal, p.83) that the Shudras were then admitted to the holy sacrifices of the Aryans, and understood their speech, even if they did not speak it. The latter point cannot certainly be assumed as a necessary consequence, but it is highly probable and I consequently incline to the view of those who regard the Shudras as an Aryan tribe which immigrated into India before the others.”

His conclusion that the Shudras were Aryans hits the nail squarely on the head. The only point of doubt is whether the Shudras were a tribe. That they were Aryans and Kshatriyas is beyond doubt.

●●

1 What we called Aryan tribes appear to be a phratry in view of their changing alliances.

2 Muir. Vol. I, p. 366.

CHAPTER VIII

**THE NUMBER OF VARNAS,
THREE OR FOUR ?**

I

THAT there were from the very beginning four *Varnas* in the Indo-Aryan society is a view which is universally accepted by all classes of Hindus, and also by European scholars. If the thesis advanced in the last chapter, namely, that the Shudras were Kshatriyas is accepted, then it follows that this theory is wrong and that there was a time when there were only three *Varnas* in the Indo-Aryan society, viz., Brahmins, Kshatriyas and Vaishyas. Thus, the thesis, while it solves one problem, at the same time creates another. Whether anybody else sees the importance of this problem or not, I do. Indeed, I am aware of the fact that unless I succeed in proving that there were originally only three *Varnas*, my thesis that the Shudras were Kshatriyas may not be said to be proved beyond the shadow of a doubt.

While it is unfortunate that I should have landed on a thesis, which, while holding out a promise of solving the problem, creates another, I feel fortunate in having strong and cogent evidence to show that there were originally only three *Varnas* among the Indo-Aryans.

The first piece of evidence I rely upon is that of the Rig Veda itself. There are some scholars who maintain that the Varna system did not exist in the age of the Rig Veda. This statement is based on the view that the Purusha Sukta is an interpolation which has taken place long after the Rig Veda was closed. Even accepting that the Purusha Sukta is a later interpolation, it is not possible to accept the statement that the Varna system did not exist in the time of

the Rig Veda. Such a system is in open conflict with the text of the Rig Veda. For, the Rig Veda, apart from the Purusha Sukta, does mention Brahmins, Kshatriyas and Vaishyas not once but many times. The Brahmins are mentioned as a separate *Varna* fifteen times, Kshatriyas nine times. What is important is that the Rig Veda does not mention Shudra as a separate *Varna*. If Shudras were a separate *Varna* there is no reason why the Rig Veda should not have mentioned them. The true conclusion to be drawn from the Rig Veda is not that the *Varna* system did not exist, but that there were only three *Varnas* and that Shudras were not regarded as a fourth and a separate *Varna*.

The second piece of evidence I rely on is the testimony of the two Brahmanas, the Satapatha and the Taittiriya. Both speak of the creation of three *Varnas* only. They do not speak of the creation of the Shudras as a separate.

The Satapatha Brahmana says :¹

II. 1.4.11.—“(Uttering), ‘bhuh’, Prajapati generated this earth. (Uttering) ‘bhuvah’ he generated the air, and (Uttering) ‘svah’ he generated the sky. This universe is co-extensive with these worlds. (The fire) is placed with the whole. Saying ‘bhuh’, Prajapati generated the Brahman; saying ‘bhuvah’ he generated the Kshattria; (and saying) ‘svah’, he generated the Vis. The fire is placed with the whole. (Saying) ‘bhuh’, Prajapati generated himself; (saying) ‘bhuvah’, he generated offspring : saying ‘svah’, he generated animals. This world is so much as self, offspring, and animals. (The fire) is placed with the whole.”

The Taittiriya Brahmana says²

III. 12.9.2.—“This entire (universe) has been created by Brahma. Men say that the Vaishya class was produced from *ric* verses. They say that the Yajur Veda is the womb from which the Kshattriya was born. The Sama Veda is the source from which the Brahmins sprang. This word the ancients declared to the ancients.”

Here is my evidence. It consists of an inference from the Rig Veda and two statements from two Brahmanas which in point of authority are co-equal with the Vedas. For both are Shruti both say in definite and precise terms that there were only three *Varnas*. Both agree that the Shudras did not form a separate and a distinct *Varna*, much less the fourth *Varna*. There cannot, therefore, be better evidence in support of my contention that there were originally only three *Varnas*

1 Muir, Vol. 1, p. 17.

2 Quoted by Muir, Vol. I, p. 17.

and that the Shudras were only a part of the second *Varna*.

II

Such is my evidence. On the other side, there is, of course, the evidence contained in the Purusha Sukta of the Rig Veda, which maintains that there were four *Varnas* from the very beginning. The question now is : which of the two should be accepted as the correct? How is this question to be decided? It cannot be decided by applying the rules of Mimamsa. If we did apply it, we will have to admit that both the statements, one in the Purusha Sukta that there were four *Varnas* and the statement in the two Brahmanas that there were three *Varnas*, are true. This is an absurd position. We must decide this matter in the light of the canons of historical criticism, such as sequence of time and intrinsic criticism, etc. The main question is whether the Purusha Sukta is a later composition added to the original Rig Veda. The question has been dealt with on the basis of the language of the Sukta as compared with the language of the rest of the Rig Veda. That it is a late production is the opinion of all scholars. This is what Colebrooke says :¹

“That remarkable hymn (the Purusha Sukta) is in language, metre, and style, very different from the rest of the prayers with which it is associated. It has a decidedly more modern tone; and must have been composed after the Sanskrit language had been refined, and its grammar and rhythm perfected. The internal evidence which it furnishes serves to demonstrate the important fact that the compilation of the Vedas, in their present arrangement, took place after the Sanskrit tongue had advanced from the rustic and irregular dialect in which the multitude of hymns and prayers of the Veda was composed, to the polished and sonorous language in which the mythological poems, sacred and profane (puranas and kavyas), have been written.”

In the opinion of Prof. Max Muller :²

“There can be little doubt, for instance, that the 90th hymn of the 10th book... is modern both in its character and in its diction. It is full of allusions to the sacrificial ceremonials, it uses technically philosophical terms, it mentions the three seasons in the order of Vasanta, spring, Grishma, summer and Sharad, autumn; it contains the only passage in the Rig Veda where the four castes are enumerated. The evidence of language for the modern date of this composition is equally strong. Grishma, for instance, the name for the hot season, does not occur in any other hymn of the Rig Veda; and Vasanta also, the name

1 Quoted in Muir, Vol. I, p. 13,

2 *Ibid.*, Vol. I, p. 13.

of spring does not belong to the earliest vocabulary of the Vedic poets. It occurs but once more in the Rig Veda (x.161.4), in a passage where the three seasons are mentioned in the order of Sharad, autumn; Hemanta, winter; and Vasanta, spring.”

Prof. Weber observes :¹

“That the Purusha Sukta, considered as a hymn of the Rig Veda, is among the latest portions of that collection, is clearly perceptible from its contents. The fact that the Sama Samhita has not adopted any verse from it, is not without importance (compare what I have remarked in my Academical Prelections). The Naigeya school, indeed, appears (although it is not quite certain) to have extracted the first five verses in the seventh prapathaka of the first Archika, which is peculiar to it.”

III

This is one line of argument. There is also another line of argument which also helps us to determine whether the Purusha Sukta is an earlier or later production. For this it is necessary to find out how many Samhitas of the Vedas have adopted the Purusha Sukta. Examining the different Vedas and the Samhitas, the position is as follows :

The Sama Veda produces only 5 verses from the Purusha Sukta. As to the White Yajur Veda, the Vajasaneyi Samhita includes it but the difference between the two is great. The Purusha Sukta, as it stands, in the Rig Veda, has only 16 verses. But the Purusha Sukta in the Vajasaneyi Samhita has 22 verses. Of the Black Yajur Veda there are three Samhitas available at present. But none of the three Samhitas, the Taittiriya, the Katha and the Maitrayani, gives any place to the Purusha Sukta. The Atharva Veda is the only Veda which contains a more or less exact reproduction of the Purusha Sukta of the Rig Veda.

The text of the Purusha Sukta, as it occurs in the different Vedas, is not uniform. The six additional verses of the Vajasaneyi Samhita are special to it and are not to be found in the text as it occurs in the Rig Veda, the Sama Veda or the Atharva Veda. There is another difference which relates to verse 16. The 16th verse of the Rig Veda is to be found neither in the Atharva Veda nor in the Sama Veda nor in the Yajur Veda. Similarly, the 16th verse of the Atharva Veda is to be found neither in the Rig Veda nor in the Yajur Veda. Of the fifteen

1 Quoted by Muir, Vol. I, p. 14.

verses, which are common to the three Vedas, their texts are not, identical. Nor is the order in which the verses stand in the three Vedas the same as may be seen from the following table :

<i>Yajur Veda</i>	<i>Rig Veda</i>	<i>Sama Veda</i>	<i>Atharva Veda</i>
1	1	3	1
2	2	5	4
3	3	6	3
4	4	4	2
5	5	7	9
6	8	*	10
7	9	*	11
8	10	*	14
9	7	*	13
10	11	*	12
11	12	*	5
12	13	*	6
13	14	*	7
14	6	*	8
15	15	*	15
16†	16	*	16†
17	*	*	*
18	*	*	*
19	*	*	*
20	*	*	*
21	*	*	*
22	*	*	*

The point is that if the Purusha Sukta had been an old, hoary text, sanctified by ancient tradition, could the other Vedas have taken such a liberty with it? Could they have changed it and chopped it as they have done?

The place of the Purusha Sukta in the hymns of the different Vedas is also very significant. In the Rig Veda it occurs in the miscellaneous part and in the Atharva Veda it occurs in what is known as the supplementary part. If it was the earliest composition of the Rig Veda, why should it have been placed in such inconsequential

*Means that these Verses are not to be found.

†Means that they are not identical.

collection? What do these points suggest? They suggest that :

- (1) If the Purusha Sukta was not incorporated in the Taittiriya, Kathaka and Maitrayani Samhitas of the Black Yajur Veda, it follows, that the Purusha Sukta was added to the Rig Veda after the Taittiriya Samhita, the Kathaka Samhita, the Maitrayani Samhita of the Black Yajur Veda.
- (2) That it had to be put in the miscellaneous and supplementary portions of the Vedas shows that it was composed at a later stage.
- (3) That the freedom which the authors of the different Samhitas took in adding, omitting and recording the verses shows that they did not regard it as an ancient hymn, which they were bound to reproduce in its exact original form.

These points go a long way in furnishing corroborative evidence in support of the views held by Prof. Max Muller and others that the Purusha Sukta is a later interpolation.

IV

The difference in the form of the stanzas in the Purusha Sukta is also very noteworthy. Anyone who reads the Purusha Sukta will find that except for these two verses, viz., 11 and 12, the whole of it is in the narrative form. But the two verses, which explain the origin of the four Varnas, are in the form of question and answer. The point is : Why should these verses be introduced in a question form breaking the narrative form? The only explanation is that the writer wanted to introduce a new matter and in a pointed manner. This means that not only the Purusha Sukta is a later addition to the Rig Veda, but these particular verses are much later than even the Purusha Sukta.

Some critics have gone to the length of saying that the Purusha Sukta is a forgery by the Brahmins to bolster up their claim to superiority. Priests are known to have committed many forgeries. The Donations of Constantine and Pseudo-Isidore Decretals are well known forgeries in the history of the Papacy. The Brahmins of India were not free from such machinations. How they changed the original word 'Agre' into 'Agne' to make Rig Veda give support to the burning of widows has been pointed out by no less an authority than Prof. Max Muller. It is well-known how in the time of the East India Company a whole Smriti was fabricated to support the case of a plaintiff. There is, therefore, nothing surprising if the Brahmins did

forge the Purusha Sukta, if not the whole, at least the two verses 11 and 12, at some later stage, long after the fourth *Varna* had come into being, with a view to give the system of *Chaturvarnya* the sanction of the Veda.

V

Is the Purusha Sukta earlier than the Brahmanas? This question is distinct and separate from the first. It may be that the Purusha Sukta belongs to the later part of the Rig Veda. Yet, if the Rig Veda as a whole is earlier than the Brahmanas, the Purusha Sukta would still be earlier than the Brahmanas. The question, therefore, needs to be separately considered.

It is Prof. Max Muller's view that in the growth of the Vedic literature the order was Vedas, then Brahmanas and thereafter the Sutras. If this proposition was adopted, it would mean that the Purusha Sukta must be earlier than the Brahmanas. Question is : Can Prof. Max Muller's proposition be accepted as absolute? If it was accepted as absolute, the proposition would lead to two conclusions:

- (1) That in the time of the Rig Veda there were four *Varnas* and at the time of the Satapatha Brahmana they became three; or
- (2) that the tradition is not completely recorded in the Satapatha Brahmana.

It is obvious that both these conclusions are absurd and must be rejected. The first is absurd on the face of it. The second is untenable because the theory of the evolution of *Varnas* by the two Brahmanas is different from that set out in the Purusha Sukta and is complete in itself. The absurdity of the result is inevitable if one were to take Max Muller's proposition as absolute. The proposition cannot be taken as absolute to mean that no Brahmana was composed until all the Samhitas had come into being. On the other hand, it is quite possible as pointed out by Professors Belvalkar and Ranade that most of these compositions are composite and synchronous and, therefore, one part of the Vedas can be earlier than another part and that a part of the Brahmanas can be earlier than parts of the Vedas. If this is a correct view then there is nothing inherently improbable in holding that the parts of the Satapatha Brahmana and of the Taittiriya Brahmana, which record the legend that there were at one time only three *Varnas*, are earlier than the Purusha Sukta of the Rig Veda.

What is the conclusion which follows from this examination of the Purusha Sukta? There is only one conclusion, that the Sukta is an addition to the Rig Veda made at a later stage and is, therefore, no argument that there were four Varnas from the very beginning of the Aryan Society.

For the reasons given above, it will be seen that my thesis about the origin of the Shudras creates no problem such as the one mentioned in the beginning of this Chapter. If it did appear to create a problem, it was because of the assumption that the Purusha Sukta was an authentic and genuine record of what it purports to say. That assumption has now been shown to be quite baseless. I, therefore, see no difficulty in concluding that there was a time when the Aryan Society had only three *Varnas* and the Shudras belonged to the second or the Kshatriya *Varna*.

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CHAPTER IX

BRAHMINS *VERSUS* SHUDRAS

THE thesis that the Shudras were Kshatriyas and that if they became the fourth *Varna* it was because they were degraded to that position does not wholly solve the problem. It only raises another problem. This problem is why were the Shudras degraded?

The problem is new. It has never been raised before. The existing literature on the subject cannot, therefore, be expected to contain an answer. The question is raised by me for the first time. As it is a question on which my theory of the Shudras rests, the burden of giving a satisfactory answer must rest on me. I believe, I can give a satisfactory answer to this question. My answer is that the degradation of the Shudras is the result of a violent conflict between the Shudras and the Brahmins. Fortunately for me, there is abundant evidence of it.

I

There is direct evidence of a violent conflict between the Shudra king, Sudas and Vasishtha, the Brahmin rishi. The facts relating to this conflict however are stated in a very confused manner. In the narration which follows, I have made an attempt to state them in a neat and an orderly fashion.

To understand the nature of the conflict, it is necessary first to understand the relations between Vasishtha and Vishvamitra.

Vasishtha and Vishvamitra were enemies and were enemies first and enemies last. There was no incident to which one of them was a party in which the other did not know himself as an opponent. As evidence of their enmity, I will refer to some of the episodes. The first one is that of Satyavrata otherwise called Trishanku. The story

as told in the Harivamsha¹ is as follows:

“Meanwhile Vasishtha, from the relation subsisting between the king (Satyavrata’s father) and himself, as disciple and spiritual preceptor, governed the city of Ayodhya, the country, and the interior apartments of the royal palace. But Satyavrata, whether thorough folly or the force of destiny, cherished constantly an increased indignation against Vasishtha, who for a (proper) reason had not interposed to prevent his exclusion from the royal power by his father. ‘The formulae of the marriage ceremonial are only binding,’ said Satyavrata, ‘when the seventh step has been taken, and this had not been done when I seized the damsel; still Vasishtha, who knows the precepts of the law, does not come to my aid.’ Thus Satyavrata was incensed in his mind against Vasishtha, who, however had acted from a sense of what was right. Nor did Satyavrata understand (the propriety of) that silent penance imposed upon him by his father... When he had supported this arduous rite, (he supposed that) he had redeemed his family position. The venerable muni Vasishtha did not, however, (as has been said), prevent his father from setting him aside, but resolved to install his son as king. When the powerful prince Satyavrata had endured the penance for twelve years, he beheld, when he was without flesh to eat, the milch cow of Vasishtha which yielded all objects of desire, and under the influence of anger, delusion, and exhaustion, distressed by hunger, and failing in the ten duties he slew... and both partook of her flesh himself, and gave it to Vishvamitra’s sons to eat. Vasishtha hearing of this, became incensed against him and imposed on him the name of Trishanku as he had committed three sins. On his return home, Vishvamitra was gratified² by the support which his wife had received, and offered Trishanku the choice of a boon. When this proposal was made, Trishanku chose his boon of ascending bodily to heaven. All apprehension from the twelve years’ drought being now at an end, the muni (Vishvamitra) installed Trishanku in his father’s kingdom and offered sacrifice on his behalf. The mighty Kaushika then, in spite of the resistance of the gods and of Vasishtha exalted the king alive to heaven.”

The next episode in which they appear on opposite sides is that of Harishchandra, the son of Trishanku. The story is told in the Vishnu Purana and in the Markandeya Purana. The following account is

1 Quoted by Muir, Vol. I, pp. 377-378..

2 It is stated in the Harivamsha :

“In consequence of the wickedness which had been committed, Indra did not rain for a period of twelve years. At that time Vishvamitra had left his wife and children and gone to practise austerities on the seashore. His wife, driven to extremity by want, was on the point of selling her second son for a hundred cows, in order to support the others; but this arrangement was stopped by the intervention of Satyavrata who liberated the son when bound, and maintained the family by providing them with the flesh of wild animals and according to his father’s injunction, constricted himself for the performance of a silent penance for twelve years.”

As stated in another place in the Harivamsha, Trishanku had been expelled from his home by his father for the offence of carrying off the young wife of one of the citizens under the influence of a criminal passion and Vasishtha did not interfere to prevent his banishment. It is to this that the text refers.

given ¹ The story runs :

“On one occasion, when hunting, the king heard a sound of female lamentation which proceeded, it appears, from the sciences who were becoming mastered by the austere fervid sage Vishvamitra, in a way they had never been before by anyone else; and were consequently crying out in alarm at his superiority. For the fulfilment of his duty as a Kshatriya to defend the weak, and inspired by the god Ganesha, who had entered into him, Harishchandra exclaimed ‘What sinner is this who is binding fire in the hem of his garment, while I, his lord, am present, resplendent with force and fiery vigour? He shall to-day enter on his long sleep, pierced in all his limbs by arrows, which, by their discharge from my bow, illuminate all the quarters of the firmament.’ Vishvamitra was provoked by this address. In consequence of his wrath the Sciences instantly perished, and Harishchandra, trembling like the leaf of an ashvattha tree, submissively represented that he had merely done his duty as a king, which he defined as consisting in the bestowal of gifts on eminent Brahmins and other persons of slender means, the protection of the timid, and war against enemies. Vishvamitra hereupon demands a gift as a Brahmin intent upon receiving one. The king offers him whatsoever he may ask: Gold, his own son, wife, body, life, kingdom, good fortune. The saint first requires the present for the Rajasuya sacrifice, On this being promised, and still more offered, he asks for the empire of the whole earth, including everything but Harishchandra himself, his wife, and son, and his virtue which follows its possessor wherever he goes. Harishchandra joyfully agrees. Vishvamitra then requires him to strip off all his ornaments, to clothe himself in the bark of trees, and to quit the kingdom with his wife Shaivya and his son. When he is departing, the sage stops him and demands payment of his yet unpaid sacrificial fee. The king replies that he has only the persons of his wife, his son and himself left. Vishvamitra insists that he must nevertheless pay, and that unfulfilled promises of gifts to Brahmins bring destruction. The unfortunate prince, after being threatened with a curse, engages to make the payment in a month; and commences his journey with a wife unused to such fatigues, amid the universal lamentations of his subjects. While he lingers, listening to their affectionate remonstrances against his desertion of his kingdom, Vishvamitra comes up, and being incensed at the delay and the king’s apparent hesitation, strikes the queen with his staff, as she is dragged on by her husband. Harishchandra then proceeded with his wife and little son to Benares, imagining that the divine city, as the special property of Siva, could not be possessed by any mortal. Here he found the relentless Vishvamitra waiting for him, and ready to press his demand for the payment of his sacrificial gift, even before the expiration of the full period of grace. In this extremity, Shaivya the queen suggests with a sobbing voice that her husband should sell her. On hearing this proposal Harishchandra swoons, then recovers, utters lamentations and swoons again, and his wife seeing his sad condition, swoons also. While they are in a state of unconsciousness their famished child exclaims in distress, ‘O, father, give me bread; O, mother, mother, give me food; hunger overpowers me and my tongue is parched.’ At this moment

¹ Muir, Vol, 1, pp. 379-387.

Vishvamitra returns, and after recalling Harishchandra to consciousness by sprinkling water over him, again urges payment of the present. The king, again swoons, and is again restored. The sage threatens to curse him if his engagement is not fulfilled by sunset. Being now pressed by his wife, the king agrees to sell her, adding, however, 'If my voice can utter such a wicked word, I do what the most inhuman wretches cannot perpetrate.' He then goes into the city, and in self-accusing language offers his queen for sale as a slave. A rich old Brahmin offers to buy her at a price corresponding to her value, to do his household work. Seeing his mother dragged away the child ran after her, his eyes dimmed with tears, and crying 'mother.' The Brahmin purchaser kicked him when he came up; but he would not let his mother go, and continued crying 'mother, mother.' The queen then said to the Brahmin, 'Be so kind, my master, as to buy also this child, as without him I shall prove to thee but a useless purchase. Be thus merciful to me in my wretchedness, unite me with my son, like a cow to her calf.' The Brahmin agrees: 'Take this money and give me the boy.' After the Brahmin had gone out of sight with his purchases. Vishvamitra again appeared and renewed his demands: and when the afflicted Harishchandra offered him the small sum he had obtained by the sale of his wife and son, he angrily replied, 'If, miserable Kshatriya, thou thinkest this a sacrificial gift befitting my deserts, thou shalt soon behold the transcendent power of my ardent austrere-fervour of my terrible majesty, and of my holy study,' Harishchandra promises an additional gift, and Vishvamitra allows him the remaining quarter of the day for its liquidation. On the terrified and afflicted prince offering himself for sale, in order to gain the means of meeting this cruel demand, Dharma (Righteousness) appears in the form of a hideous and offensive chandala, and agrees to buy him at his own price, large or small. Harishchandra declines such a degrading servitude, and declares that he would rather be consumed by the fire of his persecutor's curse than submit to such a fate. Vishvamitra, however, again comes on the scene, asks why he does not accept the large sum offered by the Chandala, and when he pleads in excuse his descent from the solar race, threatens to fulminate a curse against him if he does not accept that method of meeting his liability. Harishchandra implores that he may be spared this extreme of degradation, and offers to become Vishvamitra's slave in payment of the residue of his debt; whereupon the sage rejoins, 'if thou art my slave, then I sell thee as such to the Chandala for a hundred millions of money.' The Chandala, delighted pays down the money, and carries off Harishchandra bound, beaten, confused, and afflicted, to his own place of abode. Harishchandra is sent by the Chandala to steal grave clothes in a cemetery and is told that he will receive two-sixths of the value for his hire; three-sixths going to his master, and one-sixth to the king. In this horrid spot, and in this degrading occupation he spent in great misery twelve months, which seemed to him like a hundred years. He then falls asleep and has a series of dreams suggested by the life he had been leading. After he awoke, his wife came to the cemetery to perform the obsequies of their son, who had died from the bite of a serpent. At first, the husband and wife did not recognize each other, from the change in appearance which had been wrought upon them both by their miseries. Harishchandra, however, soon discovered from the tenor of her lamentations that it is his wife, and falls into a swoon; as the queen does also when she recognizes her husband. When consciousness returns they both break

out into lamentations, the father bewailing in a touching strain the loss of his son, and the wife, the degradation of the king. She then falls on his neck, embraces him and asks 'whether all this is a dream, or a reality, as she is utterly bewildered'; and adds, that "if it be a reality, then righteousness is unavailing to those who practise it." After hesitating to devote himself to death on his son's funeral pyre without receiving his master's leave. Harishchandra resolves to do so, braving all the consequences and consoling himself with the hopeful anticipation. 'If I have given gifts and offered sacrifices and gratified my religious teachers, then may I be reunited with my son and with thee (my wife) in another world.' The queen determines to die in the same manner. When Harishchandra, after placing his son's body on the funeral pyre, is meditating on the Lord Hari Narayana Krishna, the supreme spirit, all the gods arrive, headed by Dharma (Righteousness); and accompanied by Vishvamitra. Dharma entreats the king to desist from his rash intention; and Indra announces to him that, he, his wife, and son have conquered heaven by their good works. Ambrosia, the antidote of death, and flowers are rained by the gods from the sky; and the king's son is restored to life and the bloom of youth. The king adorned with celestial clothing and garlands, and the queen, embrace their son. Harishchandra, however, declares that he cannot go to heaven till he has received his master the Chandala's permission, and has paid him a ransom. Dharma then reveals to the king that it was he himself who had miraculously assumed the form of a Chandala. The king next objects that he cannot depart unless his faithful subjects, who are sharers in his merits, are allowed to accompany him to heaven, at least for one day. This request is granted by Indra; and after Vishvamitra has inaugurated Rohitashva the king's son to be his successor. Harishchandra, his friends and followers, all ascend in company to heaven. Even after this great consummation, however, Vasishtha, the family priest of Harishchandra, hearing, at the end of a twelve years' abode in the waters of the Ganges, an account of all that has occurred, becomes vehemently incensed at the humiliation inflicted on the excellent monarch, whose virtues and devotion to the gods and Brahmins he celebrates, declares that his indignation had not been so greatly roused even when his own hundred sons had been slain by Vishvamitra, and in the following words dooms the latter to be transformed into a crane : 'Wherefore that wicked man, enemy of the Brahmins, smitten by my curse, shall be expelled from the society of intelligent beings, and losing his understanding shall be transformed into a Baka.' Vishvamitra reciprocates the curse, and changes Vasishtha into a bird of the species called Ari. In their new shapes the two have a furious fight, the Ari being of the Portentous height of two thousand yojanas= 18,000 miles, and the Baka of 3090 yojanas. They first assail each other with their wings; then the Baka smites his antagonist in the same manner, while the Ari strikes with his talons. Falling mountains, overturned by the blasts of wind raised by the flapping of their wings, shake the whole earth, the waters of the ocean overflow, the earth itself, thrown off its perpendicular slopes downwards to Patala, the lower regions. Many creatures perished by these various convulsions. Attracted by the dire disorder, Brahma arrives, attended by all the gods, on the spot, and commands the combatants to desist

from their fray. They were too fiercely infuriated to regard this injunction; but Brahma put an end to the conflict by restoring them to their natural forms and counselling them to be reconciled.”

The next episode in which they came in as opponents is connected with Ambarisha, king of Ayodhya :

“The story¹ relates that Ambarisha was engaged in performing a sacrifice, when Indra carried away the victim. The priest said that this ill-omened event had occurred owing to the king’s bad administration; and would call for a great expiation, unless a human victim could be produced. After a long search the royal-rishi (Ambarisha) came upon the Brahmin rishi, Richika, a descendant of Bhrigu, and asked him to sell one of his sons for a victim, at the price of a hundred thousand cows. Richika answered that he would not sell his eldest son and his wife added that she would not sell the youngest; ‘youngest sons’ she observed, ‘being generally the favourites of their mothers.’ The second son, Shunasshepa, then said that in that case he regarded himself as the one who was to be sold, and desired the king to remove him. The hundred thousand cows, with ten millions of gold pieces and heaps of jewels, were paid down and Shunasshepa carried away. As they were passing through Pushkara, Shunasshepa beheld his maternal uncle Vishvamitra who was engaged in austerities there with other rishis, threw himself into his arms, and implored his assistance, urging his orphan, friendless and helpless state, as claims on the sage’s benevolence. Vishvamitra soothed him; and pressed his own sons to offer themselves as victims in the room of Shunasshepa. This proposition met with no favour from Madhushyanda and the other sons of the royal hermit, who answered with haughtiness and derision: ‘How is it that thou sacrificest thine own sons and seekest to rescue those of others? We look upon this as wrong, and like the eating of one’s own flesh. ‘The sage was exceedingly wroth at this disregard of his injunction, and doomed his sons to be born in the most degraded classes, like Vasishtha’s sons, and to eat dog’s flesh, for a thousand years. He then said to Shunasshepa: ‘When thou art bound with hallowed cords, decked with a red garland, and anointed with unguents and fastened to the sacrificial post of Vishnu, then address thyself to Agni, and sing these two divine verses (gathas), at the sacrifice of Ambarisha: then shalt thou attain the fulfilment (of thy desire)’. Being furnished with the two gathas, Shunasshepa proposed at once to king Ambarisha that they should set out for their destination. When bound at the stake to be immolated, dressed in a red garment, he celebrated the two gods, Indra and his younger brother (Vishnu), with the excellent verses. The thousand-eyed (Indra) was pleased with the secret hymn; and bestowed long life on Shunasshepa.”

The last episode recorded in which the two had ranged themselves on opposite sides is connected with king Kalmashapada. The episode is recorded in the Adi Parvan of the Mahabharata:²

1 Quoted by Muir, Vol. I. pp. 405-407.

2 Ibid, pp. 415-417.

“Kalmashapada was a king of the race of Ikshvaku. Vishvamitra wished to be employed by him as his officiating priest; but the king preferred Vasishtha. It happened however that the king went out to hunt, and after having killed a large quantity of games, he became very much fatigued, as well as hungry and thirsty. Meeting Shakti, the eldest of Vasishtha’s hundred sons, on the road, he ordered him to get out of his way. The priest civilly replied: ‘The path is mine, O king; this is the immemorial law; in all observations the king must cede the way to the Brahmin.’ Neither party would yield, and the dispute waxing warmer, the king struck the muni with his whip. The muni, resorting to the usual expedient of offended sages, by a curse doomed the king to become a man-eater. It happened that at that time enmity existed between Vishvamitra and Vasishtha on account of their respective claims to be priest to Kalmashapada. Vishvamitra had followed the king; and approached while he was disputing with Shakti. Perceiving, however, the son of his rival Vasishtha, Vishvamitra made himself invisible, and passed them, catching this opportunity. The king began to implore Shakti’s clemency; but Vishvamitra wishing to prevent their reconciliation, commanded a Rakshasa (a man-devouring demon) to enter into the king. Owing to the conjoint influence of the Brahman-rishi’s curse, and Vishvamitra’s command, the demon obeyed the injunction. Perceiving that his object was gained, Vishvamitra left things to take their course, and absented himself from the country. The king having happened to meet a hungry Brahmin, and sent him, by the hand of his cook (who could procure nothing else), some human flesh to eat, was cursed by him also to the same effect as by Shakti. The curse, being now augmented in force, took effect, and Shakti himself was the first victim, being eaten up by the king. The same fate befell all the other sons of Vasishtha at the instigation of Vishvamitra. Perceiving Shakti to be dead, Vishvamitra again and again incited the Rakshasa against the sons of Vasishtha and accordingly the furious demon devoured those of his sons who were younger than Shakti as a lion eats up the small beasts of the forest. On hearing the destruction of his sons by Vishvamitra, Vasishtha supported his affliction as the great mountain sustains the earth. He meditated his own destruction, but never thought of exterminating the Kaushikas. This divine sage hurled himself from the summit of Meru, but fell upon the rocks as if on a heap of cotton. Escaping alive from his fall, he entered a glowing fire in the forest; but the fire, though fiercely blazing, not only failed to burn him, but seemed perfectly cool. He next threw himself into the sea with a heavy stone attached to his neck; but was cast up by the waves on the dry land. He then went home to his hermitage; but seeing it empty and desolate, he was again overcome by grief and sent out; and seeing the river Vipasa which was swollen by the recent rains, and sweeping along many trees torn from its banks, he conceived the design of drowning himself into its waters; he accordingly lied himself firmly with cords, and threw himself in; but the river severing his bonds, deposited him unbound (Vipasa) on dry land ; whence the name of the stream, as imposed by the sage. He afterwards saw and threw himself into the dreadful Satadru (Sutlej), which was full of alligators, etc., and derived its name rushing away in a hundred directions on seeing the Brahmin brilliant as fire. In consequence of this, he was once more stranded; and seeing that he could not kill himself, he went back to his hermitage.”

There are particular instances in which Vasishtha and Vishvamitra had come into conflict with each other. But there was more than these occasional conflicts between the two. There was general enmity between them. This general enmity was of a mortal kind so much so that Vishvamitra wanted even to murder Vasishtha as will be seen from the Shalyaparvan of the Mahabharata. Says the author of the Mahabharata :¹

“There existed a great enmity, arising from rivalry in their austerities, between Vishvamitra and the Brahmin rishi Vasishtha. Vasishtha had an extensive hermitage in Sthanutinha, to the east of which was Vishvamitra’s. These two great ascetics were every day exhibiting intense emulation in regard to their respective austerities. But Vishvamitra beholding the might of Vasishtha was the most chagrined; and fell into deep thought. The idea of this sage, constant in duty, was the following : ‘This river Sarasvati will speedily bring to me on her current the austere Vasishtha, the most eminent of all utterers of prayers. When that most excellent Brahmin has come, I shall most assuredly kill him.’ Having thus determined, the divine sage Vishvamitra, his eyes reddened by anger, called to mind the chief of rivers. She being thus the subject of his thoughts became very anxious, as she knew him to be very powerful and very irascible. Then trembling, pallid and with joined hands, the Sarasvati stood before the chief of munis like a woman whose husband has been slain; she was greatly distressed, and said to him ‘what shall I do?’ The incensed muni replied, ‘Bring Vasishtha hither speedily, that I may slay him.’ The lotus-eyed goddess, joining her hands trembled in great fear, like a creeping plant agitated by the wind. Vishvamitra, however, although he saw her condition, repeated his command. The Sarasvati, who knew how sinful was his design, and that the might of Vasishtha was unequalled, went trembling and in great dread of being cursed by both the sages, to Vasishtha and told him what his rival had said. Vasishtha seeing her emaciated, pale and anxious, spoke thus, ‘Deliver thyself, O chief of rivers; carry me unhesitatingly to Vishvamitra, lest he curse thee.’ Hearing these words of the merciful sage, the Sarasvati considered how she could act most wisely. She reflected, ‘Vasishtha has always shown me great kindness, I must seek his welfare.’ Then observing the Kaushika sage praying and sacrificing on her brink, she regarded that as a good opportunity, and swept away the bank by the force of her current. In this way the son of Mitra and Varuna (Vasishtha) was carried down; and while he was being borne along, he thus celebrated the river; ‘Thou, o Sarasvati, issuest from the lake of Brahma, and pervadest the whole world with thy excellent streams. Residing in the sky, thou discharges! water into the clouds. Thou alone art all waters. By thee we study.’ Thou art nourishment, radiance, fame, perfection, intellect, light. Thou art speech, thou art svaha; this world is subject to thee. Thou, in fourfold form, dwellest in all creatures.’ Beholding Vasishtha brought near by the Sarasvati, Vishvamitra searched for a weapon with which to make an end of him, Perceiving his anger, and dreading lest Brahmanicide should ensue, the river

1 Quoted by Muir, Vol. I, pp. 420-422.

promptly carried away, Vasishtha in an easterly direction thus fulfilling the commands of both sages, but eluding Vishvamitra. Seeing Vasishtha so carried away, Vishvamitra, impatient and enraged by vexation, said to her, 'Since thou, o chief of rivers, has eluded me, and hast receded, roll in waves of blood acceptable to the chief of demons' (which are fabled to gloat on blood). The Sarasvati being thus cursed, flowed for a year in a stream mingled with blood. Rakshasas came to the place of pilgrimage where Vasishtha had been swept away, and revelled in drinking to satiety the bloody stream in security, dancing and laughing, as if they had conquered heaven. Some rishis who arrived at the spot some time after were horrified to see the blood-stained water, and the Rakshasas quaffing it, and made the most strenuous efforts to rescue the Sarasvati."

The enmity between Vasishtha and Vishvamitra was not an enmity between two priests. It was an enmity between a Brahmin priest and a Kshatriya priest. Vasishtha was a Brahmin. Vishvamitra was a Kshatriya. He was a Kshatriya of royal lineage. In the Rig Veda (iii.33.11) Vishvamitra is spoken of as the son of Kushika. The Vishnu Purana¹ gives further details about Vishvamitra. It says that Vishvamitra was the son of Gadhi who was descended from king Pururavas. This is confirmed by the Harivamsha.² From the Rig Veda (iii: 1:21) we know that the family of Vishvamitra has been keeping 'fire' kindled in every generation.³ We also know from the Rig Veda that Vishvamitra was the author of many hymns of that Veda and was admitted to be a Rajarishi. He was the author of the hymn which is held to be the holiest in the whole of the Vedas namely the Gayatri hymn in the Rig Veda (iii.62.10). Another important fact we know about him is that he was a Kshatriya and his family belonged to the clan of the Bharatas.⁴

It seems that about this time a dispute was going on between Brahmins and Kshatriyas on the following points :

- (1) The right to receive gifts. Gift means payment made without work. The contention of the Brahmins was that nobody could receive gifts. To receive gifts was the right of the Brahmins only.⁵
- (2) The right to teach the Vedas. The Brahmins' contention was that the Kshatriya had only the right to study the Vedas. He had no right to teach the Vedas. It was the privilege of the Brahmins only.

1 Quoted in Muir, Vol. I, P. 349.

2 Quoted in Muir, Vol. I, p. 353.

3 Quoted in Muir, Vol. I, p. 316.

4 Quoted in Muir, Vol. I, p. 354.

5 That is why Manu says "if the king wants to make a gift to a Shudra he must make him work."

- (3) The right to officiate at a sacrifice. On this point the Brahmins' contention was that Kshatriya had the right to perform sacrifices, but he had no right to officiate as a purohit (priest) at a sacrifice. That was the privilege of the Brahmins.

What is important to note is that even in disputes on these points and particularly on the third point they did not fail to play their part as the opponents of each other. This is confirmed by the story of Trishanku narrated in the Ramayana¹ and which runs as follows :

"King Trishanku, one of Ikshvaku's descendants, had conceived the design of celebrating a sacrifice by virtue of which he should ascend bodily to heaven. As Vasishtha on being summoned, declared that the thing was impossible (*asakya*), Trishanku travelled to the south, where the sage's hundred sons were engaged in austerities, and applied to them to do what their father had declined. Though he addressed them with the greatest reverence and humility, and added that the Ikshvakus regarded their family-priests as their highest resource in difficulties, and that, after their father, he himself looked to them as his tutelary deities,' he received from the haughty priests the following rubuke for his presumption : "Fool, thou hast been refused by the truth-speaking preceptor. How is it that, disregarding his authority thou hast resorted to another school (shakha)? The family-priest is the highest oracle of all the Ikshvakus; and the command of that veracious personage cannot be transgressed. Vasishtha, the divine rishi, has declared that 'the thing cannot be : ' how can we undertake the sacrifice? Thou art foolish, king; return to thy capital. The divine (Vasishtha) is competent to act as priest of the three works; how can we shew him disrespect?"

Trishanku then gave them to understand, that as his preceptor and "his preceptor's sons had declined compliance with his requests, he should think of some other expedient. "In consequence of his venturing to express this presumptuous intention, they condemned him by their imprecation to become a Chandala. As this curse soon took effect, and the unhappy king's form was changed into that of a degraded outcast, he resorted to Vishvamitra (who, as we have seen, was also dwelling at this period in the south), enlarging on his own virtues and piety, and bewailing his fate. Vishvamitra commiserated his condition and promised to sacrifice on his behalf, and exalt him to heaven in the same Chandala form to which he had been condemned by his preceptor's curse. "Heaven is now as good as in the possession, since thou hast resorted to the son of Kushika." He then directed that preparations should be made for the sacrifice, and that all the rishis, including the family of Vasishtha, should be invited to the ceremony.

The disciples of Vishvamitra who had conveyed his message, reported the result on their return in these words: "Having heard your message, all the Brahmins are assembling in all the countries, and have arrived, excepting Mahodaya (Vasishtha). Hear what dreadful words those hundred Vasishthas, their voices quivering with rage, have uttered: 'How can the gods and rishis consume the oblation at the sacrifice of that man, especially if he be a Chandala,

1 Muir, Vol. I, pp. 401-404.

for whom a Kshatriya is officiating priest? How can illustrious Brahmins ascend to heaven, after eating the food of a Chandala, and being entertained by Vishvamitra?" These ruthless words all the Vasishthas, together with Mahodaya, uttered, their eyes inflamed with anger." Vishvamitra who was greatly incensed on receiving this message, by a curse doomed the sons of Vasishtha to be reduced to ashes, and reborn as degraded outcasts (*mritapah*) for seven hundred births, and Mahodaya to become a Nishada.

Knowing that this curse had taken effect Vishvamitra then, after eulogizing Trishanku, proposed to the assembled rishis that the sacrifice should be celebrated. To this they assented, being actuated by fear of the terrible sage's wrath, Vishvamitra himself officiated at the sacrifice as Yajaka; and the other rishis as priests (*ritvijah*) (with other functions) performed all the ceremonies."

In this dispute between Vasishtha and Vishvamitra, Sudas seems to have played an important part. Vasishtha was the family priest of Sudas. It was Vasishtha who performed his coronation ceremony. It was Vasishtha who helped him to win the battle against the ten kings. Notwithstanding this, Sudas removed Vasishtha from office. In his place he appointed Vishvamitra as his *purohita*¹ who performed *yajna* for Sudas. This is the first deed of Sudas which created enmity between Sudas and Vasishtha. There was another deed which Sudas committed which widened and intensified the enmity. He threw into fire Shakti the son of Vasishtha and burned him alive. The story is reported in the Satyayana Brahmana.² The Satyayana Brahmana does not give the reason for such an atrocious act. Some light is thrown on it by Shadgurushishya³ in his Commentary on Katyayana's Anukramanika to the Rig Veda. According to Shadgurushishya, a sacrifice was performed by Sudas at which there was a sort of public debate between Vishvamitra and Shakti, the son of Vasishtha and in this debate, to use the words of Shadgurushishya:

"The power and speech of Vishvamitra were completely vanquished by Shakti, son of Vasishtha; and the son of Gadhi (Vishvamitra) being so overcome, became dejected."

Here is the reason why Sudas threw Shakti into fire. Obviously, Sudas did it to avenge the dishonour and disgrace caused to Vishvamitra. Nothing could avert a deadly enmity growing up between Sudas and Vasishtha.

1 There is no direct evidence for this, Tradition accepts this as correct which seems to have been based upon Rig Veda, III. 53.9. This is confirmed by Yaska in his Niruktu (II, 24) where he says, "They then relate a story. The rishi Vishvamitra was the *purohita* of Sudas, the son of Pijavana."

2. This is referred to by Sayana in his introduction to Rig Veda, vii.32 on the authority of the Anukramanika which is quoted by Muir, Vol. I, p, 328.

3 This is referred to by Sayana in his introduction to verses 15 and 16 of Sukta 53 of the Third Mandala of the Rig Veda, which is quoted by Muir, Vol. I, p. 343.

This enmity does not seem to have ended with Sudas and Vasishtha. It appears to have spread to their sons. This is supported by the Taittiriya Samhita which says :¹

“Vasishtha, when his son had been slain, desired, ‘May I obtain offspring; may I overcome the Saudasas.’ He beheld this *ekasmannapanchasa*, he took it and sacrificed with it. In consequence he obtained offspring, and overcame the Saudasas.”

This is confirmed by the Kaushitaki Brahmana² which says :

“Vasishtha, when his son had been slain, desired, ‘May I be fruitful in offspring and cattle and overcome the Saudasas. He beheld this form of offering, the Vasishtha-sacrifice; and having performed it, he overcame the Saudasas.’”

II

The conflict between Sudas and Vasishtha is not the only conflict between kings and the Brahmins. The Puranas record other conflicts also between kings and Brahmins. It is desirable to assemble them here. The first relates to king Vena. The story of his conflict with Brahmins has been told by various authorities. The following account⁴ is taken from the Harivamsa :

“There was formerly a Prajapati (Lord of creatures), a protector of righteousness called Anga, of the race of Atri, and resembling him in power. His son was the Prajapati Vena who was but indifferently skilled in duty, and was born of Sunita, the daughter of Mrityu. This son of the daughter of Kala (Death), owing to the taint derived from his maternal grandfather, threw his duties behind his back, and lived in covetousness under the influence of desire. This king established an irreligious system of conduct; transgressing the ordinances of the Veda, he was devoted to lawlessness. In his reign men lived without study of the sacred books and without the Vashatkara, and the gods had no Soma libations to drink at sacrifices. ‘No sacrifice or oblation shall be offered’—such was the ruthless determination of that Prajapati, as the time of his destruction approached. ‘I,’ he declared, ‘am the object, and the performer of sacrifice, and the sacrifice itself; it is to me that sacrifice should be presented, and oblations offered.’ This transgressor of the rules of duty, who arrogated to himself what was not his due, was then addressed by all the great rishis headed by Marichi: ‘We are about to consecrate ourselves for a ceremony which shall last for many

1 Muir, Vol. I, p. 328.

2 *Ibid.*

3 There seems to be some doubt whether this enmity of Vasishtha had developed against Sudas or against the sons of Sudas. This doubt has arisen because the Satyayana and Kaushitaki Brahmanas speak of Saudasa, thereby suggesting that the quarrel of Vasishtha was with the sons of Sudas and not with Sudas. On the other hand, Manu is definite that it was Sudas who was the offender. Shadgurushishya speaks of Sudas and not Saudasas while the Brihaddevta in a similar passage gives Sudas. The difficulty could be solved if Saudasas was interpreted to be the family of Sudas, which includes both Sudas and his sons.

4 Quoted by Muir, Vol. I, p. 302.

years; practise not unrighteousness, O Vena; this is not the eternal rule of duty. Thou art in very deed a Prajapati of Atri's race, and thou hast engaged to protect thy subjects.' The foolish Vena, ignorant of what was right, laughingly answered those great rishis, who had so addressed him; 'who but myself is the ordainer of duty? or whom ought I to obey? Who on earth equals me in sacred knowledge, in prowess, in austere fervour, in truth? Ye, who are deluded and senseless, know not that I am the source of all beings and duties. Hesitate not to believe that I, if I willed, could bum up the earth, or deluge it with water, or close up heaven and earth.' When owing to his delusion and arrogance Vena could not be governed, then the mighty rishis becoming incensed, seized the vigorous and struggling king, and rubbed his left thigh. From this thigh, so rubbed, was produced a black man, very short in stature, who, being alarmed, stood with joined hands. Seeing that he was agitated, Atri said to him 'Sit down' (*nishida*). He became the founder of the race of the Nishadas, and also progenitor of the Dhivaras (fisherman), who sprang from the corruption of Vena."

The next king who came in conflict with the Brahmins was Pururavas. This Pururavas is the son of Ila and grandson of Manu Vaivasvat. The details of his conflict with the Brahmins are given in the Adi Parvan of the Mahabharata :¹

"Subsequently, the wise Pururavas was born of Ila, who, as we have heard, was both his father and his mother. Ruling over the thirteen islands of the ocean, and surrounded by beings who were all superhuman, himself a man of great renown, Pururavas, intoxicated by his prowess, engaged in a conflict with the Brahmins, and robbed them of their jewels, although they loudly remonstrated. Sanatkumara came from Brahma's heaven, and addressed to him an admonition, which, however, he did not regard. Being then straight-away cursed by the incensed rishis, he perished, this covetous monarch, who, through pride of power, had lost his understanding."

The third king in this series is Nahusha. This Nahusha is the grandson of Pururavas, the account of whose conflict with the Brahmins has been recounted above. The story of Nahusha and his conflict with the Brahmins has been told in two places in the Mahabharata, once in the Vanaparvan and again in the Udyogaparvan. The account which follows is taken from the Udyogaparvan.² It says:

After his slaughter of the demon Vritra, Indra became alarmed at the idea of having taken the life of a Brahmin (for Vritra was regarded as such), and hid himself in the waters. In consequence of the disappearance of the king of the gods, all affairs, celestial as well as terrestrial, fell into confusion. The rishis and gods then applied to Nahusha to be their king. After first excusing himself on the plea of want of power, Nahusha at length, in compliance with their

1 Quoted by Muir, Vol. I, p. 307.

2 Quoted in Muir, Vol. I, pp. 310-313.

solicitations, accepted the high function. Up to the period of his elevation he had led a virtuous life, but he now became addicted to amusement and sensual pleasure; and even aspired to the possession of Indrani, Indra's wife, whom he had happened to see. The queen resorted to the Angiras Brihaspati, the preceptor of the gods who engaged to protect her. Nahusha was greatly incensed on hearing of this interference; but the gods endeavoured to pacify him, and pointed out the immorality of appropriating another person's wife. Nahusha, however, would listen to no remonstrance, and insisted that in his adulterous designs he was no worse than Indra himself. The renowned Ahalya, a rishi's wife, was formerly corrupted by Indra in her husband's lifetime. Why was he not prevented by you? And many barbarous acts, and unrighteous deeds, and frauds were perpetrated of old by Indra; why was he not prevented by you? The gods, urged by Nahusha, went to bring Indrani; but Brihaspati would not give her up. At his recommendation, however, she solicited Nahusha for some delay, till she should ascertain what had become of her husband. This request was granted. Indrani now went in search of her husband; and by the help of Upashruti (the goddess of night and revealer of secrets) discovered him existing in a very subtle form in the stem of a lotus growing in a lake situated in a continent within an ocean north of the Himalayas. She made known to him the wicked intentions of Nahusha, and entreated him to exert his power, rescue her from danger and resume his dominion. Indra declined any immediate interposition on the plea of Nahusha's superior strength; but suggested to his wife a device by which the usurper might be hurled from his position. She was recommended to say to Nahusha that 'if he would visit her on a celestial vehicle borne by rishis, she would with pleasure submit herself to him.'

The queen of the gods accordingly made this proposal: 'I desire for thee, king of the gods, a vehicle hitherto unknown, such as neither Vishnu nor Rudra, nor the Asuras, nor the Rakshasas employ. Let the eminent rishis, all united, bear thee, lord, in a car; this idea pleases me'. Nahusha receives favourably this appeal to his vanity, and in the course of his reply thus gives utterance to his self-congratulation; 'He is a personage of no mean prowess who makes the munis his bearers. I am a fervid devotee of great might, Lord of the past, the future, and the present. If I were angry, the world would no longer stand; on me everything depends. Wherefore, O goddess, I shall, without doubt, carry out what you propose. The seven rishis and all the Brahmin rishis, shall carry me. Behold, beautiful goddess, my majesty and my prosperity.'

The narrative goes on :

Accordingly this wicked being, irreligious, violent, intoxicated by the force of conceit, and arbitrary in his conduct, attached to his car the rishis, who submitted to his commands, and compelled them to bear him. Indrani then again resorts to Brihaspati who assures her that vengeance will soon overtake Nahusha for his presumption; and promises that he will himself perform a sacrifice with a view to the destruction of the oppressor, and the discovery of Indra's lurking place. Agni is then sent to discover and bring Indra to Brihaspati and the latter, on Indra's arrival, informs him of all that had occurred during his absence. While

Indra, with Kubera, Yama, Soma and Varuna was devising means for the destruction of Nahusha, the sage Agastya came up, congratulated Indra on the fall of his rival, and proceeded to relate how it had occurred.

Wearied with carrying the sinner, Nahusha, the eminent divine-rishis, and the spotless Brahmin-rishis, asked that divine personage, Nahusha (to solve) a difficulty; 'Dost thou, O Vasava, most excellent of conquerors, regard as authoritative or not those Brahmana texts which are recited at the immolation of king?' 'No', replied Nahusha, whose understanding was enveloped in darkness. The rishis rejoined; 'Engaged in unrighteousness, thou attainest not unto righteousness; these tests, which were formerly uttered by great rishis, are regarded by us as authoritative.' Then (proceeds Agastya) disputing with the munis, Nahusha impelled by unrighteousness touched me on the head with his foot. In consequence of this, the king's glory was smitten and his prosperity departed. When he had instantly become agitated and oppressed with fear, I said to him, 'Since thou, a fool, condemnest that sacred text, always held in honour, which has been composed by former sages, and employed by Brahmin-rishis and hast touched my head with thy foot, and employest the Brahma-like and irresistible rishis as bearers to carry thee, therefore, shorn of thy lustre and all thy merit exhausted, sink down, sinner, degraded from heaven to earth. For ten thousand years thou shalt crawl in the form of a huge serpent. When that period is completed, thou shalt again ascend to heaven.' So fell that wicked wretch from the sovereignty of the gods, Happily, O Indra, we shall now prosper, for the enemy of the Brahmins has been smitten. Take possession of the three worlds, and protect their inhabitants, O husband of Shachi (Indrani), subduing the senses, overcoming thine enemies, and celebrated by the great rishis."

The fourth king to come into conflict with the Brahmins was Nimi. The details of the story are related in the Vishnu Purana¹ which says:

"Nimi had requested the Brahmin-rishi, Vasishtha to officiate at a sacrifice, which was to last a thousand years. Vasishtha in reply pleaded a pro-engagement to Indra for five hundred years, but promised to return at the end of that period. The king made no remark, and Vasishtha went away, supposing that he had assented to his arrangement. On his return, however, the priest discovered that Nimi had retained Gautama (who was, equally with Vasishtha a Brahmin-rishi) and others to perform the sacrifice; and being incensed, he cursed the King, who was then asleep, to lose his corporeal form. When Nimi awoke and learnt that he had been cursed without any previous warning, he retorted by uttering a similar curse on Vasishtha, and then died. Nimi's body was embalmed. At the close of the sacrifice which he had begun, the gods were willing, on the intercession of the priests, to restore him to life; but he declined the offer; and was placed by the deities, according to his desire, in the eyes of all living creatures. It is in consequence of this that they are always opening and shutting (Nimisha means 'the twinkling of the eye').

These foregoing cases of conflict have been referred to by Manu in his Smriti ;²

1 Quoted by Muir, Vol. I, p. 316.

2 Max Muller's, *Sacred Books of the East*, Vol. XXV, p. 222.

“Through a want of modesty many kings have perished, together with their belongings; through modesty even hermits in the forest have gained kingdoms. Through a want of humility Vena perished, likewise king Nahusha, Sudas, the son of Pijavana, Sumukha, and Nimi.”

Unfortunately, the bearing of these cases on the position of the Shudra has not been realized as fully as it should have been. The reason is that nobody has realized that this conflict was a conflict between Brahmins and Shudras. Sudas definitely was a Shudra. The others although they have not been described as Shudras are described as having been descended from Ikshvaku. Sudas is also described as a descendant of Ikshvaku. There is nothing far-fetched in saying that they were all Shudras. Even Manu had no idea of this. He represents these cases as cases of conflict between Brahmins and Kshatriyas. Dr. Muir has failed to realize that Sudas was a Shudra and has in recounting these stories represented that the parties to these conflicts were Brahmins on the one hand and the Kshatriyas on the other. In a sense, it is true that the conflict was between Brahmins and Kshatriyas because the Shudras were also a branch of the Kshatriyas. It would, however, have been far more illuminating if they had been described in more precise terms as conflicts between Brahmins and Shudras. The misunderstanding having been caused, it has remained and has continued to conceal the real nature of so important a part of the history of the Indo-Aryan society. It is to clear this misunderstanding that the hearing given to this Chapter is ‘Brahmins *versus* Shudras’ and not ‘Brahmins *versus* Kshatriyas’. Understood as a history of conflict between Brahmins and Shudras, it helps one to understand how the Shudras came to be degraded from the second to the fourth Varna.

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CHAPTER X

THE DEGRADATION OF THE SHUDRAS

WHAT is the technique which the Brahmins employed to bring about the degradation of the Shudras from the rank of the second to the rank of the fourth Varna?

The discussion has so far centred round two questions as to whether or not the Shudras were originally a part of the second or Kshatriya Varna and whether or not the Brahmins had not received sufficient provocation to degrade the Shudras. It is now necessary to deal with the question, which is logically, next in order of sequence. What is the technique of degradation employed by the Brahmins?

My answer to the question is that the technique employed by the Brahmins for this purpose was to refuse to perform the Upanayana of the Shudras. I have no doubt that it is by this technique that the Brahmins accomplished their end and thereby wreaked their vengeance upon the Shudras.

It is perhaps necessary to explain what Upanayana means and what importance it had in the Indo-Aryan Society. The best way to give an idea of Upanayana is to give a description of the ceremony.

As a rite *Upanayana* was originally a very simple ceremony, The boy came to the teacher with a *samidh* (a grass blade) in his hand and told the teacher that he desired to become a Brahmachari (i.e a student) and begged the teacher to allow him to stay with him for purposes of study. At a later date it became a very elaborate ceremony. How elaborate it had become may be realised from the following description of *Upanayana* in the Ashvalayana Grihya Sutra :¹

Let him initiate the boy who is decked, whose hair (on the head) is shaved (and arranged), who wears a new garment or an antelope skin if a Brahmana, rum skin if a Kshatriya, a goat's skin if a Vaishya; if they put on garments they

¹ Kane, *History of Dharmashastra*, Vol. II (i), pp. 281-283.

should put on dyed ones, reddish-yellow, red and yellow (for a Brahmana, Kshatriya, Vaishya respectively); they should have girdles and staffs (as described above). While the boy takes hold of (the hand of) his teacher, the latter offers (a homa of clarified butter oblations) in the fire (as described above), and seats himself to the north of the fire with his face turned to the east, while the other one (the boy) stations himself in front (of the teacher) with his face turned to the west. The teacher then fills the folded hands of both himself and of the boy with water and with the verse 'we choose that of Savitri' (Rg.V. 82.1) the teacher drops down the water in his own folded hands on to the water in the folded hands of the boy; having thus poured the water, he should seize with his own hand the boy's hand together with the thumb (of the boy) with the formula' by the urge (or order) of the god Savitri, with the arms of the two Ashvins, with the hands of Pushan, I seize thy hand, oh so, and so,' with the words 'Savitri has seized thy hand, oh so and so' a second time (the teacher seizes the boy's hand) with the words 'Agni is thy teacher oh so and so' a third time. The teacher should cause (the boy, to look at the sun, while the teacher repeats 'God Savitri, this is thy brahmachari protect him, may he not die' and (the teacher should further) say Whose brahmachari art thou? thou art the brahmachari of Prana. Who does initiate thee and whom (docs he initiate)? I give thee to Ka (to Prajapati).' With the half verse (Rg. III.8.4) 'the young man well attired and dressed, come hither' he (the teacher) should cause him to turn round to the right and with his two hands placed over (the boy's) shoulders he should touch the place of the boy's heart repeating the latter half (of Rg. III. 8.4). Having wiped the ground round the fire, the brahmachari should put (on the fire) a fuel stick silently, since it is known (from sruti) 'what belongs to Prajapati is silently done,' and the brahmachari belongs to Prajapati. Some do this (offering of a fuel stick) with a mantra to Agni: 'I Have brought a fuel stick, to the great Jatavedas; by the fuel stick mayest thou increase, Oh agni and may we (increase) through *brahman*' (prayer or spiritual lore), svaha.' Having put the fuel stick (on the fire) and having touched the fire, he (the student) thrice wipes off his face with the words 'I anoint myself with lustre,' it is known (from sruti) for he does anoint himself with lustre. 'May Agni bestow on me, insight, offspring and lustre: on me may Indra bestow insight, offspring and vigour (Indriya) ;on me may the sun bestow insight, offspring and radiance; what thy lustre is, Oh Agni, may I thereby become lustrous; what the strength is, Agni, may I thereby become strong; what thy consuming power is, Agni, may I thereby acquire consuming power.' Having waited upon (worshipped) Agni with these formulae, (the student) should bend his knees, embrace (the teachers feet) and say to him 'recite, Sir, recite, Sir, the Savitri.' Seizing the student's hands with the upper garment (of the student) and his own hands, the teacher recites the Savitri first pada by pada, then hemistich by hemistich (and lastly) the whole verse. He (the teacher) should make him (the student) recite (the Savitri) as much as he is able. On the place of the student's heart the teacher lays his hand with the fingers upturned with the formula 'I place thy heart unto duty to me, may thy mind follow my mind; may you attend on my words single-minded; may Brihaspati appoint thee unto me.' Having tied the girdle round him (the boy) and having given him the staff, the teacher should instruct him in the observances of a brahmachari with the words 'a brahmachari art thou, sip water, do service, do not

sleep by day, depending (completely) on the teacher learn the Veda.' He (the student) should beg (food) in the evening and the morning; he should put a fuel stick (on fire) in the evening and morning. That (which he has received by begging) he should announce to the teacher; he should not sit down (but should be standing) the rest of the day.

The Upanayana ends with the teaching by the Acharya to the boy of the Vedic Mantra known as the Gayatri Mantra. Why the Gayatri Mantra is regarded as so essential as to require the ceremony of Upanayana before it is taught it is difficult to say.

From this description of the Upanayana ceremony two things are clear. First is that the purpose of Upanayana was to initiate a person in the study of the Vedas which commenced with the teaching of Gayatri Mantra by the Acharya to the Brahmachari. The second thing that is clear is that certain articles were regarded as very essential for the Upanayana ceremony. They are (1) two garments one for the lower part of the body technically called *Vasa* and the other for the upper part of the body called *Uttariya*, (2) Danda or wooden staff, (3) Mekhala or a girdle of grass tied across the waist.

Any one who compares this description of Upanayana as it was performed in ancient times with the details of the ceremony as performed in later days is bound to be surprised at the absence of any mention of thread called *Yajnopavita* to be worn by the Brahmachari as a part of his Upanayana. The centre of the modern ceremony of Upanayana is the wearing of this thread and the whole purpose of the Upanayana has come to be the wearing of this *Yajnopavita*¹ So important a part this *Yajnopavita* has come to play that most elaborate rules have come to be framed about its manufacture and its use.

The *Yajnopavita* should have three threads, each thread to be of nine strands well twisted. One *tantu* (strand) stands for one devata (deity).

The *Yajnopavita* should reach as far as the navel,² should not reach beyond the navel, nor should it be above the chest.

1. Yajnavalkya (T, 16 and 133) calls It Bramhu Sutra,

2. Kane, D.S. H (i), p. 292.

The nine devatas of the nine *tantus* (strands) according to the Devala Smriti are, Omkara, Agni, Naga, Sema, Pitris, Prajapati, Vayu, Surya, Vishvadeva. Some change seems to have come about in this view. For Medhatithi (see Kane) says that in *ishtis*, animal sacrifices and soma sacrifices, the *Yajnopavita* was to have only one thread of three *tantus*, but it was three-fold in three classes of *ahina*, *ekahu* and *sattra* sacrifices as they required three fires, and in the seven *somasamstha* seven-fold, and five-fold when viewed with reference to the three savanas and two samdhyas.

A brahmachari was to wear only one *yajnopavita*, and samnyasins, when they kept *yajnopavita* at all, also wore only one. A snataka (i.e., one who has returned from the teacher's house after brahmacharya) and householder were to wear two, while one who desired long life may wear more than two. A snataka should always wear two *yajnopavitas*, A householder may wear any number up to ten.

A person could wear more than one *Yajnopavita*,

A man must always wear *Yajnopavita*. If he took his meals without wearing the *Yajnopavita*, or answers the call of nature without having the *Yajnopavita* placed on the right ear, he had to undergo prayascitta, viz., to bathe, to mutter prayers and fast.

Wearing of another's *Yajnopavita* along with several other things (such as shoes, ornament, garland and kamandalu) is forbidden.¹

Three ways of wearing the *Yajnopavita* are recognized: (1) *nivita*, (2) *pracinavita* and (3) *upavita*. When the cord is carried over the neck, both shoulders and the chest and is held with both the thumbs (of the two hands) lower than the region of the heart and above the navel, it is called *nivita*. Suspending the cord over the left shoulder in such a way that it hangs down on his right side, it becomes *upavita*. Suspending it on his right shoulder in such a way that it hangs down on his left side, it becomes *pracinavita*.

How did this *Yajnopavita* come in? Mr. Tilak offers an explanation² which is worth quoting. Mr. Tilak says :

“Orion or Mrigashiras is called Prajapati in the Vedic works, otherwise called Yajna. A belt or girdle of cloth round the waist of Orion or Yajna will therefore be naturally named after him as *Yajnopavita*, the *upavita* or the cloth of *yajna*.

The term, however, now denotes the sacred thread of the Brahmins, and it may naturally be asked whether it owes its character, if not the origin, to the belt of Orion. I think it does on the following grounds:

The word *yajnopavita* is derived by all native scholars from *Yajna* + *Upavita*; but there is a difference of opinion as to whether we should understand the compound to mean an *upavita* for *yajna* i.e for sacrificial purposes, or, whether it is the ‘*upavita* of *Yajnas*.’ The former is not incorrect, but authority is in favour of the latter. Thus the Prayoga-writers quote a *smṛiti* to the effect that ‘the High Soul is termed *Yajna* by the hotris, this is his *upavita*; therefore it is *yajna-upavita*.’ A mantra, which is recited on the occasion of wearing the sacred thread means, ‘I bind you with the *upavita* of *yajna*’, while the first half of the general formula with which a Brahmin always puts on his sacred thread is as follows:

यज्ञोपवीतं परमंपवित्रं प्रजापतेर्यत्सहजं पुरस्तात्

The Mantra is not to be found in any of the existing Samhitas, but is given in the Brahmapanishad and by Baudhayana. This verse is strikingly similar to the verse quoted above from the Haoma Ycsht. It says, ‘*yajnopavita* is high and sacred; it was born with Prajapati, of old.’ The word *purastat* corresponds with *paurvanim* in the Avesta verse and thus decides the question raised by Dr. Haug,

1. Kane. History of Dharmashastra Vol. II, (1), p. 293.

2. *Orion*, pp, 144-146.

while *sahaja*, born with the limbs of Prajapati, conveys the same meaning as *mainyutastem*. The coincidence between these verses cannot be accidental, and it appears to me that the sacred thread must be derived from the belt of Orion. Upavita, from *ve* to weave, literally means a piece of cloth and not a thread. It appears, therefore, that a cloth worn round the waist was the primitive form of *yajnopavita*, and that the idea of sacredness was introduced by the theory that it was to be a symbolic representation of Prajapati's waistcloth or belt."

This explanation by Mr. Tilak is no doubt very interesting. But it does not help to explain some of the difficulties. It does not explain the relation of the *Yajnopavita* to the two garments the *Uttariya*, and the *vasa*, which are necessary for a person to wear while undergoing *Upanayana*. Was the *Yajnopavita* in addition to the two garments? If so, how is it that there is no mention of it in the early description of the ceremony of the *Upanayana*? It does not explain another difficulty. If that thread is a substitute for the cloth, how is it that the wearing of the cloth is retained in the *Upanayana*?

There seems to be another explanation. I offer it for what it is worth. According to it, the wearing of the thread had to do with the adoption of the *gotra*. Its object was to tie oneself to a particular *gotra*. It had nothing to do with the *Upanayana* as such, the object of which was to initiate a person in the study of the Vedas. It is not sufficiently realized that under the Ancient Aryan Law, a son did not naturally inherit the *gotra* of his father. The father had to perform a special ceremony to give his *gotra* to his son. It is only when this ceremony was performed that the son became the same *gotra* as the father. In this connection, reference may be made to two rules observed by the Indo-Aryan Society. One is the rule of impurities. The other is the rule of adoption. With regard to the rule of impurity, brought about by death, the days of impurity vary with the kinship with the dead. If the kinship is very close, the days of impurity are greater than those in the case where the kinship is less close. The impurities attached to the death of a boy who has not been invested with the thread are very meagre,¹ not extending for more than a few days. With regard to the rule of adoption,² it lays down that a boy who was invested with the thread was not eligible for adoption. What is the idea behind these rules? The idea seems to be quite clear. The impurities are nominal because there being no thread, the boy had not formally entered into the *gotra* of his father. Adoption means

1. See *Manu Smriti*, Chapter V, Verses 66-70,

2. *Kalikapurana* quoted by Vyavahara Mayukha, edited by Kane, p. 114. This plea has been taken in various cases in Courts by litigants to which Mr. Kane makes references.

entering into the *gotra* of the adoptive father. Once the thread ceremony had taken place the boy had already and irrevocably entered another *gotra*.

There was no room for adoption left. Both these rules show that the thread ceremony was connected with *gotra* and not with *Upanayana*.

The view that the thread has connection with *gotra* seems to receive support from Jain literature. Shloka 87 of the fourth Parvan of the Padmapurana by Acharya Ravishena reads as follows :¹

“Bhagwan ! you have told us the origin of Kshatriya, Vaishya and Shudra. I am anxious to know the origin of those who wear the thread in their neck.”

The words ‘those who wear the thread in the neck’ are very important. There is no doubt that it is a description of the Brahmins. From this it is clear that there was a time when the Brahmins alone wore the thread and no other class did. Read with the fact that the *gotra* relationship was confined only to the Brahmins, it is clear that the thread ceremony was connected with bringing the boy into—actually tying him up to the *gotra*— of his father, and had nothing to do with *Upanayana* which was connected with the initiation in the teaching of the Vedas.

If this is true, then the thread ceremony and the *Upanayana* ceremony had different purposes to serve. At some later date the two merged into one. The reason for this merger appears to be very natural. The *Upanayana* without the thread ceremony involved the danger of the Acharya taking the boy in his *gotra*. It was to avoid the danger that the father of the boy performed the thread ceremony before handing him over to the Acharya. This is the probable reason why the two ceremonies came to be performed simultaneously.

Be that as it may, *Upanayana* means the teaching of the Veda by the Vedic Brahmin.

III

While I am convinced that my thesis is sound, it would be over confident to think that there will not be found persons who will not raise objections to it. I anticipate the following :

- (1) Is absence of *Upanayana* the test of Shudradom;
- (2) Did the Shudra ever have the right to *Upanayana*?

¹ Quoted by Nathuram Premi in his *Jain Sahitya our Itihas* (Hindi), p. 55a,

- (3) How can the loss of *Upanayana* result in the general degradation of Shudras?
- (4) What power did the Brahmins have to deny *Upanayana* to the Shudras?

Having stated the possible objections to my thesis, I like to give my reply to them.

IV

To begin with the first. The best way to deal with this objection is to refer to the judicial decisions in order to find out what the Courts in India have regarded as the surest criterion for determining who is a Shudra.

The first case to which reference may be made is to be found in 7, M.I.A.18.¹ It was decided by the Privy Council in 1837. The question at issue was whether at the relevant time there were in India any Kshatriyas. The contention of one side was that there were. The contention on the other side was that there were none. The latter contention was based upon the theory propagated by the Brahmins that the Brahmin Parashurama had killed all the Kshatriyas and that if any were left they were all exterminated by the Shudra king Mahapadma Nanda, so that thereafter there were no Kshatriyas left and that there were only Brahmins and Shudras. The Privy Council did not accept this theory which they regarded as false and concocted by the Brahmins and held that the Kshatriyas still existed in India. The Privy Council did not however lay down any test by which a Kshatriya could be distinguished from a Shudra. In their view, the question must be determined in each case on its own facts.

The second case on the subject is to be found in I.L.R.10 Cal. 688.² The question raised in the case was whether the Kayasthas of Bihar were Kshatriyas or Shudras. The High Court decided that they were Shudras. The partisans of the Kayasthas took the position that the Kayasthas of Bihar were different from the Kayasthas of Bengal, the Upper Provinces and Benares and that while those in the Upper Provinces and Benares were Shudras, the Kayasthas of Bihar were Kshatriyas. The court refused to make this distinction and held that the Kayasthas of Bihar were also Shudras.

1. *Chuohirya Run Murdan Syn Versus Sahub Purhulad Syn.*

2. *Raj Coomar Lall versus Bissessur Dyal.*

The validity of this judgement was not accepted by the Allahabad High Court. In I.L.R.12 All. 328,¹ Justice Mahamood at page 334 observed as follows :

"I entertain considerable doubts as to the soundness of the view which seems to have been adopted by both the Courts below, that the literary caste of *Kayasthas* in this part of the country, to which the parties belong, falls under the category of *Shudras*, as understood in the division of mankind in the Institute of Manu or elsewhere in authoritative texts of the Hindu Law. The question is one of considerable difficulty not only ethnologically, but also from a legal point of view, so far as the administration of the Hindu Law to this important section of the population is concerned. I do not take the question to be settled by any adjudication of the Lords of the Privy Council either in *Sri Narayan Miner vs. Sree Mutty Kishen Soondoory Dasse*,² or in *Mahashova Shosinath Ghose vs. Srimati Krishna Soondari Dasi*³ in both of which the cases referred to adoption by Kayasthas of Lower Bengal, who may be distinguishable from the twelve castes of Kayasthas in Upper India, such as the North-western Provinces and Oudh. Nor do I think that the unreported decision of the learned Chief Justice and my brother Tyrell in *Chaudhari Hazari Lai versus Bishnu Dial* (First Appeal No. 113 of 1886, decided on the 15th June 1887), which was also an adoption case, settles the question. But I need not pursue the subject any further...."

The third case is reported in (1916) 20 Cal. W.N.901⁴. Here the question raised was whether Kayasthas of Bengal were Kshatriyas or Shudras. The High Court of Calcutta held that they were Shudras. The case was taken to the Privy Council by way of appeal against the decision of the Calcutta High Court. The decision of the Privy Council is reported in (1926) 47 I.A. 140. The question whether the Bengali Kayasthas are Shudras or Kshatriyas was not decided upon by the Privy Council but was left open. In between 1916 and 1926 the Calcutta High Court gave two decisions which held that inter-marriages between Kayasthas of Bengal and *Tantis*⁵ and *Domes*⁶ two of the low castes, were legal on the ground that both of them were sub-castes of Shudras.

These decisions which caused further deterioration in the position of the Kayasthas were followed by another which is reported in I.L.R. 6 Patna 506.⁷ In a most elaborate judgement extending over 47 pages Mr. Justice Jwala Prasad went into every Purana and every

1. Tulsi Ram *versus* Behari Lai.

2. L. R. I. A. Sup., Vol. 149.

3. L. R. 7,1.A., 250.

4. Asita Mohan Ghosh *versus* Nirod Mohan Ghosh Maulik.

5. (1921) 48 Cal. 626. Bishwanath Ghosh *versus* Srimati Balai Desai.

6. (1924) 51 Cal. 788. Bholanalh Mitter *versus* King Emperor.

7. (1926) Ishwari Prasad *versus* Rai Hari Prasad Lai.

Smriti in which there was a reference to the Kayasthas. He differed from the Calcutta High Court and held that the Kayasthas of Bihar were Kshatriyas.

Next come cases in which the question at issue was whether the Maharattas are Kshatriyas or Shudras. The first case in which this issue was raised is reported in 48 Mad. I.¹ This was an interpleader suit filed by the Receiver of the estate of Raja of Tanjore in which all the descendants as well as the distant agnates and cognates of the Raja were made defendants in the suit. The kingdom of Tanjore was founded by Venkoji, otherwise called Ekoji, who was a Mahratta and the brother of Shivaji the founder of the Mahratta Empire. The judgement in the case covers 229 pages and the question whether the Mahrattas were Kshatriyas was dealt with in a most exhaustive manner. The decision of the Madras High Court was that the Mahrattas were Shudras and not Kshatriyas as was contended by the defendants.

The next case which also relates to the Mahrattas is reported in I.L.R. (1928) 52 Bom.497.² The Court decided that :

“There are three classes among the Mahrattas in the Bombay Presidency: (1) the five families; (2) the ninety-six families; (3) the rest Of these, the first two classes are legally Kshatriyas.”

The last case to which reference may be made is reported in I.L.R. (1927) 52 Mad. I.³ The issue was whether the Yadavas of Madura were Kshatriyas. The Yadavas claimed themselves to be Kshatriyas. But the Madras High Court negatived the claim and held that they were Shudras.

Such is the course of judicial pronouncements on the issue as to how to determine who is a Kshatriya and who is a Shudra. It is a most confusing medley of opinion which settles little and unsettles much. The Kayasthas of Bihar, of the Upper Provinces (now U.P) and Benares are Kshatriyas, while the Kayasthas of Bengal are Shudras!! According to the Madras High Court all Mahrattas are Shudras. But according to the Bombay High Court, Mahrattas belonging to five families and 96 families are Kshatriyas and the rest are Shudras!! The Yadava community to which Krishna belonged is popularly believed to be Kshatriyas. But according to the Madras High Court, the Yadavas are Shudras!!

1. (1924) Maharaja of Kolhapur *versus* Sundaram Ayyar.

2. Subbarao Hambirao Palil *vera?* Radha Hambirao Patil.

3. Mokka Kone *versus* Ammakutti.

More important for our purpose are the criteria which the courts have adopted in coming to their decisions than the particular decisions in the cases referred to. Among the criteria which the courts have laid down, the following may be noted :

- (1) In I.L.R. 10 Cal. 688, the criteria adopted were (i) use of Das as surname, (ii) wearing the sacred thread, (iii) ability to perform the *homa*, (iv) the period of impurity; (v) competence or incompetence of illegitimate sons to succeed.
- (2) In I.L.R. 6 Patna 606, the criterion seems to be general repute. If a community is Kshatriya by general repute it is to be treated as a Kshatriya community.
- (3) In 48 Madras 1, a variety of criteria were adopted. One was the consciousness of the community. The second was undergoing the ceremony of *Upanayana* as distinguished from wearing the sacred thread. The third criterion was that all non-Brahmins are Shudras unless they prove that they are Kshatriyas or Vaishyas.
- (4) In I.L.R. Bom. 497, the tests adopted were (i) the consciousness of the caste (ii) its custom, and (iii) the acceptance of that consciousness by other castes.

No one who knows anything about the subject can say that the criteria adopted by the various courts are the right ones. A criterion such as the period of impurity is irrelevant and of no value for determining the question. A criterion such as the capacity for performing *homa* is relevant but not valid. It mistakes effect for a cause. The criterion of consciousness is hardly a fair criterion. A community may have lost its consciousness by long disuse of necessary religious observances due to causes over which it has no control. The criterion of *Upanayana* stands on a different footing. The courts have not put it properly. But there is no doubt that rightly understood and properly put the criterion of *Upanayana* is sound. The Courts have not made any distinction between the *de facto* position of the community and its position *de jure* in regard to *Upanayana*, and have proceeded on the assumption that what is true *de facto* must also be true *de jure*. It is this fault in the application of the criterion of *Upanayana* which has produced anomalies and absurdities, such as one community having one status in one area and quite a different status in a different area—or allowing any pretender community to wear the thread and by continuing its

pretence for a period to acquire a vested right or contrariwise punishing a community by declaring that it had no *de jure* right to wear the thread merely because it has not been wearing it *de facto*. The real criterion is not the wearing of the sacred thread but the right to wear the sacred thread. Understood in its proper sense, it may be said without fear of contradiction that the right to *Upanayana* is the real and the only test of judging the status of a person whether he is a Shudra or a Kshatriya.

V

The second objection is quite untenable. To assume, as the objection does, that from the very beginning the Aryan Society treated its different classes differently in the matter of *Upanayana* is to my mind a very unnatural supposition. Primitive society does not begin with differentiation. It begins with uniformity and ends in diversity. The natural thing would be to suppose that in the matter of the *Upanayana* the ancient Aryan society treated all its classes on the same footing. It may however be argued, on the other side, that such an original tendency in favour of uniformity need not be accepted as being universal, that it may well be that in the ancient Aryan society the Shudras and the women were excluded from *Upanayana*. Fortunately for me, it is not necessary for me to rely on logic alone though I contend that logic is on my side. For there is ample evidence both circumstantial as well as direct to show that both Shudras as well as women had at one time the right to wear the sacred thread.

That the ancient Aryan society regarded *Upanayana* as essential for all will be evident if the following facts are borne in mind.

Upanayana was allowed for the deaf, the dumb, the idiot and even the impotent. A special procedure was prescribed for the *Upanayana* of the deaf and dumb and idiots. The principal points in which their *Upanayana* differs from that of others are that the offering of *Samidh*, treading on a stone, putting on a garment, the tying of *mekhala*, the giving of deer skin and staff are done silently, that the boy does not mention his name, it is the *acharya* himself who makes offering of cooked food or of clarified butter, all the *mantras* are muttered softly by the *acharya* himself. The same procedure is followed as to other persons who are impotent, blind, lunatic, suffering from such diseases as epilepsy, white leprosy or black leprosy, etc.

The six *anuloma* castes were also eligible for *Upanayana*; this is clear from the rules¹ for the *Upanayana* of Kshatriyas, Vaishyas and of mixed castes like Rathakara, Ambashtha, etc.

Upanayana was permitted to *Patitasavitrikas*. The proper age for the *Upanayana* of a Brahman boy was 8th year from birth, of a Kshatriya 11th year and of a Vaishya 12th year. But a certain latitude was allowed so that the time for *Upanayana* was not deemed to have passed upon the 16th, the 22nd and the 24th year in the case of Brahmins, Kshatriyas and Vaishyas respectively. After these years are passed without *Upanayana* taking place, a person was held to have become incompetent thereafter for learning the Savitri (the sacred Gayatri verse). Such persons were then called *Patitasavitrika* or *savitripatita*. According to the strict interpretation of rules, no *Upanayana* is to be thereafter performed for them, they are not to be taught the Veda, nor is anyone to officiate at their sacrifices and there is to be no social intercourse with them (i.e., no marriage takes place with them). But even in their case, there was readiness to relax the rules² subject to certain penances.

Upanayana was permitted in the case of Brahmagnas. A Brahmagna is a person whose father or grandfather had failed to perform *Upanayana*. The original rule³ was that if a person's father and grandfather also had not the *Upanayana* performed for them then they (i.e., the three generations) are called slayers of *brahma* (holy prayers or lore); people should have no intercourse with them, should not take their food nor should enter into marriage alliance with them. But even in their case the rule was relaxed and they were allowed *Upanayana* if they desired, provided they performed the prescribed penance.

1. Baud. Gr. Sutra (II.8). Kane, *History of Dharmashastra*, II (1), p. 299.

2. Ap. Dh. S., I. 1. 1 28-31, prescribes that after the 16th or 24th year, the person should undergo the rules of studenthood two months just as those who meant to study the three vedas and whose *Upanayana* has been performed, observe (viz., begging for food, etc.) then his *Upanayana* should be performed, then for one year he should bathe (thrice if possible) every day and then he should be taught the Veda. This is a somewhat easy penance. But others prescribe heavier penalties. Vas. Dh. S. XI. 76-79 and the Vaik. Smarta, 11.3 prescribes that one who is *patitasavitrika* should either perform the Uddalaka vrata or should take a bath along with the performer of an Ashvamedha sacrifice or should perform the Vratyastoma sacrifice. See Kane, *ibid.*, p. 377.

3. Ap. Dh. S., I. 1.1. 32-2. 4. The penance prescribed was that of observing the rules of studenthood one year for each generation (that had not the *Upanayana* performed) then there is *Upanayana* and then they have to bathe (thrice or once) every day for a year with certain mantras, viz., the seven Pavamani verses beginning with 'yad ami yacca durake' (Rg. IX. 67. 21-27), with the Yajus Pavitra (Tai. S., I. 2.1. 1=Rg. X. 17. 10) with the *samapavitra* and with the mantras called Angirasa (Rg. IV. 40.5) or one may pour water only with the *Vyahritis*. After all this is done, one must be taught the Veda. See Kane, *ibid.*, p. 378.

A further relaxation was made in the case of a person whose generation beginning with the great grandfather had not the Upanayana performed on them.¹ Even they were allowed to have their Upanayana performed if they desired, provided they performed penance which included studenthood for twelve years and bath with the Pavamani, and other verses. On his Upanayana, instruction in the duties of the householder was imparted to him, and though he himself could not be taught the Veda, his son may have the samskara performed as in the case of one who is himself a *patitasavitrika* so that his son will be 'one like other Arya'.

Upanayana was permitted to the Vratyas. It is difficult to state exactly who the Vratyas were, whether they were Aryans who had for more than three generations failed to perform the Upanayana or whether they were non-Aryans who were never within the Aryan fold and whom the Brahmins wanted to convert to the Aryan faith. It is possible that it included both. Be that as it may, there is no doubt that Upanayana was open to the Vratyas provided they performed Vratyastomas. Vratyas were those who lead the Vratya life, were base and were reduced to a baser state since they did not observe studenthood (brahmacharya) nor did they till the soil nor engage in trade. There were four Vratyastomas, the first of which is meant for all Vratyas, the second is meant for those who are *Abhishasta* who are wicked or guilty of heavy sins and are censured and lead a Vratya life, the third for those who are the youngest and lead a Vratya life and the fourth for those who are very old and yet lead a Vratya life. In each of the four Vratyastomas, Sodasastoma² is always performed. It is by the Sodasastoma that they can attain this (superior status). The Sodasastoma was supposed to have the power to remove the guilt of these. By performing the Vratyastoma sacrifice, they should cease to be Vratyas and become eligible for social intercourse with the Orthodox Aryas, to have the sacrament (*samskara* of Upanayana) performed of them and then be eligible to study the Veda.

In the Vratyata-shuddisamgraha³ provision is made for the purification of Vratyas even after twelve generations subject to appropriate penances.

1. Ap. Dh S., 1.1. 2.5-10.

2. Kane (*ibid*, p. 385) refers to the Tandya Brahmana 17.1.1 which tells the story that when the gods went to the heavenly world some dependents of theirs who lived the *vraty*a life were left behind on the earth. Then through the favour of the gods the dependents got at the hands of Maruts the *Sodasastoma* (containing 16 stotras) and the metre (*viz.*, *anustubh*) and then the dependents secured heaven.

3. Kane, *ibid*, p. 387

Upanayana was so highly thought of that Baudhayana (ii.10) allowed Upanayana for the Asvattha tree.

Given these facts, it is difficult to believe that the women and Shudras were excluded from the Upanayana by the Aryan society from the very beginning. In this connection, attention may be drawn to custom prevalent among the Indo-Iranians who were very closely related to the Indo-Aryans in their culture and religion. Among the Indo-Iranians, not only both men and women but men and women of all classes are invested with the sacred thread. It is for the opponents to prove why the system was different among the Indo-Aryans.

It is, however, not quite necessary to depend upon circumstantial evidence. There is enough direct evidence to show that there was a time when both women and Shudras had the right to Upanayana and did have it performed.

As to the Upanayana of women the statements¹ contained in the Hindu religious books are quite explicit. Anyone who examines them will find that Upanayana was open to women. Women not only learned the Vedas but they used to run schools for teaching the Vedas, are even known to have written commentaries on the Women Purva Mimamsa.

As to the Shudras, the evidence is equally positive. If Sudas was a king, if Sudas was a Shudra, if his coronation ceremony was performed by Vasishtha and he performed the Rajasuya Yaga, then there can be no doubt that the Shudras did at one time wear the sacred thread. In addition to circumstantial evidence and the evidence of the authors mentioned before, the Sanskara Ganapati cited by Max Muller² contains an express provision declaring the Shudra to be eligible for Upanayana.

The only difference between the women and the Shudras is that in the case of women there is some plausible explanation given as to why the Upanayana of women was stopped, while there is no such explanation for stopping the Upanayana of the Shudras. It is argued that the Upanayana of women continued as long as the age of Upanayana and the age of marriage continued to be different. It is said that in ancient times the age of Upanayana was 8 and the age for marriage was considerably later. But at a later stage, the age of marriage was brought down to 8, with the result that the Upanayana

1. See *Purushartha* Number for September 1940 where all authorities are collected in one place.

2. *History of Ancient Sanskrit Literature* (1860), p. 207.

as an independent ceremony ceased to exist and became merged in marriage. Whether this explanation is right or wrong is another matter. The point is that in the case of the Shudra, the Upanayana was at one time open to him, that it was closed to him at a later stage and that there is no explanation for this change.

Those who, in spite of the evidence to which I have referred, think that they must insist upon their objection should remember the weakness of their side. Assuming that the Shudras had never had the benefit of Upanayana, the question they have to face is why were the Shudras not allowed the benefit of the Upanayana. The orthodox theory merely states the fact that there is no Upanayana for a Shudra. But it does not say why the Shudra is not to have his Upanayana performed. The explanation that there was no Upanayana of the Shudra because he was a non-Aryan is a modern invention which has been shown to be completely baseless. Either there was once an Upanayana and it was stopped or the Upanayana was from the very beginning withheld. Either may be true. But before one or the other is accepted to be true, it must be accompanied by reasons. There being no reason why the benefit of the Upanayana was withheld from the Shudra, the presumption must be in favour of my thesis which states that they had the right to Upanayana, that they were deprived of it and gives reasons why they were deprived of its validity.

VI

The third objection is no objection at all. Only a person who does not know fully all the incidents of Upanayana can persist in upholding its validity.

The Aryan society regarded certain ceremonies as Samskaras. The Gautama Dharma Sutra (VIII. 14-24) gives the number of Samskaras as forty. They are :

Garbhadhana Pumsavana, Simantonnayana, Jatakarma, namakarana, annaprasana, caula, Upanayana, the four vratas of the Veda, Snana (or Samavartana), vivaha, five daily mahayajnas (for deva, pitri, manushya, bhuta, and Brahma); seven pakayajnas (viz., astaka, parvanasthalipaka, sraddha sravani, agrahayani, caitri, asvayuji); seven haviryajnas (in which there is burnt offering but no Soma, viz., Agnyadheya, Agnihotra, Darsapurnamasa, Agrayana, Caturmasyas, Nirudhapasubandha and Sautramani); seven soma sacrifices (Agnistoma, Atyagnistoma, Ukthya, Sodasin, Vajapeya, Atiratra, Aptoryama).

At a late stage a distinction appears to have been drawn between Samskaras in the narrower sense and Samskaras in the wider sense. Samskaras in the wider sense were really sacrifices and were therefore not included in the Samskaras in the proper sense, which were reduced to sixteen.

There is nothing strange about the Samskaras. Every society recognises them. For instance, the- Christians regard Baptism, Cofirmation, Matrimony, Extreme Unction, Eucharist, the Lord's Supper and the Holy Communion as sacraments. There however seems to be a difference between the notions of the Indo-Aryans and say the Christians about the Samskaras. According to Christian notions, the Samskara or Sacrament is a purely spiritual matter-drawing in of God's grace by particular rites. It had no social significance. Among the Indo-Aryans the Samskaras had originally a purely spiritual significance. This is clear from what Jaimini the author of the *Purva Mimamsa* has to say about the Samskaras. According to Jaimini the general theory is that Samskaras impart fitness. They act in two ways. They remove taints and they generate fresh qualities. Without such Samskaras, a person may not get the reward of his sacrifice on the ground that he is not fit to perform it. Upanayana was one of the Samskaras and like other Samskaras, its significance was just spiritual. The denial of the Upanayana to the Shudras necessarily brought about a change in its significance. In addition to its spiritual significance it acquired a social significance which it did not have before.

When Upanayana was open to everyone, Aryan or non-Aryan, it was not a matter of social significance. It was a common right of all. It was not a privilege of the few. Once it was denied to the Shudras, its possession became a matter of honour and its denial a badge of servility. The denial of Upanayana to the Shudras introduced a new factor in the Indo Aryan society. It made the Shudras look up to the higher classes as their superiors and enabled the three higher classes to look down upon the Shudras as their inferiors. This is one way in which the loss of Upanayana brought about the degradation of the Shudras.

There are other incidents of Upanayana. Since idea of these can be had if one refers to the rules laid down in the *Purva Mimamsa*¹. One

1 See Ganganath Jha, *Purva Mimamsa*, pp. 368-369 and 171-172.

of these rules is that all property is meant primarily for the purpose of providing a person with the means of performing a sacrifice. The right to property is dependent upon capacity to sacrifice.¹ In other words, anyone who suffers from an incapacity to perform a sacrifice has no right to property. Capacity to sacrifice depends upon Upanayana. This means that only those who are entitled to Upanayana have a right to own property.

The second rule of the *Purva Mimamsa* is that a sacrifice must be accompanied by Veda mantras. This means that the sacrificer must have undergone a course in the study of the Veda. A person who has not studied the Vedas is not competent to perform the sacrifices. The study of the Veda is open only to those persons who have undergone the Upanayana ceremony. In other words, capacity to acquire knowledge and learning—which is what the study of Veda means—is dependent upon Upanayana. If there is no Upanayana the road to knowledge is closed. Upanayana is no empty ceremony. Right to property and right to knowledge are the two most important incidents of Upanayana.

Those who cannot realise how loss of Upanayana can bring about the degradation of the Shudras should have no difficulty in understanding the matter if they will bear in mind the rules of the *Purva Mimamsa* referred to above. Once the relation of Upanayana to education and property is grasped, all difficulty in accepting the thesis that the degradation of the Shudra was entirely due to loss of Upanayana must vanish.

It will be seen, from what has been said above, how the sacrament of Upanayana was in the ancient Aryan society fundamental and how the social status and personal rights of persons depended upon it. Without Upanayana, a person was doomed to social degradation, to ignorance and to poverty. The stoppage of Upanayana was a most deadly weapon discovered by the Brahmins to avenge themselves against the Shudras. It had the effect of an atomic bomb. It did make the Shudra, to use the language of the Brahmins, a graveyard.

1 Not a few are unable to understand why the *Manu Smriti* and other *Smritis* deny women and Shudra the right to hold property and to study the Vedas. All difficulty, however, vanishes if one bears in mind that the disabilities are the natural consequences of the rule, laid down in the *Purva Mimamsa*. Women and Shudras cannot hold property, not because they are women and Shudras, but because they are debarred from performing sacrifices.

VII

That the Brahmins possessed the power to deny Upanayana is beyond question. The doubt probably arises from the fact that there is nowhere an express statement showing the conferment of such a power upon the Brahmins. All the same, whatever doubt there may be lurking in the minds of persons who are not aware of the operative parts of the religious system of the Indo-Aryans must vanish if account is taken of two things: (1) the exclusive right of the Brahmin to officiate at the Upanayana and (2) the penalties imposed upon the Brahmin for performing unauthorised Upanayana.

It is probable that in most ancient times it was the father who taught his son the *Gayatri*, with which the study of the Veda begins and for which the ceremony of Upanayana was devised at a later stage. But it is beyond question that from a very early time the function of performing Upanayana had been assigned to a guru or a teacher called the Acharya and the boy went and stayed in the Acharya's house.

The questions as to who should be the Acharya and what should be his qualification have been the subject of discussions from very ancient times.

The Acharya must be a man learned in the Vedas. A Brahmana text¹ says, "he, whom a teacher devoid of learning initiates, enters from darkness into darkness and he also (i.e. an acharya) who is himself unlearned (enters into darkness)."

The Ap. Dh. S. (1.1.1.12—13), lays down that an Acharya selected for performing one's Upanayana should be endowed with learning and should be one whose family is hereditarily learned and who is serene in mind, and that one should study Vedic lore under him up to the end (of brahmacharya) as long as the teacher does not fall off from the path of Dharma.²

But the first and foremost qualification of an Acharya is that he must be a Brahmana: It was only in times of difficulty (i.e., when a Brahmana is not available) that a person was allowed to have a

1 Quoted in the Ap. Dh. S., I. i. i. 11, Kane, II (I), p. 324.

2 According to Vyasa (quoted in Sam. p., p. 408) the Acharya should be one who is solely devoted to the Veda, who knows Dharma, is born of a good family, who is pure, is a *shrotriya* that has studied his Vedic sakha and who is not lazy. Shrotriya has been defined as one who has studied one *sakha* of a Veda.

Kshatriya or a Vaishya teacher¹. This exception was permitted only during the period when the distinction between the right to learn the Vedas and the right to teach the Vedas had not been made. But when that distinction came to be made—and it was made in very early times—in fact the conflict between Vasishtha and Vishvamitra was just on this very point—the Brahmin alone came to possess the right to be an Acharya fit to officiate at an Upanayana.

One thing therefore must be taken as well-established, namely that none but a Brahmin could perform the Upanayana ceremony. Upanayana performed by anybody else is not a valid Upanayana.

The other operative part of the Indo-Aryan religious system is the obligation imposed upon the Brahmin not to do any unauthorized act of a religious character. A Brahmin guilty of any such conduct was liable to punishment or penance. Many such penalties are to be found in the ancient Law Books. I refer to Manu and Parashara.

Manu (III.150ff.), lays down what class of Brahmins are to be deemed unworthy (to partake) of oblations to the gods and manes. In this list he includes :

III. 156.—“He who teaches for a stipulated fee and he who is taught on that condition, he who instructs Shudra pupils and he whose teacher is a Shudra, he who speaks rudely, the son of an adultress, and the son of a widow.”

Parashara says :²

“That Brahmana, who for the sake of dakshina (gift of money or fee) offers oblation into fire on behalf of a Shudra, would become a Shudra, would the Shudra (for whom he offers) would become a Brahman;” that, according to Madhava, propounds that the merit of the rite “goes to the Shudra and the Brahmana incurs sin.”

Those who may ask what powers the Brahmins had to deprive the Shudra of his right to Upanayana may consider the combined effect of these two facts : (1) the Brahmin’s exclusive right to officiate at an Upanayana, and (2) the penalties to which he is made liable for performing an unauthorized Upanayana. If they do, they will have no doubt that the combined effect of these two factors was to vest in the Brahmin the power of performing as well as of denying Upanayana. It is true that such a power has not been expressly vested in the Brahmin. That was because it was unnecessary to do by express

1 It is curious to note that in such cases the only service a Brahmana student was required to render to his Kshatriya or Vaishya guru was to follow after him; he had not to render bodily service (such as shampooing or washing the feet, etc.). *Vide* Ap. Dh. S., II, 2.4, 25-28 Gaut, 7, 1-3, Baud Dh. S.I.-2, 40-42, Manu, II. 241. It was also premised that a Kshatriya or a Vaishya should teach a Brahmana only when urged by him and not at his sweet will.

2. Quoted by *Vyavahara Mayukha* (edited by Kane, p. 115).

terms what was in fact done by indirect but more effectual means. That the Brahmins are conscious of the possession of this power to deny Upanayana is also beyond doubt. So far as the records go, there are 16 reported cases in which they have threatened various communities by putting it into operation against them. In nine cases, they challenged the Kayasthas, in four they challenged the Panchalas, in one they challenged the Palshes. What is important is that they challenged even two Maratha Kings. These instances have occurred between 556 to 1904 A.D. It is true that they do not belong to ancient times. It must however be remembered that these instances are mere evidences of the exercise by the Brahmins of their power to deny Upanayana. The power itself must have been acquired in much more ancient times. That they have acquired it earlier is not an empty assertion without support. Satyakama Jabali's instance which is very ancient is cited generally to prove that the Varna of a man was determined by his *guna* (mental and moral qualities) and not by his birth. While this is true, it is equally true that Jabali's case proves that even in ancient times the Brahmins had acquired the right to refuse to perform Upanayana.

The enumeration of these cases has very little value for the purpose in hand unless we know the deductions that could be drawn from the decisions arrived at in them. To be able to do this, we must know the details of each case. Unfortunately, in most of them beyond the decision other details are not sufficiently full for the purpose. There is only one case that of the Brahmins *versus* Shivaji in respect of which the details are full and well-known. The case is sufficiently important and it is therefore well worth detailed examination. The deductions deducible from it are not only interesting and instructive but they throw a flood of light on the point under discussion.

VIII

As is well known, Shivaji after having established a Hindu independent kingdom in the western part of Maharashtra thought of proclaiming himself a king by having his coronation performed. It was felt by Shivaji and his friends that the coronation ceremony if it was at all to be of any value must be performed according to Vedic rites. But in carrying out his wishes Shivaji found himself faced with many difficulties. He found that whether his coronation could be performed with Vedic rites depended entirely upon the Brahmins.

Nobody was from religious point of view qualified to perform the ceremony except a Brahmin. Secondly, he found that no such ceremony could be performed unless it was proved that he was a Kshatriya. There was a third difficulty, namely, that even if he was found to be a Kshatriya, he was past the age of Upanayana and without Upanayana there could be no coronation. The third difficulty was a minor one for it could be got over by the performance of the Vratya Stoma ceremony. The first difficulty was the greatest stumbling block. It related to Shivaji's status. The question was, was he a Kshatriya? If that could be got over, the rest was easy. Shivaji's claim that he was Kshatriya was opposed by many. His principal opponents were Brahmins who were led by his own Prime Minister Moro Pant Pingle. Unfortunately for Shivaji even his Maratha Sardars had refused to give him social precedence¹ and had ranged themselves against him. In their view, he was a Shudra. Shivaji's claim was also in direct conflict with the well established thesis long insisted upon by the Brahmns that there were no Kshatriyas in the Kali age. Shivaji was living in the Kali age. Obviously he could not be a Kshatriya. This objection to his claim for the status of Kshatriya was further strengthened by the non-performance of the ceremony of Upanayana or the investiture of the sacred thread at the proper time, which was fixed by the Sastras to be the eleventh year in the case of the Kshatriyas. This was taken to be evidence of his being a Shudra. He was however fortunate in securing the services of one Gagabhat, a renowned Brahmin, resident of Benares, learned both in the Vedas and Sastras. Gagabhat solved all difficulties and performed Shivaji's coronation² on 6th June 1674 at Raigad first after performing the Vratya Stoma and then the Upanayana.

1 Kinkaid has some interesting observations to make as to how the idea of coronation originated. He says :

"For although the high-spirited Deccan nobles gladly followed Shivaji in the field, they were unwilling in private life to concede to him any precedence. And at State dinners they resented that a Bhosle should sit on a seat raised above those assigned to Mohites and Nimbalkars, Savants and Ghorpades. He spoke of the matter to his Secretary, Balaji Avaji Chitnis and the latter urged him to take the royal crown from the hands, not of the Moghul Emperor, but of a Benares priest. The king consulted his mother, Jijabai, the saintly Ramdas and his favourite goddess Bhavani and found them all favourable to his Secretary's suggestions."—*History of Maharashtra*, p. 244.

From this it appears that the ideas behind Vedic coronation was to obtain social precedence and not so much to obtain legal and political sovereignty.

2 It seems that some Brahmins were prepared to perform Shivaji's coronation but with non-Vedic, i.e., with Pauranic rites as is done in the case of Shudras. They predicted all sorts of evils to happen if Shivaji had his coronation performed with Vedic rites. Unfortunately these evils did take place and Shivaji who undoubtedly was superstitious had another coronation performed according to non-Vedic rites. The following account of this second coronation taken from Mr. C. V. Vaidya makes interesting reading :

Shivaji's case is important for several reasons. It is important because it proves that nobody except a Brahmin has the right to perform the Upanayana and that nobody can compel a Brahmin to perform it if he is not prepared to do so. Shivaji was the ruler of an independent kingdom and had already started styling himself Maharaja and Chhatrapati. There were many Brahmins who were his subjects. Yet, Shivaji could not compel anyone of them to perform his coronation.

It is important because it proves that the ceremony to be valid must be performed by a Brahmin. A ceremony performed by a non-Brahmin would be infructuous. It was open to Shivaji to have his coronation performed by a non-Brahmin. But he did not dare¹ to do it. For he knew it would be without any social or spiritual efficacy.

In the third place, it is important because it proves that the power of determining the status of a Hindu depends entirely upon the will of the Brahmins. The decision in favour of Shivaji is sought to be justified by the genealogy which was brought from Mewar by Shivaji's friend, Balaji Avaji, and which connected Shivaji with the Sisodiyas of Mewar who were reckoned as Kshatriyas. It has been alleged that the genealogy was a fabrication got up for the occasion.

"Obstructive and dissatisfied Brahmins there were even then as always. They did not deem the ceremony satisfactory, though it was acclaimed by the whole of Maharashtra. A poem named *Rajyabhisheka Kalpataru*, a copy of which is in the Library of the Bengal Royal Asiatic Society and which has been published from it by Itihas S. Mandal of Poona (Quarterly, Vol. X-I), embodies some objections raised against the coronation ceremony gone through. This poem is not quite contemporary, as it mentions the later idea that Shivaji was an incarnation of Siva (not of Vishnu as represented by the earlier Shivabharata) though it is of the time of Rajaram. It gives an imaginary conversation between Nischalpuri, a learned Brahmin ascetic of Benares who was an opponent of Gagabhat, and Govindbhat Barve as taking place in Konkan. It recounts the ill omens which preceded and followed the coronation, such as the death of Prataprao Gujar, the death of Kashibai, wife of Shivaji, etc., and the wound caused to Gagabhat himself on the nose by the falling of a rafter. The poem expressly says that Gagabhat engaged for the ceremony those Brahmins only who were his followers and refused to employ those recommended by Nischalpuri. Many defects in the ceremony itself, are next mentioned. Thus when Shivaji was getting into the chariot after the ceremony of ascending the throne Gagabhat himself first sat in the chariot and then Shivaji. After seeing the whole ceremony through Nischalpuri left the fort but told Shivaji that bad events would happen on the 13th, 22nd and 55th days. On the 13th day accordingly, Shivaji's mother died. Next a horse-shed was burnt at Pratapgad with good many horses in it and an elephant died on Sinhgad. These incidents induced Shivaji to call Nischalpuri back and through him and his Brahmins Shivaji performed afresh the ceremony of ascending the throne, not with Vedic rites, but Tantrik or magical. This ceremony is also described in detail. There are mentioned some Vedic mantras from Sama Veda as recited; but the ceremony was not Vedic. It was performed on Ashvin Suddha 5 (Lalita Panchami day S, 1596), as is stated at the end of the poem. This ceremony is also mentioned by J and Nischalpuri is also spoken of in a Mahomedan record.'—*Shivaji the Founder of Maratha Swaraj*, pp. 252-253."

1 The Kayasthas had at one time resolved to perform their own ceremonies as a priest against the constant challenge by the Brahmins to their status. But they did not put their resolve into action. The reason must be the same.

Assuming it was not a fabrication,¹ how can it justify the recognition of Shivaji's claim to be a Kshatriya? Far from establishing that Shivaji was a Kshatriya, the genealogy could do no more than raise another question, namely, whether the Sisodiyas were Kshatriyas. The Sisodiyas were Rajputs. There is considerable doubt as to whether the Rajputs are the descendants of the original Kshatriyas who formed the second Varna of the ancient Indo-Aryan community. One view is that they are foreigners, remnants of the Huns who invaded India and established themselves in Rajputana and whom the Brahmins raised to the status of Kshatriyas with the object of using them as means to suppress Buddhism in Central India by a special ceremony before the sacred fire and who were therefore known as the Agnikul Kshatriyas. This view has the support of many erudite scholars who are entitled to speak on the subject. Vincent Smith says :²

In this place I want to draw attention to the fact, long suspected and now established by good evidence that the foreign immigrants into Rajputana and the upper Gangetic valley were not utterly destroyed in the course of their wars with the native princes. Many of course perished but many survived and were mixed in the general population of which no inconsiderable part is formed by their descendants. These foreigners like their fore-runners the Sakas and the Yue-chi universally yielded to the wonderful assimilative power of Hinduism and rapidly became Hinduised. Clans or families which succeeded in winning chieftainships were admitted readily into the frame of Hindu polity as Kshatriyas or Rajputs and there is no doubt that the Parihars and many other famous Rajput clans of the north were developed out of the barbarian hordes which poured into India during the fifth and sixth centuries. The rank and file of the strangers became Gujars and the castes ranking lower than Rajputs in their precedence. Further to the south, various indigenous or aboriginal tribes and clans underwent the same process of Hinduised social promotion in virtue of which Gonds, Bhars, Kharwas and so forth emerged as Chandels, Rathors, Gaharwars and other well-known Rajput clans duly equipped with pedigree reaching back to the sun and the moon.

William Crooke³ says :

Recent research has thrown much light on the origin of Rajputs. A wide gulf lies between the Vedic Kshatriyas and the Rajputs of mediaeval times which it

1 The Sisodiya family of Mewar was important for two reasons (1) They were a branch of the Sisodiyas of Udaipur who were descendants of the family of Lava the eldest son of Rama, the hero of Ramayana. (2) The Sisodiyas of Mewar were pure because they had refused to give their females in marriage to the Moghul emperors and had refused to intermarry with other Rajput families such as Jaipur and Jodhpur who had done so. Was it because of these reasons that this attempt to establish that Shivaji was the descendant of the Sisodiyas of Mewar was made?

2 Quoted by C. V. Vaidya in his *History of Mediaeval India*, Vol. II. P. 8.

3 Quoted by Vaidya, *ibid.*, p. 9.

is now impossible to bridge. It is now certain that the origin of many clans dates from the Saka or Kushan invasions of more certainly from that of the White Huns who destroyed the Gupta empire about 480 A.D. The Gujar tribe connected with the latter people adopted Hinduism and their leaders formed the main stock from which the higher Rajput families sprang. When these new claimants to princely honour accepted the faith and the institution of Brahmanism the attempt would naturally be made to connect them with the heroes of the Mahabharata and the Ramayana. Hence arose the body of legend recorded in these annals by which a fabulous origin from the sun and the moon was ascribed to these Rajput families ... The group denoted by the name Kshatriya or Rajput depended on status rather than on descent and it was therefore possible for foreigners to be introduced into these tribes without any violation of the prejudices of caste, which was then only partially developed. But it was necessary to disguise this admission of foreigners under a convenient fiction. Hence arose the legend how by a solemn act of purification or initiation under the superintendence of the ancient Vedic Rishis, the *fire-born* septs were created to help the Brahmins in repressing Buddhism and other heresies. This privilege was confined to four septs known as Agnikula or fire-born viz., the Parmar, Parihar, Chalukya and Chauhan.

Dr. D. R. Bhandarkar¹ also holds the same view. According to him, the Rajputs are the descendants of Gujars, the Gujars were foreigners and that the Rajputs are therefore the descendants of foreigners.

The Brahmins engaged for the coronation could not have been ignorant of the origin of the Rajputs, and their claim to be descended from the Kshatriyas. But assuming that they did not know this fact they knew that there was already a previous decision of the Brahmins, namely, that there were no Kshatriyas in the Kali age. This was an old, long-standing decision. And if the Brahmins had respect for precedent, they were bound to throw out the claim of Sisodiyas as well as of Shivaji. Nobody would have blamed them, if they had done so. But the Brahmins had never accepted the law of precedent as binding upon them. With them there was no such thing as *stare decisis*.

Fourthly, it is important because it shows that the decisions of the Brahmins on matters of status were open to sale like the indulgences of the Catholic clergy. That the decision of Gagabhat was not an honest decision is obvious from the amount of money which Gagabhat and other Brahmins received as officiating priests. The amount of money spent on the coronation by Shivaji and how much of it went to Gagabhat and the Brahmins will be seen from the

1 Quoted by Vaidya, Ibid., p. 10. Mr. Vaidya combats the view and tries to prove that the Rajputs are not foreigners but are the descendants of original Aryan-Kshatriyas. What Mr. Vaidya says does not appear to be very convincing.

following details collected by Mr. Vaidya. :¹

“These ministers were presented each with one lakh of hon, one elephant, one horse, garments and ornaments. Gagabhat was given one lakh of rupees for seeing the whole ceremony through. The Dakshinas granted by Shivaji on the several occasions of the coronation ceremony were very large, as was suited to the occasion. Sabhasad reports that the whole expenditure amounted to one crore and forty-two lakhs of hons or 426 lakhs of rupees.

Sabhasad relates that 50,000 Vaidika Brahmins had collected on the occasion of Shivaji's coronation.² Besides these there were Jogis, Sanyasis, etc., by thousands. These were fed or given corn below the fort. It is related in contemporary papers that Shivaji, before coronation, was weighed against gold and almost every other metal as well as auspicious thing. Dutch record describing the ceremony in detail on 3rd October PS. 1684 states that Shivaji weighed 17,000 hons or 160 lbs. and he was also weighed against silver, copper, iron, etc., and against camphor, salt, sugar, butter, various kinds of fruit, betel-nuts, etc., and the value of the whole was distributed amongst Brahmins. On the 7th June, the day after the coronation, Dakshina was given in general and every Brahmin got three to five rupees and everyone else, whether woman or child two rupees and one rupee. In all, the Dakshina amounted to one and a half lakhs of hon³ in value.

Oxenden also states in his diary from 18th May to 13th June that Shivaji was weighed against gold and the weight 16,000 hons, together with one lakh of hons in addition were distributed as Dakshinas among Brahmins.

The above noted Dutch record further states that for the Vratya ceremony 7,000 hons were given to Gagabhat and 17,000 to other Brahmins. On the 5th of June Shivaji bathed in holy Ganges water and every Brahmin present was given 100 hons.”

Can the amount paid to Gagabhat be taken as representing nothing more than a fee⁴ properly payable to a priest? There is one circumstance which may be depended upon to show that Gagabhat was not even paid enough. It is that what Gagabhat got was comparatively much less than what the Ministers of Shivaji got. Two facts must however be noted as telling on the other side before any conclusion is drawn from this fact. They completely nullify the argument. The first is that the ministers themselves had made large presents⁵ to Shivaji on his coronation. Moropant Pingle the Peshwa or Prime Minister of Shivaji, the Mujamdar had paid 7,000 hons and the other two ministers 5,000 hons each. Deducting these, the

1 *Shivaji, the Founder of Maratha Swaraj*, pp. 248 and 252.

2 Vaidya says this must be a mistake for 5,000. He gives no reason in support of his ‘must’.

3 A *Hon* was equal to 3 rupees.

4 It must not be supposed that Gagabhat got only Rs. 1 lakh. He got in addition 7,000 *hons* or 21,000 rupees for Vratya Stoma. Further he must have received some part of the gold and the value of other things against which Shivaji was weighed and which was distributed among the Brahmins.

5 Vaidya, *ibid.*, p. 247.

presents given to them by Shivaji must be said to be much smaller than they appear to be.

The second fact is that these ministers of Shivaji were the greatest opponents of Shivaji in this project of coronation. They were staunch in their view that he was a Shudra and that he was not entitled to have his coronation performed as it was a right which belonged to the Kshatriya only. It is therefore, no surprise if Shivaji gave them large presents with a view to silence them and win them over permanently to his side. The amount of money paid to the ministers by Shivaji is therefore no criterion to determine whether the amount paid to Gagabhat was no more than a fair fee for officiation. Indeed there are so many twists and turns taken by Gagabhat that one is forced to the conclusion that it was more than fair fee and that it included some part as illegal gratification to keep him straight.

In this business of coronation the man who took the most leading part in bringing it about was a Kayastha from Maharashtra by name Balaji Avaji who was the Personal Secretary to Shivaji. The first step Balaji took was to send three Brahmins¹ as messengers from Shivaji to fetch Gagabhat from Benares with full information as to the status and purpose of Shivaji. What did Gagabhat do? He sent back the three messengers with a letter refusing to accept the invitation on the ground that in his view Shivaji was a Shudra and was therefore not fit for coronation. The next step Balaji took was to collect evidence in support of Shivaji's claim to the status of a Kshatriya. He succeeded in obtaining a genealogy which showed that Shivaji was a Kshatriya descended from the Sisodiyas who were Rajputs and rulers of Mewad. This evidence he sent with another messenger,² to Gagabhat. Gagabhat seemed to have been impressed by the evidence for he agreed to come to Raigad to perform the coronation ceremony. What did Gagabhat do on his arrival? He said that he had reexamined the evidence and had come to the conclusion that Shivaji was a Shudra and was therefore unfit for coronation.

This is not the only somersault which Gagabhat took in this business. He took another and a very queer turn and declared that he was prepared to perform the coronation of Balaji Avaji for he was a

1 They were (1) Keshav Bhat, (2) Bhalachandra Bhat, and (3) Somanath Bhat.

2 The name of the messenger was Nilo Yesaji. He was a Kayastha. The three Brahmins who went on the first occasion to fetch Gagabhat were suspected to have committed a foul play by acting contrary to their instructions and betraying the interest of Shivaji to which as Brahmins they were opposed. It is possible that Balaji felt that the letter brought by them was a piece of manoeuvre. That is why Balaji this time sent a Kayastha, a man of his own caste.

Kayastha and therefore a Kshatriya but not of Shivaji who was Shudra. Gagabhat did not stop there. He again turned round and gave his opinion that Shivaji was a Kshatriya and that he was prepared to perform his coronation and even went so far as to write a treatise known as Gagabhatti in which he sought to prove that the Kayasthas were bastards.

What do these twists and turns show? Do they not show he was a most unwilling priest and that his willingness has had to be bought by cash? If this argument is sound then there is no doubt that his decision that Shivaji was Kshatriya was sold by him for illegal gratification.¹

Lastly Shivaji's case is important because it shows that the Brahmins in the matter of status did not recognize as being bound by the principle of *res judicata*. They regard themselves as free to reopen a case already decided by them. For how long did the Brahmins respect their decision that Shivaji was a Kshatriya?

Shivaji started a new era from the day of his coronation, namely, 6th June 1674 which he called the Rajyabhisheka Era. How long did it remain in vogue? Only so long as Shivaji and his descendants remained as active rulers on the throne. The moment effective sovereignty passed into the hands of the Brahmin Peshwas, they issued an order² to discontinue it. Not only did they stop the use of the Era, they began using the style of the Muslim Emperors, namely, the Fasli year. The Brahmins did not stop there. They went further and began to question the very status of Shivaji's descendants as Kshatriyas.³ They could do nothing to the two sons of Shivaji, Sambhaji and Rajaram. Shivaji had their Upanayana performed in his life-time by Brahmins with Vedic rites. They could do nothing to his grandson, Shahu because the Brahmins had no ruling power in their

1 For facts about Gagabhat's twist's and turns stated above, I have drawn on K. S. Thakare's Marathi booklet *Gramanyacha Itihas*. Thakare has in his turn drawn upon the Bakhars or Chronicles. How far they are reliable it is difficult to say. It must however be admitted that the twists and turns of Gagabhat appear to be true because without them it would be difficult to explain certain relevant and disturbing facts. For instance, take the following question : Did Gagabhat change after coming to Raigad and if so, why? The change and the reason for it is to be found in the discovery by Gagabhat that another Brahmin by name' Moropant Pingle who was no less than the Prime Minister of Shivaji was deadly opposed to Shivaji's claim to be a Kshatriya. It is likely that the two Brahmins on meeting together saw eye to eye which make Gagabhat change. Why did Moropant who was a strong opponent became later on a strong supporter of Shivaji's coronation? If it is a fact that Gagabhat did propose that Balaji should be proclaimed king it gives a complete explanation of Moropant's change of front. Balaji being Kayastha and the Kayasthas being the deadliest enemies of the Brahmins, Moropant consented to Shivaji's coronation as a lesser of the two evils.

2 Sardesai, *Marathi Riyasat*, II. p. 363, and Vaidya, *Shivaji*, p. 251

3 What follows is taken from *Siddhanta Vijaya*, edited by Rao Bahadur Dongre.

hands. The moment Shahu transferred his sovereign powers to his Brahmin Peshwa their road to repudiation became clear. There is no evidence whether Ramjee Raje the successor and adopted son of Shahu, who was minor and whose guardians were the Peshwas, had his Upanayana performed and if so, whether it was performed with Vedic rites. But there is definite evidence that the Upanayana ceremony of his successors, Shahu II, who was adopted in 1777 had been performed with *Pauranic* rites and by the direction of the Peshwas.¹ The performance of Upanayana of Shahu II with *Pauranic* rites was tantamount to his being regarded by the Peshwas as a Shudra. For it is only in the case of a Shudra that the ceremonies are performed with *Pauranic* rites. What happened to Maharaja Pratapsingh who succeeded Shahu II in 1808 whether or not his Upanayana was performed and if performed whether it was performed with Vedic rites or *Pauranic* rites it is not possible to be definite. One thing, however, is definitely known that in about 1827 the Shankarcharya of Karvir in his judgement about the status of the Kayasthas of Sangli stated² “*that there were no Kshatriyas in the Kali age and that documents showing that neither Shivaji, nor Sambhaji nor Shahu were Kshatriyas exist in his Daftar*”. It is alleged that this statement is not to be found in the original judgement but was interpolated by the Brahmin Raja of Sangli. Be that as it may, it was a direct challenge to the status of Pratapsinha as a descent of Shivaji. Pratapsinha had to put the issue to a conference of Brahmins which was held in Satara in 1830. The majority gave a decision in favour and saved Pratapsinha from being degraded to the status of a Shudra.

Foiled in their attempt to level down one line of Shivaji to the status of a Shudra, the Brahmins began their attack on the status of the second line of Shivaji which had established itself at Kolhapur. In the reign of one of the rulers of Kolhapur by name Babasaheb Maharaj, the Palace Priest by name Raghunath Sastri Parvate took into his head to perform all ceremonies in the Palace with *Pauranic* rites. It is said that he was stopped from continuing the practice. Babasaheb died in 1886. From 1886 to 1894, all rulers were minors and the administration was in the hands of the British. There is no direct evidence as to the exact manner and mode of ceremonial performances adopted by the Palace priest. In 1902, the late Shahu Maharaj issued order to the Palace priest to perform all ceremonies

1 Dongre Siddhanta Vijaya, Introduction, p. 6.

2 Dongre, *Ibid.*, Introduction, p. 9.

in the Vedic manner. The priest refused and insisted on performing it in the *Pauranic* manner suggesting thereby that the rulers of Kolhapur were Shudras and not Kshatriyas. The part played by Sankaracharya of Karvir Math in this affair is very noteworthy. At the time of the controversy the head of the Math called Guru, had adopted a disciple (Sishya) by name Brahmanalkar and had given him all the rights of the head of the Math. At first both the Guru and the Sishya were on the side of the Palace Priest and against the Maharaja. Later on, the disciple took the side of the Maharaja and accepted his status as a Kshatriya. The Guru who remained on the side of the Priest excommunicated the Sishya. The Maharaja later on tried to create his own Sankaracharya¹ but he too proved false to the Maharaja.

Shivaji was recognised as a Kshatriya. Obviously, that status was not a personal honour conferred on him. It was a status in tail and belonged to his family as well as to his descendants. Nobody could question it. It could be lost by a particular descendant by doing some act which was inconsistent with it. It could not be lost generally. No act inconsistent with the Kshatriya status was attributed to any of the descendants of Shivaji. Yet the Brahmins came forward to repudiate the decision on their status.

This could happen only because the Brahmins claimed the power to do and undo the status of any Hindu at any time. They can raise a Shudra to the status of a Kshatriya. They can degrade the Kshatriya to the status of a Shudra. Shivaji's case proves that their sovereignty in this matter is without limit and without challenge.

These instances² are no doubt drawn from the Bombay Presidency only. But the principles from them are clear and general in their application. They are :

- (1) That the Brahmins have the exclusive right to perform the Upanayana. Neither Shivaji, nor Pratap Sinha nor the Kayasthas, Panchals or Palashes wanted the Upanayana to be performed by a non-Brahmin. It is only once that the Kayasthas resolved to have their ceremonies performed by Kayasthas. But it was only a paper resolution.
- (2) The Brahmin has the right to say whose Upanayana he will perform and whose he will not perform. In other words, the

1 He is known as Dr. Kurtakoti.

2 For details of each see a Marathi publication, *Gramanyacha Itihas*, by K. S. Thakare, published in 1919.

Brahmin is the sole judge of deciding whether a given community is entitled to Upanayana.

- (3) The support of the Brahmins for the performance of Upanayana need not be based on honest grounds. It could be purchased by money. Shivaji got the support of the Brahmin Gagabhat on payment of money.
- (4) The denial of Upanayana by the Brahmins need not be on legal or religious ground. It is possible for the denial to be based on purely political grounds. The refusal by the Brahmins of Upanayana to Kayasthas was entirely due to political rivalry between the two.
- (5) The right of appeal against the denial of an Upanayana by a Brahmin is only to a Vidvat-Parishad and the Vidvat-Parishad is an assembly for which a Brahmin alone is eligible to be a member.

From the foregoing discussion, it must be clear to all that the Brahmins did possess the power to deny Upanayana. Given the powers and the motive, there is nothing strange if they used it against the Shudras.

●●

CHAPTER XI

THE STORY OF RECONCILIATION

SO far I have attempted to establish the following propositions

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- (1) That it is the Brahmins who brought about the fall of the Shudras from the second to the fourth Varna in the Indo-Aryan Society;
- (2) That the technique adopted by the Brahmins to degrade the Shudras was to deny them the benefit of the Upanayana;
- (3) That this act of degradation was born out of the spirit of revenge on the part of the Brahmins who were groaning under the tyrannies and oppressions and indignities to which they were subjected by the Shudra kings.

While all this is crystal clear, there may be some who may yet have some such questions to ask, namely :

- (i) Why should a quarrel with a few kings make the Brahmins the enemies of the whole Shudra community?
- (ii) Was the provocation so great as to create a feeling of hatred and desire to seek vengeance?
- (iii) Were not the parties reconciled? If they were, then there was no occasion for the Brahmins to degrade the Shudras.
- (iv) How did the Shudras suffer this degradation?

These questions I admit have in them enough force and substance to call for serious consideration. It is only proper that they should be answered.

I

The question why the Brahmins, because of their quarrels with a few kings, should proceed to degrade the whole community of Shudras is not only relevant but is also very pertinent. There would, however, be no difficulty to answer this question if two things are borne in mind.

In the first place, the conflicts described in Chapter 9 between the Brahmins and the Shudra kings were not individual conflicts though they appear to be so. On the side of the Brahmins there is no doubt that the whole class was involved. Barring the episode relating to Vasishtha, all other episodes relate to Brahmins in general. On the side of the kings, it is true that the episodes mention individual kings as being involved in this conflict with the Brahmins. But it must not be forgotten that they all belonged to the same line to which Sudas belonged.

In so far as Sudas is concerned, the conflict was between the Brahmins and the Shudra clan of Kshatriyas. Of this, there can be no doubt. We have no direct evidence to say that the other offending kings also belonged to the Shudra clan of Kshatriyas. But we have other evidence which leads to the conclusion that they belonged to the same line of descent as Sudas.

Attention is invited to the following genealogical tree appearing overleaf which is taken from the Adi Parvan of the Mahabharata.¹

The inter-relationship of the Kshatriya kings who came in conflict with the Brahmins throws some interesting light on the subject, *Pururavas*² is the son of Ila and the grandson of Manu Vaivasvata. *Nahusha*³ is the grandson of Pururavas. *Nimi*⁴ is one of the sons of Ikshvaku, who is the son of Manu Vivasvat. *Trishanku*⁵ is 28th in descent from Ikshvaku. *Sudas*⁶ is descended from Ikshvaku and is 50th in descent from him. *Vena*⁷ is the son of Manu Vaivasvata. All of them claimed descent from Manu, some from him and some from Ikshvaku. Being descendants of Manu and Ikshvaku, it is possible to argue that they were all kindred of Sudas. Given the fact that Sudas is a Shudra, it follows logically that all these kings belonged to the Shudra group.

We have no direct evidence, but there would be nothing unnatural in supposing that in these conflicts with the Brahmins, the whole Shudra community, not merely a few Shudra kings, was involved. This conflict, it must be remembered, has taken place in the ancient past when life was tribal in thought and in action, and when the rule

1 Muir, Vol. I, p. 126

2 Muir, Vol. I, p. 126.

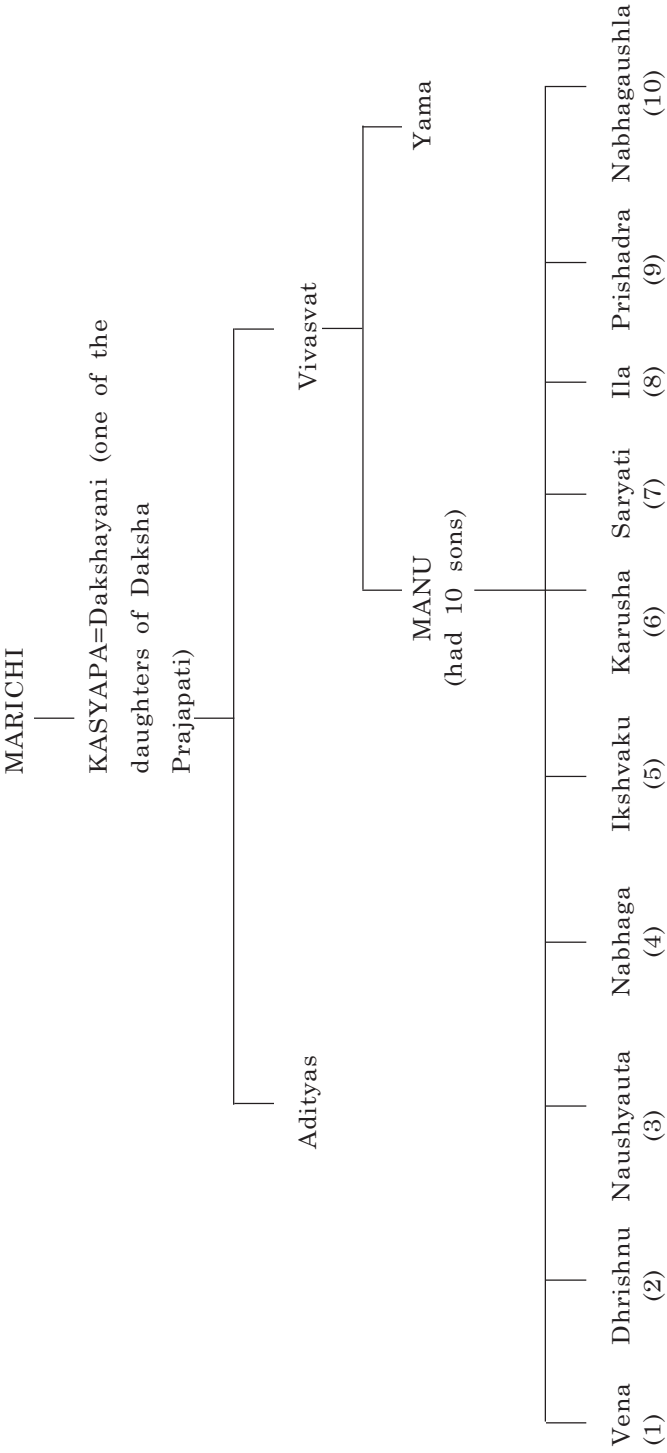
3 Muir Vol. I, p. 307.

4 Muir Vol. I, p. 316.

5 Muir Vol. I, p. 362.

6 Muir Vol. I, p. 362.

7 Divodasa, the father of Sudas, is spoken of in the *Rig Veda* as king of Purus and Purus are described as Ikshvakus.



was that what was done by one individual belonging to the tribe was deemed to be done by the whole tribe. In all ancient societies the unit was the tribe or the community and not the individual, with the result that the guilt of the individual was the guilt of the community and the guilt of the community was the guilt of every individual belonging to it. If this fact is borne in mind, then it would be quite natural to say that the Brahmins did not confine their hatred to the offending kings, but extended it to the whole of the Shudra community and applied the ban against Upanayana to all the Shudras.

II

As to whether there was enough provocation, the matter is hardly open to question. Tempers must have risen high on both sides. There was enough combustible material on both sides for an explosion to take place.

On the side of the Brahmins, it is evident that their pretensions to social superiority and their claim for special privileges had become outrageous in character and unbearable in extent.

The following is a catalogue¹ of the pretensions put fourth by the Brahmins :

- (i) The Brahmin must be acknowledged to be the guru to all Varnas by the mere fact of his birth;
- (ii) The Brahmana has the sole right of deciding upon the duties of all other classes, what conduct was proper to them and what should be their means of livelihood; and the other classes were to abide by his directions and the king was to rule in accordance with such directions;
- (iii) The Brahmana is not subject to the authority of the king. The king was the ruler of all except the Brahmana;
- (iv) The Brahmana is exempt from (1) whipping; (2) fetters being put on him; (3) the imposition of fines; (4) exile; (5) censure and (6) abandonment.
- (v) A Shrotriya (a Brahmana learned in Vedas) is free from taxes.
- (vi) A Brahmana is entitled to claim the whole of the treasure trove if he found it. If the king found it he must give half to the Brahmana.
- (vii) The property of a Brahmana dying without an heir shall not go to the king, but shall be distributed among Shrotriyas or Brahmanas.
- (viii) The king meeting a Shrotriya or a Brahmana on the road must give way to the Brahmana.
- (ix) The Brahmana must be saluted first.
- (x) The person of a Brahmana is sacred. No death sentence could be passed against a Brahmana even if he is guilty of murder.

¹ This summary is based on the catalogue given in Kane's *Dharma Shastra*, Vol. II (I), pp. 138-153.

- (xi) Threatening a Brahmana with assault, or striking him or drawing blood from his body is an offence.
- (xii) For certain offences the Brahmana must receive a lesser punishment than members of other classes.
- (xiii) The king should not summon a Brahmana as a witness where the litigant is not a Brahmana.
- (xiv) Even when a woman has had ten former husbands who are not Brahmanas, if a Brahmana marries such a woman, it is he alone who is her husband and not a Rajanya or a Vaishya¹ to whom she may have been married.

After discussing these pretensions and privileges claimed by the Brahmanas, Mr. Kane says :²

“Further privileges assigned to Brahmanas are : free access to the houses of other people for the purpose of begging alms; the right to collect fuel, flowers, water and the like without its being regarded as a theft, and to converse with other men’s wives without being restrained (in such conversation) by others; and the right to cross rivers without paying any fare for the ferry-boat and to be conveyed (to the other bank) before other people. When engaged in trading and using a ferry boat, they shall have to pay no toll. A Brahmana who is engaged in travelling, who is tired and has nothing to eat, commits no wrong by taking two canes of sugar or two esculent roots.”

These privileges have no doubt grown in course of time and it is difficult to say which of them had become vested rights when these conflicts were raging. But there is no doubt that some of the most annoying ones such as (i), (ii), (iii), (viii) and (xiv) had then come into existence. These were enough to infuriate any decent and self-respecting body of men.

On the side of the Kshatriya kings they could not be supposed to be willing to take things lying low. How could they? It must not be forgotten that most of the Kshatriya kings who came into conflict with the Brahmins, belonged to the solar line.³ They differed from the Kshatriyas of the lunar line in learning, in pride and in martial spirit. The Kshatriyas who belonged to the solar line were a virile people, while those who belonged to the lunar line were an imbecile lot without any self-respect. The former challenged the Brahmins. The latter succumbed to them and became their slaves. This was as it should be. For while the Kshatriyas of the lunar line were devoid of any learning, those belonging to the solar line were not merely the equals of Brahmins in the matter of learning, they were their

1 No. (xiv) is not mentioned by Kane, but is mentioned in the Atharva Veda V. 17. 8-9; see Muir, Vol. I, p. 280.

2. Ibid., pp. 153-4.

3. Only Pururavas and Nahusha belong to the Lunar line of Kshatriyas as may be seen from

superiors. Several of them were the authors of the Vedic hymns and were known as Rajarishis. This was particularly true of those who came into conflict with the Brahmins.

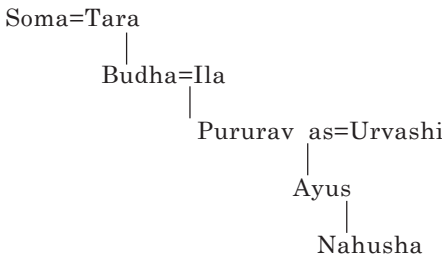
According to the Anukramanika to the Rig Veda as well as according to tradition the following hymns are said to have been composed by the undermentioned kings :¹

“vi.15: Vitahavya (or Bharadvaja); x.9: Sindhuvipa, son of Ambarisha (or Trisiras, son of Tvashti); x.75: Sindhukshit, son of Priyamedha; x. 133, Sudas son of Pijavana; x. 134, Mandhatri, son of Yuvanasva; x. 179, Sibi, son of Usinara, Pratardana, son of Divodasa and king of Kasi, and Vasumanas, son of Rohidasva; and x. 148 is declared to have had *Prithi Vainya*.”

The Matsya Purana also gives the lists² of those who composed the hymns of the Rig Veda in a passage which says :

“Bhrigu, Kashya, Prachetas, Dadhicha, Atmavat, Aurva, Jamadagni, Kripa, Sharadvata, Arishtishena, Yudhajit, Vitahavya, Suvarchas, *Vaina*, *Prithu*, *Divodasa*, Brahmasva, Gritsa, Saunaka—these are the nineteen Bhrigus, composers of hymns. Angiras, Vedhasa, Bharadvaja, Bhalandana, Ritabadha, Garga, Siti, Sankriti, Gurudhira, Mandhatri, Ambarisha, Yuvanasva, Purukutsa, Pradyumna, Shravanasya, Ajamidha, Haryashva, Takshapa, Kavi, Prishadashva, Virupa, Kanva, Mudgala, Utathya, Sharadvat, Vajasravas, Apasya, Suvitta, Vamadeva, Ajita, Brihaduktha, Dirghatamas, Kakshivat, are recorded as thirty-three eminent Angirases. These were all composers of hymns. Now learn the Kasyapas... *Vishvamitra*, son of Gadhi, Devaraja, Bala the wise Madhuchhandas, Rishabha, Aghamarshana, Ashtaka, Lohita, Bhritakila, Vedasravas, Devarata, Puranashva, Dhananjaya, the glorious Mithila, Salankayana,—these are to be known as the thirteen devout and eminent Kusikas. Manu Vaivasvata, Ida, king Pururavas, these are to be known as the eminent utterers of hymns among the Kshatriyas. Bhalanda, Vandya, and Sanskriti these are always to be known as the three eminent persons among the Vaishyas who were composers of hymns. Thus ninety-one persons have been declared by whom hymns have been given birth to, Brahmanas, Kshatriyas and Vaishyas.

the following genealogical tree :—



If it is borne in mind that Ha the mother of Pururavas was the daughter of Manu Vaivasvata it will be seen that they too were the kith and kin of the solar Kshatriyas who came into conflict with the Brahmins.

1. Muir, Vol. I, p. 268

2. Muir Vol. I, p. 279.

In the list of the authors of the Vedic hymns there are not only names of many Kshatriyas, there are names of many of the Kshatriyas who had come into conflict with the Brahmins. The Kshatriyas were the leaders among the Vedic hymn makers. The most famous Vedic hymn namely the Gayatri mantra is the production of Vishvamisra who was a Kshatriya. It was impossible for the Kshatriyas of this calibre not to take up this challenge of the Brahmins.

Their pride which was born out of their prowess and their learning must have been so greatly wounded by the pretensions of the Brahmins that when they did take up the challenge of the Brahmins they did it in a ruthless spirit. They hit the Brahmins hip and thigh. Vena forced them to worship him and no other god; Pururavas looted their wealth. Nahusha yoked them to his chariot and made them drag it through the city. Nimi flouted the exclusive and hereditary right of a family priest to perform all the ceremonies in the family and Sudas went to the length of burning alive the son of Vasishtha who was once his family priest. Surely, there cannot be greater cause to provoke the Brahmins to seek their vengeance upon the Shudras.

III

On the point of possible reconciliation between the Brahmins and the Shudras, there is no doubt some evidence on which some people might rely. Before stating my views upon the worth of this evidence, it is desirable to draw attention to it. The evidence consists of stories of reconciliation which are scattered throughout the Mahabharata and the Puranas.

The first story of reconciliation concerns the two tribes, the Bharatas to whom Vishvamisra belonged and the Tritsus to whom Vasishtha belonged. That the Bharatas were enemies of Vasishtha or Tritsus is clear from the Rig Veda itself which says :¹

III. 53.24.—“These sons of Bharata, O Indra, desire to avoid (the Vasishthas), not to approach them.”

The story of their reconciliation is told in the Adi Parvan of the Mahabharata² and runs as follows :

“And the hosts of their enemies also smote the Bharatas. Shaking the earth with an army of four kinds of forces, the Panchalya chief assailed him having

1. Muir, Vol. I, p. 354.

2. Muir Vol. I, p. 361.

rapidly conquered the earth and vanquished him with ten complete hosts. Then the king Samvarana with his wives, ministers, sons and friends fled from that great cause of alarm and dwelt in the thickets of the great river Sindhu (Indus) in the country bordering on the stream, and near a mountain. There the Bharatas abode for a long time, taking refuge in a fortress. As they were dwelling there, for a thousand years, the venerable rishi Vasishtha came to them. Going out to meet him on his arrival, and making obeisance, the Bharatas all presented him with the *arghya*, offering, showing every honour to the glorious rishi. When he was seated, the king himself solicited him: 'Be thou our priest; let us strive to regain my kingdom,' Vasishtha consented to attach himself to the Bharatas, and as we have heard, invested the descendant of Puru with the sovereignty of the entire Kshatriya race, to be a horn (to have a mastery) over the whole earth. He occupied the splendid city formerly inhabited by Bharata, and made all kings again tributary to himself,"

The second story relates to the conflict between the Bhrigus and the Kshatriya king Kritavirya and their subsequent reconciliation. It occurs in the Adi Parvan of the Mahabharata i¹

"There was a king named Kritavirya, by whose liberality the Bhrigus, learned in the Vedas, who officiated as his priests, had been greatly enriched with cows and money. After he had gone to heaven, his descendants were in want of money, and came to beg for a supply from the Bhrigus, of whose wealth they were aware. Some of the latter hid their money underground, others bestowed it on Brahmins, being afraid of the Kshatriyas, while others again gave these last what they wanted. It happened, however, that a Kshatriya while digging the ground, discovered some money buried in the house of a Bhrigu. The Kshatriyas then assembled and saw this treasure, and, being incensed, slew in consequence all the Bhrigus, whom they regarded with contempt, down to the children in the womb. The widows, however, fled to the Himalaya mountains. One of them concealed her unborn child in her thigh. The Kshatriyas, hearing of its existence from a Brahmani informant sought to kill it, but it issued forth from his mother's thigh with lustre, and blinded the persecutors. After wandering about bewildered among the mountains for a time, they humbly supplicated the mother of the child for the restoration of their sight; but she referred them to her wonderful infant Aurva, into whom the whole Veda, with its six Vcdangas, had entered, as the person who (in retaliation of the slaughter of his relatives) had robbed them of their eye-sight, and who alone could restore it. They accordingly had recourse to him, and their eye-sight was restored. Aurva, however, mediated the destruction of all living creatures, in revenge for the slaughter of the Bhrigus, and entered on a course of austerities which alarmed both gods, asuras and men; but his progenitors (Pitris), themselves appeared, and sought to turn him from his purpose by saying that they had no desire to be revenged on the Kshatriyas. It was not from weakness that the devout Bhrigus overlooked the massacre perpetrated by the murderous Kshatriyas. 'When we became distressed by old age, we ourselves desired to be slaughtered by them. The money which was

1. Muir, Vol. I, pp. 448-449

buried by some one in a Bhṛigu's house was placed there for the purpose of exciting hatred, by those who wished to provoke the Kshatriyas. For what had we who were desiring heaven, to do with money?" They added that they hit upon this device because they did not wish to be guilty of suicide, and concluded by calling upon Aurva to restrain his wrath, and abstain from the sin he was meditating: 'Destroy not the Kshatriyas, o son, nor the seven worlds. Suppress thy kindled anger which nullifies the power of austere fervour.' Aurva, however, replies that he cannot allow his threat to remain unexecuted. His anger, unless wreaked upon some other object, will, he says, consume himself, and he argues, on grounds of justice, expediency and duty, against the clemency which his progenitors recommended. He is, however, persuaded by the Pltris to throw the fire of his anger into the sea, where they say it will find exercise in assailing the watery element, and in this way his threat will be fulfilled, It accordingly became the great Hayasiras, known to those who are acquainted with the Veda, which vomits forth that fire and drinks up the waters."

The third story concerns the conflict between Arjuna, son of Kritavirya, the king of the Haihayas and Parashurama and the subsequent reconciliation between them. It occurs in the Vanaparvan of the Mahabharata and runs as follows :¹

"Arjuna, son of Kritavirya and king of the Haihayas, had, we are told, a thousand arms. He obtained from Dattatreya an aerial car of gold, the march of which was irresistible. He thus trod down gods, Yakshas, rishis, and oppressed all creatures. The gods and rishis applied to Vishnu and he along with Indra, who had been insulted by Arjuna, devised the means of destroying the latter. At this time, the story goes on, there lived a king of Kanyakubja, called Gadhi, who had a daughter named Satyavati. The marriage of this princess to the rishi Richika and the birth of Jamadagni, are then told in nearly the same way as above narrated. Jamadagni and Satyavati had five sons, the youngest of whom was the redoubtable Parashurama. By his father's command he kills his mother (who, by the indulgence of impure desire, had fallen from her previous sanctity), after the four elder sons had refused this matricidal office, and had in consequence been deprived of reason by their father's curse. At Parashurama's desire, however, his mother is restored by his father to life, and his brothers to reason; and he himself is absolved from all the guilt of murder; and obtains the boon of invincibility and long life from his father. His history now begins to be connected with that of king Arjuna (or Kritavirya). The latter had come to Jamadagni's hermitage, and had been respectfully received by his wife; but he had requitted this honour by carrying away by force the calf of the sage's sacrificial cow, and breaking down his lofty trees. On being informed of this violence, Parashurama was filled with indignation, attacked Arjuna, cut off his thousand arms, and slew him. Arjuna's son, in return slew the peaceful sage Jamadagni, in the absence of Parashurama. Parashurama incensed at the slaughter of his father, having vowed in consequence to sweep away all • Kshatriyas from the earth, seized his weapons and slaying all the sons and grandsons of Arjuna, with thousands of the Haihayas, he turned the earth into

a mass of ensanguined mud. Having thus cleared the earth of Kshatriyas he became penetrated by deep compassion and retired to the forest. After some thousands of years had elapsed, the hero, naturally irascible, was taunted by Paravasu, the son of Raibhaya and grandson of Vishvamitra, in a public assembly in these words : 'Are not these virtuous men, Pratardana and the others, who are assembled at the sacrifice in the city of Yayati—are they not Kshatriyas? Thou hast failed to execute thy threat, and vainly boastest in the assembly. Thou hast withdrawn to the mountain from the fear of those valiant Kshatriyas, while the earth has again become overrun by hundreds of their race,' Hearing these words, Rama seized the weapons. The hundreds of Kshatriyas who had before been spared had now grown powerful kings. Those, however, Parashurama, now slew with their children, and all the numerous infants then unborn as they came into the world. Some, however, were preserved by their mothers. Having twenty-one times cleared the earth of the Kshatriyas, Rama gave her as a sacrificial fee to Kasyapa at the conclusion of an Ashvamedha."

After telling the story of the conflict the author of the Mahabharata proceeds to narrate the story of reconciliation in the following terms :¹

"Having one and twenty times swept away all the Kshatriyas from the earth, the son of Jamadagni engaged in austerities on Mahendra, the most excellent of mountains. After he had cleared the world of Kshatriyas, their widows came to the Brahmins, praying for offspring. The religious Brahmins, free from any impulse of lust, cohabited at the proper seasons with these women, who in consequence became pregnant, and brought forth valiant Kshatriya boys and girls, to continue the Kshatriya stock. Thus was the Kshatriya race virtuously begotten by Brahmins on Kshatriya women and became multiplied and long-lived. Thence there arose four castes inferior to the Brahmins."

The above instances of conflicts and conciliations between Brahmins and Kshatriyas do not relate to those Kshatriya kings who have figured in history as having declared war on the Brahmins. To turn to instances of their² stories of reconciliation with the Brahmins the first is that of Kalmashapada. He is said to be the son of Sudas.³ The story is given in the Adiparvan of the Mahabharata.⁴ That part of the story which narrates the enmity between Kalmashapada and Vasishtha has already been recounted.⁵ The part of the story which deals with reconciliation runs as follows :

"After roaming about over many mountains and countries, he (Vasishtha) was followed home by his daughter-in-law Adrisyanti, Shaktri's⁶ widow, from whose

1. Muir, Vol. I, pp. 451-452

2. I am not sure that the kings mentioned in the episodes which follow are the same as those mentioned in Chapter IX. I refer to them because they belong to the Ikshvaku family.

3. I am not sure which Sudas he is. From the details he seems to be Paijavana Sudas.

4. Muir, Vol. I, pp. 415-418.

5. See Chapter 9.

6. This is probably a mistake for Shakti.

womb he heard a sound or the recitation of the Vedas, as she was pregnant with a child, which, when born, received the name of Parasara. Learning from her that there was thus a hope of his line being continued, he abstained from further attempts on his own life. King Kalmashapada, however, whom they encountered in the forest, was about to devour them both when Vasishtha stopped him by a blast from his mouth, and sprinkling him with water consecrated by a holy text, he delivered him from the curse by which he had been affected for twelve years. The king then addressed Vasishtha thus: 'Most excellent sage, I am Saudasa, whose priest thou art, what can I do that would be pleasing to thee?' Vasishtha answered : 'This which has happened has been owing to the force of destiny; go, and rule thy kingdom; but, o monarch, never condemn the Brahmins.' The king replied, 'Never shall I despise the most excellent Brahmins; but submitting to thy commands I shall pay thee all honour. And I must obtain from thee the means of discharging my debt to the Ikshvakus. Thou must give me the offspring which I desire.' Vasishtha promised to comply with his request. They then returned to Ayodhya. And Vasishtha having been solicited by the king to beget an heir to the throne, the queen¹ became pregnant by him, and brought forth a son at the end of twelve years."

The second instance occurs in the Anushasanaparvan of the Mahabharata :²

"At the time the eloquent king Saudasa sprung from the race of Ikshvaku proceeded, after salutation, to make an enquiry of his family priest Vasishtha, the eternal saint, the most excellent of rishis, who was able to traverse all the world, and was a treasure of sacred knowledge: 'What, o, venerable and sinless man, is declared to be the purest thing in the three worlds, by constantly celebrating which one may acquire the highest merit?' Vasishtha in reply expatiates at great length on the merit resulting from bestowing cows, and ascribes to these animals some wonderful properties so that they are the 'support of all beings,' the present and the future, and describes the cow as 'pervading the universe, mother of the past and the future'. The great self-subduing king, considering that these words of the rishi were most excellent, lavished on the Brahmins very great wealth in the shape of cows and obtained the worlds. So here we find the son of Saudasa extolled as a saint."

The third instance relates to the reconciliation in which there is reference to Sudasa's descendants. It occurs in the Shanti Parvan of the Mahabharata :³

"Having received the dominion over the earth, Kasyapa made it an abode of Brahmins, and himself withdrew to the forest. Shudras and Vaishyas then began to act lawlessly towards the wives of the Brahmins, and in consequence of there being no government, the weak were oppressed by the strong, and no one was master of any property. The earth being distressed by the wicked, in

1. Her name was Madayanti, She is referred to in the Anushashana Parvan at the wife of Mitrasaha, which is another name for Kamashapada—See Muir, Vol. I, pp, 418, 423 and 514,

2. Muir, Vol. I, p. 374.

3. *Ibid.*, Vol. I, pp. 455-456.

consequence of that disorder, and unprotected according to rule by the Kshatriyas, the guardians of justice, descended to the lower regions. Perceiving her moving from place to place in terror, Kasyapa upheld her with his thigh (*uru*). From this circumstance she derives her name of *urvi*. The goddess Earth then propitiated Kasyapa and supplicated him for protection, and for a king. 'I have,' she said, 'preserved among females many Kshatriyas who have been bom in the race of Haihayas; let them be my protectors. There is the heir of Pauravas, the son of Viduratha, who has been brought up by bears on the mountain Rikshavat; let him protect me. So, too, the heir of Saudasa, has been preserved by the tender-hearted and glorious priest, Parasara who had performed, though a Brahmin, all menial offices for him like a Shudra whence the prince's name Sarvakarman. 'After enumerating other kings who had been rescued, the Earth proceeds: 'All these Kshatriya descendants have been preserved in different places, abiding continually among the classes of dyokaras and goldsmiths. If they protect me, I shall continue unshaken. Their fathers and grandfathers were slain on my account by Rama, energetic in action. It is incumbent on me to avenge their cause. For I do not desire to be always protected by an extraordinary person (such as Kasyapa); but I will be content with an ordinary ruler. Let this be speedily fulfilled.' Kasyapa then sent for these Kshatriyas who had been pointed out by the Earth, and installed them in the kingly office."

Such is the evidence. Can anybody accept it as reliable? In my opinion, far from accepting it, one should beware of such evidence.

In the first place, all these stories of reconciliation end, for the Kshatriyas, in peace without honour. In every case, the Kshatriyas are shown to have undergone an abject surrender. The Bharatas are the enemies of Vasishtha. Suddenly there is a famine in their country. They leave the country and lose their kingdom. They implore Vasishtha their age-old enemy and pray that he become their priest and save them from the calamity. In the story of the Bhrigus and the Kshatriyas, the credit is given to the Brahmins as being too proud to fight. In the story of the Haihaya Kshatriyas and the Saudasa such as Kalmashpada, the surrender of the Kshatriyas was so to say purchased by them by offering their women to the victorious Brahmins. The stories are all doctored with a view to glorify the Brahmins and humiliate the Kshatriyas. Who can take such dirty, filthy, abominable and vainglorious stories of reconciliation as true historical facts? Only a supporter of Brahminism can do so.

Such is the general character of the evidence on the question of reconciliation. Coming to the particular case of reconciliation between the Brahmins and the Shudras, the descendants of Sudas, there is ample, evidence to show that no such reconciliation had taken place. In the first place, it cannot be gainsaid that Parasara, the son

of Shakti or Shaktri, the son of Vasishtha, when he heard of the way in which his father had met his death—namely, that he was burnt alive by Sudas, the Shudra king,—determined to execute a general slaughter of all creatures. The general slaughter is, of course, a figurative term. What is meant is that Vasishtha took a vow of general vengeance against the descendants of Sudas, namely, the Shudras. It is no doubt said in the Mahabharata that Vasishtha restrained Parasara and persuaded him not to carry out his threat of vengeance by telling him how the Bhrigus and the Kshatriyas had come into conflict and how the former won against the latter by adopting non-violence. But this story cannot be true; for, like other stories it is doctored with a view to bring glory to the Brahmins.

In the second place, the strongest proof in support of the contention that there was no reconciliation between the Brahmins and the Shudras comes from the legislation enacted by the Brahmins against the Shudras. The laws against the Shudras have already been referred to. Their growth and their extraordinary character have been pointed out. All that remains to do is to say that against this background of black laws any suggestion regarding reconciliation must appear to be wholly untenable. The Brahmins not only did not forgive the Shudras, they pursued even the progeny of the Shudras with the same spirit of relentless revenge. As many people do not seem to have any idea of this, it may be desirable to state a few facts regarding the Chandala and the Nishada.

The Chandala and Nishada are the issues of mixed marriages. Nishada is an anuloma while the Chandala is a Pratiloma. The anulomas¹ are held to be eligible for Upanayana. But curiously enough an exception is made to this rule. Nishada who is the son of Brahman from a Shudra woman, though an anuloma, is held not to be eligible for Upanayana. It is interesting to know why this exception was made. The only answer seems to be that this arbitrary act is an act of revenge against the children of one's enemy.

1 There are six anulomas as shown in the following table :

<i>Father</i>	<i>Mother</i>	<i>Name of the progeny</i>
Brahmin	Kshatriya	Murdhavasikta
Brahmin	Vaishya	Ambashtha
Brahmin	Shudra	Nishada
Kshatriya	Vaishya	Mahishya
Kshatriya	Shudra	Urga
Vaishya	Shudra	Karana

Turning to the Pratilomas,¹ Manu no doubt calls, all of them as the basest of men. At the same time, the stigma on the Pratilomas is not evenly distributed among all of them. In the matter of rights and privileges, the Ayogava and the Kshattar are treated with incredible consideration, while the Chandala is subjected to unspeakable condemnation. As an illustration of this discrimination one can cite the following provisions in the Manu Smriti :

As to the Ayogava, the *Manu Smriti* merely says :

Carpenting (shall be the occupation) of an Ayogava.—X.46. As to the Kshattar the *Manu Smriti* says :

..... catching and killing animals that live in holes (is the occupation) of Kshattar.—x.49.

They are only assigned low occupations.

Compare with this what the Manu Smriti has to say about the Chandala :

“A Chandala and a boar, a cock and also a dog, and a woman in her courses and an eunuch, may not see the Brahmins eating.”—

iii. 239.

One may not abide with outcasts, nor Chandalas, nor Pukkakas, nor idiots, nor proud (people), nor with the low-born (people) nor with Antyavasayins.—iv.79.

One becomes pure by bathing if one has touched a Chandala, or a woman in her courses, an outcaste, also a woman lying-in, a corpse or one who has touched it.—v.85.

Manu declared the flesh of (a beast) killed by dogs (to be pure); also the flesh of an animal killed by other carnivorous (animals) (or) by Chandala (and) other Dasyus.— v. 131.

Two-fold should be the fine of a criminal sentenced within a year, and just as much if one cohabit with a Vratya woman or a Chandala woman.— viii.373.

The man, however, who foolishly allows this to be done by any other (wife) than the one of his own caste when the latter is at hand, has been, of old, looked upon as (no whit better than) a

1 Gaut. Dh, S., IV. 21, quoted by Kane, II, Part I, p. 229.

<i>Father</i>	<i>Mother</i>	<i>Name of the caste</i>
Shudra	Brahmin	Chandala
Shudra	Kshatriya	Kshattar
Shudra	Vaishya	Ayogava
Vaishya	Brahmin	Suta
Vaishya	Kshatriya	Vaidehaka
Kshatriya	Brahmin	Magadha

Chandala.—ix.87.

The dwelling of Chandalas and Svapacas (should be) outside the village; they should be deprived of dishes (apapatra); their property (consists of) dogs and asses.—x.51.

Moreover, Vishvamitra, well knowing right and wrong, being oppressed by hunger proceeded to eat the ramp of a dog, having it from the hand of a Chandala.—x. 108.

At no time should a Brahmin beg property from a Shudra for the sake of sacrifice, for on offering sacrifice after begging (from a Shudra) he is born after death as a Chandala.—vi.24.

On having (carnal) intercourse with Chandala women (or low born woman), on eating their food or receiving (presents) from them, a Brahmin (if he has done so) unwittingly, falls; but (if he has done so) wittingly, he comes to an equality (with them).— xi.175.

The slayer of a Brahmin enters the womb of dogs, boars, asses, camels, cows, goats, sheep, (forest) animals, birds, Chandalas and Pukkakas.—xi.55.

How different is the treatment accorded to the Chandala as compared to the treatment accorded to the Ayogava and the Kshattar when all of them are Pratilomas? Why should the Chandala be singled out as the most infamous of the Pratilomas? Only because he is the progeny of the hated Shudra. It is just an act of revenge against the children of one's enemy.

All this leaves no doubt that there was no reconciliation between the Brahmins and the Shudras.

IV

Coming to the last objection, it appears that behind it there is a feeling that the Shudras must have been a very large part of the Indo-Aryan society. With such a feeling it does appear rather strange that the Shudras should have suffered silently the perpetration of such an act as the denial of the Upanayana. Because the Shudras in the Hindu Society form such a vast proportion of the population, so the Shudras of the Indo-Aryan Society must also have formed a very large proportion of the population, can be the only basis for such a feeling. Such an inference is without any foundation, for the Shudras of the Indo-Aryan Society are absolutely different in race from the Shudras of the Hindu Society. The Shudras of the Hindu Society are not the racial descendants of the Shudras of the Indo-Aryan Society.

This confusion has arisen because of the failure to realize that the meaning of the word 'Shudras' in the Indo-Aryan society is quite different from the meaning it has in the Hindu society. In the Indo-Aryans the word Shudra was proper name of one single people. It was the name of a people who belonged to a particular race. The word Shudra, as used in the Hindu society, is not a proper name at all. It is an epithet for a low uncultured class of people. It is a general cognomen of a miscellaneous and heterogeneous collection of tribes and groups, who have nothing in common except that they happen to be on a lower plane of culture. It is wrong to call them by the name Shudras. They have very little to do with their namesakes of the Aryan society, who had offended the Brahmins. It is a pity that these innocent and backward people of later days have been rolled up with the original Shudras and subjected to the same penalties for which they had given no cause.

That the Shudras of the Indo-Aryan and the Shudras of the Hindu Society are different and distinct is a fact which was present at one time to the minds of the Dharma Sutrakaras is quite clear. This is evident from the distinction they made between *Sacchudra* and *Asacchudra* and between *Aniravasita* Shudras and *Niravasita* Shudras. *Sachudra* means a cultured Shudra and *asac-chudra* means an uncultured Shudra. *Nirvasita* Shudra means a Shudra living in the village community. *Anirvasita* Shudra means a Shudra living outside the village community. It is quite wrong to say as some¹ do that this division indicates that the condition of Shudras in the eyes of the lawgivers was improving, in that some were admitted to social intercourse when formerly none was. The correct interpretation is the *Sacchudra* and *Nirvasita* Shudra refer to the Shudras of the Aryan society and the *asac-chudra* and the *Anirvasita* Shudra refer to the Shudras by epithet who had begun to form part of the Hindu society. We are concerned with the Shudra of the Aryan society. They have no connection with the later-day Shudras of the Hindu society. That being so, the fact that the Shudras of the Hindu society form such a large number cannot be made the basis for an argument that the Shudras of the Indo-Aryans must have also been a very large body of people. We do not know exactly whether the Shudras were a tribe, a clan or a moiety or a group of families. But even if they were as

1 Sec Kane, II (I), p. 123. His view that this distinction implies that Shudras were being gradually raised from their low status is quite incorrect.

big as a tribe, they could not have been larger than a few thousand. The Bharatas are being expressly spoken of in the Rig Veda, vii.33.6, as being small in number. The Satapatha Brahmana referring to a horse sacrifice performed by the Panchala king Son Satrasaha¹ says :

“When Satrasaha makes the Ashvamedha offering the Taurvasas arise, six thousand and six and thirty, clad in mail.”

If it is any indication that the tribe of Taurvasas numbered six thousand, the Shudras could not be very many.

Apart from the question of numbers, what could the Shudras have done to prevent the calamity? If some Brahmins whom they had offended refused to perform their Upanayana, could they have got the services of other Brahmins whom they had not offended? Such a possibility would of course depend upon various circumstances. In the first place, we do not know whether all the Brahmins had formed a common front and whether it was possible to break up that front. We do not know that at the time when the issue was a burning issue the Brahmins had become a caste. But it is clear² that even in the times of the Rig Veda, Brahmins were a class by themselves, had developed class consciousness and were keen on maintaining class interests. In that event it would have been difficult for the Shudras to break up the conspiracy of the Brahmins. Secondly, it might also be that the performance of Upanayana had become the exclusive right of the family priest. The story of king Nimi³ shows that the performance of sacrifices had become the exclusive right of the family priest. If there is substance in these suggestions, then obviously the Shudras could not have done much to prevent the common front of the Brahmins operating against them.

Another possibility was the forging of a common front among all the Kshatriyas which might have had the effect of weighing down the opposition of the Brahmins. Whether such a thing was possible can only be a matter of speculation. In the first place, did the Shudras realize what the effect of the loss of Upanayana was going to be on their future status? I am sure they did not. Secondly, were the Kshatriyas a united body of people? I doubt if they were. Thirdly, had the other Kshatriya kings any sympathy for the Shudras? If the story of the Dasharajna Yuddha told in the Rig Veda is true, it is quite

1. Quoted by Oldenberg, *Life of Buddha*, p. 404.

2. Kane, Vol. H (1) p. 29.

3. *Supra*, p. 175

obvious that there was not much love lost between the Shudras and the other non-Shudra Kshatriyas.

Taking all these circumstances into consideration, there is nothing strange if the Shudras suffered the denial of the Upanayana by the Brahmins to be a fact.

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CHAPTER XII

THE THEORY IN THE CRUCIBLE

I

THE object of this essay was to trace the origin of the Shudras and discover the causes of their degradation. After an examination of historical material and of theories suggested by various writers—orthodox as well as modern—I have put forth a new thesis. In the preceding chapters, it has been presented in parts for the facility of laying the foundation of each part separately. It is time these parts were assembled together for a full and complete understanding of what the thesis is. It may be summarized as follows :

- (1) The Shudras were one of the Aryan communities of the Solar race.
- (2) The Shudras ranked as the Kshatriya Varna in the Indo-Aryan Society.
- (3) There was a time when the Aryan Society recognized only three Varnas, namely, Brahmins, Kshatriyas and Vaishyas. The Shudras were not a separate Varna but a part of the Kshatriya Varna.
- (4) There was a continuous feud between the Shudra kings and the Brahmins, in which the Brahmins were subjected to many tyrannies and indignities.
- (5) As a result of the hatred towards the Shudras due to their tyrannies and oppressions, the Brahmins refused to invest the Shudras with the sacred thread.
- (6) Owing to the loss of the sacred thread the Shudras became socially degraded, fell below the rank of the Vaishyas and came to form the fourth Varna.

It now remains to assess the validity of this thesis. It is usual for the author to leave this to others to do it. I propose to make a departure and myself enter upon the task of putting my thesis to

test. I do so because it gives me an opportunity of vindicating my thesis.

II

I can well imagine my critics to allege that my thesis rests upon a single statement from the Mahabharata in which Paijavana is described as a Shudra; that identification of Paijavana with Sudas is not proved beyond the shadow of doubt; that the description of Paijavana as a Shudra does not occur in any other place except in a single place in the Mahabharata. How can a theory built on such weak foundations be acceptable? They are bound to invoke the usual agreement that a chain is not stronger than its weakest link. I am sure that my thesis cannot be discredited and demolished in such an easy manner.

In the first place, I do not admit that a thesis cannot be built up on a single piece of evidence. It is a well-known principle of the law of evidence that witness must be weighed and not numbered. The number of witnesses is a less important consideration than the weight to be attached to the individual testimony of each or to the sum of the testimonies of all taken together. There is no reason to doubt the truth of the statement that Paijavana was a Shudra. The author of the Mahabharata has no reason to give a false description. Writing after such a long time, no motive, no partiality could be attributed to him. The only conclusion one can draw is that the author was recording a true tradition.

The fact that Paijavana is not described as a Shudra in the Rig Veda does not militate against the truth of the statement which occurs in the Mahabharata. Many explanations can be given for the absence of the word Shudra from the description of Paijavana in the Rig Veda. The first explanation is that it is wrong to expect such a description in the Rig Veda. The Rig Veda is a book of religion. A description such as Shudra could not be expected in a book of religion. It would be irrelevant. But such a description may well be expected to occur in a book of history such as the Mahabharata wherein as a matter of fact it does.

The other explanation for the infrequent mention of the word Shudra in connection with Sudas which I can think of is that it was unnecessary. Descriptions in terms of kula, gotra, tribe, etc., are really speaking marks of identification. Marks of identification are

necessary in the case of lesser people. They are unnecessary in the case of famous men. There is no doubt that Sudas was the most famous man of his time. It was unnecessary to describe him as Shudra for the purpose of identifying him to the people. This is not altogether a mere matter of speculation. One can cite historical instances. Take the case of Bimbisara and Pasenadi, two kings who lived in the time of Buddha. All other kings who were their contemporaries are described in the literature of the time by their *gotra* name. But these two are just spoken of by their personal names. Prof. Oldenberg¹ who noticed this fact explains this on the ground that they were well-known and did not stand in need for being described by their gotra names.

III

But it is really wrong to suppose that my theory is based on the solitary passage in the Mahabharata or on the identification of Paijavana with Sudas. Nothing of the kind. The thesis is not supported by a single chain and therefore the argument that a chain is not stronger than its weakest link does not apply to it. The case is supported by several parallel chains. The weakness of a link in one of them cannot be said to weaken the support. The weakness of one link in one chain throws the whole weight on other chains. Consequently, before concluding that the theory has broken down, it is necessary to prove that the other chains are not able to sustain the weight.

The description of Paijavana as Shudra and the identification of Paijavana with Sudas of the Rig Veda is not the only chain which supports the thesis. There are other chains. One of these is the admission in the Satapatha and Taittiriya Brahmanas that there were only three Varnas and the Shudras did not form a separate Varna. The second consists of evidence that Shudras were kings and ministers of State. The third consists of evidence that the Shudras were at one time entitled to Upanayana. All these are strong chains quite capable of taking all extra weight arising out of a possible breakdown of the first chain.

As far as evidence is concerned, absolute certainty amounting to demonstration is seldom to be had and I do not claim absolute

¹ *Lift of Buddha*, p. 414.

certainly for my thesis. But I do claim that the evidence in support of the theory is both direct as well as circumstantial, and where it is conflicting it is supported by strong probabilities in favour of it.

IV

I have shown what strength there is in the thesis I have presented. I will now proceed to show that the thesis is a valid one. There is one test which I think is generally accepted as the right one by which to appraise the validity of a thesis. It is that a thesis which demands acceptance must not only suggest a solution, but must also show that the solution it proposes answers the riddles which surround the problem which it claims to have solved. It is this test that I propose to apply to my thesis.

Let me begin by listing in one place the riddles of the Shudra. The following include the most important of them :

- (1) The Shudras are alleged to be non-Aryans, hostile to the Aryans, whom the Aryans are said to have conquered and made slaves. How is it then that the rishis of the Yajur Veda and the Atharva Veda should wish glory to the Shudras and express a desire to be in favour of the Shudras?
- (2) The Shudras are said not to have the right to study the Vedas. How is it then that Sudas, a Shudra, was the composer of the hymns of the Rig Veda?
- (3) The Shudras are said to have no right to perform sacrifices. How is it that Sudas performed the Ashva-Medha sacrifice? Why does the Satapatha Brahmana treat the Shudra as a sacrificer and give the formula of addressing him?
- (4) The Shudras are said not to have the right to Upanayana. If this was so from the very beginning, why should there be a controversy about it? Why should Badari and the Samskara Ganapati say that he has a right to Upanayana?
- (3) The Shudra is not permitted to accumulate property. How is it that the Maitrayani and Kathaka Samhitas speak of the Shudras being rich and wealthy?
- (6) The Shudra is said to be unfit to become an officer of the State. How is it then that the Mahabharata speaks of Shudras being ministers to kings?

- (7) It is said that the duty of the Shudra is to serve, in the capacity of a menial, the three Varnas. How is it then that there were kings among the Shudras as testified by the case of Sudas and other cases mentioned by Sayana?
- (8) If the Shudra had no right to study the Vedas, if he had no right to Upanayana, if he had no right to sacrifice, why was he not given the right to have his Upanayana, to read the Vedas and to perform sacrifice?
- (9) The performance of Upanayana of the Shudra, his learning to read the Vedas, his performing the sacrifices, whether they were of any value to the Shudra or not, were certainly occasions of benefit to the Brahmins in as much as it is the Brahmins who had the monopoly of officiating at ceremonies and of teaching the Vedas. It is the Brahmins who stood to earn large fees by allowing the Shudra the right to Upanayana, the performance of sacrifices and the reading of the Vedas. Why were the Brahmins so determined to deny these concessions to the Shudras, when granting them would have done no harm and would have increased their own earnings?
- (10) Even if the Shudra had no right to Upanayana, sacrifices and Vedas, it was open to the Brahmins to concede him these rights. Why were these questions not left to the free will of the individual Brahmins? Why were penalties imposed upon a Brahmin if he did any of these prohibited acts?

How can these riddles be explained? Neither the orthodox Hindu nor the modern scholar has attempted to explain them. Indeed they do not seem to be aware of the fact that such riddles exist. The orthodox Hindu does not bother about them. He is content with the divine explanation contained in the *Purusha Sukta* that the Shudra was born from the feet of the Purusha. The modern scholar is content with the assumption that the Shudra in his origin is a non-Aryan aboriginal, for whom the Aryan quite naturally prescribed a different code of laws. It is a pity that none of these classes of people have cared to acquaint themselves with the riddles which surround the problem of the Shudra, much less have they thought of suggesting a theory of the origin of the position of the Shudra capable of solving them.

With regard to my thesis it will be seen that it can explain everyone of these riddles. Postulates (1) to (4) explain how the Shudras could be kings and ministers and why the rishis should

praise them and desire to be in their good books. Postulates (5) and (6) explain why there was a controversy over the Upanayana of the Shudra, also why the law not only denied the right to the Shudra but imposed penalties upon a Brahmin, helping to make it effective. Indeed there is no riddle which the thesis does not solve. The thesis, if I may say so, is a close and a perfect fit. Few theses can therefore have a better title deed than this.

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Appendices

APPENDIX I

References to the word “Arya” (अर्य) in the Rig Veda.

I		II		III		IV		V		VI		VII		VIII		IX		X	
H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
33	3	23	13	43	2	1	7	2	12	14	3	8	1	1	4	23	3	20	4
70	1	23	15			2	12	33	2	15	3	21	5	19	36	61	11	27	8
71	3	35	2			2	18	33	6	16	27	21	9	21	16	79	1	27	19
73	5					4	6	33	9	20	1	31	5	24	221			34	13
81	6					16	19	34	9	24	5	34	18	34	10			42	1
81	9					20	3	54	12	25	7	48	3	39	2			59	3
116	6					24	8			36	5	56	12	48	8			76	2
118	9					29	1			45	33	60	11	49	12			86	1
121	15					38	2			47	9	64	3	52	7			86	3
122	14					48	1			48	16	68	2	54	9			89	3
169	6					50	11			51	2	83	5	55	12			133	3
184	1									59	8	86	7					148	3
185	9											92	4					191	1
												100	5						

APPENDIX II
References to the word “Arya” (आर्य)
(I) In the Rig Veda

I		II		III		IV		V		VI		VII		VIII		IX		X	
H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
51	8	11	18	34	9	26	2	34	6	18	3	5	6	24	27	63	6	38	3
59	2	11	19			30	18			20	10	18	7	103	1	63	14	43	4
117	21									25	2	83	1					49	3
130	8									33	3							65	11
156	5									60	6							69	6
																		83	1
																		86	19
																		102	3
																		103	3
																		138	3
																		191	1

(II) In the Yajur Veda												(III) Atharva Veda							
IV		V		VI		XVIII		XIX		XX		IV		XX		XXII			
H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
20	4	11	3	63	4	1	21	32	8	18	5	32	1	11	9	63	4		
20	8							62	1	85	4			17	4				
														18	5				
														36	10				
														85	4				
														89	1				
														95	4				

APPENDIX III

Different meanings of the word “Arya” (अर्य) found in the Rig Veda.

Meaning	I		II		III		IV		V		VI		VII		VIII		IX		X	
	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
Enemy	70	1					16	19	33	2	14	3	21	9	48	8	79	1	42	1
	73	5									15	3	34	18	49	12			59	3
	118	9									20	1	48	3					76	2
	121	15									36	5	56	22					89	3
	169	6											68	2						
													92	4						
Respectable Noble	33	3	23	15	43	2	1	7	33	6	24	5	8	1	19	36			20	4
	81	6	35	2			2	12	33	9	25	7	21	5	21	16			27	8
	81	9	43	2			4	6	34	9	47	9	31	5	24	22			27	19
	121	14					20	3					86	7	34	10			34	13
	184	1					24	8					100	5	55	12			86	1
							29	1											86	3
							38	2											116	6
							48	1											148	3
																			191	1
Citizen							2	18												
							20	3												

APPENDIX V
References to “Dasyu” in the Rig Veda

I		II		III		IV		V		VI		VII		VIII		IX		X	
H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
33	4	11	18	29	9	16	9	4	6	14	3	5	6	6	14	41	2	22	8
33	7	11	19	34	6	16	10	7	10	16	15	6	2	14	14	47	2	47	4
33	9	12	10	34	9	16	12	14	14	18	3	19	4	39	8	88	4	48	2
36	18	13	9	49	2	28	3	29	10	23	2			50	8	92	5	49	3
51	5	15	9			28	4	30	9	24	8			51	2			55	8
51	6	20	9			38	4	31	5	29	6			56	2			73	5
51	8							31	7	31	4			70	11			83	3
53	4							70	3	45	24			98	6			83	6
59	6																	95	7
78	4																	99	7
100	18																	105	11
101	5																		
103	3																		
103	4																		
108	12																	170	2
117	3																		
117	21																		

APPENDIX VI
References to the word “Varna” in the Rig Veda

I		II		III		IV		V		VI		VII		VIII		IX		X	
H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M	H	M
73	7	1	12	34	5	5	13									65	8	3	3
92	10	3	5													71	2	124	7
96	5	4	5													71	8		
104	2	5	5													97	15		
113	2	12	4													104	4		
179	6	34	13													105	40		

INDEX

- Acharya—Exclusive right to officiate at Upanayana, 173-74; Qualifications, 173
- Aitareya Brahmana—Manu the progenitor of Indo-Aryans, 29; Disabilities of Shudras under, 42; On Vaishyas' sacrificial disabilities, 56-57; List of coronations of Kings and officiating priests 123-24
- Alpine Race—Traits of, 67-68; Prof. Ripley on, 98-99; Its languages of Aryan Stock, 99
- Ambarisha—145
- Anulomas—Who are, 199 (and footnote); see Nishada
- Apastamba Dharma Sutra—Support to Purusha Sukta, 23; Disabilities of Shudras under; 43, 47, 50-51; On qualifications of Acharya, 173
- Arjuna—194-95
- Aryan—Race, an invader of India, 65; Type and its traits, 69; Four senses of term, 69; Not a race according to Prof. Max Muller, 69-70; Original home as traceable by common vocabulary, 71-72; Caucasia, not the original home of, 71-72; Mr. Tilak's theory of Arctic region being home of, 72-74; Evidence against theory of, invasion of India, 74-75; and subjugation of Dasas and Dasyus, 75-76, 86-87; Inseparable from Dasas and Dasyus, 77; Race theory, its failure, 78-79, its Indian votaries, 79-80, meaning of term Varna its mainstay, 80; Of Vedic times had no colour prejudice, 81; Two communities : with and without belief in Chaturvamyā, 97, 100; Permitted to make other Aryans slaves, 112-13; Vedic, social organization, 130-31; Rules of Impurity and Adoption, 160-61
- Ashwalayan Grihya Sutra—Description of Upanayana ceremony, 156-58
- Ashwins—Though Shudras entitled to Soma, 109
- Atharva Veda—On five tribes of Indo-Aryan nation, 31; Its four explanations of the origin of Vamas, 39; When it came to be regarded on par with Rig Veda, 87; Statements from, demarcating Shudra from Arya, 107; Statements from, showing basis of equality between Brahmins and Shudras, 107-108, 207-208
- Aupamanyava—Five tribes of Indo-Aryan nations according to, 30
- Avarnas—De jure connotation of, 35-36, Who are, 36
- Balaji Avji—His part in Shivaji's coronation, 177-78, 181-82
- Baudhayana—Prescription of Upanayana for Ashwaththa tree, 169
- Belavalkar, Prof.—Theory of Synchronous composition of Vedic Literature, 138.
- Benfey, Dr.—Summary of his views on original home of Aryans, 71
- Bhagavat Purana—On naming of India as 'Bharata Bhumi'. 129
- Bhandarkar, Dr. D. R.—His view of Rajputs as descendants of foreigners, Gurjars, 179
- Bhandarkar Research Institute—collation Sheet for shloka i.e. Paijavana, 116 (footnote)

- Bhishma—On ministers of four Varnas, 112
- Bharadwaja Sutra—Reference to Shudra's right to sacrifice, 108-109
- Bharatas—128-30, 192-93
- Bode, Dastur—Meaning of 'Varna' in Indo-Iranian Literature, 83
- Bopp, Dr.—Theory of common ancestry of Indo-Aryan and Indo-Germanic languages, 78
- Brahmanic—Literature full of legends of creation, 37-41; analysis of legends, 41; Theories about origin of Shudras most unsatisfactory, 65-66; Literature, its two ideologies relating to creation, 87-96; Comparison of the two ideologies—sacerdotal and secular, 97; Writers' invention of false etymologies to suit prevalent meaning of words, 102-03; Forgeries of Purusha Sukta and Smritis, 137-38
- Brahmins—Origin of, according to Purusha Sukta, 22; Are Dwijas, 24; Superior to all other classes in status, 26, 32; As savarnas, Dwijas and Traivarnika, 36; Their special rights and privileges against Shudras, 56; Their indifference or apologetic attitude towards disabilities of Shudras, 57; Their Law compared with Roman Law is communal and arbitrary, 63-64; Accept theory of Aryan conquest of India for it establishes their kinship with Europeans, 80; Mentioned as separate Varna sixteen times in Rig Veda, 133; Dispute with Kshatriyas, 148-49; Conflict with Kshatriyas, 140-55; Technique for degrading Shudras: refusal of Upanayana, 156, 208; Exclusive right to officiate at Upanayana, 173-74, 177, 184-85; Penalties on, or performing unauthorised Upanayana, 181, 208; Instances of denial of Upanayana to other Varnas, 175; Vs. Shivaji, 175-78, 178-82; Their thesis: no Kshatriyas exist in Kaliyuga, 176; Alone can determine status of Hindu, 177, 184; Never accepted law of precedents, 179-83; Fifty thousand, receive Dakshina at Shivaji's coronation, 179-80; Question Kshatriya status of Maharajas of Satara and Kolhapur, 182-84; Degraded Shudra community out of revenge against Shudra kings, 186-89; Enough provocation to, for conflict with Shudras, 189-90; Catalogue of privileges claimed by, 189-90; Challenged by (Shudra) Kshatriyas in their privileges, 190-92 Stories of their reconciliation with Shudras, 192-97 Stories to glorify, 197-98; Conscious of class interests in Rig Vedic times, 202
- Brihaspati Dharma Shastra—Disabilities of Shudras under, 48
- Brihaspati Smriti—Disabilities of Shudras under, 49
- Buddha—And Buddhism, their inability to shake Chaturvarnya, 23
- Buhler, Dr.—On Shudras' eligibility to become Brahmins, 110
- Chandala—A Pratiloma, 198; Rights inferior to other Pratilomas, 199; Manu's laws against, 199; and reasons for their severity, 200
- Chhandogya Upanishad—Explanation of origin of Vedas from deities, 33; Describes Rishi Janasruti, author of Rig Vedic Hymns as Shudra, 108
- Chaturvarnya—Ideal of Indo Aryan Society, 23; Buddha's ineffective challenge to, 23; Manu invests, with divinity, 24; Basis of, graded inequality, 26; A political jugglery, 31-33; Later development of, creation of fifth Varna and separation of Shudras from Traivarnikas, 35-36; One Aryan tribe believer in, the other non-believer in, 97; See also, 40-41, 80, Varna, Aryan, Shudras, Manu

- Chitrao Shastri— On list of Sudas' opponent, 126 (footnote)
- Chirstians— Emperors, their disabilities under Roman Law, 58-59
Sacraments and Brahmanic Samskaras, 171;
- Crooke, Mr. Villiam—On Hinduisation of Gurjar tribes into Rajputs for representing Buddhism, 178-79
- Das, Mr. A. C.—Identifies Dasas and Dasyus with Shudras of later times, 101
- Dasas—And Dasyus, according to Western Scholars: (i) a dark race different from Aryans, (ii) conquered, enslaved and called Shudras by Aryans, 65; Paucity of references to, and Dasyus as enemies of Aryans in Rig Veda, 75; United with Aryans against common enemy, 75, conflict with Aryan's, religious not racial, 75-76; And Dasyus terms not used in racial sense, 76-77; Their epithet 'Krishnayoni' connotes no racial distinction with Aryans, 77; Application of word 'Varna' to, in Rig Veda, 83; And Dasyus not distinct from Aryans in race and complexion, 85; And Dasyus as allies of one Aryan community and enemies of the other, 86-87; can be identified with Azi Dahaka of Zend Avesta, 104-05; A civilized people, 105-06; Cannot be identified with Shudras, 106; And Dasyus, their complete disappearance from Post-Vedic literature and absorption by Aryans, 106; Term, occurs five times in Rig Veda in sense of slave, 111
- Dasharajna Yuddha—Account of, 124-26; A war between Shudras and non-Shudra Kshatriyas, 202-03; *See also* Sudas.
- Dasyus— Conflict with Aryans religious not racial, 75-76; Correct interpretation of epithet '*Mridhravak*' and '*Anasa*', 76; Distinct from Aryans not by race but by religion, 103-04; Existence of, in all Varnas according to Mahabharata, 104; A contemptuous term used by Indo-Aryans to designate Indo-Iranians, 104; More powerful than Aryans, 105, *See also* Dasa and Aryan
- Dharma Sutras— Evidentiary value of their statements on Shudras, 107-08; Their prohibition of Upanayana, Vedic ceremonies and sacrifices and Soma drink to Shudras, 108-09; Evidence against their prohibitions from Brahmanic literature, 109-11
- Divodasa—122-23, 128-29
- Dongre, Rao Bahadur—Siddhanta Vijaya, 182 (footnote)
- Egyptian—Cosmogony, 22; Classes in their society, 26
- Encyclopaedia of Religion And Ethics—22
- Fausboll, Dr.—Story of Chyavana, 109 (footnote)
- Foster, Prof. Michael—On hypothesis, 80
- Gagabhat—officiating priest at Shivaji's coronation, 176; Bought over by huge Dakshina, 179-80; His twists and turns, 181-82; His attempt to prove Kayasthas bastards, 182
- Ganganath Jha—Purva Mimamsa, 172 (footnote)
- Gautama Dharma Sutra— Disabilities of Shudra under, 47,49, 51-52, Enumeration of forty Samskaras from; 170
- Geiger—Summary of his views on original home of Aryans, 71
- Grant Maddison—Introduction of Aryan language in Europe, 99 (footnote)

- Greeks—Class composition of their society compared with 'Varna' system, 26
- Griffiths, Dr.—Perturbed over Tritsus being shown Non-Aryans, 129-30
- Guha Dr.—On two racial stocks of Indian people and their distribution, 97-98
- Harishchandra—141-44
- Harivamsha—Explanation of origin of Vedas from eyes, tongue and head of God, 34; Explanation of origin of priests from limbs of God Hari, 34; Studious avoidance of feet as origin of any priest or Veda, 34-35; Story of Trishanku, 141-45; Story of Varna's conflict with Brahmins, 151-52
- Hearn, Mr. W.E.—On rule of establishing nobility among Aryans, 110
- High Courts in India—Calcutta decision about Kayasthas of Bihar being Shudras, 162; Allahabad's non-acceptance of validity of 'Calcutta decision, 163; Calcutta (1916 and 1926) decision about Bengal Kayasthas being Shudras, 163; Patna (1926) decision holding Bihar Kayasthas as Kshatriyas, 163-64; Madras (1924) decision holding Marathas as Shudras, 164; Bombay (1928) decision holding five and ninety-six families of Marathas as Kshatriyas, rest as Shudras, 164 : Madras (1927) holding Yadavas as Shudras, 164; Criteria adopted by, in determining Shudras and their relevance, 165; Failure to distinguish between *de facto* and *de jure* position of communities relating to Upanayana, 165-66; see also Privy Council
- India—Designed 'Bharata Bhumi' after Vedic and not Daushyanti Bharatas, 128-29
- Indo-Aryans—See Manu, Aryan, Chaturvarnya, Atharva Veda, Aupamanyava, Dr. Bopp, Dasas, Dasyus, Dr. Guha, Purusha Sukta
- Indo-Iranians—Three classes in their Society, 26; Meaning of 'Varna' in their literature, 82-85; Identification of Azi Dahaka with Dasa, 104-105, see also Dasyu
- Jabali, Satyakama—His story, and inferences from it, 175
- Jaimini—Cites Badari's contention of Shudra's right to sacrifice, 108; Spiritual significance of Samskaras according to, 171; His rules in 'Purva Mimamsa' about property, sacrifice and Vedic mantras 170-71
- Jayaswal, Dr.—Shudra as a minister, 112-13 (footnotes)
- Jews—Existence of classes in society of, 28; Disabilities under Roman Law, 61; A people not race, 66
- Justinian—Enfranchisement of slaves, 60
- Kalikapurana—160 (footnote)
- Kalmashapada—145-46
- Kane, Mr.—Identifies Dasas and Dasyus with Shudras of later time, 101; On demarcation line between Aryans and Shudras; see also 102, 156, 158-60, 167, 168, 174, 190, 201, 202 (footnote)
- Kathaka Samhita—Disabilities of Shudras under, 42; Statements from, demarcating Shudra from Arya, 107
- Katyayana Srauta Sutra—Commentary on, admits Shudra's eligibility to perform Vedic rites, 109
- Kaushitaki Brahmana—On enmity between Sudas and Vasistha spreading to descendants, 151
- Kautilya—His reference to Shudras as Aryans in laws of slavery, 110-11

- Kayastha—Status of, of Bengal and Bihar, 163-64; Status, challenged by Brahmins, 175-85; Reaction to challenge, 177 (*see also* footnote); Gagabhat's attempt to prove them bastards, 181-82
- Khnumu*—The shaper in Egyptian cosmogony, 22
- Kinkaid, Mr—On Maratha Sardars' attitude to Shivaji's status, 176 (footnote)
- Kolhapur—Palace priest's controversy over eligibility of Maharaja to Vedic rites, 183-84
- Kritavirya—193-94
- Kshatriyas—Origin, according to Purusha Sukta, 22; Are Dvijas, 24; Inferior to Brahmins and superior to other classes in status, 26,32; As Savarnas, Dwijas and Traivarnikas, 36; Though Traivarnikas, their rights against Shudras very negligible, 57; Mention of, nine times as separate Vama in Rig Veda, 133; Conflict with Brahmins, 140-55; Kings conflicting with Brahmins belonged to Shudra tribe and solar line, 155, 187-88; Genealogies of Kings, 190-91; Of solar line superior to Brahmins in prowess and learning, 191-92, Authors of Vedic Hymns, 191; Of Lunar line an imbecile people, 190-91; Stories of their reconciliaton with Brahmins, 192-97; Enmity between Shudra and non-Shudra, 202-03
- Kurtakoti—184 (footnote)
- Lassen—His identification of Shudras with Sodari tribe, 103 Law, Dr. B. C—103 (footnote)
- Mahabharata—Ideology relating to creation, 92-93, On existence of Dasyus in all Varnas, 104; Shudra invited at coronation of Yudhishthira, 112; On ministers of four Varnas, 112; Collation of stanza referring to Paijavana, 114, 116-17; Nature of its manuscripts and recensions, 115; Results of scrutiny of texts of the stanza, 117-18; Story of Kalmashapada, 145-46 and 195-96; Pururavas' conflict with Brahmins, 152; Bharatas reconciliation with Vasishtha 192; Conflict and reconciliation of Kritavirya with Bhrigus, 193-94, 194-95 with Parshurama, 194-95; Saudasas' reconciliation with Vasishtha and Brahmins, 196-97; Its statement about Paijavana record of true tradition, 205
- Maharashtra Dnyana Kosha— Meaning of Varna, 82 (footnote); Identification of Dasa with Azi Dahaka, 105 (footnote), Appendices I-VI, 210-16
- Maitrayani Samhita—Disabilites of Shudras, under, 42; Reference to Shudra's wealthiness, 112
- Manu—On divine origin of four varnas 24-25; On disabilities of Shudras, 43-44,45-55; On Shudras' eligibility to Brahmindom, 109-10; His injunctions to Brahmins against Shudra Kings, 112; On conflicts between Kings and Brahmins, 154-55; Laws against Chandala, 199
- Manu—The progenitor of Indo-Aryans, 29
- Matsya Purana—On Manu the progenitor of Aryans, 29; List of Kshatriya, authors of Rig Vedic hymns, 191
- Mediterranean Race—Traits of, 67-68; Facts about, 98
- Muir, Dr.—His failure to realize conflicts between Brahmins and Kshatriyas as one between Brahmins and Shudras, 155; *see also* 30-31, 33-34, 38-41, 56, 87, 88-98, 102, 131, 133-35, 141-42, 145, 147-49, 151-54, 187, 190,96 (footnote)

- Max Muller, Prof.—On disappointing nature of Brahmanas as literary productions, 41; On meaning of Arya, 69-70; His insistence on restriction of term Aryan to Philology, 195-96; His interpretation of term 'Anasa', 76-77; On Brahmanic etymologies, 102-03, 108
- Nahusha—152-54, 191, (footnote), 192
- Nimi—154, 192
- Nishada—An Anuloma, 198; His ineligibility to Upanayana, 198; an arbitrary exception and why, 198
- Old Testament—Genesis, 22; Comparison of Genesis with Purusha Sukta, 28
- Oldenberg, Prof.—Absence of Gotra name in description of famous men, 202 (footnote), 206
- Padma Purana—161
- Pagans—Disabilities under Roman Law, 59-60
- Palashes—Status challenged by Brahmins, 175, 184
- Panchavimsa Brahmana—Disabilities of Shudras under, 42; On Shudra's wealthiness, 112
- Papacy—Its forgeries, 137
- Patitasavitrika—167
- Peshwas—Discontinued Rajya-bhisheka era, 182; Directed Upanayana of Shahu II to be performed by Pauranic rites, 182-83,
- Pingle, Moropant—Opposed to Shivaji's coronation, 176; Huge presents to, at coronation, 180
- Plato—On class distinction, an ideal social structure, 26
- Pratapsinha II—Challenge to his Kshatriya status by Brahmins, 183
- Pratiloma—Who are, 199 (footnote); Uneven distribution of stigma on, 200; *see* Chandala
- Premi Nathurama—161
- Privy Council—Decision on existence of Kshatriyas in modern times, 162
- Pururavas—152, 191 (footnote), 192
- Purus—128
- Purushartha—Magazine, 169 (footnote)
- Purusha Sukta—Text of, 21-22; As Indo-Aryan cosmogony, as explanation of origin of, and as mandatory injunction prescribing four Varnas, 22-23; Its influence on Indo-Aryan Society, 23; Examination of its claim to uniqueness' and 'extraordinariness', 25-27; Explanation of origin of classes—its difference with other cosmogonies, 28; Contradicts secular theory of Rig Veda of origin of society, 28-29; Its preference for communalism than nationalism, 31; Its political jugglery in making Chaturvarnya a sacred institution, 31-33; Its equation of classes with limbs of Purusha, deliberate and malicious, 33-35; A later interpolation, 132-37, 138-39 a forgery by Brahmins, 137
- Race—Jews, an illustration of people mistaken for, 66; A body of people possessing certain typical hereditary traits, 66-67; Traits constituting a, old and modern views, 67-68; Cephalic Index and Facial Index, 67; Application of anthropometrical method to European Races, a Table, 68 and 71-72; Is there an Aryan—, 70; Mediterranean, 98; Alpine, 98
- Ramayana—Ideology relating to creation, 94-95; Story of Trishanku, 149-50; *See* footnote 29
- Ranade, Prof.—Theory of Synchronous Composition of Vedic Literature, 138
- Rig Veda—Purusha Sukta, 21-22; Another cosmogony besides

- Purusha Sukta, 27; Comparison of its two cosmogonies, 27; Its secular theory of origin of classes, 28-29; Consciousness of division of labour, 30; On five tribes of Indo-Aryan nation, 30-31; Does not use term Arya in racial sense, 70; On united front of Aryans and Dasas against common enemy, 75; Description of Dasyus as people belonging in cult different from that of Aryans, 75-76; Occurrence of terms 'Anasa', 'Mridha vak' and 'Krishna Yoni', 76-77; On absence of racial distinction between Aryans, Dasas and Dasyus, 77; On absence of colour prejudice amongst Aryans, 81-82; Occurrence of word 'Varnas' in, 82-83; Supports existence of, two opposing Aryan communities, 86-87; One of the two Vedas, 87; Description of Dasa in, 105-06; Dasharajna Yuddha, 124-27; Praise of Sudas' philanthropy, 127; Tribes in and Sudas' relation to them, 128; On enmity between Bharatas and Tritsus, 192; Reasons for absence of word 'Shudra' in its description of Paijavana, 205
- Ripley, Prof. W. E.—On difference between a race and a people, 66; His table of European Racial Types, 68; Disproves theory of Caucasia as cradle of Aryan race, 71-72; On dark complexion of earliest Europeans, 81; 98 (footnotes)
- Risley, Sir Herbert—On anthropometrical survey finds people of India mixture of four races, 97
- Romans—Classes in their society, 26; Need for comparison of Brahmanic Laws with theirs, 59-60; Classes and persons under their Law, 60; Basis for rights and disabilities; Caput and Existimatio, 59-61; Was their Law regulated by communal considerations? 61-63; Their removal of social and political disabilities of Plebians, 61-63; Difference with Brahmanic Law on Equality of Law in Criminal matters and extinction of disabilities, 63-64
- Roy, Mr.—On authenticity of his Mahabharata text, 114-15
- Sadgurushishya—Reasons for Sudas' cruelty to Sakti according to, 150
- Sakti—*Vide* Sadgurushishya and Satyayana Brahmana
- Sama Veda—A different form of Rig Veda, 87
- Samskara Ganapati—Its acceptance of Shudra's eligibility for Upanayana, 169
- Samskaras—Names of forty, 170; Jaimini, view on necessity of, 171-72; In narrower sense only sixteen, 171; Spiritual in significance in earlier times, 171; And Christian Sacraments, 171
- Sardesai Rao Bahadur, G. S.—On Peshwa's discontinuation of Rajyabhisheka era, 182 (footnote)
- Sarup, Laxman—Edition of Nighantu and Nirukta, 118 (footnote)
- Satapatha Brahmana—Explanation of four Varnas, 39-40; disabilities of Shudras under, 42; ideology relating to creation, 88-89; Discrimination in mode of address to different Varnas at sacrifices, 131, 207; Explanation of creation of three Varnas only, 128; On strength of Turvasa Tribe, 202
- Satyayana Brahmana—Story of Sudas' atrocity on Sakti, 150
- Savarnas—*De jure* connotation of, 36; Who are, 36
- Sayanacharya—His interpretation of term 'Anasa', 77; List of Kings-authors of Rig Veda hymns, 126, 126 (footnote)
- Senart, Prof.—On social organization of Vedic times 130-31

Shahu Maharaja—Controversy with palace priests and Sankaracharya regarding eligibility of Vedic rites, 183-84

Shankaracharya, Karvir—His refusal to recognize Kayasthas as Kshatriyas: 183; Vs. Royal House of Kolhapur on eligibility to Vedic rites, 182-84

Shivaji—Vs. Brahmins, 175; Coronation by Vedic rites dependent on acceptance of Kshatriya Status by Brahmins, 175; and on their performance of his Upanayana, 176; Regarded by Brahmin Ministers and Maratha Sardars as Shudra, 176 (and footnote), 181; King at mercy of Brahmins, 177; His two coronations, 176-77 (footnote); Genealogy connecting him to Sisodiya Rajputs, 177-78, 181-82; Money paid to Brahmins at coronation, 180; His descendants *vs.* Brahmins, 182-84; Peshwas discontinue his Rajyabhisheka era, 182

Shrinivasa Iyengar, Mr. P. T.—On rare occurrence of word 'Arya' in Rig Veda; a proof against theory of Invasion of India by Aryans, 74; Reference to 75 (footnote); on Civilization of Dasyus, 105

Shudras—Riddle of, 21, 35 : Genesis of, according to Purusha Sukta, 22, 23; Position of, according to Apastambha Dharma Sutra, 23-24, Vasishtha Dharma Sutra, 24; and Manusmriti, 24; Their status, 26, 32 and 33; Was their inclusion implied in Rig Veda reference to five tribes. 31; are savarnas but not Dvijas and Traivarnikas, 36; Disabilities and penalties under Samhitas, Brahmanas, Sutras, Smritis, 42-57; Gist of penal legislations against, 55-56; Comparison between privileges of Brahmins and—, 56-57; Inequality and permanence

of disabilities, 63-64; Derivation of word, in Vayu Purana and Vedant Sutra, 103; Proper name of a tribe, 103; Lassen's identification of, with Sodari tribe defeated by Alexander, 103; Associates of Abhirs according to Patanjali, 103; A separate tribe according to Brahma, Markendeya and Vishnu Puranas, 103; Vedas silent on, and later literature full of, 106; Basis of arguments that, were non-Aryans, 107, and, Aryans, 107-08; Statements showing basis of equality with Brahmins, 107-08, and eligibility to become Brahmins, 109-11; Aryan by birth according to Kautilya, 110-11; not slaves, 111; Participation in Coronation of kings during Brahmanic period. 111; Members of political assemblies, 112; As Kings and Ministers, 112, and 206; Their Wealthiness 112; and 207; Questions on assumption of their enslavement, 113; Were Aryans of Kshatriya class, 114, 131, 139; Significance of term—clan, phratry or tribe?, 130; Conflict with Brahmins, 140-55; not mentioned as separate Varna in Rig Veda, 139; Degradation to fourth Varna due to conflict with Brahmins, 140-203; Right to Upanayana, 166-70; Denial of Upanayana to, results; loss of property and knowledge, 170-72; Brahmins' power for degrading, 173-74, 208; Shivaji a, 176; Kings of tribe of, 186-89; Stories of their reconciliation with, 192-200; Growth of laws against, disproves reconciliation with Brahmins, 198; Treatment ordained to Nishadas and Chandalas, 198-99; Did they suffer denial of Upanayana silently, 199-200; Name of single people in Indo-Aryan

- Society, 201, Epithet of uncultured class of people in Hindu Society, 201-02; Of Indo-Aryan Society different from those of Hindu Society, 201-02; 'Nirvasit, 'Anirvasit', 'Sacchudra' and 'Asacchudra', 201; Of Indo-Aryan Society a tribe of few thousands, 201-02; Their inability to break common front of Brahmins and denial of Upanayana, 202-03; Ten riddles of, 207-09
- Sisodiya Rajputs—Are they Kshatriyas of Indo-Aryan Community? 178-80
- Smith, Vincent—On Hinduisation of Gurjars into Rajputs, 178
- Social Organisation—According to Purusha Sukta, 25-26, 31-32; Of primitive Society, 129-30, 187; Of Vedic Aryans, 130-31
- Sudas Paijavana—Description in Mahabharata : A Shudra Paijavana, 114, 117-18, 205; Yaska's interpretation of, 118-19; Family particulars of, in Rig Veda, 119, 122-24; Two in Vishnu Purana, 119; (i) Descendant of Sagar a, and his genealogy, 119; (ii) Descendant of Puru and his genealogy, 120; Tabular results of genealogists of three, 121-22; Rig Vedic different from Puranic, 121-22; Paijavana in Mahabharata is Rig vedic, 121-22; Agreement of Prof. Weber with the view, 122; Hero of Dasharajna Yuddha, 124; Author of Rigvedic hymns, 126; Performed Ashwamedha sacrifice, 126; Known for charity, 127. Belonged to Bharata, Puru or Tritsu tribe, 128-29; Removal of Vasishtha and appointment of Vishwamitra as chief priest, 150; Conflict with Vasishtha, 150-51, 196, Story of reconciliation of his descendants with Brahmins, 196-97; Being most famous man not described by name of community in Rig Veda, 205-06
- Sukthanker, Dr.—On authenticity of Roy's Text of Mahabharata, 115; Memorial Vol. 1, 115, 116 (footnote)
- Taittiriya Aranyaka—Ideology relating to creation, 91-92
- Taittiriya Brahmana—Explanation of origin of Shudras, 40, Ideology relating to creation, 90-91; Describes creation of Three Varnas only, 133, 206
- Taittiriya Samhita—Explanations of origin of four Varnas, 38-39; Ideology relating to creation, 87; On conflict between Vasishtha and Saudasas, 151
- Taylor, Prof. Isac—His summary of Benfy's views on original home of Aryans, 71
- Thakare, Mr. K. S.—On twists and turns of Gagabhat and change of front of Moropant Pingle, 182, (footnote); On Performance of Kayastha's ceremonies by Kayasthas, 184 (footnote)
- Thesis of the Book—Summary of, 204; Strength of its evidence, 205-06; Validity of, 206; Solves ten riddles of Shudras, 207-08
- Tilak, Mr. B. G.— On characteristics of Polar and Circum-polar regions, 72-74; On correspondence of the characteristics with myths and legends in Vedas; 73-74, His inference : Arctic, the Home of Aryans, 73-74; Shortcomings of his theory, 74; On origin of Yajnopavita, 159-60; Shortcomings of his explanation, 160-61
- Traivarnika—Who are, 35-36; Absence of Uniformity of rights among; 57
- Trishanku—140-41, 149-50
- Tritsus—130
- Triveda, Prof. D. S.—On proof against theory of Aryan invasion of India, 75
- Turvasas-31

- Untouchables—Are Atishudras, Avarnas and Advijas, 36
- Upanayana—Who have right to, 156-58; Purpose of : initiation to study of Vedas, 158; Articles essential for, 158; Yajnopavita essential for modern ceremony of, 158; Merger with ceremony of wearing Yajnopavita 161; Danger of, without Yajnopavita, 161; True meaning of, 161; Test of Shudradom absence of, 161, 165-66; Had Shudras a right to, 165-66, 169-70; Dead, dumb, blind, 'Anuloma', 166, Those crossing age-limit 167, their Sons and Vratyas 167-68, eligible to—; Universal among Indo-Iranians, 169; Closed to women owing to child marriage 169; Open to Shudras according to Samskara Ganapati, 169, 206; Absence of reasons for withholding from Shudras, 169-70; First spiritual in significance, 171; Acquisition of social significance after denial to Shudras, 171; Confers right to property and knowledge, 172; Performance of, assigned to Acharya, 173; Shivaji's right to, 175-77
- Vaidya, Mr. C. V.—His extract from Bhagavat Purana on Bharata Bhumi, 173-74; On second coronation of Shivaji, 176-77 (footnote); On money spent at Shivaji's coronation on Dakshina to Brahmins, 180; *See also*, 178-79 (footnote)
- Vaishampayana—Origin of classes of priests, 34-35
- Vaishyas—Origin of, according to Purusha Sukta, 22; Are twice born (Dvijas) 24; Superior only to Shudras in status, 26, 32-33; As Savarnas, Dvijas, Traivarnikas, 36; Oppressed class in Indo-Aryan Society, 56; Fury against them directed later on towards Shudras, 56; Though a Traivarnika, their rights against Shudras very negligible, 56-57
- Vajasaneyi Samhita—Two theories of origin of classes (Varnas) 38-39; Statements demarcating Shudra from Arya, 107; Statement showing basis of equality between Brahmins and Shudras, 107-08; Pours scorn on Shudras, 108
- Varna—In sense of colour mainstay of Aryan Race theory, 81; Occurrence of terms in Rig Veda and its connotations, 82-83; Occurrence of term, in Zend Avesta connoting 'a class holding particular faith', 83-85; System with three Varnas in Rig Veda, 132-33, 139 *See also* Purusha Sukta and Chaturvarnya
- Vasishtha—His conflict with Vishwamitra, 140-55; Stories of his reconciliation with Bharatas, Kalmashapada and Saudasas, 192-93, 195-96 *See also* Sudas and Vishwamitra
- Vasishtha Dharma Sutra—Its support to Purusha Sukta, 24; Disabilities of Shudras under, 43-45, 52
- Vayu Purana—102-03
- Vedic Literature—Origin of, and Brahmanic view, 33-35, Max Muller's order to growth of 138 : Professors Ranade and Belavalkar's theory of synchronous composition of, 138 ; *See also* Rig Veda, Atharva Veda, Yajur Veda and Veda.
- Vena—151-52
- Vishnu Purana—Manu, the Progenitor of the Indo-Aryans, 29; Explanation of origin of Vedas from different mouths of Brahma, 34; Ideology relating to creation, 95-97; Genealogy of two Sudas and Table 96-97; Story of Harishchandra, 141-45; On Nimi's conflict with Brahmins, 154

Vishnu Smriti—Disabilities of Shudras under, 44, 46, 49, 52

Vishwamitra—His conflict with Vasishtha, 140-41; His part in episodes of Trishanku, 141; Harishchandra, 141-45; Ambarisha, 145, and Kalmashapada, 145-46; Wants to murder Vasishtha, 147-48; Biographical particulars about, 148; Feud with Vasishtha on points of privileges, in story of Trishanku, 149-50; Dishonour to, avenged by Sudas, 150-51

Vratya—39; Who were they, 168-69; Stoma, 168; Shuddhisangraha's provision for purification of, 168

Vyavahara Mayukha—Kalipurana quotation of rule of adoption, 160 (footnote); 174 (footnote)

Weber, Prof.—Traces Sudas in Mahabharata to Sudas in Rig Veda, 122; On Shudras, an Aryan tribe immigrating into India before others, 131

Western Writers—Theory about origin of Shudras from Dasas and Dasyus according to, 65-66; Basis of their theory—inference drawn from Bopp's theory, of common ancestry of languages, 78, Inferences : (i) common habitat and social stock of Aryans, 78-79; (ii) Conquest of

India by Aryans, 79 (iii) Subjugation of Dasas, 79; (iv) Practice of colour distinction by Aryans in Varna system, 79-80; Reasons for failure of their theory, 78-79; Scrutiny of their theory, 79-85;

Conflict of their theory with Rig Veda, 99-100; Its shortcomings, 100 Wilson, Dr.—Extract from his translation of Rig Veda, 27 (footnote), 119-20

Yajnopavita—Importance of, 158; Rules about manufacture and use of, 158-59; Mr. Tilak on its origin, 159-60; Real object of, to tie one to particular 'Gotra' 160-61; Once Brahmins alone wore, 161; Merger with Upanayana, 161

Yajnavalkya—On Yajnopavita, 158

Yajurveda—Its two recensions, 37; Ashwamedha Yajna, 74; A different form of Rig Veda, 86

Yaska—On five tribes of Indo-Aryan nation, 30; On meaning of Paijavana 118

Zend Avesta—Occurrence of word Varna in, in sense of 'a class holding a particular faith', 82-85; Azi Dahaka in, 104-05

2

UNTOUCHABLES

THE UNTOUCHABLES

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**WHO WERE THEY
AND WHY THEY
BECAME UNTOUCHABLES ?**

By
DR. B. R. AMBEDKAR

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Inscribed to the memory of

NANDNAR

RAVIDAS

CHOKHAMELA

THREE RENOWNED SAINTS WHO WERE BORN
AMONG THE UNTOUCHABLES AND WHO BY
THEIR PIETY AND VIRTUE WON THE ESTEEM OF ALL.

CONTENTS

	Page
PREFACE	239
PART I	
A COMPARATIVE SURVEY	
<i>Chapter</i>	
I. UNTOUCHABILITY AMONG NON-HINDUS	249
II. UNTOUCHABILITY AMONG HINDUS.	256
PART II	
PROBLEM OF HABITAT	
III. WHY DO THE UNTOUCHABLES LIVE OUTSIDE THE VILLAGE?	271
IV. ARE THE UNTOUCHABLES BROKEN MEN ?	278
V. ARE THERE PARALLEL CASES ?	281
VI. HOW DID SEPARATE SETTLEMENTS FOR BROKEN MEN DISAPPEAR ELSEWHERE ?	284
PART III	
OLD THEORIES OF THE ORIGIN OF UNTOUCHABILITY.	
VII. RACIAL DIFFERENCE AS THE ORIGIN OF UNTOUCHABILITY	289
VIII. OCCUPATIONAL ORIGIN OF UNTOUCHABILITY	305
PART IV	
NEW THEORIES OF THE ORIGIN OF UNTOUCHABILITY.	
IX. CONTEMPT FOR BUDDHISTS AS THE ROOT OF UNTOUCHABILITY	311
X. BEEF-EATING AS THE ROOT OF UNTOUCHABILITY	318

PART V

THE NEW THEORIES AND SOME HARD QUESTIONS.

XL. DID THE HINDUS NEVER EAT BEEF ?	..	323
XII. WHY DID NON-BRAHMINS GIVE UP BEEF-EATING ?		329
XIII. WHAT MADE THE BRAHMINS BECOME VEGETARIANS ?		334
XIV. WHY SHOULD BEEF-EATING MAKE BROKEN MEN UNTOUCHABLES ?		350

PART VI

UNTOUCHABILITY AND THE DATE OF ITS BIRTH.

XV. THE IMPURE AND THE UNTOUCHABLES	..	359
XVI. WHEN DID BROKEN MEN BECOME UNTOUCHABLES ?		370
INDEX..		381

PREFACE

This book is a sequel to my treatise called *The Shudras—Who they were and How they came to be the Fourth Varna of the Indo-Aryan Society* which was published in 1946. Besides the Shudras, the Hindu Civilization has produced three social classes whose existence has not received the attention it deserves. The three classes are :-

- (i) The Criminal Tribes who number about 20 millions or so;
- (ii) The Aboriginal Tribes who number about 15 millions; and
- (iii) The Untouchables who number about 50 millions.

The existence of these classes is an abomination. The Hindu Civilization, gauged in the light of these social products, could hardly be called civilization. It is a diabolical contrivance to suppress and enslave humanity. Its proper name would be infamy. What else can be said of a civilization which has produced a mass of people who are taught to accept crime as an approved means of earning their livelihood, another mass of people who are left to live in full bloom of their primitive barbarism in the midst of civilization and a third mass of people who are treated as an entity beyond human intercourse and whose mere touch is enough to cause pollution?

In any other country the existence of these classes would have led to searching of the heart and to investigation of their origin. But neither of these has occurred to the mind of the Hindu. The reason is simple. The Hindu does not regard the existence of these classes as a matter of apology or shame and feels no responsibility either to atone for it or to inquire into its origin and growth. On the other hand, every Hindu is taught to believe that his civilization is not only the most ancient but that it is also in many respects altogether unique. No Hindu ever feels tired of repeating these claims. That the Hindu Civilization is the most ancient, one can understand and even allow. But it is not quite so easy to understand on what grounds they rely for claiming that the Hindu Civilization is a unique one. The Hindus may not like it, but so far as it strikes non-Hindus, such a claim can rest only on one ground. It is the existence of these classes for which the Hindu Civilization is responsible. That the existence of such classes is a unique phenomenon, no Hindu need repeat, for nobody

can deny the fact. One only wishes that the Hindu realized that it was a matter for which there was more cause for shame than pride.

The inculcation of these false beliefs in the sanity, superiority and sanctity of Hindu Civilization is due entirely to the peculiar social psychology of Hindu scholars.

To-day all scholarship is confined to the Brahmins. But unfortunately no Brahmin scholar has so far come forward to play the part of a Voltaire who had the intellectual honesty to rise against the doctrines of the Catholic Church in which he was brought up; nor is one likely to appear on the scene in the future. It is a grave reflection on the scholarship of the Brahmins that they should not have produced a Voltaire. This will not cause surprise if it is remembered that the Brahmin scholar is only a learned man. He is not an intellectual. There is a world of difference between one who is learned and one who is an intellectual. The former is class-conscious and is alive to the interests of his class. The latter is an emancipated being who is free to act without being swayed by class considerations. It is because the Brahmins have been only learned men that they have not produced a Voltaire.

Why have the Brahmins not produced a Voltaire? The question can be answered only by another question. Why did the Sultan of Turkey not abolish the religion of the Mohammedan World? Why has no Pope denounced Catholicism? Why has the British Parliament not made a law ordering the killing of all blue-eyed babies? The reason why the Sultan or the Pope or the British Parliament has not done these things is the same as why the Brahmins have not been able to produce a Voltaire. It must be recognized that the selfish interest of a person or of the class to which he belongs always acts as an internal limitation which regulates the direction of his intellect. The power and position which the Brahmins possess is entirely due to the Hindu Civilization which treats them as supermen and subjects the lower classes to all sorts of disabilities so that they may never rise and challenge or threaten the superiority of the Brahmins over them. As is natural, every Brahmin is interested in the maintenance of Brahmanic supremacy be he orthodox or unorthodox, be he a priest or a *grahastha*, be he a scholar or not. How can the Brahmins afford to be Voltaires? A Voltaire among the Brahmins would be a positive danger to the maintenance of a civilization which is contrived to maintain Brahmanic supremacy. The point is that the intellect of a Brahmin scholar is severely limited by anxiety to preserve his

interest. He suffers from this internal limitation as a result of which he does not allow his intellect full play which honesty and integrity demands. For, he fears that it may affect the interests of his class and therefore his own.

But what annoys one is the intolerance of the Brahmin scholar towards any attempt to expose the Brahmanic literature. He himself would not play the part of an iconoclast even where it is necessary. And he would not allow such non-Brahmins as have the capacity to do so to play it. If any non-Brahmin were to make such an attempt the Brahmin scholars would engage in a conspiracy of silence, take no notice of him, condemn him outright on some flimsy grounds or dub his work useless. As a writer engaged in the exposition of the Brahmanic literature I have been a victim of such mean tricks.

Notwithstanding the attitude of the Brahmin scholars, I must pursue the task I have undertaken. For the origin of these classes is a subject which still awaits investigation. This book deals with one of these unfortunate classes namely, the Untouchables. The Untouchables are the most numerous of the three. Their existence is also the most unnatural. And yet there has so far been no investigation into their origin. That the Hindus should not have undertaken such an investigation is perfectly understandable. The old orthodox Hindu does not think that there is anything wrong in the observance of Untouchability. To him it is a normal and natural thing. As such it neither calls for expiation nor explanation. The new modern Hindu realizes the wrong. But he is ashamed to discuss it in public for fear of letting the foreigner know that Hindu Civilization can be guilty of such a vicious and infamous system or social code as evidenced by Untouchability. But what is strange is that Untouchability should have failed to attract the attention of the European student of social institutions. It is difficult to understand why. The fact, however, is there.

This book may therefore, be taken as a pioneer attempt in the exploration of a field so completely neglected by everybody. The book, if I may say so, deals not only with every aspect of the main question set out for inquiry, namely, the origin of Untouchability, but it also deals with almost all questions connected with it. Some of the questions are such that very few people are even aware of them; and those who are aware of them are puzzled by them and do not know how to answer them. To mention only a few, the book deals with such questions as : Why do the Untouchables live outside the village?

Why did beef-eating give rise to Untouchability ? Did the Hindus never eat beef ? Why did non-Brahmins give up beef-eating ? What made the Brahmins become vegetarians, etc.? To each one of these, the book suggests an answer. It may be that the answers given in the book to these questions are not all-embracing. Nonetheless it will be found that the book points to a new way of looking at old things.

The thesis on the origin of Untouchability advanced in the book is an altogether novel thesis. It comprises the following propositions :-

- (1) There is no racial difference between the Hindus and the Untouchables;
- (2) The distinction between the Hindus and Untouchables in its original form, before the advent of Untouchability, was the distinction between Tribesmen and Broken Men from alien Tribes. It is the Broken Men who subsequently came to be treated as Untouchables;
- (3) Just as Untouchability has no racial basis so also has it no occupational basis;
- (4) There are two roots from which Untouchability has sprung:
 - (a) Contempt and hatred of the Broken Men as of Buddhists by the Brahmins:
 - (b) Continuation of beef-eating by the Broken Men after it had been given up by others.
- (5) In searching for the origin of Untouchability care must be taken to distinguish the Untouchables from the Impure. All orthodox Hindu writers have identified the Impure with the Untouchables. This is an error. Untouchables are distinct from the Impure.
- (6) While the Impure as a class came into existence at the time of the Dharma Sutras the Untouchables came into being much later than 400 A.D.

These conclusions are the result of such historical research as I have been able to make. The ideal which a historian should place before himself has been well defined by Goethe who said¹ :

“The historian’s duty is to separate the true from the false, the certain from the uncertain, and the doubtful from that which cannot be accepted ... Every investigator must before all things look upon himself as one who is summoned to serve on a jury. He has

1 Maxims and Reflections of Goethe, Nos. 453, 543.

only to consider how far the statement of the case is complete and clearly set forth by the evidence. Then he draws his conclusion and gives his vote, whether it be that his opinion coincides with that of the foreman or not."

There can be no difficulty in giving effect to Goethe's direction when the relevant and necessary facts are forthcoming. All this advice is of course very valuable and very necessary. But Goethe does not tell what the historian is to do when he comes across a missing link, when no direct evidence of connected relations between important events is available. I mention this because in the course of my investigations into the origin of Untouchability and other inter-connected problems I have been confronted with many missing links. It is true that I am not the only one who has been confronted with them. All students of ancient Indian history have had to face them. For as Mount Stuart Elphinstone has observed in Indian history "no *date* of a public event can be fixed before the invasion of Alexander: and no connected relation of the natural transactions can be attempted until after the Mohamedan conquest." This is a sad confession but that again does not help. The question is: "What is a student of history to do? Is he to cry halt and stop his work until the link is discovered?" I think not. I believe that in such cases it is permissible for him to use his imagination and intuition to bridge the gaps left in the chain of facts by links not yet discovered and to propound a working hypothesis suggesting how facts which cannot be connected by known facts might have been inter-connected. I must admit that rather than hold up the work, I have preferred to resort to this means to get over the difficulty created by the missing links which have come in my way.

Critics may use this weakness to condemn the thesis as violating the canons of historical research. If such be the attitude of the critics I must remind them that if there is a law which governs the evaluation of the results of historical results then refusal to accept a thesis on the ground that it is based on direct evidence is bad law. Instead of concentrating themselves on the issue of direct evidence *versus* inferential evidence and inferential evidence *versus* speculation, what the critics should concern themselves with is to examine (i) whether the thesis is based on pure conjecture, and (ii) whether the thesis is possible and if so does it fit in with facts better than mine does?

On the first issue I could say that the thesis would not be unsound merely because in some parts it is based on guess. My critics should remember that we are dealing with an institution the origin of which is lost in antiquity. The present attempt to explain the origin of Untouchability is not the same as writing history from texts which speak with certainty. It is a case of reconstructing history where there are no texts, and if there are, they have no direct bearing on the question. In such circumstances what one has to do is to strive to divine what the texts conceal or suggest without being even quite certain of having found the truth. The task is one of gathering survivals of the past, placing them together and making them tell the story of their birth. The task is analogous to that of the archaeologist who constructs a city from broken stones or of the palaeontologist who conceives an extinct animal from scattered bones and teeth or of a painter who reads the lines of the horizon and the smallest vestiges on the slopes of the hill to make up a scene. In this sense the book is a work of art even more than of history. The origin of Untouchability lies buried in a dead past which nobody knows. To make it alive is like an attempt to reclaim to history a city which has been dead since ages past and present it as it was in its original condition. It cannot but be that imagination and hypothesis should pay a large part in such a work. But that in itself cannot be a ground for the condemnation of the thesis. For without trained imagination no scientific inquiry can be fruitful and hypothesis is the very soul of science. As Maxim Gorky has said¹ :

“Science and literature have much in common; in both, observation, comparison and study are of fundamental importance; the artist like the scientist, needs both imagination and intuition. Imagination and intuition bridge the gaps in the chain of facts by its as yet undiscovered links and permit the scientist to create hypothesis and theories which more or less correctly and successfully direct the searching of the mind in its study of the forms and phenomenon of nature. They are of literary creation; the art of creating characters and types demands imagination, intuition, the ability to make things up in one’s own mind”.

It is therefore unnecessary for me to apologize for having resorted to constructing links where they were missing. Nor can my thesis be said to be vitiated on that account for nowhere is the construction of

¹ *Literature and life*. A selection from the writings of Maxim Gorky.

links based on pure conjecture. The thesis in great part is based on facts and inferences from facts. And where it is not based on facts or inferences from facts, it is based on circumstantial evidence of presumptive character resting on considerable degree of probability. There is nothing that I have urged in support of my thesis which I have asked my readers to accept on trust. I have at least shown that there exists a preponderance of probability in favour of what I have asserted. It would be nothing but pedantry to say that a preponderance of probability is not a sufficient basis for a valid decision.

On the second point with the examination of which, I said, my critics should concern themselves what I would like to say is that I am not so vain as to claim any finality for my thesis. I do not ask them to accept it as the last word. I do not wish to influence their judgement. They are of course free to come to their own conclusion. All I say to them is to consider whether this thesis is not a workable and therefore, for the time being, a valid hypothesis if the test of a valid hypothesis is that it should fit in with all surrounding facts, explain them and give them a meaning which in its absence they do not appear to have. I do not want anything more from my critics than a fair and unbiased appraisal.

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PART I
A COMPARATIVE SURVEY

- Chapter I.* Untouchability Among Non-Hindus
Chapter II. Untouchability Among Hindus

CHAPTER I

UNTOUCHABILITY AMONG NON-HINDUS

WHO are the Untouchables and what is the origin of Untouchability? These are the main topics which it is sought to investigate and the results of which are contained in the following pages. Before launching upon the investigation it is necessary to deal with certain preliminary questions. The first such question is : Are the Hindus the only people in the world who observe Untouchability? The second is: If Untouchability is observed by Non-Hindus also how does Untouchability among Hindus compare with Untouchability among non-Hindus? Unfortunately no such comparative study has so far been attempted. The result is that though most people are aware of the existence of Untouchability among the Hindus they do not know what are its unique features. A definite idea of its unique and distinguishing features is however essential not merely for a real understanding of the position of the Untouchables but also as the best means of emphasising the need of investigating into their origin.

It is well to begin by examining how the matter stood in Primitive and Ancient Societies. Did they recognize Untouchability? At the outset it is necessary to have a clear idea as to what is meant by Untouchability. On this point, there can be no difference of opinion. It will be agreed on all hands that what underlies Untouchability is the notion of defilement, pollution, contamination and the ways and means of getting rid of that defilement.

Examining the social life of Primitive Society¹ in order to find out whether or not it recognized Untouchability in the sense mentioned above there can be no doubt that Primitive Society not only did believe in the notion of defilement but the belief had given rise to a live system of well-defined body of rites and rituals.

¹ The facts relating to pollution among non-Hindus are drawn from "*Hastings Encyclopedia of Religion and Ethics*", Vol. X, Article Purification, pp. 455-504.

Primitive Man believed that defilement was caused by

- (1) the occurrences of certain events;
- (2) contact with certain things; and
- (3) contact with certain persons.

Primitive Man also believed in the transmission of evil from one person to another. To him the danger of such transmission was peculiarly acute at particular times such as the performance of natural functions, eating, drinking, etc. Among the events the occurrence of which was held by Primitive Man as certain to cause defilement included the following :—

- (1) Birth
- (2) Initiation
- (3) Puberty
- (4) Marriage
- (5) Cohabitation
- (6) Death

Expectant mothers were regarded as impure and a source of defilement to others. The impurity of the mother extended to the child also.

Initiation and puberty are stages which mark the introduction of the male and the female to full sexual and social life. They were required to observe seclusion, a special diet, frequent ablutions, use of pigment for the body and bodily mutilation such as circumcision. Among the American Tribes not only did the initiates observe a special dietary but also took an emetic at regular intervals.

The ceremonies which accompanied marriage show that marriage was regarded by the Primitive Man as impure. In some cases the bride was required to undergo intercourse by men of the tribe as in Australia or by the chief or the medicine man of the tribe as in America or by the friends of the grooms as among the East African Tribes. In some cases there takes place the tapping of the bride by a sword by the bridegroom. In some cases, as among the Mundas, there takes place marriage to a tree before marriage with the bridegroom. All these marriage observances are intended to neutralize and prepare the individual against the impurity of marriage.

To the Primitive Man the worst form of pollution was death. Not only the corpse, but the possession of the belongings of the deceased were regarded as infected with pollution. The widespread custom of placing implements, weapons, etc., in the grave along with the corpse

indicates that their use by others was regarded as dangerous and unlucky.

Turning to pollution arising out of contact with objects Primitive Man had learned to regard certain objects as sacred and certain others as profane. For a person to touch the sacred was to contaminate the sacred and to cause pollution to it. A most striking example of the separation of the sacred and the profane in Primitive Society is to be found among the Todas, the whole of whose elaborate ritual and (it would not be too much to say) the whole basis of whose social organisation is directed towards securing the ceremonial purity of the sacred herds, the sacred dairy, the vessels, and the milk, and of those whose duty it is to perform connected rites and rituals. In the dairy, the sacred vessels are always kept in a separate room and the milk reaches them only by transfer to and from of an intermediate vessel kept in another room. The dairyman, who is also the priest, is admitted to office only after an elaborate ordination, which in effect is a purification. He is thereby removed from the rank of ordinary men to a state of fitness for sacred office. His conduct is governed by regulations such as those which permit him to sleep in the village and only at certain times, or that which entails that a dairyman who attends a funeral should cease from that time to perform his sacred function. It has, therefore, been conjectured that the aim of much of the ritual is to avert the dangers of profanation and prepare or neutralise the sacred substance for consumption by those who are themselves unclean.

The notion of the sacred was not necessarily confined to objects. There were certain classes of men who were sacred. For a person to touch them was to cause pollution. Among the Polynesians, the tabu character of a Chief is violated by the touch of an inferior, although in this case the danger falls upon the inferior. On the other hand, in Efate, the 'sacred man' who comes into contact with Namin (ceremonial uncleanness) destroys his sacredness. In Uganda, before building a temple, the men were given four days in which to purify themselves. On the other hand, the Chief and his belongings are very often regarded as sacred and, therefore, as dangerous to others of an inferior rank. In the Tonga island, anyone who touches a Chief contacted tabu; it was removed by touching the sole of the foot of a superior chief. The sacred quality of the chief in Malaya Peninsula also resided in the Royal Regalia and anyone touching it was invited with serious illness or death.

Contact with strange people was also regarded as a source of Untouchability by the Primitive Man. Among the Bathonga, a tribe in South Africa, it is belived that those who travel outside their own country are peculiarly open to danger from the influence of foreign spirits and in particular from demoniac possession. Strangers are tabu because, worshipping strange gods, they bring strange influence with them. They are, therefore, fumigated or purified in some other way. In the Dieri and neighbouring tribes even a member of the tribe returning home after a journey was treated as a stranger and no notice was taken of him until he sat down.

The danger of entering a new country is as great as that which attaches to those who come from thence. In Australia, when one tribe approaches another, the members carry lighted sticks to purify the air, just as the Spartan kings in making war had sacred fires from the altar carried before them to the frontier.

In the same manner, those entering a house from the outside world were required to perform some ceremony, even if it were only to remove their shoes, which would purify the incomer from the evil with which otherwise he might contaminate those within, while the threshold, door-posts and lintel—important as points of contact with outer world—are smeared with blood or sprinkled with water when any member of household or of the community has become a source of pollution, or a horse-shoe is suspended over the door to keep out evil and bring goodluck.

Of course, the rites and ceremonies connected with birth, death, marriage, etc., do not positively and unequivocally suggest that they were regarded as sources of pollution. But that pollution is one element among many others is indicated by the fact that in every case there is segregation. There is segregation and isolation in birth, initiation, marriage, death and in dealing with the sacred and the strange.

In birth the mother is segregated. At puberty and initiation there is segregation and seclusion for a period. In marriage, from the time of betrothal until the actual ceremony bride and bride-groom do not meet. In menstruation a woman is subjected to segregation. Segregation is most noticeable in the case of death. There is not only isolation of the dead-body but there is isolation of all the relatives of the dead from the rest of the community. This segregation is evidenced by the growth of hair and nail and wearing of old clothes by the relatives of the dead which show that they are not served by

the rest of the society such as the barber, washerman, etc. The period of segregation and the range of segregation differ in the case of death but the fact of segregation is beyond dispute. In the case of defilement of the sacred by the profane or of defilement of the kindred or by intercourse with the non-kindred there is also the element of segregation. The profane must keep away from the sacred. So the kindred must keep away from the non-kindred. It is thus clear that in Primitive Society pollution involved segregation of the polluting agent.

Along with the development of the notion of defilement, Primitive Society had developed certain purificatory media and purificatory ceremonies for dispelling impurity.

Among the agents used for dispelling impurity are water and blood. The sprinkling of water and the sprinkling of blood by the person defiled were enough to make him pure. Among purificatory rites were included changing of clothes, cutting hair, nail, etc., sweat-bath, fire, fumigation, burning of incense and fanning with the bough of a tree.

These were the means of removing impurity. But Primitive Society had another method of getting rid of impurity. This was to transfer it to another person. It was transferred to some one who was already tabu.

In New Zealand, if anyone touched the head of another, the head being a peculiarly 'sacred' part of the body, he became tabu. He purified himself by rubbing his hands on fernroot, which was then eaten by the head of the family in female line. In Tonga, if a man ate tabued food he saved himself from the evil consequences by having the foot of a chief placed on his stomach.

The idea of transmission also appears in the custom of the scapegoat. In Fiji, a tabued person wiped his hands on a pig, which became sacred to the chief, while in Uganda, at the end of the period of mourning for a king a 'scapegoat' along with a cow, a goat, a dog, a fowl and the dust and fire from the king's house was conveyed to the Bunyoro frontier, and there the animals were maimed and left to die. This practice was held to remove all uncleanness from the king and queen.

Such are the facts relating to the notion of pollution as it prevailed in Primitive Society.

Turning to Ancient Society the notion of pollution prevalent therein was not materially different from what was prevalent in Primitive Society. There is difference as to the sources of pollution. There is difference regarding purificatory ceremonies. But barring these differences the pattern of pollution and purification in Primitive and Ancient Society is the same.

Comparing the Egyptian system of pollution with the Primitive system there is no difference except that in Egypt it was practised on an elaborate scale.

Among the Greeks the causes of impurity were bloodshed, the presence of ghost and contact with death, sexual intercourse, childbirth, the evacuation of the body, the eating of certain food such as pea-soup, cheese and garlic, the intrusion of unauthorised persons into holy places, and, in certain circumstances, foul speech and quarrelling. The purificatory means, usually called *kaopoia* by Greeks, were lustral water, sulphur, onions, fumigation and fire, incense, certain boughs and other vegetative growths, pitch, wool, certain stones and amulets, bright things like sunlight and gold, sacrificed animals, especially the pig and of these specially the blood and the skin; finally, certain festivals and festival rites particularly the ritual of cursing and the scapegoat. One unusual method was the cutting of the hair of the polluted person or sacrificial communion with the deity.

A striking feature of the Roman notion of pollution and purification is to be found in the belief of territorial and communal pollution and purification. Parallel to the *lustratio* of the house is the periodical purificatory ritual applied to a country district (Pagi). The *lustratio pagi* consisted in a religious procession right round its boundaries, with sacrifice. There seems to have been in ancient days a similar procession round the walls of the city, called *amburbium*. In historical times special purification of the City was carried out when a calamity called for it, e.g. 'after the early disasters in the Second Punic War. The object of all such expiations was to seek reconciliation with the gods. Lustral ceremony accompanied the foundation of a colony. The *Therminalia* protective of boundaries, and the *Compitalia* of streets in the City were also probably lustral in their origin. Down to the late period, priests called *Luperci* perambulated in the boundaries of the earliest Rome, the settlement on the Palatinate. Earlier there was an annual solemn progress round

the limits of the most ancient territory of the Primitive City. It was led by the Archaic priesthood called the *Arval* brotherhood. The ceremony was called *ambravalia* and it was distinctly piacular. When Roman territory was expanded no corresponding extension of the lustral rite seems ever to have been made. These round-about piacular surveys were common elsewhere, inside as well as outside Italy and particularly in Greece. The solemn words and prayers of the traditional chant, duly gone through without slip of tongue, seem to have had a sort of magical effect. Any error in the pronouncement of these forms would involve a need of reparation, just as in the earliest Roman legal system, the mispronunciation of the established verbal forms would bring loss of the lawsuit.

Other forms of quaint ancient ritual were connected with the piacular conception. The *Salii*, ancient priests of Mars, made a journey at certain times round a number of stations in the City. They also had a 'cleaning of the weapons' and a 'cleaning of the trumpets' which testify to a primitive notion that the efficiency of the army's weapons required purification. The 'washing' (lustrum) with which the census ended was in essence military; for it was connected with the *Comitia Centuriata*, which is merely the army in civil garb. *Lustratio exercitus* was often performed when the army was in the field, to remove superstitious dread which sometimes attacked it at other times, it was merely prophylactic. There was also a lustration of the fleet.

Like all Primitive people the Hebrews also entertained the notion of defilement. The special feature of their notion of defilement was the belief that defilement was also caused by contact with the carcass of unclean animals, by eating a carcass or by contact with creeping things, or by eating creeping things and by contact with animals which are always unclean such as "every beast which divideth the hoof, and is not cloven footed, nor cheweth the cud...whatsoever goeth upon his paws, among all manner of beasts that go on all four". Contact with any unclean person was also defilement to the Hebrews. Two other special features of the Hebrew notion of defilement may be mentioned. The Hebrews believed that defilement might be caused to persons by idolatrous practices or to a land by the sexual impurities of the people.

On the basis of this survey, we can safely conclude that there are no people Primitive or Ancient who did not entertain the notion of pollution.

CHAPTER II

UNTOUCHABILITY AMONG HINDUS

IN the matter of pollution there is nothing to distinguish the Hindus from the Primitive or Ancient peoples. That they recognized pollution is abundantly clear from the *Manu Smriti*. *Manu* recognises physical defilement and also notional defilement.

Manu treated birth,¹ death and menstruation² as sources of impurity. With regard to death, defilement was very extensive in its range. It followed the rule of consanguinity. Death caused defilement to members of the family of the dead person technically called *Sapindas* and *Samanodakas*? It not only included maternal relatives such as maternal uncle⁴ but also remote relatives.⁵ It extended even to nonrelatives such as (1) teacher⁶, (2) teacher's⁷ son, (3) teacher's⁸ wife, (4) pupil,⁹ (5) fellow¹⁰ student, (6) *Shrotriya*,¹¹ (7) king,¹² (8) friend,¹³ (9) members of the household,¹⁴ (10) those who carried the corpse,¹⁵ and (11) those who touched the corpse.¹⁶

Anyone within the range of defilement could not escape it. There were only certain persons who were exempt. In the following verses *Manu* names them and specifies the reasons why he exempts them :—

1. Chapter V. 58, 61- 63, 71, 77, 79.
2. Chapter III, 45-46 : IV 40-41, 57, 208 ; V. 66,85,108.
3. Chapter V. 58, 60, 75-77, 83-94.
4. Chapter V. 81.
5. Chapter V. 78.
6. Chapter V. 65, 80, 82.
7. Chapter V. 80.
8. Chapter V. 80.
9. Chapter V. 81.
10. Chapter V. 71.
11. Chapter V. 81.
12. Chapter V. 82.
13. Chapter V. 82.
14. Chapter V. 81.
15. Chapter V. 64-65, 85.
16. Chapter V. 64, 85

“V.93. The taint of impurity does not fall on kings and those engaged in the performance of a vow, or of a Sattra; for the first are seated on the throne of India, and the (last two are) ever pure like Brahman.

94. For a king, on the throne of magnanimity, immediate purification is prescribed, and the reason for that is that he is seated (there) for the protection of (his) subjects.

95. (The same rule applies to the kinsmen) of those who have fallen in a riot or a battle, (of those who have been killed) by lightning or by the king, and for cows and Brahmins, and to those whom the king wishes to be pure (in spite of impurity).

96. A king is an incarnation of the eight guardian deities of the world, the Moon, the Fire, the Sun, the Wind, Indra, the Lords of wealth and water (Kubera and Varuna) and Yama.

97. Because the king is pervaded by those lords of the world, no impurity is ordained for him for purity and impurity of mortals is caused and removed by those lords of the world.”

From this it is clear that the king, the kinsmen of those who have fallen in a noble cause as defined by Manu and those whom the king chose to exempt were not affected by the normal rules of defilement. Manu's statement that the Brahmin was 'ever pure' must be understood in its usual sense of exalting the Brahmin above everything. It must not be understood to mean that the Brahmin was free from defilement. For he was not. Indeed besides being defiled by births and deaths the Brahmin also suffered defilement on grounds which did not affect the Non-Brahmins. The Manu Smriti is full of tabus and don'ts which affect only the Brahmins and which he must observe and failure to observe which makes him impure.

The idea of defilement in Manu is real and not merely notional. For he makes the food offered by the polluted person unacceptable.

Manu also prescribes the period of defilement. It varies. For the death of a Sapinda it is ten days. For children three days. For fellow students one day. Defilement does not vanish by the mere lapse of the prescribed period. At the end of the period there must be performed a purificatory ceremony appropriate to the occasion.

For the purposes of purification Manu treats the subject of defilement from three aspects : (1) Physical defilement, (2) notional

or psychological defilement, and (3) ethical defilement. The rule¹ for the purification of ethical defilement which occurs when a person entertains evil thoughts are more admonitions and exhortations. But the rites for the removal of notional and physical defilement are the same. They include the use of water.² earth.³ cow's urine,⁴ the kusa grass⁵ and ashes.⁶ Earth, cow's urine, Kusa grass and ashes are prescribed as purificatory agents for removing physical impurities caused by the touch of inanimate objects. Water is the chief agent for the removal of notional defilement. It is used in three ways (1) sipping, (2) bath, and (3) ablution.⁷ Later on *panchagavya* became the most important agency for removing notional defilement. It consists of a mixture of the five products of the cow, namely, milk, urine, dung, curds and butter.

In Manu there is also provision for getting rid of defilement by transmission through a scapegoat⁸ namely by touching the cow or looking at the sun after sipping water.

Besides the individual pollution the Hindus believe also in territorial and communal pollution and purification very much like the system that prevailed among the early Romans. Every village has an annual *jatra*. An animal, generally a he buffalo, is purchased on behalf of the village. The animal is taken round the village and is sacrificed, the blood is sprinkled round the village and towards the end toe meat is distributed among the villagers. Every Hindu, every Brahmin even though he may not be a beef eater is bound to accept his share of the meat. This is not mentioned in any of the Smritis but it has the sanction of custom which among the Hindus is so strong that it always overrides law.

II

If one could stop here, one could well say that the notion of defilement prevalent among the Hindus is not different from that which obtained in Primitive and in Ancient Societies. But one cannot stop here. For there is another form of Untouchability observed by

1. Chapter V. 105-109; 127-128.
2. Chapter V. 127.
3. Chapter V. 134-136.
4. Chapter V. 121, 124.
5. Chapter V. 115.
6. Chapter V. 111.
7. Chapter V. 143.
8. Chapter V. 87.

the Hindus which has not yet been set out. It is the hereditary Untouchability of certain communities. So vast is the list of such communities that it would be difficult for an individual with his unaided effort to compile an exhaustive list. Fortunately such a list was prepared by the Government of India in 1935 and is attached to the Orders-in-Council issued under the Government of India Act of 1935. To this Order-in-Council there is attached a Schedule. The Schedule is divided into nine parts. One part refers to one province and enumerates the castes, races or tribes or parts of or groups within steps which are deemed to be Untouchables in that province either in the whole of that province or part thereof. The list may be taken to be both exhaustive and authentic. To give an idea of the vast number of communities which are regarded as hereditary Untouchables by the Hindus. I reproduce below the list given in the Order-in-Council.

SCHEDULE

PART I. - MADRAS

(1) Scheduled Castes throughout the Province :—

Adi-Andhra.	Gosangi.	Paidi.
Adi-Dravida.	Haddi	Painda.
Adi-Karnataka.	Hasla	Paky.
Ajila.	Holeya.	Pallan.
Arunthuthiyar.	Jaggali.	Pambada.
Baira.	Jambuvulu.	Pamidi.
Bakuda.	Kalladi	Panchama.
Bandi.	Kanakkan	Paniyan.
Bariki.	Kodalo.	Panniandi.
Battada.	Koosa.	Paraiyan.
Bavuri	Koraga.	Parvan.
Bellara.	Kudumban	Pulayan.
Bygari	Kuravan.	Puthirai Vanan.
Chachati.	Madari.	Raneyar.
Chakkiliyan.	Madiga.	Relli.
Chalvadi.	Maila	Samagara.
Chamar.	Mala.	Samban
Chandala.	Mala Dasu.	Sapari.
Cheruman.	Matangi.	Semman.
Dandasi.	Moger.	Thoti.
Devendrakulathan.	Muchi.	Tiruvalluvar.
Ghasi.	Mundala.	Valluvan.
Godagali.	Nalakcyava.	Valmiki.
Godari.	Nayadi.	Vettuvan.
Godda.	Paga dai	

(2) Scheduled Castes throughout the Provinces except in any special constituency constituted under the Government of India Act, 1935, for the election of a representative of backward areas and backward tribes to the Legislative Assembly of the Province :—

Arnadan.	Kattunayakan.	Kuruman.
Dombo.	Kudiya.	Malasar.
Kadan.	Kudubi.	Mavilan.
Karimpalan.	Kurichchan.	Pano.

PART II.—BOMBAY

Scheduled Castes :—

(1) Throughout the Province :—

Asodi.	Dhor.	Mang Garudi.
Bakad.	Garode.	Maghval, or Menghwar.
Bhambi.	Halleer.	Mini Madig.
Bhangi.	Halsar, or Haslar.	Mukri.
Chakrawadya-Dasar.	Hulsavar.	Nadia.
Chalvadi.	Holaya.	Shenva, or Shindhava.
Chambhar, or Mochi gar, or	Khalpa.	Shinghdav, or Shingadya.
Samagar.	Kolcha, or Kolgha.	Sochi.
Chena-Dasaru.	Koli-Dhor.	Timali.
Chuhar, or Chuhra.	Lingader.	Turi.
Dakaleru.	Madig, or Mang.	Vankar.
Dhed.	Mahar.	Vitholia.
Dhegu-Megu.		

(2) Throughout the Province except in the Ahmedabad, Kaira, Broach and Panch Mahals and Surat Districts—Mochi.

(3) In the Kanara district—Kotegar.

PART III.—BENGAL

Scheduled Castes throughout the Province :—

Agaria.	Bhumij.	Gonrhi.
Bagdi.	Bind.	Hadi.
Bahelia.	Binjhia.	Hajang.
Baiti.	Chamar.	Halalkhor.
Bauri.	Dhcnuar.	Hari.
Bediya.	Dhoba.	Ho.
Beldar.	Doai.	Jalia Kaibartta.
Berua.	Dom.	Jhalo Malo, or Malo.
Bhatiya.	Dosadh.	Kadar.
Bhuimali.	Garo.	Kalpahariya.
Bhuiya.	Ghasi.	Kan.

Kandh.	Lodha.	Oraon.
Kandra.	Lahor.	Paliya.
Kaora.	Mahli.	Pan.
Kapuria.	Mai.	Pasi.
Karenga.	Mahar.	Patni.
Kastha.	Mallah.	Pod.
Kaur.	Mech.	Rabha.
Khaira.	Mehtor.	Rajbanshi.
Khatik.	Muchi.	Rajwar.
Koch.	Munda.	Santal.
Konai.	Musahar.	Sunri.
Konwar.	Nagesia.	Tiyar.
Kora.	Namasudra.	Turi.
Kotal.	Nat.	
Lalbegi,	Nuniya.	

PART IV.—UNITED PROVINCES

Scheduled Castes :—

(1) Throughout the Province :—

Agariva.	Chamar.	Kharwar (except
Aheriya.	Chero.	Benbansi)
Badi.	Dabagar.	Khatik.
Badhik.	Dhangar.	Kol.
Baheliya.	Dhanuk (Bhangi).	Korwa.
Bajaniya.	Dharkar.	Lalbegi.
Bajgi.	Dhobi.	Majhawar.
Balahar.	Dom.	Nat.
Balmiki.	Domar.	Pankha.
Banmanus.	Gharami.	Parahiya.
Bansphor.	Ghasiya.	Pasi.
Barwar.	Gual.	Patari.
Basor.	Habura.	Rawat.
Bawariya.	Hari.	Saharya.
Beldar.	Hela.	Sanaurhiya.
Bengali.	Khairaha.	Sansiya.
Berya.	Kalabaz.	Shilpkar.
Bhantu.	Kanjar.	Tharu.
Bhuiya.	Kapariya.	Turaiha.
Bhuiyar.	Karwal.	
Boriya.	Kharot.	

(2) Throughout the Province except in the Agra, Meerut and Rohilkhand divisions—Kori.

PART V—PUNJAB

Scheduled Castes throughout the Province :—

Ad Dharmis.	Marija, or Marecha.	Khatik.
Bawaria.	Bengali.	Kori.
Chamar.	Barar.	Nat.
Chuhra, or Balmiki.	Bazigar.	Pasi.
Dagi and Koli.	Bhanjra.	Perna.
Dhumna.	Chanal.	Sepela.
Od.	Dhanak.	Sirkiband.
Sansi.	Gagra.	Megha.
Sarera.	Gandhila.	Ramdasis.

PART VI.—BIHAR

Scheduled Castes :—

(1) Throughout the Province :—

Chamar.	Halalkhor.	Mochi.
Chaupal.	Hari.	Musahar.
Dhobi.	Kanjar.	Nat.
Dusadh.	Kurariar.	Pasi
Dom.	Lalbegi.	

(2) In the Patna and Tirhut divisions and the Bhagalpur, Monghyr, Palamau and Purnea districts :—

Bauri.	Bhumij.	Rajwar.
Bhogta.	Ghasi.	Turi.
Bhauya.	Pan.	

(3) In the Dhanbad sub-division of the Manbhum district and the Central Manbhum general rural constituency, and the Purulia and Raghunathpur municipalities :—

Bauri.	Ghasi.	Rajwar.
Bhogta.	Pan.	Turi.
Bhuiya.		

PART VH.—CENTRAL PROVINCES AND BERAR

<i>Scheduled Castes</i>	<i>Localities</i>
Basor, or Burud ..)	Throughout the Province.
Chamar ..)	
Dom ..)	
Ganda)	
Mang ..)	
Mehtar or Bhangi)	
Mochi ..)	
Satnami ..)	In the Bilaspur district.
Audhelia ..	
Bahna ..	
	In the Amraoti district

<i>Scheduled Castes</i>	<i>Localities</i>
Balahi, or Balai.	.. In the Berar division and the Balaghat, Bhandara Belul, Chanda, Chhindwara, Hoshangabad, Jabulpore, Mandla, Nagpur, Nimar, Saugor and Wardha districts.
Bedar	.. In the Akola, Amraoti and Buldhana districts.
Chadar	.. In the Bhandara and Saugor districts.
Chauhan	.. In the Durg district.
Dahayat	.. In the Damoh sub-division of the Saugor district.
Dewar	.. In the Bilaspur, Durg and Raipur districts.
Dhanuk	.. In the Saugor district, except in the Damoh sub-division thereof.
Dhimar	.. In the Bhandara district.
Dhobi	.. In the Bhandara, Bilaspur, Raipur and Saugor districts and the Hoshangabad and Seoni-Malwa tahsils of the Hoshangabad district.
Dohar	.. In the Berar division and the Balaghat, Bhandara, Chanda, Nagpur and Wardha districts.
Ghasia	.. In the Berar division and in the Balaghat, Bhandara, Bilaspur, Chanda, Durg, Nagpur, Raipur and Wardha districts.
Holiya	.. In the Balaghat and Bhandara districts.
Jangam	.. In the Bhandara district.
Kaikari	.. In the Berar division, and in Bhandara, Chanda, Nagpur and Wardha districts.
Katia	.. In the Berar division, in the Balaghat, Betul, Bhandara, Bilaspur, Chanda, Durg, Nagpur, Nimar, Raipur and Wardha districts, in the Hoshangabad and Seoni-Malwa tahsils of the Hoshangabad district, in the Chhindwara district, except in the Seoni sub-division thereof, and in the Saugor district, except in the Damoh sub-division thereof.
Khangar	.. In the Bhadara, Buldhana and Saugor districts and the Hoshangabad and Seoni Malwa tahsils of the Hoshangabad district.
Khatik	.. In the Berar division, in the Balaghat, Bhandara, Chanda, Nagpur and Wardha districts, in the Hoshangabad tahsil of the Hoshangabad district, in the Chhindwara district, except in the Seoni sub-division thereof, and in the Saugor district, except in the Damoh sub-division thereof.
Koli	.. In the Bhandara and Chanda districts.
Kori	.. In the Amraoti, Balaghat, Betul, Bhandara, Buldhana, Chhindwara, Jubulpore, Mandla, Nimar, Raipur and Saugor districts, and in the Hoshangabad district, except in the Harda and Sohagpur tahsils thereof.
Kumhar	.. In the Bhandara and Saugor districts and the Hoshangabad and Seoni-Malwa tahsils of the Hoshangabad district.

<i>Scheduled Castes</i>		<i>Localities</i>
Madgi	..	In the Berar division and in the Balaghat, Bhandara, Chanda, Nagpur and Wardha districts.
Mala	..	In the Balaghat, Betul, Chhindwara, Hoshangabad, Jabulpore Mandla, Nimar and Saugor districts.
Mehra or Mahar	..	Throughout the Province, except in the Harda and Sohagpur tahsils of the Hoshangabad district.
Nagarchi	..	In the Balaghat, Bhandara, Chhindwara, Mandla, Nagpur and Raipur districts.
Ojha	..	In the Balaghat, Bhandara and Mandla districts and the Hoshangabad tahsil of the Hoshangabad district
Panka	..	In the Berar division, in the Balaghat, Bhandara, Bilaspur, Chanda, Durg, Nagpur, Raipur, Saugor and Wardha districts and in the Chhindwara district, except in the Seoni subdivision thereof.
Pardhi	..	In the Narsinghpura sub-division of the Hoshangabad district.
Pradhan	..	In the Berar division, in the Bhandara, Chanda, Nagpur, Nimar, Raipur and Wardha districts and in the Chhindwara district, except in the Seoni sub-division thereof.
Rajjhar	..	In the Sohagpur tahsil of the Hoshangabad district

PART VIII. - ASSAM

Scheduled Castes :-

(1) In the Assam Valley :-

Namasudra.	Hira.	Mchitar, or Bhangi.
Kaibartta.	Lalbegi.	Bansphor.
Bania, or Brittil-Bania.		

(2) In the Surma Valley :-

Mali, or Bhuimali.	Sutradhar.	Kaibartta, or Jaliya.
Dhupi, or Dhobi.	Muchi.	Lalbegi.
Dugla, or Dholi.	Patni.	Mehtar, or Bhangi.
Jhalo and Malo, Mahara.	Namasudra.	Bansphor.

PART IX. - ORISSA

Scheduled Castes :-

(1) Throughout the Province :-

Adi-Andhra.	Chamar.	Ghusuria.
Audhelia.	Chandala.	Godagali.
Bariki.	Dandasi.	Godari.
Bansor, or Burud.	Dewar.	Godra.
Bavuri.	Dhoba or Dhobi.	Gokha.
Chachati.	Ganda.	Haddi, or Hari.

Irika.	Mala.	Panchama.
Jaggali.	Mang.	Panka
Kandra.	Mangan.	Relli.
Katia.	Mehra, or Mahar.	Sapari.
Kela.	Mehtar, or Bhangi.	Satnami.
Kodalo.	Mochi or Muchi.	Siyal.
Madari.	Paidi.	Valmiki.
Madiga.	Painda.	
Mahuria.	Pamidi.	

(2) Throughout the Province except in the Khondmals district, the district of Sambalpur and the areas transferred to Orissa under the provisions of the Government of India (Constitution of Orissa) Order, 1936, from the Vizagapatam and Ganjam Agencies in the Presidency of Madras :-

Pan, or Pano.

(3) Throughout the Province except in the Khondmals district and the areas so transferred to Orissa from the said Agencies :-

Dom, or Dambo.

(4) Throughout the Province except in the district of Sambalpur :

Bauro.	Bhumij.	Turi.
Bhuiya.	Ghasi, or Ghasia.	

(5) In the Nawapara sub-division of the district of Sambalpur :-

Kori.	Nagarchi.	Pradhan.
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This is a very terrifying list. It includes 429 communities. Reduced to numbers it means that today there exist in India 50-60 millions of people whose mere touch causes pollution to the Hindus. Surely, the phenomenon of Untouchability among primitive and ancient society pales into insignificance before this phenomenon of hereditary Untouchability for so many millions of people which we find in India. This type of Untouchability among Hindus stands in a class by itself. It has no parallel in the history of the world. It is unparalleled not merely by reason of the colossal numbers involved which exceed the number of great many nations in Asia and in Europe but also on other grounds.

There are some striking features of the Hindu system of Untouchability affecting the 429 Untouchable communities which are not to be found in the custom of Untouchability as observed by Non-Hindu communities, primitive or ancient.

The isolation prescribed by Non-Hindu societies as a safeguard against defilement, if it is not rational, is at least understandable. It

is for specified reasons such as birth, marriage, death, etc., But the isolation prescribed by Hindu society is apparently for no cause.

Defilement as observed by the Primitive Society was of a temporary duration which arose during particular times such as the performance of natural functions, eating, drinking, etc. or a natural crisis in the life of the individual such, as birth, death, menstruation, etc. After the period of defilement was over and after the purificatory ceremonies were performed the defilement vanished and the individual became pure and associable. But the impurity of the 50-60 millions of the Untouchables of India, quite unlike the impurity arising from birth, death, etc., is permanent. The Hindus who touch them and become polluted thereby can become pure by undergoing purificatory ceremonies. But there is nothing which can make the Untouchables pure. They are born impure, they are impure while they live, they die the death of the impure, and they give birth to children who are born with the stigma of Untouchability affixed to them. It is a case of permanent, hereditary stain which nothing can cleanse.

In the third place, Non-Hindu societies which believed in defilement isolated the individuals affected or at the most those closely connected with them. But the Untouchability among the Hindus involves the isolation of a class—a class which today numbers about 50 to 60 million people.

In the fourth place, Non-Hindu societies only *isolated* the affected individuals. They did not *segregate* them in separate quarters. The Hindu society insists on segregation of the Untouchables. The Hindu will not live in the quarters of the Untouchables and will not allow the Untouchables to live inside Hindu quarters. This is a fundamental feature of Untouchability as it is practised by the Hindus. It is not a case of social separation, a mere stoppage of social intercourse for a temporary period. It is a case of territorial segregation and of a *cordon sanitaire* putting the impure people inside a barbed wire into a sort of a cage. Every Hindu village has a ghetto. The Hindus live in the village and the Untouchables in the ghetto.

Such is the Hindu system of Untouchability. Who can deny that it is not altogether different from what is found to exist among Non-Hindu societies? That Untouchability among Hindus is a unique phenomenon is beyond question. Persons were treated by non-Hindu communities as impure but as individuals. Never a whole class was treated as impure. But their impurity was of a temporary duration and was curable by the performance of some purificatory rites. There has

never been a case of permanent impunity based on the rule 'once impure always impure'. Persons were treated as impure by Non-Hindu Communities and they were even cut off from social intercourse. But there has never been a case of persons having been put into permanent segregation camps. A whole body of people have been treated as impure by Non-Hindu communities. But they were strangers outside the fold of the kindred. There has never been a case of a people treating a section of their own people as permanently and hereditarily impure.

Untouchability among Hindus is thus a unique phenomenon, unknown to humanity in other parts of the world. Nothing like it is to be found in any other society- primitive, ancient or modern. The many problems that arise out of a study of Untouchability and which call for investigation may be reduced to two :

- (1) Why do the Untouchables live outside the village?
- (2) What made their impurity permanent, and ineradicable?

The following pages are devoted to finding answers to these two questions.

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PART II
PROBLEM OF HABITAT

- Chapter III.* Why do the Untouchables Live Outside the Village ?
- Chapter IV.* Are the Untouchables Broken Men ?
- Chapter V.* Are there Parallel Cases ?
- Chapter VI.* How did Separate Settlements for Broken Men
Disappear Elsewhere ?

CHAPTER III
WHY DO THE UNTOUCHABLES LIVE
OUTSIDE THE VILLAGE ?

THAT the Untouchables live outside the village is so notorious a fact that it must be taken to be within the cognizance even of those whose knowledge about them is not very profound. Yet, nobody has thought that this was a serious question calling for satisfactory answer. How did the Untouchables come to live outside the village? Were they declared to be Untouchables first and then deported out of the village and made to live outside? Or were they from the very beginning living outside the village and were subsequently declared to be Untouchables? If the answer is that they were living outside the village from the very beginning, there arises a further question, namely, what can be the reason for it ?

As the question of the separate settlement of the Untouchables has never been raised before, naturally there exists no theory as to how the Untouchables came to live outside the village. There is, of course, the view of the Hindu Shastras and if one wants to dignify it by calling it a theory one may do so. The Shastras of course say that the *Antyajas* should live and have their abode outside the village. For instance, Manu says :

- “X. 51. But the dwellings of the *Chandalas* and the *Shvapakas* shall be outside the village, they must be made *Apapratras* and their wealth (shall be) dogs and donkeys.
- X. 52. Their dress (shall be) the garments of the dead, (they shall eat) their food from broken dishes, black iron (shall be) their ornaments and they must always wander from place to place.
- X. 53. A man who fulfils a religious duty, shall not seek intercourse with them; their transactions (shall be) among themselves and their marriages with their equals.

- X. 54. Their food shall be given to them by others (than an Aryan giver) in a broken dish; at night they shall not walk about in village and in towns.
- X. 55. By day they may go about for the purpose of their work, distinguished by marks at king's command, and they shall carry out the corpses (of persons) who have no relatives; that is a settled rule.
- X. 56. By the King's order they shall always execute the criminals, in accordance with the law, and they shall take for themselves the clothes, the beds, and the ornaments of (such) criminals."

But what conclusion can one draw from these statements of the Shastras? They are capable of double interpretation. When the Shastras say that the Untouchables should stay outside the village, they may be purporting to say no more than that the Untouchables should stay where they have been staying, i.e. outside the village. This is one interpretation. The second interpretation is that those who are declared Untouchables should not be allowed to stay inside the village but should be required to go out of the village and live outside. Following up the alternate interpretations of the Shastras there are two different possibilities which call for consideration. One is that the Untouchability has nothing to do with the Untouchables living outside the village. From the very beginning they lived outside the village. Thereafter when the stigma of Untouchability fell on them they were prohibited from coming to live inside the village. The other possibility is that Untouchability has everything to do with the Untouchables, living outside the village. In other words, the Untouchables originally lived inside the village and that thereafter when the stigma of untouchability fell on them they were forced to vacate and live outside the village.

Which of the two possibilities is more acceptable?

The second possibility is on the face of it absurd and fantastic. One argument is quite enough to expose its absurdity. The phenomenon we are discussing is not confined to a single village or single area. It exists all over India. The transplantation of the Untouchables from within, the village to outside the village is a vast operation. How and who could have carried on an operation of such colossal dimensions? It could not have been carried out except by the command of an Emperor having his sway over the whole of India. Even to him such

a transplantation would have been impossible. But possible and impossible it can only be the work of an Emperor. Who is the Emperor to whom the credit or discredit of this task can be assigned? Obviously, India had no Emperor to perform this task. If there was no Emperor to do the transplantation, then the second possibility must be abandoned.

That those who are called Untouchables lived outside the village from the very beginning even before they became Untouchables and that they continued to live outside the village because of the supervention of untouchability at a later stage is the only possibility worth consideration. But this raises a very difficult question: Why did they live outside the village? What made them or forced them to do so? The answer is that having regard to the factors which are known to students of Sociology to have influenced the transformation of Primitive Society into Modern Society all over the world it is only natural to suppose that the Untouchables should have from the beginning lived outside the village.

Not many will realise why this is natural without some explanation of the factors which have affected the condition of Primitive Society into Modern Society. For a clear understanding of the matter it is necessary to bear in mind that Modern Society differs from Primitive Society in two respects. Primitive Society consisted of nomadic communities while Modern Society consists of settled communities. Secondly, Primitive Society consisted of tribal communities based on blood relationship. Modern Society consists of local communities based on territorial affiliation. In other words there are two lines of evolution along which Primitive Society has proceeded before it became transformed into Modern Society. One line of evolution has led the Primitive Society to become a territorial community from being a tribal community. There can be no doubt that such a change has taken place. Clear traces of the change are to be seen in the official style of kings. Take the style of the English kings. King John was the first to call himself the king of England. His predecessors commonly called themselves kings of the English. The former represent a territorial community. The latter represent a tribal community. England was once the country which Englishmen inhabited. Englishmen are now the people who inhabit England. The same transformation can be seen to have taken place in the style of the French kings who were once called kings of the Franks and later as kings of France. The second line of evolution had led Primitive

Society to become a settled community instead of the Nomadic community which it was. Here again, the change is so definite and so impressive that no illustration is required to convince anybody of its reality.

For the purpose in hand all we need is to confine ourselves to a consideration of the second line of evolution. How did Primitive Society become a settled community? The story of how Primitive Society became a settled community is too long to be detailed in a chapter- much too long to be compressed in a section thereof. It is enough to note two things. The first thing to understand is what made Primitive Society give up its nomadic life and secondly what happened in the transition from nomadic to settled life.

Primitive Society was no doubt nomadic. But it was nomadic not because of any migratory instinct. Nor was it due to any mental trait peculiar to it. It was the result of the fact that the earliest form of the wealth held by Primitive Society was cattle. Primitive Society was migratory because its wealth, namely the cattle, was migratory. Cattle went after new pastures. Primitive Society by reason of its love for cattle, therefore, went wherever its cattle carried it. Primitive Society became fixed in its abode, in other words became a settled-community, when a new species of wealth was discovered. This new species of wealth was land. This happened when Primitive Society learned the art of farming and of cultivating land. Wealth became fixed at one place when it changed its form from cattle to land. With this change Primitive Society also became settled at the same place.

This explains why Primitive Society was at one time nomadic and what led it take to settled life.

The next thing is to note the events that have happened when Primitive Society was on the road to becoming a Settled Society. The problems which faced Primitive Society in its transition from Nomadic life to Settled life were mainly two. One confronted the Settled Community. The other confronted the Broken men. The problem that confronted the Settled community was that of its defence against the Nomadic tribes. The problem which confronted the Broken men was that of the protection and shelter. It may be desirable to elucidate how and why these problems arose.

For an understanding of the problem which confronted the Settled tribes, it is necessary to bear in mind the following facts. All tribes did not take to settled life at one and the same time. Some became settled and some remained nomadic. The second thing to remember

is that the tribes were never at peace with one another. They were always at war. When all tribes were in a Nomadic state the chief causes for intra-tribal warfare were (1) stealing cattle, (2) stealing women, and (3) stealthily grazing of cattle in the pastures belonging to other tribes. When some tribes became settled, the tribes that remained nomadic found it more advantageous to concentrate their fight against the settled tribes. It was more paying than a war against other Nomadic tribes. The Nomadic tribes had come to realize that the Settled tribes were doubly wealthy. Like the Nomadic tribes, they had cattle. But in addition to cattle, they had corn which the Nomadic tribes had not and which they greatly coveted. The Nomadic tribes systematically organized raids on the Settled tribes with the object of stealing the wealth belonging to the Settled tribes. The third fact is that the Settled tribes were greatly handicapped in defending themselves against these raiders. Being engaged in more gainful occupation, the Settled tribes could not always convert their ploughs into swords. Nor could they leave their homes and go in pursuit of the raiding tribes. There is nothing strange in this. History shows that peoples with civilization but no means of defence are not able to withstand the attacks of the barbarians. This explains how and why during the transition period the Settled tribes were faced with the problem of their defence.

How the problem of the Broken men arose is not difficult to understand. It is the result of the continuous tribal warfare which was the normal life of the tribes in their primitive condition. In a tribal war it often happened that a tribe instead of being completely annihilated was defeated and routed. In many cases a defeated tribe became broken into bits. As a consequence of this there always existed in Primitive times a floating population consisting of groups of Broken tribesmen roaming in all directions. To understand what gave rise to the problem of the Broken men it is necessary to realize that Primitive Society was fundamentally tribal in its organization. That Primitive Society was fundamentally tribal meant two things. Firstly, every individual in Primitive Society belonged to a tribe. Nay, he must belong to the tribe. Outside the tribe no individual had any existence. He could have none. Secondly tribal organization being based on common blood and common kinship an individual born in one tribe could not join another tribe and become a member of it. The Broken Men had, therefore, to live as stray individuals. In Primitive Society where tribe was fighting against tribe a stray

collection of Broken Men was always in danger of being attacked. They did not know where to go for shelter. They did not know who would attack them and to whom they could go for protection. That is why shelter and protection became the problem of the Broken Men.

The foregoing summary of the evolution of Primitive Society shows that there was a time in the life of Primitive Society when there existed two groups— one group consisting of Settled tribes faced with the problem of finding a body of men who would do the work of watch and ward against the raiders belonging to Nomadic tribes and the other group consisting of Broken Men from defeated tribes with the problem of finding patrons who would give them food and shelter.

The next question is: How did these two groups solve their problems? Although we have no written text of a contract coming down to us from antiquity we can say that the two struck a bargain whereby the Broken Men agreed to do the work of watch and ward for the Settled tribes and the Settled tribes agreed to give them food and shelter. Indeed, it would have been unnatural if such an arrangement had not been made between the two especially when the interest of the one required the co-operation of the other.

One difficulty, however, must have arisen in the completion of the bargain, that of shelter. Where were the Broken Men to live? In the midst of the settled community or outside the Settled community? In deciding this question two considerations must have played a decisive part. One consideration is that of blood relationship. The second consideration is that of strategy. According to Primitive notions only persons of the same tribe, i.e.. of the same blood, could live together. An alien could not be admitted inside the area occupied by the homesteads belonging to the tribe. The Broken men were aliens. They belonged to a tribe which was different from the Settled tribe. That being so, they could not be permitted to live in the midst of the Settled tribe. From the strategic point of view also it was desirable that these Broken men should live on the border of the village so as to meet the raids of the hostile tribes. Both these considerations were decisive in favour of placing their quarters outside the village.

We can now return to the main question, namely, why do the Untouchables live outside the village? The answer to the question can be sought along the lines indicated above. The same processes must have taken place in India when the Hindu Society was passing from

Nomadic life to the life of a settled village community. There must have been in Primitive Hindu society, Settled tribes and Broken Men. The Settled tribes founded the village and formed the village community and the Broken Men lived in separate quarters outside the village for the reason that they belonged to a different tribe and, therefore, to different blood. To put it definitely, the Untouchables were originally only Broken Men. It is because they were Broken Men that they lived outside the village.

This explains why it is natural to suppose that the Untouchables from the very beginning lived outside and that Untouchability has nothing to do with their living outside the village.

The theory is so novel that critics may not feel satisfied without further questioning. They will ask:

- (1) Is there any factual evidence to suggest that the Untouchables are Broken Men?
- (2) Is there evidence that the process of settlement suggested above has actually taken place in any country?
- (3) If Broken Men living outside the village is a universal feature of all societies, how is it that the separate quarters of the Broken Men have disappeared outside India but not in India?



CHAPTER IV

ARE THE UNTOUCHABLES BROKEN MEN ?

TO the question : Are the Untouchables in their origin only Broken Men, my answer is in the affirmative. An affirmative answer is bound to be followed by a call for evidence. Direct evidence on this issue could be had if the totems of the Touchables and the Untouchables in the Hindu villages had been studied. Unfortunately the study of the totemic organization of the Hindus and the Untouchables has not yet been undertaken by students of anthropology. When such data is collected it would enable us to give a decisive opinion on the question raised in this Chapter. For the present, I am satisfied from such inquiries as I have made that the totems of the Untouchables of a particular village differ from the totems of the Hindus of the village.

Difference in totems between Hindus and Untouchables would be the best evidence in support of the thesis that the Untouchables are Broken Men belonging to a tribe different from the tribe comprising the village community. It may, however, be admitted that such direct evidence as has a bearing on the question remains to be collected. But facts have survived which serve as pointers and from which it can be said that the Untouchables were Broken men. There are two sets of such evidentiary facts.

One set of facts comprise the names *Antya*, *Antyaja* and *Antyavasin* given to certain communities by the Hindu Shastras. They have come down from very ancient past. Why were these names used to indicate a certain class of people? There seem to be some meaning behind these terms. The words are undoubtedly derivative. They are derived from the root *Anta*. What does the word *Anta* mean? Hindus learned in the Shastras argue that it means one who is born last and as the Untouchable according to the Hindu order of Divine creation is held to be born last, the word *Antya* means an Untouchable. The argument is absurd and does not accord with the

Hindu theory of the order of creation. According to it, it is the Shudra who is born last. The Untouchable is outside the scheme of creation. The Shudra is *Savarna*. As against him the Untouchable is *Avarna*, i.e. outside the *Varna* system. The Hindu theory of priority in creation does not and cannot apply to the Untouchable. In my view, the word *Antya* means not end of creation but end of the village. It is a name given to those people who lived on the outskirts of the village. The word *Antya* has, therefore, a survival value. It tells us that there was a time when some people lived inside the village and some lived outside the village and that those who lived outside the village, i.e. on the *Antya* of the village, were called *Antyaja*.

Why did some people live on the border of the village? Can there be any other reason than that they were Broken Men who were aliens and who belonged to tribes different from those who lived inside the village? I cannot see any. That this is the real reason is to be found in the use of these particular words to designate them. The use of the words *Antya*, *Antyaja* and *Antyavasin* has thus double significance. In the first place, it shows that living in separate quarters was such a peculiar phenomenon that a new terminology had to be invented to give expression to it. Secondly, the words chosen express in exact terms the conditions of the people to whom it applied namely that they were aliens.

The second set of facts which shows that the Untouchables were Broken men relates to the position of a community called the Mahars. The Mahar community is a principal Untouchable community in Maharashtra. It is the single largest Untouchable community found in Maharashtra. The following facts showing the relations between the Mahars and the Touchable Hindus are worthy of note: (1) The Mahars are to be found in every village; (2) Every village in Maharashtra has a wall and the Mahars have their quarters outside the wall; (3) The Mahars by turn do the duty of watch and ward on behalf of the village; and (4) The Mahars claim 52 rights against the Hindu villagers. Among these 52 rights the most important are:-

- (i) The right to collect food from the villagers;
- (ii) The right to collect corn from each villager at the harvest season; and
- (iii) The right to appropriate the dead animal belonging to the villagers.

The evidence arising from the position of the Mahars is of course confined to Maharashtra. Whether similar cases are to be found in other parts of India has yet to be investigated. But if the Mahars case

can be taken as typical of the Untouchables throughout India it will be accepted that there was a stage in the history of India when Broken Men belonging to other tribes came to the Settled tribes and made a bargain whereby the Broken men were allowed to settle on the border of the village, were required to do certain duties and in return were given certain rights. The Mahars have a tradition that the 52 rights claimed by them against the villagers were given to them by the Muslim kings of Bedar. This can only mean that these rights were very ancient and that the kings of Bedar only confirmed them.

These facts although meagre do furnish some evidence in support of the theory that the Untouchables lived outside the village from the very beginning. They were not deported and made to live outside the village *because* they were declared Untouchables. They lived outside the village from the beginning *because* they were Broken Men who belonged to a tribe different from the one to which the Settled tribe belonged.

The difficulty in accepting this explanation arises largely from the notion that the Untouchables were always Untouchables. This difficulty will vanish if it is borne in mind that there was a time when the ancestors of the present day Untouchables were not Untouchables *vis-a-vis* the villagers but were merely Broken Men, no more and no less, and the only difference between them and the villagers was that they belonged to different tribes.

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CHAPTER V

ARE THERE PARALLEL CASES ?

ARE there any cases known to history of Broken Men living outside the village? To this question it is possible to give an affirmative answer. Fortunately for us we have two reported cases which show that what is said to have occurred in India particularly has also actually occurred elsewhere. The countries wherein such a development has actually been reported to have taken place are Ireland and Wales.

The organization of the Irish village in primitive times can be seen from the Brehon Laws of Ireland. Some idea of it as revealed in these Laws may be obtained from the following summary given by Sir Henry Maine. Says Sir Henry Maine¹ :-

“The Brehon Law discloses a stage when the tribe has long been settled, in all probability upon the tribal territory. It is of sufficient size and importance to constitute a political unit, and possibly at its apex is one of the numerous chieftain whom the Irish records call kings. The primary assumption is that the whole of the tribal territory belongs to the whole of the tribe, but in fact large portions of it have been permanently appropriated to minor bodies of tribesmen; A part is allotted in special way to the chief as appurtenant to his office, and descends from chief to chief according to a special rule of succession. Other portions are occupied by fragments of the tribe, some of which are under minor chiefs while others, though not strictly ruled by a chief, have somebody of noble class to act as their representative . All the unappropriated tribelands are in a more special way the property of the tribe as a whole, and no portion can theoretically be subjected to more than a temporary occupation. Such occupations are, however, frequent and among the holders of tribeland, on these terms, are groups of men calling themselves tribesmen, but being in reality associations formed by contract, chiefly for the purpose of pasturing cattle. Much of the common tribeland is not occupied at all, but constitutes, to use the English expression, the ‘waste’ of the tribe. Still this waste is constantly brought under tillage or permanent pasture by settlements of tribesmen, and upon it *cultivators and servile states are permitted to squat, particularly towards the border*. It is part of the territory over which the authority of the chief tends

1 Early History of Institutions, Lecture HI, pp. 92-93.

steadily to increase, and here it is that he settles his 'fuidhir' or stranger—tenants *a very important class—the outlaws and 'broken men' from other tribes who come to him for protection, and who are only connected with their new tribe by their dependence on its chief, and through the responsibility which he incurs for them.*"

Who were the Fuidhirs? According to Sir Henry Maine the Fuidhirs were :

"Strangers or fugitives from other territories, men in fact, who had broken the original tribal bond which gave them a place in the community, and who had to obtain and then as best they might in a new tribe and new place. Society was violently disordered. The result was probably to fill the country with 'Broken Men' and such men could only find a home and protection by becoming Fuidhir tenants.

"The Fuidhir was not a tribesman but an alien. In all societies cemented together by kinship the position of the person who has lost or broken the bond of union is always extraordinarily miserable. He has not only lost his natural place in them but they have no room for him anywhere else."

II

Now as to Wales. The organization of the Welsh village in primitive times is described¹ by Mr. Seebhom. According to Mr. Seebhom a village in Wales was a collection of homesteads. The homesteads were separated into two groups, the homesteads of the Free-tenants and the homesteads of the Unfree-tenants. Mr. Seebhom says that this separation in habitation was a common feature of the primitive village in Wales. Why were these Unfree-tenants made to live in a separate and detached place? The reason for this separation is explained² by Mr. Seebhom in the following terms :-

"At first sight there is a great confusion in the class of men mentioned in the ancient Welsh Laws— of tribesmen, *Uchelore bryre* and *innate boneddings* : of non-tribesmen, *talogo Aillte*, *Alltude*, etc. The confusion vanishes only when the principle underlying the constitution of tribal society is grasped. And this principle would apparently be a very simple one if could be freed from the complications of conquest and permanent settlement of land from the inroads of foreign law, custom, and nomenclature. To begin with there can be little doubt that the ruling principle underlying the structure of tribal society was that of blood relationship among the free tribesmen. No one who did not belong to a kindred could be a member of the tribe, which was in fact, a bundle of Welsh kindred. Broadly then under the Welsh tribal system there were two classes, those of Cymric blood—and those who were stranger in blood. There was

1 The Tribal System in Wales p. 9

2 Ibid pp. 54-55.

a deep, if not unpassable, gulf between these two classes quite apart from any question of land or of conquest. It was a division in blood and it soon becomes apparent that the tenacity with which the distinction was maintained was at once one of the strong distinctive marks of the tribal system and one of the main secrets of its strength."

III

This description of the organisation of the Irish and the Welsh villages in the primitive times leave no doubt that the case of the Untouchables of India is not the only case of a people living outside the village. It proves that in it was exhibited a universal phenomenon, and was marked by the following features :

1. That in primitive times the Village Settlement consisted of two parts. One part occupied by the community belonging to one tribe and another part occupied by the Broken Men of different tribes.
2. The part of the settlement occupied by the tribal community was regarded as the village proper. The Broken Men lived in the outskirts of the village.
3. The reason why the Broken Men lived outside the village was because they were aliens and did not belong to the tribal community.

The analogy between the Untouchables of India and the Fuidhirs of Ireland and the Alltudes of Wales is complete. The Untouchables lived outside the village for the same reason for which the Fuidhirs and Alltudes had to live outside the village in Ireland and Wales. It is, therefore, clear that what is said about the Untouchables on the issue of their living outside the village is not without a parallel elsewhere.

CHAPTER VI

HOW DID SEPARATE SETTLEMENTS FOR BROKEN MEN DISAPPEAR ELSEWHERE ?

THAT the Fuidhirs of Ireland and the Alltudes of Wales were Broken Men is true. That they lived in separate quarters is also a fact. But it is also true that the separate quarters of those Broken Men disappeared and they became part of the Settled tribe and were absorbed in it. This is somewhat strange. The Broken Men according to the theory set out before were given quarters outside the village because they belonged to a different tribe and, therefore, to different blood. How is it then that they were absorbed by the tribe later on? Why such a thing did not happen in India? These are questions which are natural and which call for an answer.

The question is integrally connected with the process of evolution through which Primitive Society came to be transferred into Modern Society. As has already been said this evolution has proceeded along two different lines. One marked the transformation of Primitive Society from Nomadic into a settled community. The other marked the transformation of Primitive Society from tribal into a territorial community. The question with which we are immediately concerned relates to the second line of evolution. For it is the substitution of common territory for common blood as the bond of union that is responsible for the disappearance of the separate quarters of the Broken Men. Why did Primitive Society substitute common territory for common blood as the bond of union? This is a question for which there is no adequate explanation. The origin of the change is very obscure. How the change was brought about is however quite clear.

At some stage there came into being in Primitive Society a rule whereby a non-tribesman could become a member of the tribe and become absorbed in it as a kindred. It was known as a rule of ennoblement. This rule was that if a non-tribesman lived next to the tribe or married within a tribe for a given number of generations he

became their kindred.¹ Mr. Seebhom gives the following rules for a non-tribesman becoming a tribesman as it was found in the Welsh village system.

- (1) Residence in Cymru (Wales) according to the tradition of South Wales made the descendant of a stranger at last, a Cymru, but not until continued to the ninth generation.
- (2) Intermarriage with innate Cymraeses generation after generation made the descendent of a stranger an innate Cymru in the *fourth* generation. In other words, the original stranger's great grandson, whose blood was at least seven-eighths Cymric was allowed to attain the right to claim the privileges of a tribesman.

Should not such a thing have happened in India? It could have—indeed it should have. For a rule similar to that which existed in Ireland and Wales also existed in India. It is referred to by Manu. In Chapter X, verses 64-67, he says that a Shudra can be a Brahmin for seven generations (if he marries) within the Brahmin Community. The ordinary rule of *Chaturvarna* was that a Shudra could never become a Brahmin. A Shudra was born a Shudra and could not be made a Brahmin. But this rule of antiquity was so strong that Manu had to apply rule of Untouchability to the Shudra. It is obvious that if this rule had continued to operate in India, the Broken Men of India would have been absorbed in the village community and their separate quarters would have ceased to exist.

Why did this not happen? The answer is that the notion of Untouchability supervened and perpetuated difference between kindred and non-kindred, tribesmen and non-tribesmen in another form; namely; between Touchables and Untouchables. It is this new factor which prevented the amalgamation taking place in the way in which it took place in Ireland and Wales, with the result that the system of separate quarters has become a perpetual and a permanent feature of the Indian village.

PART III

**OLD THEORIES OF THE ORIGIN
OF UNTOUCHABILITY**

- Chapter VII.* Racial Difference as the Origin of Untouchability.
- Chapter VIII.* Occupational Origin of Untouchability.

CHAPTER VII

RACIAL DIFFERENCE AS THE ORIGIN OF UNTOUCHABILITY

WHAT is the origin of Untouchability? As has been said the field is quite unexplored. No student of Sociology has paid any attention to it. Writers, other than Sociologists, who have written about India and her people have been content with merely recording the custom of Untouchability with varying degrees of disapprobation and leaving it at that. So far as my researches go, I have come across only one author who has attempted to explain how Untouchability has come about. It is Mr. Stanley Rice¹. According to Mr. Rice—

There is a strong probability that the outcasts were the survivors of the conquered peoples, who, as caste tended to coincide with occupation, became the drum-beating, leather-working, and farm labouring classes to which as serfs they had been relegated from early times. They were not the races conquered by the Aryans; the Paraiyans belonged to the aborigines who were conquered by the Dravidians and being of a different race they were not admitted to the totem of similar clans with which marriage is always intimately connected, since that would have led to free intercourse and the gradual degradation of race. But this prohibition cannot have been absolute; there are always exceptions. In the course of the centuries, some forty or more, the inevitable miscegenation may very well have obliterated the racial distinctions between aboriginal and early Dravidian. These people have been admitted to a sort of lowly participation in the Hindu system in the atmosphere of which they have lived for so long, for Hinduism is at once the most tolerant and intolerant of creeds. It does not proselytize; you cannot become a Hindu as you can become a Mussalman, and those within the fold are liable to the most rigid restrictions. But it has always been ready to embrace aboriginal tribes who are willing to submit to its laws, though it may assign to them a very lowly place and they have always been kept at a distance and have been excluded from the temples. It would seem, therefore, that anthropological arguments are in any case not conclusive when we consider these factors which must have profoundly modified the original racial characteristics and must have changed their outlook. Thus the Dravidians applied to the Paraiyans the same test which the Aryans are assumed to have

1. Hindu Customs And Their Origins : pp. 113-115. (Italics not in the original.)

applied to the conquered inhabitants. They reduced them to the position of serfs and assigned to them those duties which it was thought beneath their own dignity to perform. Nor was marriage the only consideration. The disabilities of the Paraiyans were due also— and to an even greater degree— to the mystical qualities inherent in Tabu. To admit such a man to the totem family was not only contrary to the social order, it would bring upon the clan the anger of their particular god. But to admit him to the worship of the god within the sacred precincts of a temple was to call clown authentic fire from Heaven, whereby they would be consumed. It would be sacrilege of the same kind as the offering of unconsecrated or unorthodox fire by Koran, Dathan and Abhiram. But though debarred from taking an active part in worship, the Paraiyans might yet do the menial services connected with it, provided that they did not entail the pollution of the sacred building. In Christian terminology the Paraiyan, although he could neither officiate at the altar, nor preach a sermon nor even be one of the congregation, might still ring the bell— on one condition. He could not regard himself as of the communion; he was, in fact, ex-communicate. And as such, he was ceremonially unclean. No washing with water, no cleansing ceremony, could remove that stain which was indelibly fixed by the operation of Tabu. To touch him, to have any dealings with him save as it were, at arm's length, was by a sort of contagious magic a defilement. You could employ him to till your field because that entailed no contact of any kind, beyond giving an order, you need have no further communication with him. The seal of pollution was set on his forehead; it was inherent in him as surely as the blood in his veins. And so from being the vile, degraded fellow which Indian opinion had made him, he became viler and more degraded from the kinds of occupation left open to him.”

The theory of Mr. Rice really divides itself into two parts. For, according to him, the origin of untouchability is to be found in two circumstances—Race and Occupation. Obviously, they require separate consideration. This Chapter will be devoted to an examination of his theory of racial difference as the origin of untouchability.

The racial theory of Mr. Rice contains two elements :—

- (1) That the Untouchables are non-Aryan, non-Dravidian aborigines; and
- (2) That they were conquered and subjugated by the Dravidians.

This theory raises the whole question of the invasions of India by foreign invaders, the conquests made by them and the social and cultural institutions that have resulted therefrom. According to Mr. Rice, there have been two invasions of India. First is the invasion of India by the Dravidians. They conquered the non-Dravidian aborigines, the ancestors of the Untouchables, and made them Untouchables. The second invasion is the invasion of India by the Aryans. The Aryans conquered the Dravidians. He does not say how

the conquering Aryans treated the conquered Dravidians. If pressed for an answer he might say they made them Shudras. So that we get a chain. The Dravidians invaded India and conquered the aborigines and made them Untouchables. After Dravidians came the Aryans. The Aryans conquered the Dravidians and made them Shudras. The theory is too mechanical, a mere speculation and too simple to explain a complicated set of facts relating to the origin of the Shudras and the Untouchables.

When students of ancient Indian history delve into the ancient past they do often come across four names, the Aryans, Dravidians, Dasas and Nagas. What do these names indicate? This question has never been considered. Are these names Aryans, Dravidians, Dasas and Nagas the names of different races or are they merely different names for a people of the same race? The general assumption is that they are different races. It is an assumption on which theories like that of Mr. Rice, which seek to explain the social structure of the Hindu Society, particularly its class basis, are built. Before such a theory is accepted it is necessary to examine its foundations.

Starting with the Aryans it is beyond dispute that they were not a single homogeneous people. That they were divided into two¹ sections is beyond dispute. It is also beyond dispute that the two had different cultures. One of them may be called Rig Vedic Aryans and the other the Atharva Vedic Aryans. Their cultural cleavage appears to be complete. The Rig Vedic Aryans believed in Yajna. The Atharva Vedic Aryans believed the Magis. Their mythologies were different. The Rig Vedic Aryans believed in the Deluge and the creation of their race from Manu. The Atharva Vedic Aryans did not believe in Deluge but believed in the creation of their race from Brahma or Prajapati. Their literary developments also lay along different paths. The Rig Vedic Aryans produced Brahmanas, Sutras and Aranyakas. The Atharva Vedic Aryans produced the Upanishads. Their cultural conflict was so great that the Rig Vedic Aryans would not for a long time admit the sanctity of the Atharva Veda nor of the Upanishads and when they did recognize it they called it Vedanta which contrary to the current meaning of the word—namely, essence of the Vedas—originally meant something outside the boundary of the Vedas and, therefore, not so sacred as the Vedas and regarded its study as Anuloma. Whether these two sections of Aryans were two

1. For an exhaustive treatment of the subject see my book "Who Were the Shudras?"

different races we do not know. We do not know whether the word Aryan is a term indicative of race. Historians have therefore made a mistake in proceeding on the assumption that the Aryans were a separate race.

A greater mistake lies in differentiating the Dasas from the Nagas. The Dasas are the same as Nagas. Dasas is merely another name for Nagas. It is not difficult to understand how the Nagas came to be called Dasas in the Vedic literature. Dasa is a Sanskritized form of the Indo-Iranian word Dahaka. Dahaka was the name of the king of the Nagas.¹ Consequently, the Aryans called the Nagas after the name of their king Dahaka, which in its Sanskrit form became Dasa a generic name applied to all the Nagas.

Who were the Nagas? Undoubtedly they were non-Aryans. A careful study of the Vedic literature² reveals a spirit of conflict, of a dualism, and a race for superiority between two distinct types of culture and thought. In the Rig Veda, we are first introduced to the Snake-god in the form of Ahi Vitra, the enemy of the Aryan god Indra. Naga, the name under which the Snake-god was to become so famous in later days, does not appear in early Vedic literature. Even when it does for the first time in the Satapatha Brahmana (XI.2,7,12), it is not clear whether a great snake or a great elephant is meant. But this does not conceal the nature of Ahi Vitra, since he is described always in Rig Veda as the serpent who lay around or hidden in waters, and as holding a full control over the waters of heaven and earth alike.

It is also evident from the hymns that refer to Ahi Vitra, that he received no worship from the Aryan tribes and was only regarded as an evil spirit of considerable power who must be fought down.

The mention of the Nagas in the Rig Veda shows that the Nagas were a very ancient people. It must also be remembered that the Nagas were in no way an aboriginal or uncivilized people. History shows a very close association by intermarriage between the Naga people with the Royal families of India. The Devagiri record of the Kadamba king Krisnavarma³ connects the beginning of the Kadamba-kula with the Nagas. The Royakota⁴ grant of 9th Century A.D.

1. On this point see my Volume : *"Who Were the Shudras?"*

2. For the facts stated in the next few pages, see a Paper on the Nagas and the Naga cult in Ancient Indian History by Miss Karunakara Gupta in the Proceedings of the Third Session of the Indian History Congress (1939), p. 214 onwards.

3. I. A. VII. p. 34

4. E.L XV. p. 246

mentions the marriage of Asvathama with a Naga and the foundation of the Pallava line by Skandasishya, the issue of this marriage. Virakurcha, who according to another Pallava inscription dated in the 9th century A.D. was the ruler of the dynasty, is also mentioned in the same inscription as having married a Naga and obtained from her the insignia of royalty.¹ The marriage of Gautamiputra, the son of the Vakataka king Pravarasena, with the daughter of the Bharasiva king Bhava Naga, is a historical fact. So is the marriage of Chandragupta II with princess Kuvera Naga 'of Naga Kula'.² A Tamil poet asserts that Kokkilli, an early Chola king, had married a Naga princess.³ Rajendra Chola is also credited to have won 'by his radiant beauty the hand of the noble daughter of Naga race'.⁴ The Navasahasanka Charita describes the marriage of the Paramara king Sindhuraja (who seems to have reigned towards the early part of the 10th Century A. D.) with the Naga princess Sasiprabha, with such exhaustive details in so matter-of-fact-a-manner as to make us almost feel certain that there must have been some historical basis for this assertion.⁵ From the Harsha inscription of V.S. 1030-973 A.D. we know that Guvaka I, who was the sixth king in the genealogy upwards from Vighraharaja Chahamana and thus might be supposed to have been ruling towards the middle of the 9th Century was "famous as a hero in the assemblies of the Nagas and other princes."⁶ Sanatikara of the Bhaumn dynasty of Orissa, one of whose dates was most probably 921 A.D., is mentioned in an inscription of his son as having married Tribhuana Mahadevi of the Naga family.⁷

Not only did the Naga people occupy a high cultural level but history shows that they ruled a good part of India. That Maharashtra is the home of the Nagas goes without saying. Its people and its kings were Nagas.⁸

That Andhradesa and its neighbourhood were under the Nagas during the early centuries of the Christian era is suggested by evidence from more sources than one. The Satavahanas, and their successors, the Chutu Kula Satakarnis drew their blood more or less from the Naga stock. As Dr. H.C. Roy Chaudhari has pointed out, the

1. S.I. I.II. p. 508

2. E.L. XV.p.41

3. EL XV. p. 249

4. I.A. XXII. pp. 144-149

5. E.I.I. p. 229.

6. E.I.I. p. 117

7. J. B. O. R. S. XVI. p.771

8. Rajwade.

Dvatrima Satpukalitta represents Salivahana, the mythological representative of the Satavahana dynasty, as of mixed Brahmana and the Naga origin.¹ This is amply attested to by the typical Naga names which occur in their dynastic lists. That the Naga grew to be very powerful towards the end of the Satavahana rule is also proved by a number of facts. A chief called Skandanaga is found ruling the Bellary district, in the reign of Pulumavi, the last king of the main Satavahana line. Secondly, Naga Mulanika the daughter of a Chutu king, is mentioned as making a gift of a Naga, together with her son, who is called Sivakanda-Naga-Sri. All the known kings of this line bear the same name and thus prove a close association with the Nagas. Thirdly, the name of Uragapura, the capital of Soringoi, suggests not an isolated reign of one Naga king but a Naga Settlement in that locality of tolerably long duration.

From Buddhist tradition of Ceylon and Siam we also know that there was a Naga country called Majerika near the Diamond Sands, i.e. Karachi.²

Then during the third and early part of the 4th Century A.D. Northern India also was ruled by a number of Naga kings is clearly proved by Puranic as well as numismatic and epigraphic evidence. Three independent groups of Vidisa, Campavati or Padmavati and Mathura are distinctly mentioned in such a way as to leave little doubt of their importance. The name Bhava Naga, the only known king of the Bharasiva dynasty, also seems to connect him with the Nagas. It is not possible to enter here into a discussion of the coins of the second group, or the question of identification of Achyuta Ganapati Naga or Nagasena of Allahabad Pillar inscription with these Puranic Naga kings.³ Of all the Nagas referred to in ancient Indian History, the North Indian Naga houses⁴ of the 4th century A.D. stand out as the most prominent and historically the most tangible. We do not know whether Nagabhatta and his son Maharaja Mohesvara Naga of the Lahore Copper Seal⁵ belonged to any of these three groups or formed a separate Naga family by themselves. But all this sufficiently justifies the conclusion of Dr. C. C. Roy Chaudhari that the Kushana kingdom of Northern India disappeared in the 4th Century A.D. having been conquered by the Nagas. These Nagas must have been

1. I. P. H. A. I, p. 280

2. Cunningham A. Geo. India, pp. 611-12

3. G. M. I. pp. 23-24

4. P. H. A. I. p. 364

4. G. I. p. 284

ruling over different portions of Uttarapatha till they were themselves swept away before the conquering arms of Samudragupta.

As late as the time of Skandagupta, however we find one Sarvanaga as the governor of Antarvedi¹ In the neighbourhood of Saurashtra and Bharukaccha especially, the Nagas seem to have held a prominent position down to the 6th Century A.D. From the Junagadh inscription Skandagupta appears to have dealt severely with a Naga rebellion.² In 570 A. D. Dadda I Gurjara uprooted the Nagas.³ who have been identified with the jungle tribes ruled over by Brihul laka of Broach.⁴ Dhruvasena II's grant of G.S. 334 (645 A.D.) also mentions as Dutaka the Pramatri Srinaga.⁵

The next important revival of the Nagas particularly in Central India seems to date about the 9th Century A.D. In 800 A.D. Maharaja Tivaradeva of Sripura in Kosala most probably defeated a Naga tribe.⁶ Sometime after this period, we also note two references to Nagas in the inscription of Bengal. The Ramganj record of Mahamandalika Isvara Ghosha introduces us to a Ghosha Naga family of Dhekkari, which was to be assigned to 11th century⁷ A.D. The Bhuvanesvara Prasasti of Bhatta Bhavadeva, the minister of Harivarmadeva in 12th century⁸ A.D. also refers to destruction of Naga kings by him. The Ramacharita mentions the conquest of Utkala, the kingdom of Bhava-Bhushana-Santati, by Ramapala, but it is not clear whether in this case the Nagas or the Chandras were meant. The greater probability would however lie in favour of the former, since they were the more well known.

It was in the period 10th-12th Century A.D. that the different branches of the Sendraka, Sinda, or Chindaka family, which called themselves lords of Bhogavati and Nagavamsi gradually spread themselves over different portions of Central India, particularly Baster. The Nagattaras of Begur, too, appear in an inscription of the 10th Century ⁹ A.D. as having fought against king Viramahendra, on behalf of the W. Ganga king Ereyappa and being distinguished for bravery in the fight. If the evidence of Navashasanka Charita is

1. G. I. p. 68

2. G.I. p. 59

3. I. A. XIII pp. 82

4. B.Gaz. I.i.115

5. ELI. p. 92

6. G.I. p. 298

7. Bhandarkar's List No. 2100

8. Inscription of Bengal III pp. 30 ff.

9. E.I.VI p.45

accepted, then the Naga king, whose daughter Sasiprabha was married to Sindhuraja Paramara, must also have been ruling in Ratnavati on the Narmada at about this period.

Who are the Dravidians? Are they different from the Nagas? Or are they two different names for a people of the same race? The popular view is that the Dravidians and Nagas are names of two different races. This statement is bound to shock many people. Nonetheless, it is a fact that the term Dravidians and Nagas are merely two different names for the same people.

It is not to be denied that very few will be prepared to admit the proposition that the Dravidians and Nagas are merely two different names for the same people and fewer that the Dravidians as Nagas occupied not merely South India but that they occupied the whole of India— South as well as North. Nonetheless, these are historical truths.

Let us see what the authorities have to say on the subject. This is what Mr. Dikshitkar, a well-known South Indian scholar, has to say on the subject in his¹ Paper on *South India in the Ramayana*:

“The Nagas, another tribe-semi-divine in character, with their totems as serpent, spread throughout India, from Taksasila in the North-West to Assam in the North-East and to Ceylon and South India in the South. At one time they must have been powerful. Contemporaneous with the Yakwas or perhaps subsequent to their fall as a political entity, the Nagas rose to prominence in South India. Not only parts of Ceylon but ancient Malabar were the territories occupied by the ancient Nagas In the Tamil classics of the early centuries after Christ, we hear frequent references to Naganadu..... Remnants of Naga worship are still lingering in Malabar, and the temple in Nagercoil in South Travancore is dedicated to Naga worship even today. All that can be said about them is that they were a sea-faring tribe. Their womenfolk were renowned for their beauty. Apparently the Nagas had become merged with the Cheras who rose to power and prominence at the commencement of the Christian Era.”

Further light is thrown on the subject by C. F. Oldham who has made a deep study of it. According to Mr. Oldham:²

“The Dravidian people have been divided, from ancient times, into Cheras, Cholas and Pandyas. Chera, or Sera (in old Tamil Sarai) is the Dravidian equivalent for Naga; Cheramandala, Nagadwipa, or the Naga country. This seems to point distinctly to the Asura origin of the Dravidians of the South. But in addition to this there still exists, widely spread over the Ganges valley, a people who call themselves Cherus or Seoris, and who claim descent from the serpentgods.³ The Cherus are of very ancient race; they are believed to have

1. Proceedings of the Seventh All-India Oriental Conference, pp. 248-49.

2. The Sun and the Serpent, pp. 157-161.

3. Elliot Sup. Glossary N. W. F.. 135. 136.

once held a great portion of the valley of the Ganges, which, as we have already seen, was occupied in very early times by Naga tribes. The Cherus appear to have been gradually ousted from their lands, during the troublous times of the Mohammedan invasions, and they are now poor and almost landless. There can be little doubt that these people are kinsmen of the Dravidian Cheras.

The Cherus have several peculiar customs and amongst them one which seems to connect them with the Lichhavis, as well as with the Newars of Nepal. This is the election of a raja for every five or six houses, and his investiture, in due form, with the tilak or royal frontal mark.¹ Both Lichavis and Newars had many customs in common with the Dravidians of the South. Each venerated the serpent, Karkotaka Naga being to Nepal what Nila Naga was to Kashmir. A Naga, too, was the tutelary deity of Vaisali, the Lichavi capital. The marital relations of Newars and Lichavis closely resembled those of the Tamil people, and go far to show a common origin.

Property amongst the Newars descended in the female line, as it once did amongst the Arattas, Bahikas or Takhas of the Punjab, whose sisters' sons, and not their own, were their heirs.² This is still a Dravidian custom. In short, a recent Dravidian writer, Mr. Balakrishna Nair, says that his people 'appear to be, in nearly every particular, the kinsfolk of the Newars.'³

Besides all this, however, there are other links connecting the Naga people of the South with those of the north of India. In an inscription discovered by Colonel Tod at Kanswah near the river Chambal, a Raja, called Salindra, 'of the race of Sarya, a tribe renowned amongst the tribes of the mighty' is said to be ruler of Takhya.⁴

This was evidently the Takhya or Takha kingdom of the Punjab, which was visited by Hiou-en-Tsiang,⁵ and which has been already referred to. It seems, therefore, that the Naga people of Takhya were known also by the name of Sarya.

Again, in the outer Himalaya, between the Sutlej and Beas Valleys, is a tract of country called Sara, or Scoraj. In this district the Naga demigods are the chief deities worshipped.

There is another Seoraj in the Upper Chinab Valley, and this too is occupied by a Naga worshipping people.

The name Saraj, or Seoraj, appears to be the same as the Sarya of Colonel Tod's inscription and as Seori, which is the alternative name of the Cherus of the Ganges Valley. It also seems to be identical with Sarai, which we have already seen, is the old Tamil name for the Chera or Naga. Apparently, therefore, the Saryas or Takhya, the Saraj people of the Sutlej Valley, the Seoris or Cherus of the valley of the Ganges, and the Cheras, Seras, or Keralas of Southern India, are but different branches of the same Naga-worshipping people.

It may be noted, too, that in some of the Himalayan dialects, Kira or Kiri means a serpent. This name, from which was perhaps derived the term Kirate

1. Sherring Races of N.W.P., 376,377

2. Mahabharata, Karna, p. xiv

3. Calcutta Review, July, 1896

4. Annals of Rajasthan, i. 795

5. Hiouen Tsiang, Beal, i. 165

so often applied to the people of the Himalayas, is found in the Rajatarangini, where it is applied to a people in or near Kashmir. The Kiras are mentioned by Varaha Mihira, and in a copper plate published by Prof. Kielhorn.¹

An inscription at the Baijnath temple in the Kangra valley gives Kiragrams as the then name of the place.² This, in the local dialect, would mean the village of serpents. The Naga is still a popular deity at Baijnath, and throughout the neighbouring country. The term Kira is thus an equivalent for Naga, and it can scarcely be doubted that the serpent-worshipping Kiras of the Himalayas were closely related to the Dravidian Keras, Cheras or Keralas of the South.

Similarity of name is not always to be trusted, but here we have something more. These people, whose designation is thus apparently the same, are all of Solar race; they all venerate the hooded serpent; and they all worship, as ancestors, the Naga demi-gods.

From the foregoing it would seem tolerably certain that the Dravidians of Southern India were of the same stock as the Nagas or Asuras of the North."

It is thus clear that the Nagas and Dravidians are one and the same people. Even with this much of proof, people may not be found ready to accept the thesis. The chief difficulty in the way of accepting it lies in the designation of the people of South India by the name Dravidian. It is natural for them to ask why the term Dravidian has come to be restricted to the people of South India if they are really Nagas. Critics are bound to ask : If the Dravidians and the Nagas are the same people, why is the name Nagas not used to designate people of South India also. This is no doubt a puzzle. But it is a puzzle which is not beyond solution. It can be solved if certain facts are borne in mind.

The first thing to be borne in mind is the situation regarding language. Today the language of the Southern India differs from that of the people of Northern India. Was this always so? On this question the observations of Mr. Oldham³ are worth attention.

"It is evident that the old Sanskrit grammarians considered the language of the Dravidian countries to be connected with the vernaculars of northern India; and that, in their opinion, it was especially related to the speech of those people who, as we have seen, were apparently descendants of the Asura tribes. Thus, in the 'Shahasha Chandrika', Lakshmidhara says that the Paisachi language is spoken in the Paisachi countries of Pandya, Kekaya, Vahluka, Sahya, Nepala, Kuntala, Sudesha, Bhota, Gandhara, Haiva and Kanoj; and that these are the Paisachi countries.⁴ Of all the vernacular dialects, the paisachi is said to have contained the smallest infusion of Sanskrit.⁵

1. Rajatarangini, Stein, viii. 27, 67, Rapson J. R. A. S., July 1900, 533

2. J. R. A. S., Jan., 1903, p. 37

3. The Sun and the Serpent.

3. and 5. Muir O.S.T. ii.49

That the Asuras originally spoke a language which differed from that of the Aryas seems evident. Several passages are quoted by Prof. Muir, from the Rig Veda, in which the word 'mridavach' is applied to the speech of the Asuras (R.vi.74, 2; v. vi.3; v.vii.6). Of these passages, Professor Muir observes: "The word mridavach, which I have translated "injuriously speaking", is explained by Sayana as meaning "one whose organs of speech are destroyed".¹ The original meaning of the expression was, doubtless that the language of the Asuras was more or less unintelligible to the Aryas. The same explanation will apply to another passage in the Rig Veda, where it is said : 'May we (by propitiating Indra) conquer the ill speaking man.'²

From the Satapatha Brahmana we find that 'the Asuras, being deprived of speech, were undone, crying. 'He lava', 'He lava'. Such was the unintelligible speech which they uttered. And he who speaks thus is a Mlecha. Hence, let no Brahman speak barbarous language, since such is the speech of Asuras'³

We learn from Manu, that 'those tribes who are outside of the classes produced from the mouth, arms, thighs and feet of Brahman, whether they speak the language of the Mlechas or of the Aryas, are called Dasyus.'⁴ In the time of Manu, therefore, the Aryan language and that of the Mlechas or Asuras were both in use. At the period described in the Mahabharata, however, the Asura language must have almost died out amongst the Aryanized tribes; as Vidura addressed Yudhishtira in the Mlecha tongue, so as to be unintelligible to all except Yudhishtira.⁵

At a later period than this, however, the grammarian Rama Tarkavagisa refers to 'those who speak like Nagas.'⁶ It would seem, therefore, that the unregenerate Asuras retained the language, as well as the religion and customs, of their forefathers long after their converted brethren had discarded them. It was evidently amongst these unregenerate tribes that the Paisachi dialects were in use; and amongst these tribes, as we have just seen, were the Dravidian Pandyas.⁷

This view, that the Tamil and cognate tongues were founded upon the ancient Asura speech, is very strongly confirmed by the fact that the language of the Brahuis, a tribe on the borders of Sind, has been found to be very closely allied to them. Indeed, Dr. Caldwell says: 'The Brahui (language) enables us to trace the Dravidian race, beyond the Indus, to the southern confines of Central Asia. This country, as I have already pointed out, was the home of the Asuras or Nagas, to which race apparently belonged the founders of the Dravidian kingdoms.'

Taking into consideration all the evidence which has been brought forward, the only possible conclusion seems to be, that the Dravidians, of the south of India, were of the same stock as the Asuras or Nagas of the North."

The second thing to be borne in mind is that the word 'Dravida' is not an original word. It is the Sanskritized form of the word Tamil'.

1. Muir, O.S.T. ii. 49

2. Rig Veda, Wilson VII, XVIII, 13

3. Satapatha Br. iii. 2, 1, 23

4. Muir, Haughton x. 45

5. Mahabharata, Adi. Jatagriha, p. cx/vii

6. Muir, O.S.T. ii. 52

7. Ibid. 49

The original word 'Tamil' when imported into Sanskrit became *Damita*¹ and later on *Damilla* became Dravida. The word Dravida is the name of the language of the people and does not denote the race of the people. The third thing to remember is that Tamil or Dravida was not merely the language of South India but before the Aryans came it was the language of the whole of India,² and was spoken from Kashmere to Cape Camorin. In fact, it was the language of the Nagas throughout India. The next thing to note is the contact between the Aryan and the Nagas and the effect it produced on the Nagas and their language. Strange as it may appear the effect of this contact on the Nagas of North India was quite different from the effect it produced on the Nagas of South India. The Nagas in North India gave up Tamil which was their mother tongue and adopted Sanskrit in its place. The Nagas in South India retained Tamil as their mother tongue and did not adopt Sanskrit the language of the Aryans. If this difference is borne in mind it will help to explain why the name Dravida came to be applied only for the people of South India. The necessity for the application of the name Dravida to the Nagas of Northern India had ceased because they had ceased to speak the Dravida language. But so far as the Nagas of South India are concerned not only the propriety of calling them Dravida had remained in view of their adherence to the Dravida language but the necessity of calling them Dravida had become very urgent in view of their being the only people speaking the Dravida language after the Nagas of the North had ceased to use it. This is the real reason why the people of South India have come to be called Dravidians.

The special application of the use of the word Dravida for the people of South India must not, therefore, obscure the fact that the Nagas and Dravidas are the one and the same people. They are only two different names for the same people. Nagas was a racial or cultural name and Dravida was their linguistic name.

Thus the Dasas are the same as the Nagas and the Nagas are the same as the Dravidians. In other words what we can say about the races of India is that there have been at the most only two races in the field, the Aryans and the Nagas. Obviously the theory of Mr. Rice must fall to the ground. For it postulates three races in action when as a matter of fact we see that there are only two.

1. B. R. Bhandarkar, Lectures on the Ancient History of India (1919), p: 80 .

2. Ibid pp., 25-28

II

Granting however that there was a third aboriginal race living in India before the advent of the Dravidians, can it be said that these pre-Dravidian aboriginals were the ancestors of the present day Untouchables of India? There are two tests we can apply to find the truth. One is the anthropometric test and the other is the ethnological.

Considered in the light of the anthropometric characteristics of the Indian people Prof. Ghurye has something very striking to say in his volume on 'Caste and Race in India' from which the following is an extract :

"Taking the Brahmin of the United Provinces as the typical representative of the ancient Aryans we shall start comparisons with him. If we turn to the table of differential indices we find that he shows a smaller differential index as compared with the Chuhra and the Khatri of the Punjab than with any caste from the United Provinces except the Chhatri. The differential index between the Khatri and the Chuhra¹ is the only slightly less than that between the Brahmin of the United Provinces and the Chuhra of the Punjab. This means that the Brahmin of the United Provinces has closer physical affinities with the Chuhra and the Khatri of the Punjab than with any caste from his own province except the very high caste of the Chhatri..... The reality of this close affinity between the United Provinces Brahmin and the Punjab Chuhra is more clearly brought out if we look at the table of differential indices between the United Provinces Brahmin and the Brahmins of other regions. Even the differential index between the United Provinces Brahmin and the Bihar Brahmins, who from what we know about the history of spread of the Aryan culture, is expected to be very nearly allied to the former, is just as high as that between the United Provinces Brahmin and the Chuhra..... On historical ground we expect Bihar to approximate to the United Provinces. On referring to the table we find that the Kurmi comes near to the Brahmin, and the Chamar and the Dom² stand much differentiated from him. But the Chamar in this case is not as much distinct from the Brahmin as the United Provinces Chamar is from the United Provinces Brahmin. The table for Bengal shows that the Chandal³ who stands sixth in the scheme of a social precedence and whose touch pollutes, is not much differentiated from the Brahmin, from whom the Kayasthas, second in rank, can hardly be said to be distinguished. In Bombay the Deshastha Brahmin bears as closer affinity to the Son-Koli, a fisherman caste, as to his own compeer, the Chitpavan Brahmin. The Mahar, the Untouchable of the Maratha region, come next together with the Kunbi, the peasant. Then follow in order the Shenvi Brahmin, the Nagar Brahmin and the high caste Maratha. These results are rather old. Stated in a generalized form they mean that there is no correspondence between social gradation and physical differentiation in Bombay.

1. Chuhra is an Untouchable of the Punjab.
2. Dom is an Untouchable of Bihar.
3. Chandal is an Untouchable of Bengal.

Finally we come to Madras. Here we must treat the different linguistic areas separately for the schemes of social precedence in the various areas are different. According to the average given by Risely and by E. Thurston the order of castes is as follows:

Kapu, Sale, Malla, Golla, Madiga, Fogata and Komati.

According to their social status they are ranked as below:

Brahmin, Komati, Golla, Kapu and others and Sale, Fagota and others. Mala Madiga occupy the lowest rank being the Pariahs of the Telugu country.

In the Canarese the nasal index gives the following order :

Karnatak Smarts, Brahmin, Bant, Billiva, Mandya Brahmin, Vakkaliga, Ganiga, Linga Banajiga, Panchala, Kurha, Holey, Deshastha Brahmin, Toreya and Bedar.

In the scheme of social precedence the castes are as under:

Brahmin, Bant and Vakkaliga, Toreya, etc., Kuruba and Ganiga, Badaga and Krumba and Solaga, Billiva, Beda Holey.

The significance of the comparison is enhanced when we remember that the nasal index of the Holey, the Untouchables of the Canarese region is 75.1 that of the highest of the Brahmin being 71.5 while those of the jungle Krumba and the Solaga, who when Hinduised occupy the rank allotted to them in the list, are 86.1 and 85.1 respectively.

The Tamil castes may be arranged according to their nasal index as follows:

Ambattan, Vellai, Edaiyan, Agamudaiyan, Tamil Brahmin, Palli, Malaiyali, Shanam and Parayan. The Nasal indices of four typical Malayalam castes are: Tiyan, 75; Nambudri 75.5; Nayar 76.7; Charuman 77.2. The order of social precedence among these is: Nambudri, Nayar, Tiyan and Charuman. The nasal index of the Kanikar, a jungle tribe of Travancore is 8.46. Thus, the Charuman (an Unapproachable) belonging to the same race as the Brahmin rather than to Kanikar."

To omit from the above extract what is said about other communities and to draw attention to what relates to the Untouchables only, it is clear that the nasal index of the Chuhra (the Untouchables) of the Punjab is the same as the nasal index of the Brahmin of the United Provinces; the nasal index of the Chamar (the Untouchables) of Bihar is not very much distinct from the Brahmin of Bihar; the nasal index of the Holey (an Untouchable) of the Canarese is far higher than that of the Brahmin of Karnatak and that the nasal index of the Cheruman (an Unapproachable lower than the Pariah) of the Tamil belongs to the same race as the Brahmin of the Tamil Nad. If anthropometry is a science which can be depended upon to determine the race of a people, then the result obtained by the application of anthropometry to the various strata of Hindu society disprove that the Untouchables belong to a race different from the Aryans and the Dravidians. The measurements establish that the Brahmin and the Untouchables belong to the same race.

From this it follows that if the Brahmins are Aryans the Untouchables are also Aryans. If the Brahmins are Dravidians the Untouchables are also Dravidians. If the Brahmins are Nagas, the Untouchables are also Nagas. Such being the facts, the theory propounded by Mr. Rice must be said to be based on a false foundation.

III

The racial theory of Untouchability not only runs counter to the results of anthropometry, but it also finds very little support from such facts as we know about the ethnology of India. That the people of India were once organized on tribal basis is quite well known, and although the tribes have become castes the tribal organization still remains intact. Each tribe was divided into clans and the clans were composed of groups of families. Each group of families had a totem which was some object, animate or inanimate. Those who had a common totem formed an exogamous group popularly known as *Gotra* or *Kula*. Families having a common gotra were not allowed to intermarry for they were supposed to be descended from the same ancestor having the same blood running in their veins. Having regard to this fact an examination of the distribution of the totems among the different castes and communities should serve as good a test for determining race as anthropometry has been.

Unfortunately, the study of the totems and their distribution among different communities has been completely neglected by students of sociology. This neglect is largely due to the current view propagated by the Census Commissioners that real unit of the Hindu social system and the basis of the fabric of Hindu society is the sub-caste founded on the rule of endogamy. Nothing can be a greater mistake than this. The unit of Hindu society is not the sub-caste but the family founded on the rule of exogamy. In this sense the Hindu family is fundamentally a tribal organization and not a social organization as the sub-caste is. The Hindu family is primarily guided in the matter of marriage by consideration of *Kul* and *Gotra* and only secondarily by considerations of caste and sub-caste. *Kul* and *Gotra* are Hindu equivalents of the totem of the Primitive Society. This shows that the Hindu society is still tribal in its organization with the family at its base observing the rules of exogamy based on *Kul* and *Gotra*. Castes and sub-castes are social organizations which are superimposed over

the tribal organization and the rule of endogamy enjoined by them does not do away with the rule of exogamy enjoined by the tribal organizations of *Kul* and *Gotra*.

The importance of recognizing the fact that it is the family which is fundamental and not the sub-caste is obvious. It would lead to the study of the names of *Kul* and *Gotra* prevalent among Hindu families. Such a study would be a great help in determining the racial composition of the people of India. If the same *Kul* and *Gotra* were found to exist in different castes and communities it would be possible to say that the castes though socially different were racially one. Two such studies have been made, one in Maharashtra by Risley¹ and another in the Punjab,² by Mr. Rose and the result flatly contradicts the theory that the Untouchables are racially different from the Aryans or the Dravidians. The main bulk of the population in Maharashtra consists of Marathas. The Mahars are the Untouchables of Maharashtra. The anthropological investigation shows that both have the same *Kul*. Indeed the identity is so great that there is hardly a *Kul* among the Marathas which is not to be found among the Mahars and there is no *Kul* among the Mahars which is not to be found among the Marathas. Similarly, in the Punjab one main stock of people consists of Jats. The Mazabi Sikhs are Untouchables most of them being Chamars by caste. Anthropological investigation shows that the two have the same *Gotras*. Given these facts how can it be argued that the Untouchables belong to a different race? As I have said if totem, kul, and gotra, have any significance it means that those who have the same totem must have been kindred. If they were kindred they could not be persons of different race.

The racial theory of the origin of Untouchability must, therefore, be abandoned.

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1. Census of India 1901. Ethnographical Appendices.

2. Glossary of Tribes and Castes in the Punjab by Rose, Vol., III, p. 76.

CHAPTER VIII

OCCUPATIONAL ORIGIN OF UNTOUCHABILITY

WE may now turn to the occupational theory of the origin of Untouchability. According to Mr. Rice, the origin of Untouchability is to be found in the unclean and filthy occupations of the Untouchables. The theory is a very plausible one. But there are certain difficulties in the way of its being accepted as a true explanation of the origin of Untouchability. The filthy and unclean occupations which the Untouchables perform are common to all human societies. In every human Society there are people who perform these occupations. Why were such people not treated as Untouchables in other parts of the world? The second question is : Did the Dravidians have a nausea against such callings or against persons engaged in them? On this point, there is no evidence. But we have evidence about the Aryans. That evidence shows that the Aryans were like other people and their notions of purity and impurity did not fundamentally differ from those of other ancient people. One has only to consider the following texts from Narada Smriti to show that the Aryans did not at all mind engaging themselves in filthy occupations. In Chapter V Narada is dealing with the subject matter of breach of contract of service. In this Chapter, there occur the following verses :

1. The sages have distinguished five sorts of attendants according to law. Among these are four sorts of labourers; the slaves (are the fifth category of which there are) fifteen species.
2. A student, an apprentice, a hired servant, and fourthly an official.
3. The sages have declared that the state of dependence is common to all these but their respective position and income depends on their particular caste and occupations.

4. Know that there are two sorts of occupations; pure work and impure work; *impure work is that done by the slaves*. Pure work is that done by labourers.
5. *Sweeping the gateway, the privy, the road and the place for rubbish; shampooing the secret parts of the body; gathering and putting away the leaving of food, ordure and urine.*
6. *And lastly, rubbing the master's limbs when desired; this should be regarded as impure work. All other work besides this is pure.*
25. Thus have the four classes of servants doing pure work been enumerated. All the others who do dirty work are slaves, of whom there are fifteen kinds:¹

It is clear that impure work was done by the slaves and that the impure work included scavenging. The question that arises is: Who were these slaves? Were they Aryans or non-Aryans? That slavery existed among the Aryans admits of no doubt. An Aryan could be a slave of an Aryan. No matter to what Varna an Aryan belonged he could be a slave. A Kshatriya could be a slave. So could a Vaishya. Even a Brahmin was not immune from the law of slavery. It is when *Chaturvarna* came to be recognized as a law of the land that a change was made in the system of slavery. What this change was can be seen from the following extract from the Narada Smriti :

“39. In the inverse order of the (four) castes slavery is not ordained, except where a man violated the duties peculiar to his caste. Slavery (in that respect) is analogous to the condition of a wife”.

Yajnavalkya also says that :

“183(2) Slavery is in the descending order of the Varnas and not in the ascending order”

This is explained by Vijnaneswara in his *Mitakshara*, a Commentary on Yajnavalkya Smriti in the following terms:-

“Of the Varna such as the Brahmin and the rest, a state of slavery shall exist in the descending order (Anulomcyana). Thus, of a Brahmin, a Kshatriya, and the rest may become a slave; of a Kshatriya, the Vaishya and the Shudra; and of a Vaishya, a Shudra; this state of slavery shall operate in the descending order.”

1 The fifteen classes of slaves are defined by the Narada Smriti in the following verses ;

- V. 26. One born at (his master's) house; one purchased; one received (by gift); one obtained by inheritance; one maintained during a general famine; one pledged by his rightful owner.
- V. 27. One released from heavy debt; one made captive in fight; one won through a wager; one who has come forward declaring 'I am thine.' An apostate from asceticism; one enslaved for a stipulated period.
- V. 28. One who has become slave in order to get a maintenance; one enslaved on account of his connection with a female slave; and one self-sold. These are 15 classes of slaves as declared by law.

The change was a mere reorganization of slavery and the basis of the principles of graded inequality which is the soul of Chaturvarna. To put it in a concrete form, the new law declared that a Brahmin could have a Brahmin, Kshatriya, Vaishya and a Shudra as his slave. A Kshatriya could have Kshatriya, a Vaishya and a Shudra as his slave. A Vaishya could have a Vaishya and and a Shudra as his slave. A Shudra could have a Shudra only. With all this, the law of slavery remained and all Aryans whether they were Brahmins, Kshatriyas, Vaishyas or Shudras if they become slaves were subject to it.

Having regard to the duties prescribed for the slaves, this change in the law of slavery does not matter at all. It still means that a Brahmin if he was a slave, a Kshatriya if he was a slave, a Vaishya if he was a slave, did the work of a scavenger. Only a Brahmin would not do scavenging in the house of a Kshatriya, Vaishya or a Shudra. But he would do scavenging in the house of a Brahmin. Similarly, a Kshatriya would do scavenging in the house of a Brahmin and the Kshatriya. Only he would not do it in the house of a Vaishya or Shudra and a Vaishya would do scavenging in the house of a Brahmin, Kshatriya and Vaishya. Only he would not do it in the house of a Shudra. It is, therefore, obvious that the Brahmins, Kshatriyas and Vaishyas who are admittedly the Aryans did the work of scavengers which is the filthiest of filthy occupations. If scavenging was not loathsome to an Aryan how can it be said that engaging in filthy occupations was the cause of Untouchability. The theory of filthy occupation as an explanation of Untouchability is, therefore, not tenable.

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PART IV

**NEW THEORIES OF THE ORIGIN
OF UNTOUCHABILITY**

- Chapter IX.* Contempt for Buddhists as the Root of Untouchability.
- Chapter X.* Beef-eating as the Root of Untouchability.

CHAPTER IX

CONTEMPT FOR BUDDHISTS AS THE ROOT OF UNTOUCHABILITY

I

THE Census Reports for India published by the Census Commissioner at the interval of every ten years from 1870 onwards contain a wealth of information nowhere else to be found regarding the social and religious life of the people of India. Before the Census of 1910 the Census Commissioner had a column called "Population by Religion". Under this heading the population was shown (1) Muslims, (2) Hindus, (3) Christians, etc. The Census Report for the year 1910 marked a new departure from the prevailing practice. For the first time it divided the Hindus under three separate categories, (i) Hindus, (ii) Animists and Tribal, and (iii) the Depressed Classes or Untouchables. This new classification has been continued ever since.

II

This departure from the practice of the previous Census Commissioners raises three questions. First is what led the Commissioner for the Census of 1910 to introduce this new classification. The second is what was the criteria adopted as a basis for this classification. The third is what are the reasons for the growth of certain practices which justify the division of Hindus into three separate categories mentioned above.

The answer to the first question will be found in the address presented in 1909 by the Muslim Community under leadership of H.H. The Aga Khan to the then Viceroy, Lord Minto, in which they asked for a separate and adequate representation for the Muslim community in the legislature, executive and the public services.

In the address¹ there occurs the following passage :-

“The Mohamedans of India number, according to the census taken in the year 1901 over sixty-two millions or between one-fifth and one-fourth of the total population of His Majesty’s Indian dominions, *and if a reduction be made for the uncivilised portions of the community enumerated under the heads of animist and other minor religions, as well as for those classes who are ordinarily classified as Hindus but properly speaking are not Hindus at all, the proportion of Mohamedans to the Hindu Majority becomes much larger.*² We therefore desire to submit that under any system of representation extended or limited a community in itself more numerous than the entire population of any first class European power except Russia may justly lay claim to adequate recognition as an important factor in the State.

“We venture, indeed, with Your Excellency’s permission to go a step further, and urge that the position accorded to the Mohamedan community in any kind of representation direct or indirect, and in all other ways effecting their status and influence should be commensurate, not merely with their numerical strength but also with their political importance and the value of the contribution which they make to the defence of the empire, and we also hope that Your Excellency will in this connection be pleased to give due consideration to the position which they occupied in India a little more than hundred years ago and of which the traditions have naturally not faded from their minds.”

The portion in italics has a special significance. It was introduced in the address to suggest that in comprising the numerical strength of the Muslims with that of the Hindus the population of the animists, tribals and the Untouchables should be excluded. The reason for this new classification of ‘Hindus’ adopted by the Census Commissioner in 1910 lies in this demand of the Muslim community for separate representation on augmented scale. At any rate this is how the Hindus understood this demand.³

Interesting as it is, the first question as to why the Census Commissioner made this departure in the system of classification is of less importance than the second question. What is important is to know the basis adopted by the Census Commissioner for separating the different classes of Hindus into (1) those who were hundred per cent Hindus and (2) those who were not.

1 For the text of the address see my *Pakistan* p. 431

2 Italics not in the original.

3 This operation came soon after the address given by Muslim community to Lord Minto in 1909 in which they asked for a separate and adequate representation for the Muslim community. The Hindu smelt a rat in it. As the Census Commissioner observed :—

“Incidentally, the enquiry generated a certain amount of heat, because unfortunately it happened to be made at a time when the rival claims of Hindus and Mohammedans to representation on the Legislative Councils were being debated and some of the former feared that it would lead to the exclusion of certain classes from the category of Hindus and would thus react unfavourably on their political importance”. Part I. p. 116.

The basis adopted by the Census Commissioner for separation is to be found in the circular issued by the Census Commissioner in which he laid down certain tests for the purpose¹ of distinguishing these two classes. Among those who were not hundred per cent Hindus were included castes and tribes which :—

- (1) Deny the supremacy of the Brahmins.
- (2) Do not receive the Mantra from a Brahmin or other recognized Hindu Guru.
- (3) Deny the authority of the Vedas.
- (4) Do not worship the Hindu gods.
- (5) Are not served by good Brahmins as family priests.
- (6) Have no Brahmin priests at all.
- (7) Are denied access to the interior of the Hindu temples.
- (8) Cause pollution (a) by touch, or (b) within a certain distance.
- (9) Bury their dead.
- (10) Eat beef and do no reverence to the cow.

Out of these ten tests some divide the Hindus from the Animists and the Tribal. The rest divide the Hindus from the Untouchables. Those that divide the Untouchables from the Hindus are (2), (5), (6), (7), and (10). It is with them that we are chiefly concerned.

For the sake of clarity it is better to divide these tests into parts and consider them separately. This Chapter will be devoted only to the consideration of (2), (5), and (6).

The replies received by the Census Commissioner to questions embodied in tests (2), (5) and (6) reveal (1) that the Untouchables do not receive the Mantra from a Brahmin; (2) that the Untouchables are not served by good Brahmin priests at all; and (3) that Untouchables have their own priests reared from themselves. On these facts the Census Commissioners of all Provinces are unanimous.²

Of the three questions the third is the most important. Unfortunately the Census Commissioner did not realize this. For in making his inquiries he failed to go to the root of the matter to find out: Why were the Untouchables not receiving the Mantra from the Brahmin? Why Brahmins did not serve the Untouchables as their family priests? Why do the Untouchables prefer to have their own priests? It is the 'why' of these facts which is more important than the existence of these facts. It is the 'why' of these facts which must be

1. See Census of India (1911). Pan 1. p. 117

2. See Census of 1911 for Assam p.40; for Bengal, Bihar and Orisa p. 282; for CP.p.73;

investigated. For the clue to the origin of Untouchability lies hidden behind it.

Before entering upon this investigation, it must be pointed out that the inquiries by the Census Commissioner were in a sense one-sided. They showed that the Brahmins shunned the Untouchables. They did not bring to light the fact that the Untouchables also shunned the Brahmins. Nonetheless, it is a fact. People are so much accustomed to thinking that the Brahmin is the superior of the Untouchables and the Untouchable accepts himself as his inferior; that this statement that the Untouchables look upon the Brahmin as an impure person is sure to come to them as a matter of great surprise. The fact has however been noted by many writers who have observed and examined the social customs of the Untouchables. To remove any doubt on the point, attention is drawn to the following extracts from their writings.

The fact was noticed by Abbe Dubois who says¹ :

“Even to this day a Pariah is not allowed to pass a Brahmin Street in a village, though nobody can prevent, or prevents, his approaching or passing by a Brahmin’s house in towns. The Pariahs, on their part will under no circumstances, allow a Brahmin to pass through their *paracherries* (collection of Pariah huts) as they firmly believe it will lead to their ruin”.

Mr. Hemingsway, the Editor of the Gazetteer of the Tanjore District says :

“These castes (Parayan and Pallan or Chakkiliyan castes of Tanjore District) strongly object to the entrance of a Brahmin into their quarters believing that harm will result to them therefrom”.²

Speaking of the Holeyas of the Hasan District of Mysore, Captain J.S.F. Mackenzie says:-

“Every village has its Holigiri as the quarters inhabited by the Holiaris, formerly agrestic serfs, is called outside the village boundary hedge. This, I thought was because they were considered as impure race, whose touch carries defilement with it”³

Such is the reason generally given by the Brahmins who refuse to receive anything directly from the hands of a Holiar, and yet the Brahmins consider great luck will wait upon them if they can manage to pass through the Holigiri without being molested. To this Holiaris

for Madras p. 51; for Punjab p. 109; for U.P. p. 121; for Baroda p.55. for Mysore p.53; for Rajputana pp. 94—105; for Travancore p.198

1. Hindu Manners and Customs (3rd Edition) p. 61 f.n.

2. Gazetteer of Tanjore District (1906) p. 80.

3. Indian Antiquary 1873 11.65.

have a strong objection, and, should a Brahmin attempt to enter their quarters, they turn out in a body and slipper him, in former times, it is said, to death. Members of the other castes may come as far as the door, but they must not enter the house, for that would bring the Holiar bad luck. If, by chance, a person happens to get in, the owner takes care to tear the intruder's cloth, tie up some salt in one corner of it, and turn him out. This is supposed to neutralise all the good luck which might have accrued to the trespasser, and avert any evil which ought to have befallen the owner of the house.

What is the explanation of this strange phenomenon? The explanation must of course fit in with the situation as it stood at the start, *i.e.* when the Untouchables were not Untouchables but were only Broken Men. We must ask why the Brahmins refused to officiate at the religious ceremonies of the Broken Men? Is it the case that the Brahmins refused to officiate? Or is it that the Broken Men refused to invite them? Why did the Brahmin regard Broken Men as impure? Why did the Broken Men regard the Brahmins as impure? What is the basis of this antipathy?

This antipathy can be explained on one hypothesis. It is that the Broken Men were Buddhists. As such they did not revere the Brahmins, did not employ them as their priests and regarded them as impure. The Brahmin on the other hand disliked the Broken Men because they were Buddhists and preached against them contempt and hatred with the result that the Broken Men came to be regarded as Untouchables.

We have no direct evidence that the Broken Men were Buddhists. No evidence is as a matter of fact necessary when the majority of Hindus were Buddhists. We may take it that they were.

That there existed hatred and abhorrence against the Buddhists in the mind of the Hindus and that this feeling was created by the Brahmins is not without support.

Nilkant in his *Prayaschit Mayukha*¹ quotes a verse from Manu which says :—

“If a person touches a Buddhist or a flower of Pachupat, Lokayala, Nastika and Mahapataki, he shall purify himself by a bath.”

The same doctrine is preached by Apararka in his *Smriti*.² Vradha Harit goes further and declares entry into the Buddhist Temple as sin requiring a purificatory bath for removing the impurity.

1 Edited by Gharpure, p.95.

2 *Smriti Sammucchaya* I. p. 118.

How widespread had become this spirit of hatred and contempt against the followers of Buddha can be observed from the scenes depicted in Sanskrit dramas. The most striking illustration of this attitude towards the Buddhists is to be found in the *Mricchakatika*. In Act VII of that Drama the hero Charudatta and his friend Maitreya are shown waiting for Vasantasena in the park outside the city. She fails to turn up and Charudatta decides to leave the park. As they are leaving, they see the Buddhist monk by name Samvahaka. On seeing him, Charudatta says :-

“Friend Maitreya, I am anxious to meet Vasantsena ...

Come, let us go. (After walking a little) Ah ! here’s an inauspicious sight, a Buddhist monk coming towards us. (After a little reflection) well, let him come this way, we shall follow this other path. (Exit.)

In Act VIII, the monk is in the Park of Sakara, the King’s brother-in-law, washing his clothes in a pool. Sakara accompanied by Vita, turns up and threatens to kill the monk. The following conversation between them is revealing :

“Sakara- Stay, you wicked monk.

Monk- Ah! Here’s the king’s brother-in-law! Because some monk has offended him, he now beats up any monk he happens to meet.

Sakara- Stay, I will now break your head as one breaks a radish in a tavern. (*Beats him*).

Vita- Friend, it is not proper to beat a monk who has put on the saffron-robcs, being disgusted with the world.

Monk- (*Welcomes*) Be pleased, lay brother.

Sakara- Friend, see. He is abusing me.

Vita- What does he say?

Sakara- He calls me lay brother (*upasaka*). Am I a barber?

Vita- Oh! He is really praising you as a devotee of the Buddha.

Sakara- Why has he come here?

Monk- To wash these clothes.

Sakara- Ah! you wicked monk. Even I myself do not bathe in this pool; I shall kill you with one stroke.”

After a lot of beating, the monk is allowed to go. Here is a Buddhist Monk in the midst of the Hindu crowd. He is shunned and avoided. The feeling of disgust against him is so great that the people even shun the road the monk is travelling. The feeling of repulsion is so intense that the entry of the Buddhist was enough to cause the exit of the Hindus. The Buddhist monk is on a par with the Brahmin. A Brahmin is immune from death-penalty. He is even free from corporal punishment But the Buddhist monk is beaten and assaulted

without remorse, without compunction as though there was nothing wrong in it.

If we accept that the Broken Men were the followers of Buddhism and did not care to return to Brahmanism when it became triumphant over Buddhism as easily as other did, we have an explanation for both the questions. It explains why the Untouchables regard the Brahmins as inauspicious, do not employ them as their priest and do not even allow them to enter into their quarters. It also explains why the Broken Men came to be regarded as Untouchables. The Broken Men hated the Brahmins because the Brahmins were the enemies of Buddhism and the Brahmins imposed untouchability upon the Broken Men because they would not leave Buddhism. On this reasoning it is possible to conclude that one of the roots of untouchability lies in the hatred and contempt which the Brahmins created against those who were Buddhist.

Can the hatred between Buddhism and Brahmanism be taken to be the sole cause why Broken Men became Untouchables? Obviously, it cannot be. The hatred and contempt preached by the Brahmins was directed against Buddhists in general and not against the Broken Men in particular. Since untouchability stuck to Broken Men only, it is obvious that there was some additional circumstance which has played its part in fastening untouchability upon the Broken Men. What that circumstance could have been? We must next direct our effort in the direction of ascertaining it.

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CHAPTER X

BEEF EATING AS THE ROOT OF UNTOUCHABILITY

WE now take up test No. 10 referred to in the circular issued by the Census Commissioner and to which reference has already been made in the previous chapter. The test refers to beef-eating.

The Census Returns show that the meat of the dead cow forms the-chief item of food consumed by communities which are generally classified as untouchable communities. No Hindu community, however low, will touch cow's flesh. On the other hand, there is no community which is really an Untouchable community which has not something to do with the dead cow. Some eat her flesh, some remove the skin, some manufacture articles out of her skin and bones.

From the survey of the Census Commissioner, it is well established that Untouchables eat beef. The question however is: Has beef-eating any relation to the origin of Untouchability? Or is it merely an incident in the economic life of the Untouchables? Can we say that the Broken Men came to be treated as Untouchables because they ate beef? There need be no hesitation in returning an affirmative answer to this question. No other answer is consistent with facts as we know them.

In the first place, we have the fact that the Untouchables or the main communities which compose them eat the dead cow and those who eat the dead cow are tainted with untouchability and no others. The co-relation between untouchability and the use of the dead cow is so great and so close that the thesis that it is the root of untouchability seems to be incontrovertible. In the second place if there is anything that separates the Untouchables from the Hindus, it is beef-eating. Even a superficial view of the food taboos of the Hindus will show that there are two taboos regarding food which serve as dividing lines. There is one taboo against meat-eating. It divides Hindus into vegetarians and flesh eaters. There is another

taboo which is against beef eating. It divides Hindus into those who eat cow's flesh and those who do not. From the point of view of untouchability the first dividing line is of no importance. But the second is. For it completely marks off the Touchables from the Untouchables. The Touchables whether they are vegetarians or flesh-eaters are united in their objection to eat cow's flesh. As against them stand the Untouchables who eat cow's flesh without compunction and as a matter of course and habit.¹

In this context it is not far-fetched to suggest that those who have a nausea against beef-eating should treat those who eat beef as Untouchables.

There is really no necessity to enter upon any speculation as to whether beef-eating was or was not the principal reason for the rise of Untouchability. This new theory receives support from the Hindu Shastras. The Veda Vyas Smriti contains the following verse which specifies the communities which are included in the category of Antyajas and the reasons why they were so included.²

L. 12-13 " The *Charmakars* (Cobbler), the *Bhatta* (Soldier), the *Bhilla*, the *Rajaka* (washerman), the *Puskara*, the *Nata* (actor), the *Vrata*, the *Meda*, the *Chandala*, the *Dasa*, the *Svapaka*, and the *Kolika*- these are known as Antyajas as well as others who eat cow's flesh."

Generally speaking the Smritikars never care to explain the why and the how of their dogmas. But this case is exception. For in this case, Veda Vyas does explain the cause of untouchability. The clause "as well as others who eat cow's flesh" is very important. It shows that the Smritikars knew that the origin of untouchability is to be found in the eating of beef. The dictum of Veda Vyas must close the argument. It comes, so to say, straight from the horse's mouth and what is important is that it is also rational for it accords with facts as we know them.

The new approach in the search for the origin of Untouchability has brought to the surface two sources of the origin of Untouchability. One is the general atmosphere of scorn and contempt spread by the Brahmins against those who were Buddhists and the second is the habit of beef-eating kept on by the Broken Men. As has been said , the first circumstance could not be sufficient to account for stigma of

1 The Untouchables have felt the force of the accusation levelled against them by the Hindus for eating beef. Instead of giving up the habit the Untouchables have invented a philosophy which justifies eating the beef of the dead cow. The gist of the philosophy is that eating the flesh of the dead cow is a better way of showing respect to the cow than throwing her carcass to the wind.

2 Quoted in Kane's History of Dharma Shastra-Vol.11, Part 1 p. 71.

Untouchability attaching itself to the Broken Men. For the scorn and contempt for Buddhists spread by the Brahmins was too general and affected all Buddhists and not merely the Broken Men. The reason why Broken Men only became Untouchables was because in addition to being Buddhists they retained their habit of beef-eating which gave additional ground for offence to the Brahmins to carry their newfound love and reverence to the cow to its logical conclusion. We may therefore conclude that the Broken Men were exposed to scorn and contempt on the ground that they were Buddhists the main cause of their Untouchability was beef-eating.

The theory of beef-eating as the cause of untouchability also gives rise to many questions. Critics are sure to ask: What is the cause of the nausea which the Hindus have against beef-eating? Were the Hindus always opposed to beef-eating? If not, why did they develop such a nausea against it? Were the Untouchables given to beef-eating from the very start? Why did they not give up beef-eating when it was abandoned by the Hindus? Were the Untouchables always Untouchables? If there was a time when the Untouchables were not Untouchables even though they ate beef why should beef-eating give rise to Untouchability at a later-stage? If the Hindus were eating beef, when did they give it up? If Untouchability is a reflex of the nausea of the Hindus against beef-eating, how long after the Hindus had given up beef-eating did Untouchability come into being? These questions must be answered. Without an answer to these questions, the theory will remain under cloud. It will be considered as plausible but may not be accepted as conclusive. Having put forth the theory, I am bound to answer these questions. I propose to take up the following heads :-

- (1) Did the Hindus never eat beef?
- (2) What led the Hindus to give up beef-eating?
- (3) What led the Brahmins to become vegetarians?
- (4) Why did beef-eating give rise to Untouchability? and
- (5) When was Untouchability born?

PART V
THE NEW THEORIES AND SOME QUESTIONS

- Chater XI.* Did the Hindus never eat beef ?
- Chapter XII.* Why did non-Brahmins give up beef-eating ?
- Chapter XIII.* What made the Brahmins to become vegetarians ?
- Chapter XIV.* Why should beef-eating make Broken Men Untouchables ?

CHAPTER XI

DID THE HINDUS NEVER EAT BEEF ?

TO the question whether the Hindus ever ate beef, every Touchable Hindu, whether he is a Brahmin or a non-Brahmin, will say 'no, never'. In a certain sense, he is right. From times no Hindu has eaten beef. If this is all that the Touchable Hindu wants to convey by his answer there need be no quarrel over it. But when the learned Brahmins argue that the Hindus not only never ate beef but they always held the cow to be sacred and were always opposed to the killing of the cow, it is impossible to accept their view.

What is the evidence in support of the construction that the Hindus never ate beef and were opposed to the killing of the cow?

There are two series of references in the Rig Veda on which reliance is placed. In one of these, the cow is spoken of as *Aghnya*. They are Rig Veda 1.164, 27; IV.1.6; V 82-8; VII.69. 71; X.87. *Aghnya* means 'one who does not deserve to be killed'. From this, it is argued that this was a prohibition against the killing of the cow and that since the Vedas are the final authority in the matter of religion, it is concluded that the Aryans could not have killed the cows, much less could they have eaten beef. In another series of references the cow is spoken of as sacred. They are Rig Veda VI.28.1.8. and VIII, 101. 15. In these verses the cow is addressed as Mother of Rudras, the Daughter of Vasus, the Sister of the Adityas and the Centre of Nectar. Another reference on the subject is in Rig Veda VIII. 101. 16 where the cow is called Devi (Goddess).

Raliance is also placed on certain passages in the Brahmanas and Sutras.

There are two passages in the Satapatha Brahmana which relate to animal sacrifice and beef-eating. One is at III. 1.2.21 and reads as follows :-

"He (the Adhvaryu) then makes him enter the hall. Let him not eat (the flesh) of either the cow or the ox, for the cow and the ox doubtless support everything here on earth. The gods spake, 'verily, the cow and the ox support everything here; come, let us bestow on the cow and the ox whatever vigour belonged to

other species (of animals); and therefore the cow and the ox eat most. Hence were one to eat (the flesh) of an ox or a cow, there would be, as it were, an eating of everything, or, as it were, a going to the end (or, to destruction)... Let him therefore not eat (the flesh) of the cow and the ox."

The other passage is at 1, 2, 3, 6. It speaks against animal sacrifice and on ethical grounds.

A similar statement is contained in the Apastambha Dharma Sutra at 1, 5, 17, 29. Apastambha lays a general embargo on the eating of cow's flesh.

Such is the evidence in support of the contention that the Hindus never ate beef. What conclusion can be drawn from this evidence?

So far as the evidence from the Rig Veda is concerned the conclusion is based on a misreading and misunderstanding of the texts. The adjective *Aghnya* applied to the cow in the Rig Veda means a cow that was yielding milk and therefore not fit for being killed. That the cow is venerated in the Rig Veda is of course true. But this regard and veneration of the cow are only to be expected from an agricultural community like the Indo-Aryans. This application of the utility of the cow did not prevent the Aryan from killing the cow for purposes of food. Indeed the cow was killed because the cow was regarded as sacred. As observed by Mr.Kane:

"It was not that the cow was not sacred in Vedic times, it was because of her sacredness that it is ordained in the Vajasaneyi Samhita that beef should be eaten."¹

That the Aryans of the Rig Veda did kill cows for purposes of food and ate beef is abundantly clear from the Rig Veda itself. In Rig Veda (X. 86.14) Indra says:- "They cook for one 15 plus twenty oxen". The Rig Veda (X.91.14) says that for Agni were sacrificed horses, bulls, oxen, barren cows and rams. From the Rig Veda (X.72.6) it appears that the cow was killed with a sword or axe.

As to the testimony of the Satapatha Brahmana, can it be said to be conclusive? Obviously, it cannot be. For there are passages in the other Brahmanas which give a different opinion.

To give only one instance. Among the Kamyashtis set forth in the Taittiriya Brahmana, not only the sacrifice of oxen and cows are laid down, but we are even told what kind and description of oxen and cows are to be offered to what deities. Thus, a dwarf ox is to be chosen for sacrifice to Vishnu; a drooping horned bull with a blaze on the forehead to Indra as the destroyer of Vritra; a black cow to

1 Dharm Shashtra Vichar (Marathi) p, 180.

Pushan; a red cow to Rudra; and so on. The Taittiriya Bramhana notes another sacrifice called *Panchasaradiya-seva*, the most important element of which was the immolation of seventeen five-year old humpless, dwarf-bulls, and as many dwarf heifers under three year-old.

As against the statement of the Apastamba Dharma Sutra, the following points may be noted.

First is the contrary statement contained in that Very Sutra. At 14, 15, 29, the Sutra says :-

“The cow and the bull are sacred and therefore should be eaten”.

The second is the prescription of Madhuparka contained in the Grahya Sutras. Among the Aryans the etiquette for receiving important guests had become settled into custom and had become a ceremony. The most important offering was Madhuparka. A detailed descriptions regarding Madhuparka are to be found in the various Grahya Sutras. According to most of the Grahya Sutras there are six persons who have a right to be served with Madhuparka namely; (1) Ritwija or the Brahmin called to perform a sacrifice, (2) Acharya, the teacher, (3) The bridegroom (4) The King (5) The Snatak, the student who has just finished his studies at the Gurukul and (6) Any person who is dear to the host. Some add Atithi to this list. Except in the case of Ritvija, King and Acharya, Madhuparka is to be offered to the rest once in a year. To the Ritvija, King and Acharya it is to be offered each time they come.

What was this Madhuparka made of ? There is divergence about the substances mixed in offering Madhuparka. Asv.gr and Ap.gr. (13.10) prescribe a mixture of honey and curds or clarified butter and curds. Others like Par.gr. 13 prescribe a mixture of three (curds, honey and butter). Ap.gr.(13.11-12) states the view of some that those three may be mixed or five (those three with fried *yava* grain and barley). Hir.gr.I, 12, 10-12 give the option of mixing three or five (curds, honey, ghee, water and ground grain). The Kausika Sutra (92) speaks of nine kinds of mixtures, viz., *Brahma* (honey and curds), *Aindra* (of payasa), *Saumya* (curds and ghee), *Pausna* (ghee and mantha), *Sarasvata* (milk and ghee), *Mausala* (wine and ghee, this being used only in Sautramanai and Rajasuya sacrifices), *Parivrajaka* (sesame oil and oil cake). The Madhava gr.I.9.22 says that the Veda declares that the Madhuparka must not be without flesh and so it recommends that if the cow is let loose, goat's meat or payasa (rice cooked in milk) may be offered; the Hir.gr. 1.13, 14 says that other meat should be offered; Baud.gr. (1.2,51-54) says that when the cow is let off, the flesh of a goat or ram may be offered or some forest flesh (of a deer,

etc.) may be offered, as there can be no Madhuparka without flesh or if one is unable to offer flesh one may cook ground grains.

Thus the essential element in Madhuparka is flesh and particularly cow's flesh.

The killing of cow for the guest had grown to such an extent that the guest came to be called 'Go-ghna' which means the killer of the cow. To avoid this slaughter of the cows the Ashvalayana Grahya Sutra (1.24.25) suggests that the cow should be let loose when the guest comes so as to escape the rule of etiquette.

Thirdly, reference may be made to the ritual relating to disposal of the dead to counter the testimony of the Apastamba Dharma Sutra. The Sutra says¹ :-

- “1. He should then put the following (sacrificial) implements (on the dead body)
2. Into the right hand the (spoon called) Guhu.
3. Into the left the (other spoon called) Upabhrit.
4. On his right side the wooden sacrificial sword called *Sphya*, on his left side the Agnihotrahavani (i.e., the laddle with which the Agnihotra oblations are sacrificed).
5. On his chest the (big sacrificial laddle called) Dhruva. On his head the dishes. On his teeth the pressing stones.
6. On the two sides of his nose, the two smaller sacrificial laddies called *Sruvas*.
7. Or, if there is only one (Sruva), breaking it (in two pieces).
8. On his two ears the two Prasitraharanas (i.e, the vessels into which the portion of the sacrificial food belonging to the Brahmin) is put
9. Or, if there is only one (Prasitraharana), breaking it (in two pieces).
10. On his belly the (vessel called) Patri.
11. And the cup into which the cut-off portion (of the sacrificial food) are put.
12. On his secret parts the (staff called) Samy.
13. On his thighs two kindling woods.
14. On his legs the mortar and the pestle.
15. On his feet the two baskets.
16. Or, if there is only one (basket), breaking it in two pieces.
17. Those of the implements which have a hollow (into which liquids can be poured) are filled with sprinkled butter.

¹ Kane's vol. II. Part I p. 545.

18. The son (of the deceased person) should take the under and the upper mill-stone for himself.
19. And the implements made of copper, iron and earthenware.
20. Taking out the omentum of the she-animal he should cover therewith the head and the mouth (of the dead person) with the verse, 'But on the armour (which will protect thee) against Agni, by that which comes from the cows.' (Rig Veda. X.16.7).
21. Taking out the kidneys of the animal he should lay them into the hands (of the dead body) with the verse, escape the two hounds, the sons of Sarma (Rig Veda X 14.10) the right kidney into the right hand and the left into the left hand.
22. The heart of the animals he puts on the heart of the deceased.
23. And two lumps of flour or rice according to some teachers.
24. Only if there are no kidneys according to some teachers.
25. Having distributed the whole (animal), limb by limb (placing its different limbs on the corresponding limbs of the deceased) and having covered it with its hide, he recites when the Pranita water is carried forward (the verse), 'Agni do not overturn this cup,' (Rig Veda, X.16.8).
26. Bending his left knee he should sacrifice Yugya oblation into the Dakshina fire with the formulas 'To Agni Svaha, to Kama Svaha, to the world Svaha, to Anumati Svaha'.
27. A fifth (oblation) on the chest of the deceased with the formula 'from this one verily thou hast been born. May he now be born out of thee. To the heaven worlds Svaha.' "

From the above passage quoted from the Ashvalayan Grahya Sutra it is clear that among the ancient Indo-Aryans when a person died, an animal had to be killed and the parts of the animal were placed on the appropriate parts of the dead body before the dead body was burned.

Such is the state of the evidence on the subject of cow-killing and beef-eating. Which part of it is to be accepted as true? The correct view is that the testimony of the Satapatha Brahmana and the Apastamba Dharma Sutra in so far as it supports the view that Hindus were against cow-killing and beef-eating, are merely exhortations against the excesses of cow-killing and not prohibitions against cow-killing. Indeed the exhortations prove that cow-killing and eating of beef had become a common practice. That notwithstanding these exhortations cow-killing and beef-eating continued. That most often they fell on deaf ears is proved by the conduct of Yajnavalkya, the great Rishi of the Aryans. The first passage quoted above from the

Satapatha Brahmana was really addressed to Yajnavalkya as an exhortation. How did Yajnavalkya respond? After listening to the exhortation this is what Yajnavalkya said :-

“I, for one, eat it, provided that it is tender”

That the Hindus at one time did kill cows and did eat beef is proved abundantly by the description of the Yajnas given in the Buddhist Sutras which relate to periods much later than the Vedas and the Brahmanas. The scale on which the slaughter of cows and animals took place was colossal. It is not possible to give a total of such slaughter on all accounts committed by the Brahmins in the name of religion. Some idea of the extent of this slaughter can however be had from references to it in the Buddhist literature. As an illustration reference may be made to the Kutadanta Sutta in which Buddha preached against the performance of animal sacrifices to Brahmin Kutadanta. Buddha, though speaking in a tone of sarcastic travesty, gives a good idea of the practices and rituals of the Vedic sacrifices when he said:

“And further, O Brahmin, at that sacrifice neither were any oxen slain, neither goats, nor fowls, nor fatted pigs, nor were any kind of living creatures put to death. No trees were cut down to be used as posts, no Darbha grasses mown to stress around the sacrificial spot. And the slaves and messengers and workmen there employed were driven neither by rods nor fear, nor carried on their work weeping with tears upon their faces.”

Kutadanta on the other hand in thanking Buddha for his conversion gives an idea of the magnitude of the slaughter of animals which took place at such sacrifices when he says :-

“I, even I betake myself to the venerable Gotama as my guide, to the Doctrine and the Order. May the venerable One accept me as a disciple, as one who, from this day forth, as long as life endures, has taken him as his guide. And I myself, O, Gotama, will have the seven hundred bulls, and the seven hundred steers, and the seven hundred heifers, and the seven hundred goats, and the seven hundred rams set free. To them I grant their life. Let them eat grass and drink fresh water and may cool breezes waft around them.”

In the Samyuta Nikaya (III,1-9) we have another description of a Yajna performed by Pasenadi, king of Kosala. It is said that five hundred bulls, five hundred calves and many heifers, goats and rams were led to the pillar to be sacrificed.

With this evidence no one can doubt that there was a time when Hindus –both Brahmins and non-Brahmins –ate not only flesh but also beef.

CHAPTER XII

WHY DID NON-BRAHMINS GIVE UP BEEF-EATING?

THE food habits of the different classes of Hindus have been as fixed and stratified as their cults. Just as Hindus can be classified on their basis of their cults so also they can be classified on the basis of their habits of food. On the basis of their cults, Hindus are either *Saivites* (followers of Siva) or *Vaishnavites* (followers of Vishnu). Similarly, Hindus are either *Mansahari* (those who eat flesh) or *Shakahari* (those who are vegetarians).

For ordinary purposes the division of Hindus into two classes *Mansahari* and *Shakahari* may be enough. But it must be admitted that it is not exhaustive and does not take account of all the classes which exist in Hindu society. For an exhaustive classification, the class of Hindus called *Mansahari* shall have to be further divided into two sub-classes : (i) Those who eat flesh but do not eat cow's flesh; and (ii) Those who eat flesh including cow's flesh; In other words, on the basis of food taboos, Hindu society falls into three classes : (i) Those who are vegetarians; (ii) Those who eat flesh but do not eat cow's flesh; and (iii) Those who eat flesh including cow's flesh. Corresponding to this classification, we have in Hindu society three classes : (1) Brahmins; (2) Non-Brahmins; and (3) The Untouchables. This division though not in accord with the fourfold division of society called Chaturvarnya, yet it is in accord with facts as they exist. For, in the Brahmins¹ we have a class which is vegetarian, in the non-Brahmins the class which eats flesh but does not eat cow's flesh and in the Untouchables a class which eats flesh including cow's flesh.

This threefold division is therefore substantial and is in accord with facts. Anyone who stops to turn over this classification in his mind

¹ The Brahmins of India fall into two divisions (1) Pancha Dravid and (2) Panch Gauda. The former are vegetarians, the latter are not.

is bound to be struck by the position of the Non-Brahmins. One can quite understand vegetarianism. One can quite understand meat-eating. But it is difficult to understand why a person who is a flesh-eater should object to one kind of flesh namely cow's flesh. This is an anomaly which call for explanation. Why did the Non-Brahmin give up beef-eating? For this purpose it is necessary to examine laws on the subject. The relevant legislation must be found either in the Law of Asoka or the Law of Manu.

II

To begin with Asoka. The edicts of Asoka which have reference to this matter are Rock Edict No.I and Pillar Edict Nos.II and V. Rock Edict No.I reads as follows :-

"This pious Edict has been written by command of His Sacred and Gracious Majesty the King. Here (in the capital) no animal may be slaughtered for sacrifice, nor may the holiday feast be held, because His Sacred and Gracious Majesty, the king sees much offence in the holiday feasts, although in certain places holiday feasts are excellent in the sight of His Sacred and Gracious Majesty the king.

"Formerly, in the kitchen of His Sacred and Gracious Majesty the King, each day many hundred thousands of living creatures were slaughtered to make curries. But now, when this pious edict is being written, only three living creatures are slaughtered (daily) for curry, to wit, two peacocks and one antelope: the antelope, however, not invariably. Even those three living creatures henceforth shall not be slaughtered."

Pillar Edict No.II was in the following terms :

"Thus saith His Sacred and Gracious Majesty, the King :-

"The Law of Piety is excellent. But wherein consists the Law of Piety? In these things, to wit, little piety, many good deeds, compassion, liberality, truthfulness and purity.

The gift of spiritual insight I have given in manifold ways: whilst on two-footed and four-footed beings, on birds and the denizens of the waters, I have conferred various favours-even unto the boon of life; and many other good deeds have I done.

For this purpose, have I caused this pious edict to be written, that men may walk after its teaching, and that it may long endure; and he who will follow its teaching will do well."

Pillar Edict V says :

"Thus said His Sacred and Gracious Majesty, the king :

When I had been consecrated twenty-six years the following species were declared *exempt from slaughter*, namely :

Parrots, starlings adjutants, Brahmany ducks, geese, *pandimukhas*, *gelatas*, bats, queen-ants, female tortoises, boneless fish, *vedaveyakas*, *gangapuputakas*,

skate, (river) tortoise, porcupines, tree-squirrels, *barasingha* stag, Brahmany bulls, monkeys, rhinoceros, grey doves village pigeons, and *all fourfooted animals which are not utilised or eaten*.

She-goats, ewes, cows, that is to say, those either with young or in milk, are exempt from slaughter as well as their off-spring up to six months of age.

The caponing of cocks must not be done.

Chaff must not be burned along with the living things in it.

Forests must not be burned either for mischief or so as to destroy living creatures.

The living must not be fed with the living. At each of the three seasonal full moons, and at the full moon of the month Tishya (December-January) for three days in each case, namely, the fourteenth and fifteenth days of the first fortnight, and the first day of the second fortnight, as well as on the first days throughout the year, fish is exempt from killing and may not be sold.

“On the same days, in elephant-preserves or fish-ponds no other classes of animals may be destroyed.

On the eighth, fourteenth and fifteenth days of each fortnight, as well as on the Tishya and Punarvasa days and festival days, the castration of bulls must not be performed, nor may he-goats, rams, boars and other animals liable to castration be castrated.

On the Tishya and Punarvasa days, on the seasonal full moon days, and during the fortnights of the seasonal full moons the branding of horses and oxen must not be done.

During the time upto the twenty-sixth anniversary of my consecration twenty-five jail deliveries have been effected.”

So much for the legislation of Asoka.

III

Let us turn to Manu. His Laws contain the the following provisions regarding meat-eating :-

- “V.11. Let him avoid all carnivorous birds and those living in villages, and one hoofed animals which are not specially permitted (to be eaten), and the Tithbha (Parra) Jacana.
- V.12. The sparrow, the Plava, the Hamsa, the Brahmani duck, the village-cock, the Sarasa crane, the Raggudal, the woodpecker, the parrot, and the starling.
- V.13. Those which feed striking with their beaks, web-footed birds, the Koyashti, those which scratch with their toes, those which dive and live on fish, meat from a slaughter-house and dried meat.
- V.14. The Baka and the Balaka crane, the raven, the Khangartaka (animals) that eat fish, village-pigs, and all kinds of fishes.
- V.15. He who eats the flesh of any (animals) is called the eater of the flesh of that (particular) creature, he who eats fish is an eater of every (kind of) flesh; let him therefore avoid fish.

- V.16. (But the fish called) Pathine and (that called) Rohita may be eaten, if used for offering to the gods or to the manes; (one may eat) likewise Ragivas, Simhatundas, and Sasalkas on all occasions.
- V.17. Let him not eat solitary or unknown beasts and birds though they may fall under (the categories of) eatable creatures, not any five-toed (animals).
- V.18. The porcupine, the hedgehog, the iguana, the rhinoceros, the tortoise, and the hare they declare to be eatable; likewise those (domestic animals) that have teeth in one jaw excepting camels."

IV

Here is survey of the legislation both by Asoka and by Manu on the slaughter of animals. We are of course principally concerned with the cow. Examining the legislation of Asoka the question is: Did he prohibit the killing of the cow? On this issue there seems to be a difference of opinion. Prof. Vincent Smith is of opinion that Asoka did not prohibit the killing of the cow. Commenting on the legislation of Asoka on the subject, Prof. Smith says:¹

"It is noteworthy that Asoka's rules do not forbid the slaughter of cow, which, apparently, continued to be lawful."

Prof. Radhakumud Mookerji joins issue with Prof. Smith and says² that Asoka did prohibit the slaughter of the cow. Prof. Mookerji relies upon the reference in Pillar Edict V to the rule of exemption which was made applicable to all four-footed animals and argues that under this rule cow was exempted from killing. This is not a correct reading of the statement in the Edict. The Statement in the Edict is a qualified statement. It does not refer to all four-footed animals but only to four-footed animals, '*which are not utilised or eaten*. 'A cow cannot be said to be a four-footed animal which was not utilized or eaten. Prof. Vincent Smith seems to be correct in saying that Asoka did not prohibit the slaughter of the cow. Prof. Mookerji tries to get out of the difficulty by saying that at the time of Asoka the cow was not eaten and therefore came within the prohibition. His statement is simply absurd for the cow was an animal which was very much eaten by all classes.

It is quite unnecessary to resort as does Prof. Mookerji to a forced construction of the Edict and to make Asoka prohibit the slaughter of the cow as though it was his duty to do so. Asoka had no particular

1. Smith,- Asoka, p. 58

2. Mookerji, Asoka pp. 21, 181, 184

interest in the cow and owed no special duty to protect her against killing. Asoka was interested in the sanctity of all life human as well as animal. He felt his duty to prohibit the taking of life where taking of life was not necessary. That is why he prohibited slaughtering animal for sacrifice¹ which he regarded as unnecessary and of animals which are not utilized nor eaten which again would be wanton and unnecessary. That he did not prohibit the slaughter of the cow in specie may well be taken as a fact which for having regard to the Buddhist attitude in the matter cannot be used against Asoka as a ground for casting blame.

Coming to Manu there is no doubt that he too did not prohibit the slaughter of the cow. On the other hand he made the eating of cow's flesh on certain occasions obligatory.

Why then did the non-Brahmins give up eating beef? There appears to be no apparent reason for this departure on their part. But there must be some reason behind it. The reason I like to suggest is that it was due to their desire to imitate the Brahmins that the non-Brahmins gave up beef-eating. This may be a novel theory but it is not an impossible theory. As the French author, Gabriel Tarde has explained that culture within a society spreads by imitation of the ways and manners of the superior classes by the inferior classes. This imitation is so regular in its flow that its working is as mechanical as the working of a natural law. Gabriel Tarde speaks of the laws of imitation. One of these laws is that the lower classes always imitate the higher classes. This is a matter of such common knowledge that hardly any individual can be found to question its validity.

That the spread of the cow-worship among and cessation of beef-eating by the non-Brahmins has taken place by reason of the habit of the non-Brahmins to imitate the Brahmins who were undoubtedly their superiors is beyond dispute. Of course there was an extensive propaganda in favour of cow-worship by the Brahmins. The Gayatri Purana is a piece of this propaganda. But initially it is the result of the natural law of imitation. This, of course, raises another question: Why did the Brahmins give up beef-eating?

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3 See Rock Edict No. I

CHAPTER XIII

WHAT MADE THE BRAHMINS BECOME VEGETARIANS ?

THE non-Brahmins have evidently undergone a revolution. From being beef-eaters to have become non-beef-eaters was indeed a revolution. But if the non-Brahmins underwent one revolution, the Brahmins had undergone two. They gave up beef-eating which was one revolution. To have given up meat-eating altogether and become vegetarians was another revolution.

That this was a revolution is beyond question. For as has been shown in the previous chapters there was a time when the Brahmins were the greatest beef-eaters. Although the non-Brahmins did eat beef they could not have had it every day. The cow was a costly animal and the non-Brahmins could ill afford to slaughter it just for food. He only did it on special occasion when his religious duty or personal interest to propitiate a deity compelled him to do. But the case with the Brahmin was different. He was a priest. In a period overridden by ritualism there was hardly a day on which there was no cow sacrifice to which the Brahmin was not invited by some non-Brahmin. For the Brahmin every day was a beef-steak day. The Brahmins were therefore the greatest beef-eaters. The Yajna of the Brahmins was nothing but the killing of innocent animals carried on in the name of religion with pomp and ceremony with an attempt to enshroud it in mystery with a view to conceal their appetite for beef. Some idea of this mystery pomp and ceremony can be had from the directions contained in the Atreya Brahmana touching the killing of animals in a Yajna.

The actual killing of the animal is preceded by certain initiatory Rites accompanied by incantations too long and too many to be detailed here. It is enough to give an idea of the main features of the Sacrifice. The sacrifice commences with the erection of the Sacrificial post called the Yupa to which the animal is tied before it

is slaughtered. After setting out why the Yupa is necessary the Atreya Brahmana proceeds to state what it stands for. It says:¹

“This Yupa is a weapon. Its point must have eight edges. For a weapon (or iron club) has eight edges. Whenever he strikes with it an enemy or adversary, he kills him. (This weapon serves) to put down him (every one) who is to be put down by him (the sacrificer). The Yupa is a weapon which stands erected (being ready) to slay an enemy. Thence an enemy (of the sacrificer) who might be present (at the sacrifice) comes of all ill after having seen the Yupa of such or such one.”

The selection of the wood to be used for the Yupa is made to vary with the purposes which the sacrificer wishes to achieve by the sacrifice. The Atreya Brahmana says :

“He who desires heaven, ought to make his Yupa of Khadira wood. For the gods conquered the celestial world by means of a Yupa, made of Khadira wood. In the same way the sacrificer conquers the celestial world by means of a Yupa, made of Khadira wood.”

“He who desires food and wishes to grow fat ought to make his Yupa of Bilva wood. For the Bilva tree bears fruits every year; it is the symbol of fertility; for it increases (every year) in size from the roots up to the branches, therefore it is a symbol of fatness. He who having such a knowledge makes his Yupa of Bilva wood, makes fat his children and cattle.

“As regards the Yupa made of Bilva wood (it is further to be remarked), that they call ‘light’ Bilva. He who has such a knowledge becomes a ‘light’ among his own people, the most distinguished among his own people.

“He who desires beauty and sacred knowledge ought to make his Yupa of Palasa wood. For the Palasa is among the trees of beauty and sacred knowledge. He who having such a knowledge makes his Yupa of Palasa wood, becomes beautiful and acquires sacred knowledge.

“As regards the Yupa made of Palasa wood (there is further to be remarked), that the Palasa is the womb of all trees. Thence they speak on account of the palasam (foliage) of this or that tree (i.e. they call the foliage of every tree palasam). He who has such a knowledge obtains (the gratification of) any desire, he might have regarding all trees (i.e. he obtains from all trees any thing he might wish for).”

This is followed by the ceremony of anointing the sacrificial post.²

“The Adhvaryu says (to the Hotar): “We anoint the sacrificial post (Yupa); repeat the mantra (required)”. The Hotar then repeats the verse: “Amjanti tvam adhware” (3, 8, 1) i.e.” The priests anoint thee, O tree! with celestial honey (butler); provide (us) with wealth if thou standest here erected, or if thou art lying on thy mother (earth).” The “celestial honey” is the melted butter (with which the priests anoint the Yupa). (The second half verse from) “provide us” &c. means: “thou mayest stand or lie, provide us with wealth.”

1. Atreya Brahmana II pp. 72-74.

2. Atreya Brahmana (Martin Haug) II pp. 74-78

“(The Hotar then repeats :) “jato jayate sudinative” &c. (3, 8, 5) i.e., “After having been born, he (the Yupa) is growing (to serve) in the prime of his life the sacrifice of mortal men. The wise are busy in decorating (him, the Yupa) with skill. He, as an eloquent messenger of the gods, lifts his voice (that it might be heard by the gods).” He (the Yupa) is called jata, i.e., bom, because he is born by this (by the recital of the first quarter of this verse). (By the word) vardhamana, i.e., growing, they make him (the Yupa) grow in this manner. (By the words:) punanti (i.e. to clean, decorate), they clean him in this manner. (By the words:) “he as an eloquent messenger, &c.” he announces the Yupa (the fact of his existence) to the gods.

The Hotar then concludes (the ceremony of anointing the sacrificial post) with the verse “yuva suvasah parivitah” (3, 8, 4), i.e. “the youth decorated with ribands, has arrived; he is finer (than all trees) which ever grew; the wise priests raise him up under recital of well-framed thoughts of their mind.” The youth decorated with ribands, is the vital air (the soul), which is covered by the limbs of the body. (By the words;) “he is finer, “&c. he means that he (the Yupa) is becoming finer (more excellent, beautiful) by this (mantra).”

The next ceremony is the carrying of fire round the sacrificial animal. The Atreya Brahmana gives the following directions on this point. It says¹ :-

“When the fire is carried round (the animal) the Adhvaryu says to the Hotar: ‘repeat (thy mantras)’. The Hotar then repeats this triplet of verses, addressed to Agni, and composed in the Gayatri metre: Agnir Hota no adhvare (4.15.1-3) i.e. (1) Agni, our priest, is carried round about like a horse, he who is among gods, the god of sacrifices, (2) Like a charioteer Agni passes thrice by the sacrifice; to the gods he carries the offering, (3) The master of food, the seer of Agni, went round the offering; he bestows riches on the sacrificer.

“When the fire is carried round (the animal) then he makes him (Agni) prosper by means of his own deity and his own metre. ‘As a horse he is carried’ means: they carry him as if he were a horse, round about. Like a charioteer Agni passes thrice by the sacrifice means; he goes round the sacrifice like a charioteer (swiftly). He is called *vajapati* (master of food) because he is the master of (different kinds of) food.

“*The Adhvaryu says:* give Hotar! the additional order for despatching offerings to the gods.

“*The Hotar then says :* (to the slaughterers) : Ye divine slaughterers, commence (your work), as well as ye who are human! that is to say, he orders all the slaughterers among gods as well as among men (to commence).

Bring hither the instruments for killing, ye who are ordering the sacrifice, in behalf of the two masters of the sacrifice.

"The animal is the offering, the sacrificer the master of the offering. Thus he (the Hotar) makes prosper the sacrificer by means of his (the sacrificer's) own offering. Thence they truly say: for whatever deity the animal is killed, that one is the master of the offering. If the animal is to be offered to one deity only, the priest should say : *Medhapataye* 'to the master of the sacrifice (singular)', if to two deities, then he should use the dual 'to both masters of the offering', and if to several deities, then he should use the plural, 'to the masters of the offering'. This is the established custom.

Bring ye for him fire! For the animal when carried (to the slaughter) saw death before it Not wishing to go to the gods, the gods said to it: Come we will bring thee to heaven ! The animal consented and said: One of you should walk before me. They consented. Agni then walked before it, and it followed after Agni. Thence they say, every animal belongs to Agni, for it followed after him. Thence they carry before the animal fire (Agni).

Spread the (sacred) grass! the animal lives on herbs. He (the Hotar) thus provides the animal with its entire soul (the herbs being supposed to form part of it).

After the ceremony of carrying fire round the animal comes the delivery of the animal to the priests for sacrifice. Who should offer the animal for sacrifice? On this point the direction of the Atreya Brahmana is¹ —

"The mother, the father, the brother, sister, friend, and companions should give this (animal) up (for being slaughtered)! When these words are pronounced, they seize the animal which is (regarded as) entirely given up by its relations (parents, &c.)"

On reading this direction one wonders why almost everybody is required to join in offering the animal for sacrifice. The reason is simple. There were altogether seventeen Brahmin priests who were entitled to take part in performing the sacrifice. Naturally enough they wanted the whole carcass to themselves.² Indeed they could not give enough to each of the seventeen priests unless they had the whole carcass to distribute. Legally the Brahmins could not claim the whole carcass unless everybody who could not claim any right over the animal had been divested of it. Hence the direction requiring even the companion of the sacrificer to take part in offering the animal.

Then comes the ceremony of actually killing the animal. The Atreya Brahmana gives the details of the mode and manner of killing the animal. Its directions are³ :

1. Atreya Brahmana (Martin Haug) II p. 86

2. As a matter of fact the Brahmins took the whole carcass. Only one leg each was given to the sacrificer and his wife.

3. Atreya Brahmana (Martin Haug) II pp. 86-87

“Turn its feet northwards! Make its eye to go to the sun, dismiss its breath to the wind, its life to the air, its hearing to the directions, its body to the earth. In this way he (the Hotar) places it (connects it) with these worlds.

Take off the skin entire (without cutting it). Before operating the naval, tear out omentum. Stop its breathing within (by stopping its mouth). Thus he (the Hotar) puts its breath in the animals.

Make of its breast a piece like an eagle, of its arms (two pieces like) two hatchets, of its forearms (two pieces like) two spikes, of its shoulders (two pieces like) two Kashyapas, its loins should be un-broken (entire); (make of) its thighs (two pieces like) two shields, of the two kneepans (two pieces like) two oleander leaves; take out its twenty-six ribs according to their order; preserve every limb of it in its integrity. Thus he benefits all its limbs.”

There remain two ceremonies to complete the sacrificial killing of the animal. One is to absolve the Brahmin priests who played the butcher’s part. Theoretically they are guilty of murder for the animal is only a substitute for the sacrificer. To absolve them from the consequences of murder, the Hotar is directed by the Atreya Brahmana to observe the following injunction¹ :

“Do not cut the entrails which resemble on owl (when taking out the omentum), nor should among your children, O slaughterers! or among their offspring any one be found who might cut them. By speaking these words he presents these entrails to the slaughterers among the gods as well as to those among men.

The Hotar shall then say thrice : O *Adhrigu* (and ye others), *kill* (the animal), *do it well*; kill it, O *Adhrigu*.

After the animal has been killed, (he should say thrice:) *Far may it* (the consequences of murder) be (from us). For *Adhrigu* among the gods is he who silences (the animal) and the *Apapa* (away, away!) is he who puts it down. By speaking those words he surrenders the animal to those who silence it (by stopping its mouth) and to those who butcher it.

The Hotar then mutters (he makes, *Japa*); “O slaughterers! may all good you might do abide by us! and all mischief you might do go elsewhere!” The Hotar Gives by (this) speech the order (for killing the animal), for Agni had given the order for killing (the animal) with the same words when he was the Hotar of the gods.

By those words (the *Japa* mentioned) the Hotar removes (all evil consequences) from those who suffocate the animal and those who butter it, in all that they might transgress the rule by cutting one piece too soon, the other too late, or by cutting a too large, or a too small piece. The Hotar enjoying this happiness clears himself (from all guilt) and attains the full length of his life (and it serves the sacrificer) for obtaining his full life. He who has such a knowledge, attains the full length of his life.”

1 Atreya Brahmana (Martin Haug) II pp. 86-90

The Atreya Bramhana next deals with the question of disposing of the parts of the dead animal. In this connection its direction is¹—

“Dig a ditch in the earth to hide its excrements. The excrements consist of vegetable food; for the earth is the place for the herbs. Thus the Hotar puts them (the excrements) finally in their proper places. *Present the evil spirits with the blood!* For the gods having deprived (once) the evil spirits of their share in the Haviryajnas (such as the Full and New Moon offerings) apportioned to them the husk and smallest grains, and after having them turned out of the great sacrifice (such as the *Soma* and animal sacrifices), presented to them the blood. Thence the Hotar pronounces the words : *present the evil spirits with the blood!* By giving them this share he deprives the evil spirits of any other share in the sacrifice. They say : one should not address the evil spirits in the sacrifice, and evil spirits whichever they might be (Rakshasa, Asuras, etc.): for the sacrifice is to be without (the) evil spirits (not to be disturbed by them). But others say: one should address them; for (he who deprives any one, “entitled to a share of this share, will be punished (by him whom he deprives); and if he himself does not suffer the penalty, then his son, and if his son be spared, then his grandson will suffer it, and thus he resents on him (the son or grandson) what he wanted to resent on you.”

“However, if the Hotar addresses them, he should do so with a low voice. For both, the low voice and the evil spirits, are, as it were, hidden. If he addresses them with a loud voice, then such one speaks in the voice of the evil spirits, and is capable of producing Rakshasa sounds (a horrible, terrific voice). The voice in which the haughty man and the drunkard speak is that of the evil spirits (Rakshasas). He who has such a knowledge will neither himself become haughty nor will such a man be among his offspring.”

Then follows the last and the concluding ceremony that of offering parts of the body of the animal to the gods. It is called the Manota. According to the Atreya Brahmana²—

“The Adhvaryu says (to the Hotar): recite the verses appropriate to the offering of the parts of the sacrificial animal which are cut off for the Manota. He then repeats the hymn : Thou, O Agni, art the first Manota³ (6.1)”

There remains the question of sharing the flesh of the animal. On this issue the division was settled by the Atreya Brahmana in the following terms⁴ :

“Now follows the division of the different parts of the sacrificial animal (among the priests). We shall describe it. The two jawbones with the tongue are to be given to the Prastotar; the breast in the form of an eagle to the Udgatar; the throat with the palate to the Pratihartar; the lower part of the right loins to the Hotar: the left to the Brahma; the right thigh to the Maitravaruna; the left to the Brahmanachhamsi; the right side with the shoulder to the Adhvaryu; the

1. Atreya Brahmana (Martin Haug) H p. 87

2. Atreya Brahmana (Martin Haug) II p. 93

3. Manota means the deity to whom the offering is dedicated.

4. Atreya Brahmana (Martin Haug) II, pp. 441-42.

left side to those who accompany the chants; the left shoulder to the Pratipashatar; the lower part of the right arm to the Neshtar; the lower part of the left arm to the Potar; the upper of the right thigh to the Achhavaka; the left to the Agnidhara; the upper part of the right arm to the Atreya; the left to the Sadasya; the back bone and the urinal bladder to the Grihapati (sacrificer); the right feet to the Grihapati who gives a feasting; the left feet to the wife of that Grihapati who gives a feasting; the upper lip is common to both (the Grihapati and his wife), which is to be divided by the Grihapati. They offer the tail of the animal to wives, but they should give it to a Brahmana; the fleshy processes (*manikah*) on the neck and three gristles (*kikash*) to the Gravastut; three other gristles and one-half of the fleshy part on the back (*vaikartta*) to the Unnetar; the other half of the fleshy part on the neck and the left lobe (*kloma*) to the slaughterer, who should present it to a Brahmana, if he himself would not happen to be a Brahmana. The head is to be given to the Subrahmanya, the skin belongs to him (the Subrahmanya), who spoke, *svah sutyam* (tomorrow at the Soma sacrifice); that part of the sacrificial animal at a Soma sacrifice which belongs to Ila (sacrificial food) is common to all the priests; only for the Hotar it is optional.

All these portions of the sacrificial animal amount to thirtysix single pieces, each of which represents the pada (foot) of a verse by which the sacrifice is carried up. The Brihati metre consists of thirtysix syllables; and the heavenly worlds are of the Brihati nature. In this way (by dividing the animal into thirtysix parts) they gain life (in this world) and the heavens, and having become established in both (this and that world) they walk there.

To those who divide the sacrificial animal in the way mentioned, it becomes the guide to heaven. But those who make the division otherwise are like scoundrels and miscreants who kill an animal merely (for gratifying their lust after flesh). This division of the sacrificial animal was invented by the Rishi (*Devabhaga*, a son of *Sruta*). When he was departing from this life, he did not entrust (the secret to anyone). But a supernatural being communicated it to *Cirija*, the son of *Babhru*. Since his time men study it."

What is said by the Atreya Brahmana places two things beyond dispute. One is that the Brahmins monopolised the whole of the flesh of the sacrificial animal. Except for a paltry bit they did not even allow the sacrificer to share in it. The second is that the Brahmins themselves played the part of butchers in the slaughter of the animal. As a matter of principle the Brahmins should not eat the flesh of the animal killed at a sacrifice. The principle underlying Yajna is that man should offer himself as sacrifice to the gods. He offers an animal only to release himself from this obligation. From this it followed that the animal, being only a substitute for the man, eating the flesh of animal meant eating human flesh. This theory was very detrimental to the interest of the Brahmins who had a complete monopoly of the flesh of the animal offered for sacrifice. The Atreya Brahmana which had seen in this theory the danger of the Brahmins being

deprived of the flesh of sacrificial animal takes pains to explain away the theory by a simple negation. It says¹:

“The man who is initiated (into the sacrificial mysteries) offers himself to all deities. Agni represents all deities and Soma represents all deities. When he (the sacrificer) offers the animal to Agni-Soma he releases himself (by being represented by the animal) from being offered to all deities.

They say : “do not eat from the animal offered to Agni-Soma. Who eats from this animal, eats from human flesh; because the sacrificer releases himself (from being sacrificed) by means of the animal”. But this (precept) is not to be attended to.”

Given these facts, no further evidence seems to be necessary to support the statement that the Brahmins were not merely beef-eaters but they were also butchers.

Why then did the Brahmins change front? Let us deal with their change of front in two stages. First, why did they give up beef-eating?

II

As has already been shown cow-killing was not legally prohibited by Asoka. Even if it had been prohibited, a law made by the Buddhist Emperor could never have been accepted by the Brahmins as binding upon them.

Did Manu prohibit beef-eating? If he did, then that would be binding on the Brahmins and would afford an adequate explanation of their change of front. Looking into the Manu Smriti one does find the following verses :

- “V; 46. He who does not seek to cause the sufferings of bonds and death to living creatures, (but) desires the good of all (beings), obtains endless bliss.
- “V. 47. He who does not injure any (creature), attains without an effort what he thinks of, what he undertakes, and what he fixes his mind on.
- “V. 48. Meat can never be obtained without injury to living creatures, and injury to sentient beings is detrimental to (the attainment of) heavenly bliss; let him therefore shun (the use of) meat.

“V. 49. Having well considered the (disgusting) origin of flesh and the (cruelty of) fettering and slaying corporeal beings, let him entirely abstain from eating flesh.”

If these verses can be treated as containing positive injunctions they would be sufficient to explain why the Brahmins gave up meat-eating and became vegetarians. But it is impossible to treat these verses as positive injunctions, carrying the force of law. They are either exhortations or interpolations introduced after the Brahmins had become vegetarians in praise of the change. That the latter is the correct view is proved by the following verses which occur in the same chapter of the Manu Smriti. :

“V. 28 : The Lord of creatures (Prajapati) created this whole (world to be) the sustenance of the vital spirit; both the immovable and the movable creation is the food of the vital spirit.

“V. 29. What is destitute of motion is the food of those endowed with locomotion; (animals) without fangs (are the food) of those with fangs, those without hands of those who possess hands, and the timid of the bold.

“V. 30. The eater who daily even devours those destined to be his food, commits no sin; for the creator himself created both the eaters and those who are to be eaten (for those special purposes).

“V. 56. There is no sin in eating meat, in (drinking) spirituous liquor, and in carnal intercourse for that is the natural way of created beings, but abstention brings great rewards.

“V. 27. One may eat meat when it has been sprinkled with water, while Mantras were recited, when Brahmanas desire (one's doing it) when one is engaged (in the performance of a rite) according to the law, and when one's life is in danger.

“V. 31. ‘The consumption of meat (is befitting) for sacrifices,’ that is declared to be a rule made by the gods, but to persist (in using it) on other (occasions) is said to be a proceeding worthy of Rakshasas.

“V. 32. He who eats meat, when he honours the gods and manes commits no sin, whether he has bought it, or himself has killed (the animal) or has received it as a present from others.

“V. 42. A twice-born man who, knowing the true meaning of the Veda, slays an animal for these purposes, causes both himself and the animal to enter a most blessed state.

“V. 39. Swayambhu (the self-existent) himself created animals for the sake of sacrifices; sacrifices (have been instituted) for the good of this whole (world); hence the slaughtering (of beasts) for sacrifice is not slaughtering (in the ordinary sense of the word).

“V. 40. Herbs, trees, cattle, birds, and other animals that have been destroyed for sacrifices, receive (being reborn) higher existences.”

Manu goes further and makes eating of flesh compulsory. Note the following verse :

“V. 35. But a man who, being duly engaged (to officiate or to. dine at a sacred rite), refuses to eat meat, becomes after death an animal during twentyone existences.”

That Manu did not prohibit meat-eating is evident enough. That Manu Smriti did not prohibit cow-killing can also be proved from the Smriti itself. In the first place, the only references to cow in the Manu Smriti are to be found in the catalogue of rules which are made applicable by Manu to the Snataka. They are set out below :-

1. A Snataka should not eat food which a cow has smelt.¹
2. A Snataka should not step over a rope to which a calf is tied.²
3. A Snataka should not urinate in a cowpan.³
4. A Snataka should not answer call of nature facing a cow.⁴
5. A Snataka should not keep his right arm uncovered when he enters a cowpan.⁵
6. A Snataka should not interrupt a cow which is sucking her calf, nor tell anybody of it⁶
7. A Snataka should not ride on the back of the cow.⁷
8. A Snataka should not offend the cow.⁸
9. A Snataka who is impure must not touch a cow with his hand.⁹

From these references it will be seen that Manu did not regard the cow as a sacred animal. On the other hand, he regarded it as an impure animal whose touch caused ceremonial pollution.

There are verses in Manu which show that he did not prohibit the eating of beef. In this connection, reference may be made to Chapter III. 3. It says :-

“He (Snataka) who is famous (for the strict performance of) his duties and has received his heritage, the Veda from his father, shall be honoured, sitting on couch and adorned with a garland with the present of a cow (the honey-mixture).”

The question is why should Manu recommend the gift of a cow to a Snataka? Obviously, to enable him to perform Madhuparka. If that is so, it follows that Manu knew that Brahmins did eat beef and he had no objection to it.

1 Manu, 209

2 Ibid, 38

3 Ibid, 45

4 Manu, 48

5 Ibid, 58

6 Ibid, 59

7 Manu, 70

8 Ibid, 162

9 Ibid, 142

Another reference would be to Manu's discussion of the animals whose meat is eatable and those whose meat is not. In Chapter V. 18. he says :-

"The porcupine, the hedgehog, the iguana, the rhinoceros, the tortoise, and the hare they declare to be eatable, likewise those (domestic animals) that have teeth in one jaw only, excepting camels."

In this verse Manu gives general permission to eat the flesh of all domestic animals that have teeth in one jaw only. To this rule Manu makes one exception, namely, the camel. In this class of domestic animals— those that have teeth in one jaw only— falls not only the camel but also the cow. It is noteworthy that Manu does not make an exception in the case of the cow. This means that Manu had no objection to the eating of the cow's flesh.

Manu did not make the killing of the cow an offence. Manu divides sins into two classes (i) mortal sins and (ii) minor sins. Among the mortal sins Manu includes :

"XI. 55. Killing a Brahmana, drinking (the spirituous liquor called Sura) stealing the (gold of Brahmana) a adultery with a Guru's wife, and associating with such offenders."

Among minor sins Manu includes :

"XI. 60. Killing the cow, sacrificing for those unworthy to sacrifice, adultery, setting oneself, casting off one's teacher, mother, father or son, giving up the (daily) study of the Veda and neglecting the (sacred domestic) fire."

From this it will be clear that according to Manu cow-killing was only a minor sin. It was reprehensible only if the cow was killed without good and sufficient reason. Even if it was otherwise, it was not heinous or inexplicable. The same was the attitude of Yajnavalkya¹.

All this proves that for generations the Brahmins had been eating beef. Why did they give up beef-eating? Why did they, as an extreme step, give up meat eating altogether and become vegetarians? It is two revolutions rolled into one. As has been shown it has not been done as a result of the preachings of Manu, their Divine Law-maker. The revolution has taken place in spite of Manu and contrary to his directions. What made the Brahmins take this step? Was philosophy responsible for it? Or was it dictated by strategy?

Two explanations are offered. One explanation is that this deification of the cow was a manifestation of the Advaita philosophy

1 Yaj. III. 227 and III 234.

that one supreme entity pervaded the whole universe, that on that account all life human as well as animal was sacred. This explanation is obviously unsatisfactory. In the first place, it does not fit in with facts. The Vedanta Sutra which proclaims the doctrine of oneness of life does not prohibit the killing of animals for sacrificial purposes as is evident from II.1.28. In the second place, if the transformation was due to the desire to realize the ideal of Advaita then there is no reason why it should have stopped with the cow. It should have extended to all other animals.

Another explanation¹ more ingenious than the first, is that this transformation in the life of the Brahmin was due to the rise of the doctrine of the Transmigration of the Soul. Even this explanation does not fit in with facts. The Brahadaranyaka Upanishad upholds the doctrine of transmigration (vi.2) and yet recommends that if a man desires to have a learned son born to him he should prepare a mass of the flesh of the bull or ox or of other flesh with rice and ghee. Again, how is it that this doctrine which is propounded in the Upanishads did not have any effect on the Brahmins upto the time of the Manu Smriti, a period of at least 400 years. Obviously, this explanation is no explanation. Thirdly, if Brahmins became vegetarians by reason of the doctrine of transmigration of the soul how is it, it did not make the non-Brahmins take to vegetarianism?

To my mind, it was strategy which made the Brahmins give up beef-eating and start worshipping the cow. The clue to the worship of the cow is to be found in the struggle between Buddhism and Brahmanism and the means adopted by Brahmanism to establish its supremacy over Buddhism. The strife between Buddhism and Brahmanism is a crucial fact in Indian history. Without the realisation of this fact, it is impossible to explain some of the features of Hinduism. Unfortunately students of Indian history have entirely missed the importance of this strife. They knew there was Brahmanism. But they seem to be entirely unaware of the struggle for supremacy in which these creeds were engaged and that their struggle which extended for 400 years has left some indelible marks on religion, society and politics of India.

This is not the place for describing the full story of the struggle. All one can do is to mention a few salient points. Buddhism was at one time the religion of the majority of the people of India. It continued to be the religion of the masses for hundreds of years. It attacked Brahmanism on all sides as no religion had done before.

Brahmanism was on the wane and if not on the wane, it was certainly on the defensive. As a result of the spread of Buddhism, the Brahmins had lost all power and prestige at the Royal Court and among the people. They were smarting under the defeat they had suffered at the hands of Buddhism and were making all possible efforts to regain their power and prestige. Buddhism had made so deep an impression on the minds of the masses and had taken such a hold of them that it was absolutely impossible for the Brahmins to fight the Buddhists except by accepting their ways and means and practising the Buddhist creed in its extreme form. After the death of Buddha his followers started setting up the images of the Buddha and building stupas. The Brahmins followed it. They, in their turn, built temples and installed in them images of Shiva, Vishnu and Ram and Krishna etc.,—all with the object of drawing away the crowd that was attracted by the image worship of Buddha. That is how temples and images which had no place in Brahmanism came into Hinduism. The Buddhists rejected the Brahmanic religion which consisted of Yajna and animal sacrifice, particularly of the cow. The objection to the sacrifice of the cow had taken a strong hold of the minds of the masses especially as they were an agricultural population and the cow was a very useful animal. The Brahmins in all probability had come to be hated as the killer of cows in the same way as the guest had come to be hated as *Gognha*, the killer of the cow by the householder, because whenever he came a cow had to be killed in his honour. That being the case, the Brahmins could do nothing to improve their position against the Buddhists except by giving up the Yajna as a form of worship and the sacrifice of the cow.

That the object of the Brahmins in giving up beef-eating was to snatch away from the Buddhist Bhikshus the supremacy they had acquired is evidenced by the adoption of vegetarianism by Brahmins. Why did the Brahmins become vegetarian? The answer is that without becoming vegetarian the Brahmins could not have recovered the ground they had lost to their rival namely Buddhism. In this connection it must be remembered that there was one aspect in which Brahmanism suffered in public esteem as compared to Buddhism. That was the practice of animal sacrifice which was the essence of Brahmanism and to which Buddhism was deadly opposed. That in an agricultural population there should be respect for Buddhism and revulsion against Brahmanism which involved slaughter of animals including cows and bullocks is only natural. What could the Brahmins do to recover the lost ground? To go one better than the

Buddhist Bhikshus not only to give up meat-eating but to become vegetarians— which they did. That this was the object of the Brahmins in becoming vegetarians can be proved in various ways.

If the Brahmins had acted from conviction that animal sacrifice was bad, all that was necessary for them to do was to give up killing animals for sacrifice. It was unnecessary for them to be vegetarians. That they did go in for vegetarianism makes it obvious that their motive was far-reaching. Secondly, it was unnecessary for them to become vegetarians. For the Buddhist Bhikshus were not vegetarians. This statement might surprise many people owing to the popular belief that the connection between Ahimsa and Buddhism was immediate and essential. It is generally believed that the Buddhist Bhikshus eschewed animal food. This is an error. The fact is that the Buddhist Bhikshus were permitted to eat three kinds of flesh that were deemed pure. Later on they were extended to five classes. Yuan Chwang, the Chinese traveller was aware of this and spoke of the pure kinds of flesh as *San-Ching*. The origin of this practice among the Bhikshus is explained by Mr. Thomas Walters. According to the story told by him¹—

“In the time of Buddha there was in Vaisali a wealthy general named Siha who was a convert to Buddhism. He became a liberal supporter of the Brethren and kept them constantly supplied with good flesh-food. When it was noticed abroad that the Bhikshus were in the habit of eating such food specially provided for them, the Tirthikas made the practice a matter of angry reproach. Then the abstemious ascetic Brethren, learning this, reported the circumstances to the Master, who thereupon called the Brethren together. When they assembled, he announced to them the law that they were not to eat the flesh of any animal which they had seen put to death for them, or about which they had been told that it had been slain for them. But he permitted to the Brethren as ‘pure’ (that is, lawful) food the flesh of animals the slaughter of which had not been seen by the Bhikshus, not heard of by them, and not suspected by them to have been on their account. In the Pali and *Ssu-fen* Vinaya it was after a breakfast given by Siha to the Buddha and some of the Brethren, for which the carcass of a large ox was procured that the Nirgranthas reviled the Bhikshus and Buddha instituted this new rule declaring fish and flesh ‘pure’ in the three conditions. The animal food now permitted to the Bhikshus came to be known as the ‘three pures’ or ‘three pure kinds of flesh’, and it was tersely described as ‘unseen, unheard, unsuspected’, or as the Chinese translations sometimes have it ‘not seen, not heard nor suspected to be on my account’. Then two more kinds of animal food were declared “lawful for the Brethren viz., the flesh of animals which had died a natural death, and that of animals which had been killed by a bird of prey or other savage creature. So there came to be five classes or

1 Yuan Chwang (1904) Vol. I. p. 55

descriptions of flesh which the professed Buddhist was at liberty to use as food. Then the 'unseen, unheard, unsuspected' came to be treated as one class, and this together with the 'natural death' and 'bird killed' made a *san-ching*."

As the Buddhist Bhikshus did eat meat the Brahmins had no reason to give it up. Why then did the Brahmins give up meat-eating and become vegetarians? It was because they did not want to put themselves merely on the same footing in the eyes of the public as the Buddhist Bhikshus.

The giving up of the Yajna system and abandonment of the sacrifice of the cow could have had only a limited effect. At the most it would have put the Brahmins on the same footing as the Buddhists. The same would have been the case if they had followed the rules observed by the Buddhist Bhikshus in the matter of meat-eating. It could not have given the Brahmins the means of achieving supremacy over the Buddhists which was their ambition. They wanted to oust the Buddhists from the place of honour and respect which they had acquired in the minds of the masses by their opposition to the killing of the cow for sacrificial purposes. To achieve their purpose the Brahmins had to adopt the usual tactics of a wreckless adventurer. It is to beat extremism by extremism. It is the strategy which all rightists use to overcome the leftists. The only way to beat the Buddhists was to go a step further and be vegetarians.

There is another reason which can be relied upon to support the thesis that the Brahmins started cow-worship, gave up beef-eating and became vegetarians in order to vanquish Buddhism. It is the date when cow-killing became a mortal sin. It is well-known that cow-killing was not made an offence by Asoka. Many people expect him to have come forward to prohibit the killing of the cow. Prof. Vincent Smith regards it as surprising. But there is nothing surprising in it.

Buddhism was against animal sacrifice in general. It had no particular affection for the cow. Asoka had therefore no particular reason to make a law to save the cow. What is more astonishing is the fact that cow-killing was made a *Mahapataka*, a mortal sin or a capital offence by the Gupta Kings who were champions of Hinduism which recognised and sanctioned the killing of the cow for sacrificial purposes. As pointed out by Mr. D. R. Bhandarkar¹—

"We have got the incontrovertible evidence of inscriptions to show that early in the 5th century A. D. killing a cow was looked upon as an offence of the

1 Some Aspects of Ancient Indian Culture (1940) pp. 78-79.

deepest turpitude, turpitude as deep as that involved in murdering a Brahman. We have thus a copper-plate inscription dated 465 A.D. and referring itself to the reign of Skandagupta of the Imperial Gupta dynasty. It registers a grant and ends with a verse saying : 'Whosoever will transgress this grant that has been assigned (shall become as guilty as) the slayer of a cow, the slayer of a spiritual preceptor (or) the slayer of a Brahman. A still earlier record placing *go-hatya* on the same footing as *brahma hatya* is that of Chandragupta II, grandfather of Skandagupta just mentioned. It bears the Gupta date 93, which is equivalent to 412 A.D. It is engraved on the railing which surrounds the celebrated Buddhist stupa at Sanchi, in Central India. This also speaks of a benefaction made by an officer of Chandragupta and ends as follows: "Whosoever shall interfere with this arrangement .. he shall become invested with (the guilt of) the slaughter of a cow or of a Brahman, and with (the guilt of) the five *anantarya*." Here the object of this statement is to threaten the resumer of the grant, be he a Brahminist or a Buddhist, with the sins regarded as mortal by each community. The *anantaryas* are the five *mahapatakas* according to Buddhist theology. They are: matricide, patricide, killing an Arhat, shedding the blood of a Buddha, and causing a split among the priesthood. The *mahapatakas* with which a Brahminist is here threatened are only two : viz., the killing of a cow and the murdering of a Brahman. The latter is obviously a *mahapataka* as it is mentioned as such in all the Smritis, but the former has been specified only an upapataka by Apastamba, Manu, Yajnavalkya and so forth. But the very fact that it is here associated with *brahma-hatya* and both have been put on a par with the *anantaryas* of the Buddhists shows that in the beginning of the fifth century A.D., it was raised to the category of *mahapatakas*. Thus *go-hatya* must have come to be considered a *mahapataka* at least one century earlier, i.e., about the commencement of the fourth century A.D."

The question is why should a Hindu king have come forward to make a law against cow-killing, that is to say, against the Laws of Manu? The answer is that the Brahmins had to suspend or abrogate a requirement of their Vedic religion in order to overcome the supremacy of the Buddhist Bhikshus. If the analysis is correct then it is obvious that the worship of the cow is the result of the struggle between Buddhism and Brahminism. It was a means adopted by the Brahmins to regain their lost position.

CHAPTER XIV

**WHY SHOULD BEEF-EATING MAKE
BROKEN MEN UNTOUCHABLES?**

THE stoppage of beef-eating by the Brahmins and the non-Brahmins and the continued use thereof by the Broken Men had produced a situation which was different from the old. This difference lay in the face that while in the old situation everybody ate beef, in the new situation one section did not and another did. The difference was a glaring difference. Everybody could see it. It divided society as nothing else did before. All the same, this difference need not have given rise to such extreme division of society as is marked by Untouchability. It could have remained a social difference. There are many cases where different sections of the community differ in their foods. What one likes the other dislikes and yet this difference does not create a bar between the two.

There must therefore be some special reason why in India the difference between the Settled Community and the Broken Men in the matter of beef-eating created a bar between the two. What can that be? The answer is that if beef-eating had remained a secular affair—a mere matter of individual taste—such a bar between those who ate beef and those who did not would not have arisen. Unfortunately beef-eating, instead of being treated as a purely secular matter, was made a matter of religion. This happened because the Brahmins made the cow a sacred animal. This made beef-eating a sacrilege. The Broken Men being guilty of sacrilege necessarily became beyond the pale of society.

The answer may not be quite clear to those who have no idea of the scope and function of religion in the life of the society. They may ask: Why should religion make such a difference? It will be clear if the following points regarding the scope and function of religion are borne in mind.

To begin with the definition¹ of religion. There is one universal feature which characterises all religions. This feature lies in religion being a unified system of beliefs and practices which (1) relate to sacred things and (2) which unite into one single community all those who adhere to them. To put it slightly differently, there are two elements in every religion. One is that religion is inseparable from sacred things. The other is that religion is a collective thing inseparable from society.

The first element in religion presupposes a classification of all things, real and ideal, which are the subject-matter of man's thought, into two distinct classes which are generally designated by two distinct terms the *sacred* and the *profane*, popularly spoken of as secular.

This defines the scope of religion. For understanding the function -of religion the following points regarding things sacred should be noted :

The first thing to note is that things sacred are not merely higher than or superior in dignity and status to those that are profane. They are just different. The sacred and the profane do not belong to the same class. There is a complete dichotomy between the two. As Prof. Durkhiem observes² :—

“The traditional opposition of good and bad is nothing beside this; for the good and the bad are only two opposed species of the same class, namely, morals, just as sickness and health are two different aspects of the same order of facts, life, while the sacred and the profane have always and everywhere been conceived by the human mind as two distinct classes, as two worlds between which there is nothing in common.”

The curious may want to know what has led men to see in this world this dichotomy between the sacred and the profane. We must however refuse to enter into this discussion as it is unnecessary for the immediate purpose we have in mind.³

Confining ourselves to the issue the next thing to note is that the circle of sacred objects is not fixed. Its extent varies infinitely from religion to religion. Gods and spirits are not the only sacred things. A rock, a tree, an animal, a spring, a pebble, a piece of wood, a house, in a word anything can be sacred.

1 This definition of religion is by Prof. E'nvile Durkhiem. See his *The Elementary Forms of the Religious Life* p. 47. For the discussion that follows I have drawn upon the same authority.

2 Prof. Durkhiem's *The Elementary Forms of the Religious Life* p.38

3 The curious may refer to page 317 of the above book.

Things sacred are always associated with interdictions otherwise called *taboos*. To quote Prof. Durkhiem¹ again :

“Sacred things are those which the interdictions protect and isolate; profane things, those to which these interdictions are applied and which must remain at a distance from the first.”

Religious interdicts take multiple forms. Most important of these is the interdiction on contact. The interdiction on contact rests upon the principle that the profane should never touch the sacred. Contact may be established in a variety of ways other than touch. A look is a means of contact. That is why the sight of sacred things is forbidden to the profane in certain cases. For instance, women are not allowed to see certain things which are regarded as sacred. The word (i.e., the breath which forms part of man and which spreads outside him) is another means of contact. That is why the profane is forbidden to address the sacred things or to utter them. For instance, the Veda must be uttered only by the Brahmin and not by the Shudra. An exceptionally intimate contact is the one resulting from the absorption of food. Hence comes the interdiction against eating the sacred animals or vegetables.

The interdictions relating to the sacred are not open to discussion. They are beyond discussion and must be accepted without question. The sacred is ‘untouchable’ in the sense that it is beyond the pale of debate. All that one can do is to respect and obey.

Lastly the interdictions relating to the sacred are binding on all. They are not maxims. They are injunctions. They are obligatory but not in the ordinary sense of the word. They partake of the nature of a categorical imperative. Their breach is more than a crime. It is a sacrilege.

The above summary should be enough for an understanding of the scope and function of religion. It is unnecessary to enlarge upon the subject further. The analysis of the working of the laws of the sacred which is the core of religion should enable any one to see that my answer to the question why beef-eating should make the Broken Men -untouchables is the correct one. All that is necessary to reach the answer I have proposed is to read the analysis of the working of the laws of the sacred with the cow as the sacred object. It will be found that Untouchability is the result of the breach of the interdiction against the eating of the sacred animal, namely, the cow.

1 The Elementary Forms of the Religious Life p 41, Interdictions which come from religion must be distinguished from those which proceed from magic to a discussion of this subject see Ibid. p. 300.

As has been said, the Brahmins made the cow a sacred animal. They did not stop to make a difference between a living cow and a dead cow. The cow was sacred, living or dead. Beef-eating was not merely a crime. If it was only a crime it would have involved nothing more than punishment. Beef-eating was made a sacrilege. Anyone who treated the cow as profane was guilty of sin and unfit for association. The Broken Men who continued to eat beef became guilty of sacrilege.

Once the cow became sacred and the Broken Men continued to eat beef, there was no other fate left for the Broken Men except to be treated unfit for association, i.e., as Untouchables.

Before closing the subject it may be desirable to dispose of possible objections to the thesis. Two such objections to the thesis appear obvious. One is what evidence is there that the Broken Men did eat the flesh of the dead cow. The second is why did they not give up beef-eating when the Brahmins and the non-Brahmins abandoned it. These questions have an important bearing upon the theory of the origin of untouchability advanced in this book and must therefore be dealt with.

The first question is relevant as well as crucial. If the Broken Men were eating beef from the very beginning, then obviously the theory cannot stand. For, if they were eating beef from the very beginning and nonetheless were not treated as Untouchables, to say that the Broken Men became Untouchables because of beef-eating would be illogical if not senseless. The second question is relevant, if not crucial. If the Brahmins gave up beef-eating and the non-Brahmins imitated them why did the Broken Men not do the same? If the law made the killing of the cow a capital sin because the cow became a sacred animal to the Brahmins and non-Brahmins, why were the Broken Men not stopped from eating beef? If they had been stopped from eating beef there would have been no Untouchability.

The answer to the first question is that even during the period when beef-eating was common to both, the Settled Tribesmen and the Broken Men, a system had grown up whereby the Settled Community ate fresh beef, while the Broken Men ate the flesh of the dead cow. We have no positive evidence to show that members of the Settled Community never ate the flesh of the dead cow. But we have negative evidence which shows that the dead cow had become an exclusive possession and perquisite of the Broken Men. The evidence consists of facts which relate to the Mahars of the Maharashtra to

whom reference has already been made. As has already been pointed out, the Mahars of the Maharashtra claim the right to take the dead animal. This right they claim against every Hindu in the village. This means that no Hindu can eat the flesh of his own animal when it dies. He has to surrender it to the Mahar. This is merely another way of stating that when eating beef was a common practice the Mahars ate dead beef and the Hindus ate fresh beef. The only questions that arise are : Whether what is true of the present is true of the ancient past? Can this fact which is true of the Maharashtra be taken as typical of the arrangement between the Settled Tribes and the Broken Men throughout India?

In this connection reference may be made to the tradition current among the Mahars according to which they claim that they were given 52 rights against the Hindu villagers by the Muslim King of Bedar. Assuming that they were given by the King of Bedar, the King obviously did not create them for the first time. They must have been in existence from the ancient past. What the King did was merely to confirm them. This means that the practice of the Broken Men eating dead meat and the Settled Tribes eating fresh meat must have grown in the ancient past. That such an arrangement should grow up is certainly most natural. The Settled Community was a wealthy community with agriculture and cattle as means of livelihood. The Broken Men were a community of paupers with no means of livelihood and entirely dependent upon the Settled Community. The principal item of food for both was beef. It was possible for the Settled Community to kill an animal for food because it was possessed of cattle. The Broken Men could not for they had none. Would it be unnatural in these circumstances for the Settled Community to have agreed to give to the Broken Men its dead animals as part of their wages of watch and ward? Surely not. It can therefore be taken for granted that in the ancient past when both the Settled Community and Broken Men did eat beef the former ate fresh beef and the latter of the dead cow and that this system represented a universal state of affairs throughout India and was not confined to the Maharashtra alone.

This disposes of the first objection. To turn to the second objection. The law made by the Gupta Emperors was intended to prevent those who killed cows. It did not apply to the Broken Men. For they did not kill the cow. They only ate the dead cow. Their conduct did not contravene the law against cow-killing. The practice

of eating the flesh of the dead cow therefore was allowed to continue. Nor did their conduct contravene the doctrine of Ahimsa assuming that it has anything to do with the abandonment of beef-eating by the Brahmins and the non-Brahmins. Killing the cow was *Himsa*. But eating the dead cow was not. The Broken Men had therefore no cause for feeling qualms of conscience in continuing to eat the dead cow. Neither the law nor the doctrine of *Himsa* could interdict what they were doing, for what they were doing was neither contrary to law nor to the doctrine.

As to why they did not imitate the Brahmins and the non-Brahmins the answer is two fold. In the first place, imitation was too costly. They could not afford it. The flesh of the dead cow was their principal sustenance. Without it they would starve. In the second place, carrying the dead cow had become an obligaton¹ though originally it was a privilege. As they could not escape carrying the dead cow they did not mind using the flesh as food in the manner in which they were doing previously.

The objections therefore do not invalidate the thesis in any way.

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1 Owing to the reform movement among the Mahars the position has become just the reverse. The Mahars refuse to take the dead animal while the Hindu villagers force them to take it.

PART VI
UNTOUCHABILITY AND THE DATE OF ITS BIRTH

Chapter XV. The Impure and The Untouchables.

Chapter XVI. When did Broken Men become Untouchables ?

CHAPTER XV

THE IMPURE AND THE UNTOUCHABLES

I

WHEN did Untouchability come into existence? The orthodox Hindus insist that it is very ancient in its origin. In support of their contention reliance is placed on the fact that the observance of Untouchability is enjoined not merely by the Smritis which are of a later date but it is also enjoined by the Dharma Sutras which are much earlier and which, according to certain authors, date some centuries before B.C.

In a study devoted to exploring the origin of Untouchability the question one must begin with is : Is Untouchability as old as is suggested to be?

For an answer to this question one has to examine the Dharma Sutras in order to ascertain what they mean when they refer to Untouchability and to the Untouchables. Do they mean by Untouchability what we understand by it to-day? Do the class, to which they refer, Untouchables in the sense in which we use the term Untouchables to-day?

To begin with the first question. An examination of the Dharma Sutras no doubt shows that they speak of a class whom they call Asprashya. There is also no doubt that the term Asprashya does mean Untouchables. The question however remains whether the Asprashya of the Dharma Sutras are the same as the Asprashya of modern India. This question becomes important when it is realized that the Dharma., Sutras also use a variety of other terms such as Antya, Antyaja, Antyavasin and Bahya. These terms are also used by the later Smritis. It might be well to have some idea of the use of these terms by the different Sutras and Smritis. The following table is intended to serve that purpose :—

I. Asprashya

Dharma Sutra	Smriti
1. Vishnu V. 104.	1. Katyayana verses 433, 783.

II. Antya

Dharma Sutras	Smriti
1. Vasishta. (16-30)	1. Manu IV. 79; VIII. 68.
2. Apastambha (III.I)	2. Yajnavalkya I. 148. 197.
	3. Atri 25.
	4. Likhita 92.

III. Bahya

Dharma Sutras	Smriti
1. Apastambha 1.2.39.18	1. Manu 28.
2. Vishnu 16. 14	2. Narada I. 155.

IV. Antyavasin

Dharma Sutras	Smriti
1. Gautama XXXI; XXIII 32	1. Manu IV.79; X.39
2. Vasishta XVIII. 3	2. Shanti Parvan of the Mahabharata 141; 29-32
	3. Madhyamangiras (quoted in Mitakshara on Yaj. 3-280

V. Antyaja

Dharma Sutra	Smriti
1. Vishnu 36.7	1. Manu IV. 61; VIII. 279 2. Yajnavalkya 12.73 3. Brihadyama Smriti (quoted by Mitakshara on Yajnavalkya III. 260) 4. Atri. 199 5. Veda Vyas 1. 12. 13.

II

The next question is whether the classes indicated by the terms Antya, Antyaja, Antyavasin and Bahya are the same as those indicated by the term Asprashya which etymologically means an Untouchable. In other words are they only different names for the same class of people?

It is an unfortunate fact that the Dharma Sutras do not enable us to answer this question. The term *Asprashya* occurs in two places (once in one Sutra and twice in one Smriti). But not one gives an enumeration of the classes included in it. The same is the case with the term *Antya*. Although the word *Antya* occurs in six places (in two Sutras and four Smritis) not one enumerates who they are. Similarly, the word *Bahya* occurs in four places (in two Sutras and two Smritis), but none of them mentions what communities are included under this term. The only exception is with regard to the terms Antyavasin and Antyajas. Here again no Dharma Sutra enumerates them. But there is an enumeration of them in the Smritis. The enumeration of the Antyavasin occurs in the Smriti known as Madhyamangiras and that of the Antyajas in the Atri Smriti and Veda Vyas Smriti. Who they are, will be apparent from the following table :—

ANTYAVASIN	ANTYAJA	
Madhyamangiras	Atri	Veda Vyas
1. Chandala.	1. Nata	1. Chandala.
2. Shvapaka.	2. Meda.	2. Shvapaka.
3. Kshatta.	3. Bhilla.	3. Nata.
4. Suta.	4. Rajaka.	4. Meda.
5. Vaidehika.	5. Charmakar.	5. Bhilla.
6. Magadha.	6. Buruda.	6. Rajaka.
7. Ayogava.	7. Kayavarta.	7. Charmakar.
		8. Virat.
		9. Dasa.
		10. Bhatt.
		11. Kolika.
		12. Pushkar.

From this table it is quite clear that there is neither precision nor agreement with regard to the use of the terms Antyavasin and Antyaja. For instance Chandala and Shvapaka fall in both the categories Antyavasin and Antyaja according to Madhyamangiras and Veda Vyas. But when one compares Madhyamangiras with Atri they fall in different categories. The same is true with regard to the term Antyaja. For example while (1) Chandala and (2) Shvapaka are Antyajas according to Veda Vyas, according to Atri they are not. Again according to Atri (1) Buruda and (2) Kayavarta are Antyajas while according to Veda Vyas they are not. Again (1) Virat (2) Dasa

(3) Bhatt (4) Kolika and (5) Pushkar are Antyaja according to Veda Vyas but according to Atri they are not.

To sum up the position reached so far : neither the Dharma Sutras nor the Smritis help us to ascertain who were included in the category of Asprashya. Equally useless are the Dharma Sutras and the Smritis to enable us to ascertain whether the classes spoken of as Antyavasin, Antyaja and Bahya were the same as Asprashya. Is there any other way of ascertaining whether any of these formed into the category of Asprashya or Untouchables? It would be better to collect together whatever information is available about each of these classes.

What about the Bahyas? Who are they? What are they? Are they Untouchables? They are mentioned by Manu. To understand their position, it is necessary to refer to Manu's scheme of social classification. Manu divides the people into various categories. He first¹ makes a broad division between (1) Vaidikas and (2) Dasyus. He then proceeds to divide the Vaidikas into four sub-divisions: (1) Those inside Chaturvarnya (2) Those outside Chaturvarnya (3) Vratya and (4) Patitas or outcastes.

Whether a person was inside Chaturvarnya or outside, was a question to be determined by the Varna of the parents. If he was born of the parents of the same Varnas, he was inside the Chaturvarnya. If, on the other hand, he was born of parents of different Varnas i.e., he was the progeny of mixed marriages or what Manu calls *Varna Samkara*, then he was outside the Chaturvarnya. Those outside Chaturvarnya are further sub-divided by Manu into two classes. (1) Anulomas and (2) Pratilomas. Anulomas² were those whose fathers were of a higher Varna and mothers of a lower Varna. Pratilomas, on the other hand, were those whose fathers were of a lower Varna and the mothers of a higher Varna. Though both the Anulomas and Pratilomas were alike for the reason that they were outside the Chaturvarnya. Manu proceeds to make a distinction between them. The Anulomas, he calls *Varna Bahya* or shortly *Bahyas*, while Pratilomas he calls *Hinas*. The Hinas are lower than the Bahyas. But neither the Bahyas nor the Hinas does Manu regard as Untouchables.

1. See Manu 1, 45,

2 Ibid

Antya as a class is mentioned in Manu IV.79. Manu however does not enumerate them. Medhatithi in his commentary suggests that Antya means Mlecha, such as Meda, etc. Buhler translates Antya as a low-caste man.

There is thus nothing to indicate that the Antyas were Untouchables. In all probability, it is the name given to those people who were living in the outskirts or *end* (Anta) of the village. The reason why they came to be regarded as low is to be found in the story narrated in the Brahadaranyaka Upanishad (1.3) to which reference is made by Mr. Kane.¹ The story is that-

“Gods and Asuras had a strike and the gods thought that they might rise superior to the Asuras by the Udgithana. In this occurs the passage ‘this devata (Prana) throwing aside the sin that was death to these devatas (vak, etc.) sent it to ends of these devatas there; therefore one should not go to the people outside the Aryan pale nor to *disam anta* (the ends of the quarters) thinking, otherwise I may fall in with *papmani* i.e., death.”

The meaning of Antya turns on the connotation of the phrase ‘disam Anta’ which occurs in the passage quoted above. If the phrase ‘ends of the quarters’ can be translated as meaning the end of the periphery of the village, without its being called a far-fetched translation, we have here an explanation of what Antya originally meant. It does not suggest that the Antyas were Untouchables. It only meant that they were living on the outskirts of the village.

As to the Antyajas, what we know about them is enough to refute the view that they were Untouchables. Attention may be drawn to the following facts² :

In the Shanti Parvan (109.9) of the Mahabharat there is a reference to Antyajas who are spoken of as Soldiers in the Army. According to Sarasvativijaya, Pitamaha speaks of the seven cases of Rajakas included in the term Antyaja as Prakritis. That Prakritis mean trade guilds such as of washermen and others is quite clear from the Sangamner Plate of Bhillama II dated Saka 922 which records the grant of a village to eighteen Prakritis. Viramitrodaya says that Srenis mean the eighteen castes such as the Rajaka, etc., which are collectively called Antyajas. In view of these facts how could the Antyajas be said to have been regarded as the Untouchables?

Coming to the Antyavasin, who were they? Were they Untouchables? The term Antyavasin has been used in two different

1. Kane— History of Dharma Shastra II. Part I. p. 167.

2. Kane— History of Dharma Shastra. Vol. II. part I. p. 70

senses. In one sense it was applied to a Brahmachari living in the house of the Guru during his term of studentship. A Brahmachari was referred to as Antyavasin.¹ It probably meant one who was served last. Whatever the reason for calling a Brahmachari Antyavasin it is beyond dispute that the word in that connection could not connote Untouchability. How could it when only Brahmins, Kshatriyas and Vaishyas could become Brahmacharis. In another sense they refer to a body of people. But even in this sense it is doubtful if it means Untouchables.

According to Vas.Dh.Sutra (18.3) they are the offspring of a Sudra father and Vaishya mother. But according to Manu (V.39) they are the offspring of a Chandala father and a Nishad mother. As to the class to which they belong, the Mitakshara says they are a sub-group of the Antyajas which means that the Antyavasin were not different from the Antyajas. What is therefore true of the Antyajas may also be taken as true of the Antyavasin.

III

Stopping here to take stock of the situation as it emerges from such information as we have regarding the social condition of the people called Antyavasin, Antya, Antyaja, as is available from ancient literature, obviously it is not open to say that these classes were Untouchables in the modern sense of the term. However, for the satisfaction of those who may still have some doubt, the matter may be further examined from another point of view. Granting that they were described as Asprashya we may proceed to inquire as to what was the connotation of the term in the days of the Dharma Sutras.

For this purpose we must ascertain the rules of atonement prescribed by the Shastras. From the study of these rules we will be able to see whether the term Asprashya had the same connotation in the times of the Dharma Sutras as it has now.

Let us take the case of the Chandalas as an illustration of the class called Asprashya. In the first place, it should be remembered that the word Chandala does not denote one single homogenous class of people. It is one word for many classes of people, all different from one another. There are altogether five different classes of Chandalas who are referred to in the Shastras. They are (i) the offspring of

1. Amarkosh II Kanda Brahmabarga Verse II.

a Shudra father and a Brahmin mother,¹ (ii) the offspring of an unmarried woman² (iii) the offspring of union with a sagotra woman³ (iv) the offspring of a person who after becoming an ascetic turns back to the householder's life⁴ and (v) the offspring of a barber father and a Brahmin mother⁵.

It is difficult to say which Chandala calls for purification. We shall assume that purification is necessary in the case of all the Chandalas. What is the rule of purification prescribed by the Shastras?

Gautama in his Dharma Sutra (Chapter XIV, Verse 30) also refers to it in the following terms :—

“On touching an outcaste, a Chandala, a woman impure on account of her confinement, a woman in her courses, or a corpse and on touching persons who have touched them, he shall purify himself by bathing dressed in his clothes.”

Below is the text of the rule given by the Vasishta Dharma Sutra (Chapter IV. Verse 37) :—

“When he has touched a sacrificial post, a pyre, a burial ground, a menstruating or a lately confined woman, impure men or Chandalas and so forth, he shall bathe, submerging both his body and his head.”

Baudhayana agrees with Vasishta for he too in his Dharma Sutra (Prasna 1, Adhyaya 5, Khanda 6, Verse 5) says :—

“On touching a tree standing on a sacred spot, a funeral pyre, a sacrificial post, a Chandala or a person who sells the Veda, a Brahmin shall bathe dressed in his clothes.”

The following are the rules contained in Manu :—

V. 85 : When he (the Brahmin) has touched a Chandala, a menstruating woman, an outcaste, a woman in childbed, a corpse, or one who has touched a (corpse), he becomes pure by bathing.

V. 131 : Manu has declared that the flesh of an animal killed by dogs is pure, likewise (that) of a (beast) slain by carnivorous (animals) or by men of low caste (Dasya) such as Chandalas.

V. 143 : He who, while carrying anything in any manner, is touched by an impure (person or thing), shall become pure, if he performs an ablution, without pulling down that object.

1. According to all Dharma Sutras and Smritis including Manu Smriti.

2& 3 According to Veda Vyas Smriti (1. 910)

4. According to Yama quoted in Parasura Madhavya.

5. Anusasan Parva (29-17). He is also called Matanga.

From these texts drawn from the Dharma Sutras as well as Manu, the following points are clear :—

(1) That the pollution by the touch of the Chandala was observed by the Brahmin only.

(2) That the pollution was probably observed on ceremonial occasions only.

IV

If these conclusions are right then this is a case of Impurity as distinguished from Untouchability. The distinction between the Impure and the Untouchable is very clear. The Untouchable pollutes all while the Impure pollutes only the Brahmin. The touch of the Impure causes pollution only on a ceremonial occasion. The touch of the Untouchable causes pollution at all times.

There is another argument to which so far no reference has been made which completely disproves the theory that the communities mentioned in the Dharma Sutras were Untouchables. That argument emerges out of a comparison of the list of communities given in the Order-in-Council (which is reproduced in Chapter II) with the list given in this chapter prepared from the Smritis. What does the comparison show? As anyone can see, it shows :—

Firstly : The maximum number of communities mentioned in the Smritis is only 12, while the number of communities mentioned in the Order-in-Council comes to 429.

Secondly : There are communities which find a place in the Order-in-Council but which do not find a place in the Smritis.¹ Out of the total of 429 there are nearly 427 which are unknown to the Smritis.

Thirdly : There are communities mentioned in the Smritis which do not find a place in the Order-in-Council at all.

Fourthly : There is only one community which finds a place in both. It is the Charmakar community.²

Those who do not admit that the Impure are different from the Untouchables do not seem to be aware of these facts. But they will have to reckon with them. These facts are so significant and so telling that they cannot but force the conclusion that the two are different.

1. Out of the 429 communities mentioned in the Order-in-Council, there are only 3 which are to be found in the list given by the Smritis.

2. There are also two other communities mentioned in both lists (1) Nata and (2) Rajaka. But according to the Order-in-Council they are Untouchables in some parts of the country only. The Chamar is Untouchable throughout India.

Take the first fact. It raises a very important question.

If the two lists refer to one and the same class of people, why do they differ and differ so widely? How is it that the communities mentioned in the Shastras do not appear in the list given in the Order-in-Council? Contrarywise, how is it that the communities mentioned in the Order-in-Council are not to be found in the list given by the Shastras? This is the first difficulty we have to face.

On the assumption that they refer to the same class of people, the question, assumes a serious character. If they refer to the same class of people then obviously Untouchability which was originally confined to 12 communities came to be extended to 429 communities! What has led to this vast extension of the Empire of Untouchability? If these 429 communities belong to the same class as the 12 mentioned by the Shastras why none of the Shastras mention them? It cannot be that none of the 429 communities were not in existence at the time when the Shastras were written. If all of them were not in existence at least some of them must have been. Why even such as did exist find no mention?

On the footing that both the lists belong to the same class of people, it is difficult to give any satisfactory answer to these questions. If, on the other hand, it is assumed that these lists refer to two different classes of people, all these questions disappear. The two lists are different because the list contained in the Shastras is a list of the Impure and the list contained in the Order-in-Council is a list of the Untouchables. This is the reason why the two lists differ. The divergence in the two lists merely emphasizes what has been urged on other grounds, namely, that the classes mentioned in Shastras are only Impure and it is a mistake to confound them with the Untouchables of the present day.

Now turn to the second. If the Impure are the same as the Untouchables, why is it as many as 427 out of 429 should be unknown to the Smritis? As communities, they must have been in existence at the time of the Smritis. If they are Untouchables now, they must have been Untouchables then. Why then did the Smritis fail to mention them?

What about the third? If the Impure and the Untouchables are one and the same, why those communities which find a place in the Smritis do not find a place in the list given in the Order-in-Council? There are only two answers to this question. One is that though Untouchables at one time, they ceased to be Untouchables

subsequently. The other is that the two lists contain names of communities who fall in altogether different categories. The first answer is untenable. For, Untouchability is permanent. Time cannot erase it or cleanse it. The only possible conclusion is the second.

Take the fourth. Why should Chamar alone find a place in the lists? The answer is not that the two lists include the same class of people. If it was the true answer, then not only the Chamar but all others included in the list given by the Smritis should appear in both the lists. But they do not. The true answer is that the two lists contain two different classes of people. The reason why some of those in the list of the Impure appear in the list of the Untouchables is that the Impure at one time became Untouchables. That the Chamar appears in both is far from being evidence to support the view that there is no difference between the Impure and the Untouchables. It proves that the Chamar who was at one time an Impure, subsequently became an Untouchable and had therefore to be included in both the lists. Of the twelve communities mentioned in the Smritis as Impure communities, only the Chamar should have been degraded to the status of an Untouchable is not difficult to explain. What has made the difference between the Chamar and the other impure communities is the fact of beef-eating. It is only those among the Impure who were eating beef that became Untouchables, when the cow became sacred and beef-eating became a sin. The Chamar is the only beef-eating community. That is why it alone appears in both the lists. The answer to the question relating to the Chamars is decisive on two points. It is conclusive on the point that the Impure are different from the Untouchables. It is also decisive on the point that it is beef-eating which is the root of Untouchability and which divides the Impure and the Untouchables.

The conclusion that Untouchability is not the same as Impurity has an important bearing on the determination of the date of birth of Untouchability. Without it any attempt at fixing the date would be missing the mark.

CHAPTER XVI

WHEN DID BROKEN MEN BECOME UNTOUCHABLES?

THE foregoing researches and discussions have proved that there was a time when the village in India consisted of a Settled Community and Broken Men and that though both lived apart, the former inside the village and the latter outside it, there was no bar to social intercourse between the members of the Settled Community and the Broken Men. When the cow became sacred and beef-eating became taboo, society became divided into two — the Settled Community became a touchable community and Broken Men became an untouchable community. When did the Broken Men come to be regarded as Untouchables? That is the last question that remains to be considered. There are obvious difficulties in the way of fixing a precise date for the birth of Untouchability. Untouchability is an aspect of social psychology. It is a sort of social nausea of one group against another group. Being an outgrowth of social psychology which must have taken some time to acquire form and shape, nobody can venture to fix a precise date to a phenomenon which probably began as a cloud no bigger than man's hand and grew till it took its final all-pervading shape as we know it today. When could the seed of Untouchability be said to have been sown? If it is not possible to fix an exact date, is it possible to fix an approximate date?

An exact date is not possible. But it is possible to give an approximate date. For this the first thing to do is to begin by fixing the upper time-limit at which Untouchability did not exist and the lower time-limit at which it had come into operation.

To begin with the question of fixing the upper limit the first thing to note is that those who are called Antyajias are mentioned in the Vedas. But they were not only not regarded as Untouchables but they were not even regarded as Impure. The following extract from Kane

may be quoted in support of this conclusion. Says Kane¹

“In the early Vedic literature several of the names of castes that are spoken of in the Smritis as Antyajās occur. We have Carmanna (a tanner of hides) in the Rig Veda (VIII.8,38) the Chandala and Paulkasa occur in Vaj. S., the Vepa or Vapta (barber) even in the Rig., the Vidalakara or Bidalakar (corresponding to the Buruda of the Smritis) occurs in the Vaj.S. and the Tai.Br.Vasahpalpuli (washer woman) corresponding to the Rajakas of the Smritis in Vaj.S. But there is no indication in these passages whether they, even if they formed castes, were at all Untouchables.”

Thus in Vedic times there was no Untouchability. As to the period of the Dharma Sutras, we have seen that there was Impurity but there was no Untouchability.

Was there Untouchability in the time of Manu? This question cannot be answered offhand. There is a passage² in which he says that there are only four varnas and that there is no fifth varna. The passage is enigmatical. It is difficult to make out what it means. Quite obviously the statement by Manu is an attempt by him to settle a controversy that must have been going on at the time he wrote. Quite obviously the controversy was about the status of a certain class in relation to the system of Chaturvarnya. Equally obvious is the point which was the centre of the controversy. To put briefly, the point was whether this class was to be deemed to be included within the Chaturvarnya or whether it was to be a fifth varna quite distinct from The original four varnas. All this is quite clear. What is, however, not clear is the class to which it refers. This is because Manu makes no specific mention of the class involved in the controversy.

The verse is also enigmatical because of the ambiguity in the decision given by Manu. Manu's decision is that there is no fifth Varna. As a general proposition it has a meaning which everybody can understand. But what does this decision mean in the concrete application to the class whose status was the subject-matter of controversy. Obviously it is capable of two interpretations. It may mean that as according to the scheme of Chaturvarna there is no fifth varna the class in question must be deemed to belong to one of the four recognized varnas. But it may also mean that as in the original Varna System there is no provision for a fifth varna the class in question must be deemed to be outside the Varna System altogether.

The traditional interpretation adopted by the orthodox Hindu is that the statement in Manu refers to the Untouchables, that it was the

1. Dharma Shastra Vol II. Part I. p. 165

2. Manu X. 4

Untouchables whose status was in controversy and that it was then-status which is the subject-matter of Manu's decision. This interpretation is so firmly established that it has given rise to a division of Hindus into two classes called by different names, *Savarnas* or Hindus (those included in the Chaturvarna) and *Avarnas* or Untouchables (those excluded from the Chaturvarna). The question is, is this view correct? To whom does the text refer? Does it refer to the Untouchables? A discussion of this question may appear to be out of place and remote from the question under consideration. But it is not so. For if the text does refer to the Untouchables then it follows that Untouchability did exist in the time of Manu— a conclusion which touches the very heart of the question under consideration. The matter must, therefore, be thrashed out.

I am sure this interpretation is wrong. I hold that the passage does not refer to the Untouchables at all. Manu does not say which was the fifth class whose status was in controversy and about whose status he has given a decision in this passage. Was it the class of Untouchables or was it some other class? In support of my conclusion that the passage does not refer to Untouchables at all I rely on two circumstances. In the first place, there was no Untouchability in the time of Manu. There was only Impurity. Even the Chandala for whom Manu has nothing but contempt is only an impure person. That being so, this passage cannot possibly have any 'reference to Untouchables. In the second place, there is evidence to support the view that this passage has reference to slaves and not to Untouchables. This view is based on the language of the passage quoted from the Narada Smriti in the chapter on the Occupational Theory of Untouchability. It will be noticed that the Narada Smritis speaks of the slaves as the fifth class. If the expression fifth class in the Narada Smriti refers to slaves, I see no reason why the expression fifth class in Manu Smriti should not be taken to have reference to slaves. If this reasoning is correct, it cuts at the very root of the contention that Untouchability existed in the time of Manu and that Manu was not prepared to include them as part of the Varna System. For the reasons stated, the passage does not refer to Untouchability and there is, therefore, no reason to conclude that there was Untouchability in the time of Manu.

Thus we can be sure of fixing the upper limit for the date of the birth of Untouchability. We can definitely say that Manu Smriti did not enjoin Untouchability. There, however, remains one important

question. What is the date of Manu Smriti? Without an answer to this question it would not be possible for the average to relate the existence or non-existence of Untouchability to any particular point in time. There is no unanimity among savants regarding the date of Manu Smriti. Some regard it as very ancient and some regard it as very recent. After taking all facts into consideration Prof. Buhler has fixed a date which appears to strike the truth. According to Buhler, Manu Smriti in the shape in which it exists now, came into existence in the Second Century A.D.¹ In assigning so recent a date to the Manu Smriti Prof. Buhler is not quite alone. Mr. Daphtary has also come to the same conclusion. According to him Manu Smriti came into being after the year 185 B.C. and not before. The reason given by Mr. Daphtary is that Manu Smriti has a close connection with the murder of the Buddhist Emperor Brihadratha of the Maurya dynasty by his Brahmin Commander-in-Chief Pushyamitra Sunga and as even that took place in 185 B.C., he concludes that Manu Smriti must have been written after 185 B.C. To give support to so important a conclusion it is necessary to establish a nexus between the murder of Brihadratha Maurya by Pushyamitra and the writing of Manu Smriti by strong and convincing evidence. Mr. Daphtary has unfortunately omitted to do so. Consequently his conclusion appears to hang in the air. The establishment of such a nexus is absolutely essential. Fortunately there is no want of evidence for the purpose.

The murder of Brihadratha Maurya by Pushyamitra has unfortunately passed unnoticed. At any rate it has not received the attention it deserves. It is treated by historians as an ordinary incident between two individuals as though its origin lay in some personal quarrel between the two. Having regard to its consequences it was an epoch-making event. Its significance cannot be measured by treating it as a change of dynasty—the Sungas succeeding the Mauryas. It was a political revolution as great as the French Revolution, if not greater. It was a revolution—a bloody revolution—engineered by the Brahmins to overthrow the rule of the Buddhist Kings. That, is what the murder of Brihadratha by Pushyamitra means.

This triumphant Brahmanism was in need of many things. It of course needed to make Chaturvarna the law of the land the validity of which, was denied by the Buddhists. It needed to make animal sacrifice, which was abolished by the Buddhists, legal. But it needed

1. Buhler—*Laws of Manu* (S.B.E.) Vol. XXV. Int. CXN.

more than this. Brahmanism in bringing about this revolution against the rule of the Buddhist Kings had transgressed two rules of the customary law of the land which were accepted by all as sacrosanct and inviolable. The first rule made it a sin for a Brahmin even to touch a weapon. The second made the King's person sacred and regicide a sin. Triumphant Brahmanism wanted a sacred text, infallible in its authority, to justify their transgressions. A striking feature of the *Manu Smriti* is that it not only makes *Chaturvarna* the law of the land, it not only makes animal sacrifice legal but it goes to state when a Brahmin could justifiably resort to arms and when he could justifiably kill the King. In this the *Manu Smriti* has done what no prior *Smriti* has done. It is a complete departure. It is a new thesis. Why should the *Manu Smriti* do this? The only answer is, it had to strengthen the revolutionary deeds committed by Pushyamitra by propounding philosophic justification. This interconnection between Pushyamitra and the new thesis propounded by *Manu* shows that the *Manu Smriti* came into being some time after 185 B.C., a date not far removed from the date assigned by Prof. Buhler. Having got the date of the *Manu Smriti* we can say that in the Second Century A.D., there was no Untouchability.

Now to turn to the possibility of determining the lower limit to the birth of Untouchability. For this we must go to the Chinese travellers who are known to have visited India and placed on record what they saw of the modes and manners of the Indian people. Of these Chinese travellers Fah-Hian has something very interesting to say. He came to India in 400 A.D. In the course of his observations occurs the following passage¹ :—

“Southward from this (Mathura) is the so-called middle-country (Madhyadesa). The climate of this country is warm and equable, without frost or snow. The people are very well off, without poll-tax or official restrictions. Only those who till the royal lands return a portion of profit of the land. If they desire to go, they go; if they like to stop they stop. The kings govern without corporal punishment; criminals are fined, according to circumstances, lightly or heavily. Even in cases of repeated rebellion they only cut off the right hand. The King's personal attendants, who guard him on the right and left, have fixed salaries. Throughout the country the people kill no living thing nor drink wine, nor do they eat garlic or onion, with the exception of Chandalas only. The Chandalas are named ‘evil men’ and dwell apart from others; if they enter a town or market, they sound a piece of wood in order to separate themselves; then, men knowing they are, avoid coming in contact with them. In this country they

1. *Buddhist Records in Western India* by Beal. Introduction p. xxxviii.

do not keep swine nor fowls, and do not deal in cattle; they have no shambles or wine shops in their market-places. In selling they use cowrie shells. The Chandalas only hunt and sell flesh."

Can this passage be taken as evidence of the prevalence of Untouchability at the time of Fah-Hian? Certain parts of his description of the treatment given to the Chandalas do seem to lend support to the conclusion, that is, a case of Untouchability.

There is, however, one difficulty in the way of accepting this conclusion. The difficulty arises because the facts relate to the Chandalas. The Chandala is not a good case to determine the existence or non-existence of Untouchability. The Brahmins have regarded the Chandalas as their hereditary enemies and are prone to attribute to them abominable conduct; hurl at them low epithets and manufacture towards them a mode of behaviour which is utterly artificial to suit their venom against them. Whatever, therefore, is said against the Chandalas must be taken with considerable reservations.

This argument is not based on mere speculation. Those who doubt its cogency may consider the evidence of Bana's *Kadambari* for a different description of the treatment accorded to the Chandalas.

The story of *Kadambari* is a very complex one and we are really not concerned with it. It is enough for our purpose to note that the story is told to King Shudraka by a parrot named Vaishampayana who was the pet of a Chandala girl. The following passages from the *Kadambari* are important for our purpose. It is better to begin with Bana's description of a Chandala settlement. It is in the following terms' :—

"I beheld the barbarian settlement, a very market-place of evil deeds. It was surrounded on all sides by boys engaged in the chase, unleashing their hounds, teaching their falcons, mending snares, carrying weapons, and fishing, horrible in their attire, like demoniacs. Here and there the entrance to their dwellings, hidden by thick bamboo forests, was to be inferred, from the rising of smoke of orpiment. On all sides the enclosures were made with skulls; (627) the dust-heaps on the roads were filled with bones; the yards of the huts were miry with blood, fat, and meat chopped up. The life there consisted of hunting; the food, of flesh; the ointment, of fat; the garments, of coarse silk; the couches, of dried skins; the household attendants, of dogs; the animals for riding, of cows; the men's employment, of wine and women; the oblation to the gods, of blood; the sacrifice, of cattle. The place was the image of all hells."

It is from such a settlement that the Chandala girl starts with her parrot to the palace of King Shudraka. King Shudraka is sitting in the Hall of Audience with his Chieftains. A portress enters the Hall and makes the following announcement¹ :—

“Sire, there stands at the gate a Chandala maiden from the South, a royal glory of the race of that Tricamku who climbed the sky, but fell from it at the order of wrathful Indra. She bears a parrot in a cage, and bids me thus hail your majesty: “Sire, thou, like the ocean, art alone worthy to receive the treasures of whole earth. In the thought that this bird is a marvel and the treasure of the whole earth, I bring it to lay at thy feet, and desire to behold thee. Thou, O king, hast heard her message, and must decide!” so saying, she ended her speech. The king, whose curiosity was aroused, looked at the chiefs around him, and with the words ‘Why not? Bid her enter’ gave his permission.

Then the portress, immediately on the king’s order ushered in the Candala maiden. And she entered.”

The King and the Chieftains did not at first take notice of her. To attract attention she struck a bamboo on the mosaic floor to arouse the King. Bana then proceeds to describe her personal appearance.²

“Then the king, with the words, ‘Look yonder’ to his suite, gazed steadily upon the Candala maiden, as she was pointed out by the portress; Before her went a man, whose hair was hoary with age, whose eyes were the colour of the red lotus, whose joints, despite the loss of youth, were firm from incessant labour, whose form, though that of Matanga, was not to be despised, and who wore the white raiment meet for a court. Behind her went a Candala boy, with locks falling on either shoulder, bearing a cage, the bars of which, though of gold, shone like emerald from the reflection of the parrot’s plumage. She herself seemed by the darkness of her hue to imitate Krishna when he guilefully assumed a woman’s attire to take away the amrita seized by the demons. She was, as it were, a doll of sapphire walking alone; and over the blue garment, which reached to her ankle, there fell a veil of red silk, like evening sunshine falling on blue lotuses. The circle of her cheek was whitened by the ear-ring that hung from one ear, like the face of night inlaid with the rays of the rising moon; she had a tawny tilaka of gorocana, as if it were a third eye, like Parvati in mountaineer’s attire, after the fashion of the garb of Civa.

She was like Cri. darkened by the sapphire glory of Narayana reflected on the robe on her breast; or like Rati, stained by smoke which rose as Madana was burnt by the fire of wrathful Civa; or like Yamuna, fleeing in fear of being drawn along by the ploughshare of wild Balarama; or, from the rich lac that turned her lotus feet into budding shoots, like Durga, with her feet crimsoned by the blood of the Asura Mahisha she had just trampled upon.

Her nails were rosy from the pink glow of her fingers; the mosaic pavement seemed too hard for her touch, and she came forward, placing her feet like tender twigs upon the ground.

1. Kadambari (Ridding’s Translation) p. 6.

2. Ibid pp. 8-10.

The rays of her anklets, rising in flame-colour, seemed to encircle her as with the arms of Agni, as though,, by his love for her beauty, he would purify the strain of her birth, and so set the Creator at naught.

Her girdle was like the stars wreathed on the brow of the elephant of Love; and her necklace was a rope of large bright pearls, like the stream of Ganga just tinged by Yamuna.

Like autumn, she opened her lotus eyes; like the rainy season, she had cloudy tresses; like the circle of the Malaya Hills, she was wreathed with sandal; like the zodiac, she was decked with starry gems; like Cri, she had the fairness of a lotus in her hand; like a swoon, she entranced the heart; like a forest, she was endowed with living beauty; like the child of a goddess, she was claimed by no tribe; like sleep, she charmed the eyes; as a lotus-pool in a wood is troubled by elephants, so was she dimmed by her Matanga birth; like spirit, she might not be touched; like a letter, she gladdened the eyes alone; like the blossoms of spring she lacked the jati flower; her slender waist, like the line of Love's bow, could be spanned by the hands; with her curly hair, she was like the Lakshmi of the Yaksha king in Alaka. She had but reached the flower of her youth, and was beautiful exceedingly. And the king was amazed; and the thought arose in his mind, 'Ill-placed was the labour of the Creator in producing this beauty! For if she has been created as though in mockery of her Candala form, such that all the world's wealth of loveliness is laughed to scorn by her own, why was she born in a race with which none can mate? Surely by thought alone did Prajapati create her, fearing the penalties of contact with the Matanga race, else whence this unsullied radiance, a grace that belongs not to limbs sullied by touch? Moreover, though fair in form, by the baseness of her birth, whereby she, like a Lakshmi of the lower world, is a perpetual reproach to the gods, she, lovely as she is, causes fear in Brahma, the maker of so strange a union.' While the king was thus thinking the maiden, garlanded with flowers, that fell over her ears, bowed herself before him with a confidence beyond her years. And when she had made her reverence and stepped on to the mosaic floor, her attendant, taking the parrot, which had just entered the cage, advanced a few steps, and, showing it to the King, said: 'Sire, this parrot, by name Vaicampayana, knows the meaning of all the castras, is expert in the practice of royal policy, skilled in tales, history, and Puranas, and acquainted with songs and with musical intervals. He recites, and himself composes graceful and incomparable modern romances, love-stories, plays, and poems, and the like; he is versed in witticisms and is an unrivalled disciple of the vina, flute, and drum. He is skilled in displaying the different movements of dancing, dextrous in painting, very bold in play, ready in resources to calm a maiden angered in a lover's quarrel, and familiar with the characteristics of elephants, horses, men, and women. He is the gem of the whole earth; and in the thought that treasures belong to thee, as pearls to the ocean, the daughter of my lord has brought him hither to thy feet, O king! Let him be accepted as thine.'

On reading this description of a Chandala girl many questions arise. Firstly, how different it is from the description given by FaHian? Secondly Bana is a Vatsyayana Brahmin. This Vatsyayana Brahmin, after giving a description of the Chandala Settlement, finds

no compunction in using such eloquent and gorgeous language to describe the Chandala girl. Is this description compatible with the sentiments of utter scorn and contempt associated with Untouchability? If the Chandalas were Untouchables how could an Untouchable girl enter the King's palace? How could an Untouchable be described in the superb terms used by Bana? Far from being degraded, the Chandalas of Bana's period had Ruling Families among them. For Bana speaks of the Chandala girl as a Chandala princess¹ Bana wrote some time about 600 A.D., and by 600 A.D. the Chandalas had not come to be regarded as Untouchables. It is, therefore, quite possible that the conditions described by Fa-Hian, though bordering on Untouchability, may not be taken as amounting to Untouchability. It may only be extreme form of impurity practised by the Brahmins who are always in the habit of indulging in overdoing their part in sacerdotalism. This becomes more than plausible if we remember that when Fa-Hian came to India it was the reign of the Gupta Kings. The Gupta Kings were patrons of Brahmanism. It was a period of the triumph and revival of Brahmanism. It is quite possible that what Fa-Hian describes is not Untouchability but an extremity to which the Brahmins were prepared to carry the ceremonial impurity which had become attached to some community, particularly to the Chandalas.

The next Chinese traveller who came into India was Yuan Chwang. He came to India in 629 A.D. He stayed in India for 16 years and has left most accurate records of journeys up and down the country and of the manners and customs of the people. In the course of his description of general characters of the cities and buildings of India, he says² :—

“As to their inhabited towns and cities the quadrangular walls of the cities (or according to one text, of the various regions) are broad and high, while the thoroughfares are narrow tortuous passages. The shops are on the highways and booths, or (inns) line the roads. Butchers, fishermen, public performers, executioners, and scavengers have their habitations marked by a distinguishing sign. They are forced to live outside the city and they sneak along on the left when going about in the hamlets.”

The above passage is too short and too brief for founding a definite conclusion thereon. There is, however, one point about it which is worthy of note. Fa-Hian's description refers to the Chandalas only while the description given by Yuan Chwang applies to communities

1. Kadambari (Ridding's Translation) p. 204.

2. Wallers-Yuan Chwang Vol.I.p. 147.

other than the Chandalas. This is a point of great importance. No such argument can be levelled against the acceptance of a description since it applies to communities other than the Chandalas. It is, therefore, just possible that when Yuan Chwang came to India, Untouchability had emerged.

On the basis of what has been said above we can conclude that while Untouchability did not exist in 200 A.D., it had emerged by 600 A.D.

These are the two limits, upper and lower, for determining the birth of Untouchability. Can we fix an approximate date for the birth of Untouchability? I think we can, if we take beef-eating, which is the root of Untouchability, as the point to start from. Taking the ban on beef-eating as a point to reconnoitre from, it follows that the date of the birth of Untouchability must be intimately connected with the ban on cow-killing and on eating beef. If we can answer when cow-killing became an offence and beef-eating became a sin, we can fix an approximate date for the birth of Untouchability.

When did cow-killing become an offence?

We know that Manu did not prohibit the eating of beef nor did he make cow-killing an offence. When did it become an offence? As has been shown by Dr. D. R. Bhandarkar, cow killing was made a capital offence by the Gupta kings some time in the 4th Century A.D.

We can, therefore, say with some confidence that Untouchability was born some time about 400 A.D. It is born out of the struggle for supremacy between Buddhism and Brahmanism which has so completely moulded the history of India and the study of which is so woefully neglected by students of Indian history.

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INDEX

- Abbe Dubois : 314
- Aghnya, definition and meaning : 323
- Annals of Rajasthan : 297 f.n.
- Antyaja : 278-79
- communities included in the term : 319, 361-64
- Antyas : 360-61 Antyavasin : 361-63
- Aparaka: 313
- Ashvalayana-Orahya Sutra : 326-27
- Asoka, edicts : 330-32, 341
- Asuras, language of: 299
- Atreya Brahmana, directions on the animal sacrifice in Yajna : 334-341
- Balakrishna Nair : 297
- Bahyas : 360,363
- Bana: 375.377-78
- Bhandarkar, D. R. : 348
- Beef-eating and untouchability : 318-20, 379
- Brahmins and Beef-eating : 328, 349
- Brahma : 299
- Broken Men
- problem of : 274-75
 - among settled tribes : 276-78
 - evolution into untouchables : 315-20, 350
- Brihadratha : 373-74
- Buhler : 373
- Caldwell : 299
- Chandalas : 365-66, 372. 374-75, 376-79
- Chaturvarna : 306, 363, 373-74
- Cow-killing : 325-28. 347-49
- Damila and Damilla : 300
- Dasas : 292
- Dasyus : 299
- Defilement
- causes of: 249, 251, 253, 254-55
 - Notional and physical 257-58
- Dom : 301 f.n.
- Dravidians: 296
- Egypt: 253
- Fah-Hian: 374
- Fuidhirs : 282-83
- Ghurye : 301
- Goethe
- on historian's duty Pref. : 242-43
- Gorky. Pref. : 244
- Gotra and Kula : 303, 304
- Greeks
- conception of causes of impurity : 253
- Hebrews : 255
- Hemingsway : 314
- Hereditary Untouchables
- schedule of: 259-65
- Hinas : 363
- Holiar: 314
- Kadambari : 375
- description of Chandala settlement and Chandala girl: 375-77
- Kane
- history of Dharmasastra: 319 f.n. 324, 345 f.n.
- Kaopoia
- purificatory ceremony of Greeks : 254
- Kielhom: 298
- Kirate
- origin and application : 297
- Lichavis : 297
- Lustratio pagi* : 254

- Mahapataka
 –Gupta inscriptions on evolution into : 349,
 –moral sin : 348
- Mahars : 260, 279-80, 301, 304, 354, 355
- Madhuparka
 –use and composition of : 325-26
- Manu
 –on Chandalas : 271-72, 366
 –Smriti-date of : 373, recognition of pollution : 256, 315, 331-32, 340-42, 363, 366
- Mansahari : 329
- Mlecha : 299
- Mukerjee, R. K. : 332
- Mricchakatika
 –scenes depicting hatred of Buddhists by Hindus : 316
- Muir : 299
- Mundas : 250
- Narada Smriti : 305, 306
- Nagas : 292-98
- Newars : 297
- New Zealand, untouchability in : 253
- Oldham, C. F.
 –on Dravidians : 296, 298
- Orders-in-Council
 –Schedule of hereditary untouchables in India attached to the Government of India Act of 1935 : 259-65
- Paisachi, language and countries : 299
- Panchagavya* : 258
- Panchasaradiya Seva*
 –a kind of sacrifice : 325
- Pollution : 251-53, 255
 –territorial and communal : 258
- Prayaschit Mayukha : 315
- Pushyamitra Sunga : 373
- Rama Tarkavagisa : 299
- Rice, Mr. Stanley : 289-90
- Risley : 304
- Roman, notion of pollution : 254
- Saivites : 329
- Salindra : 297
- Sarya : 297
- Scavenging, among Aryans : 306
- Scheduled Castes, Government of India List.
 –Madras : 259
 –Bombay : 260
 –Bengal : 260-61
 –U. P. : 260-61
 –Punjab : 261
 –Bihar : 262
 –C. P. & Berar 262-264
 –Assam : 264
 –Orissa : 264-65
- Savamas : 372
- Segregation, period and range : 252
- Shakahari : 329
- Slavery, among Aryans : 305-307, 306 f.n.
- Smith Vincent : 332, 348
- Societies.—
 –Untouchability in primitive : 247-55, 266-67
 –Evolution of: 275-76
- Tamil castes, according to nasal index : 302
- Takhya, identification of : 297
- Thurston,
 order of castes : 302
- Todas : 251
- Tarde, Gabriel : 333
- Totem
 –Equivalent to Gotra in prim. societies : 303
- Tribes, nomadic and settled : 274-75
- Untouchability
 –occupational theory : 372
 –racial theory : 291-304
- Vaishnavites : 329
- Vedanta Sutra : 345
- Vedavyasa Smriti : 319
- Vegetarianism and Brahmins : 334, 349
- Walters Thomas : 347
- Yajnavalkya: 328
- Yuan Chwang : 347, 378
- Yupa, its descriptions : 335

DR. BABASAHEB AMBEDKAR

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Dr. B. R. Ambedkar and his Egalitarian Revolution

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Dr. BABASAHEB AMBEDKAR WRITINGS AND SPEECHES

To idealize the real, which more often than not is full of inequities, is a very selfish thing to do. Only when a person finds a personal advantage in things as they are that he tries to idealize the real. To proceed to make such an ideal real is nothing short of criminal. It means perpetuating iniquity on the ground that whatever is once settled is settled for all times. Such a view is opposed to all morality. No society with a social conscience has ever accepted it. On the contrary, whatever progress in improving the terms of associated life between individuals and classes has been made in the ethical doctrine that what is wrongly settled is never settled and must be resettled.

-Dr. B. R. Ambedkar
In 'Who were the Shudras?'

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